

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[861 NE2d 102, 828 NYS2d 287]

MARIA C. CRUZ, Appellant, v NEW YORK CITY TRANSIT AUTHORITY, Respondent.

Decided January 9, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 25, 2006. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Timothy J. Flaherty, J.), entered upon a jury verdict, which had found defendant and plaintiff each 50% at fault in the happening of an accident, and upon an order of that court (Timothy J. Flaherty, J.), which had denied defendant's motion, pursuant to CPLR 4404 (a) to set aside the verdict and for judgment as a matter of law dismissing the complaint, (2) granted that branch of the motion seeking to set aside the verdict and for judgment as a matter of law dismissing the complaint, (3) dismissed the complaint, and (4) modified the order accordingly.

Plaintiff commenced this negligence action seeking damages for injuries sustained when she fell down a subway staircase. Plaintiff claimed that while descending the staircase she slipped on a folded, grease-stained newspaper, which was the same newspaper that she had seen two days earlier, and that she did not step over the newspaper because she did not see it.

The majority at the Appellate Division concluded that a verdict should not be allowed to stand where it is based on testimony which is utterly incredible as a matter of law because it is manifestly untrue, physically impossible or contrary to common experience; that it was incredible that plaintiff, who did not see any newspaper before she fell, nonetheless had

observed the same newspaper two days earlier; that being unable to distinguish to any significant degree the paper which caused her fall, plaintiff had the keen powers of observation to note that the paper two days earlier was folded and had a grease stain; and that after two days of pedestrian traffic the same newspaper would remain virtually undisturbed.

Cruz v New York City Tr. Auth., 31 AD3d 688, affirmed.

HEADNOTE

Trial — Verdict — Setting Verdict Aside

In a negligence action arising from plaintiff's fall down a subway staircase wherein plaintiff claimed that she slipped on a folded, grease-stained newspaper, the Appellate Division properly reversed a judgment entered upon a jury verdict finding plaintiff and defendant each 50% at fault in the happening of the accident, and properly dismissed the complaint, for the reasons stated at the Appellate Division, which concluded that a verdict should not be allowed to stand where it is based on testimony which is utterly incredible as a matter of law because it is manifestly untrue, physically impossible or contrary to common experience; that it was incredible that plaintiff, who did not see the newspaper before she fell, nonetheless had observed the newspaper two days earlier; that being unable to distinguish to any significant degree the paper which caused her fall, plaintiff had the keen powers of observation to note that the paper two days earlier was folded and had a grease stain; and that after two days of pedestrian traffic the same newspaper would remain virtually undisturbed.

APPEARANCES OF COUNSEL

Ephrem J. Wertenteil, New York City, for appellant.

Wallace D. Gossett, Brooklyn, and *Anita Isola* for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, for the reasons stated in the memorandum by the Appellate Division (31 AD3d 688 [2006]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

GISELE AMBROISE, Appellant, v NEW YORK CITY TRANSIT AUTHORITY, Respondent.

Submitted November 13, 2006; decided January 9, 2007

Reported below, 33 AD3d 573.

Motion, insofar as it seeks leave to appeal from that portion

of the Appellate Division order that denied appellant's motion to renew, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of CHARMAYNE COATES, Appellant, v GREGORY LEE, Respondent.

Submitted November 27, 2006; decided January 9, 2007

Reported below, 32 AD3d 539.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

HUNTS POINT TERMINAL PRODUCE COOPERATIVE ASSOCIATION, INC., Appellant, v NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION et al., Respondents.

Submitted November 20, 2006; decided January 9, 2007

Reported below, 36 AD3d 234.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

MURIEL SIEBERT & CO., INC., Appellant, v INTUIT INC., Respondent.

Submitted January 2, 2007; decided January 9, 2007

Reported below, 32 AD3d 284.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed within seven days.

JULIUS R. NASSO, Appellant, v LOEB & LOEB, LLP, Respondent.

Submitted November 13, 2006; decided January 9, 2007

Reported below, 19 AD3d 465.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOHN PARK, Respondent, v JOHN A. KAPICA et al., Appellants.

Submitted January 2, 2007; decided January 9, 2007

Reported below, 25 AD3d 802.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of JOHN PARK, Appellant, v JOHN A. KAPICA et al., Respondents.

Submitted January 2, 2007; decided January 9, 2007

Reported below, 25 AD3d 801.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

ERIC PARKER, Appellant, v MOBIL OIL CORPORATION et al., Respondents. (And Third-Party Actions.)

Submitted December 4, 2006; decided January 9, 2007

Reported below, 16 AD3d 648.

Motion for reargument denied [*see* 7 NY3d 434].

RYSZARD PILCH, Appellant, v BOARD OF EDUCATION OF CITY OF NEW YORK et al., Respondents.

Submitted November 13, 2006; decided January 9, 2007

Reported below, 27 AD3d 711.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

FRANCES RAGUSA, Appellant, v PHILIP RAGUSA, Respondent.

Submitted November 13, 2006; decided January 9, 2007

Reported below, 28 AD3d 733.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CHASKIE J. ROSENBERG, Appellant, v METLIFE, INC., et al., Respondents.

Submitted December 18, 2006; decided January 9, 2007

Motion by National Employment Lawyers Association/New York for an order permitting movant to participate in oral argument on consideration of the certified question denied.

CHASKIE J. ROSENBERG, Appellant, v METLIFE, INC., et al., Respondents.

Submitted December 18, 2006; decided January 9, 2007

Motion by the Securities Industry and Financial Markets Association for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

CHASKIE J. ROSENBERG, Appellant, v METLIFE, INC., et al., Respondents.

Submitted January 2, 2007; decided January 9, 2007

Motion by Liddle & Robinson, L.L.P. for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of SABINA JESSICA S. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; PASQUALE S., Appellant.

Submitted December 11, 2006; decided January 9, 2007

Reported below, 32 AD3d 857.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of LEROY J. TAYLOR, Respondent, v TAMMY J. STAPLES, Appellant. (Proceeding No. 1.)

In the Matter of TAMMY STAPLES, Appellant, v LEROY TAYLOR, Respondent. (Proceeding No. 2.)

Submitted November 20, 2006; decided January 9, 2007

Reported below, 33 AD3d 1089.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellant's motion to vacate an order of Family Court, dismissed upon the ground that such portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Estate of MARGARET M. TOMECK, Deceased. EDWARD M. TOMECK, as Executor of MARGARET M. TOMECK, Deceased, Respondent-Appellant; ROBERT CHRISTOPHER, as Commissioner of Social Services of Saratoga County, Appellant-Respondent, et al., Respondent.

Submitted December 18, 2006; decided January 9, 2007

Reported below, 29 AD3d 156.

Motion by Andrew M. Cuomo, as Attorney General of the State of New York, for an order permitting movant to participate in oral argument of the appeal granted.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v APP INTERNATIONAL FINANCE COMPANY, B.V., et al., Appellants. (And Another Action.)

Submitted November 13, 2006; decided January 9, 2007

Reported below, 29 AD3d 394.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[862 NE2d 472, 830 NYS2d 525]

In the Matter of the Claim of THOMAS SOMERS, Respondent, v
DEMCO et al., Respondents, and SPECIAL DISABILITY FUND,
Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Decided January 11, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered February 9, 2006. The Appellate Division affirmed a decision of the Workers' Compensation Board, which had determined that claimant's request for reimbursement out of the Special Disability Fund was timely filed.

Matter of Somers v Demco, 26 AD3d 621, affirmed.

HEADNOTE

Workers' Compensation — Special Funds — Timely Claim for Reimbursement

The State Insurance Fund timely filed a claim for reimbursement from the Special Disability Fund on behalf of a worker whose claim was closed without a finding of permanent disability, after the 104-week period had expired, but was later reopened and resulted in a determination of permanency. Where the Special Disability Fund is responsible for reimbursement, the notice for reimbursement must be filed with the Workers' Compensation Board, in writing, prior to the final determination of permanency, but no more than 104 weeks after the date of disability or, in the event of reopening a closed case, no later than a permanency determination upon reopening (Workers' Compensation Law § 15 [8] [f]). Pursuant to section 15 (8) (f), the 104-week limitation does not apply to a case that has been closed without a finding of permanent disability and then reopened, even when the closure occurs more than 104 weeks after the date of disability.

APPEARANCES OF COUNSEL

Melissa A. Day, Albany, for appellant.

Thomas P. Etzel, Buffalo, for State Insurance Fund, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

In order to promote the employment of disabled people, the Legislature created the Special Disability Fund. That Fund reimburses carriers and employers for part of their liability under the Workers' Compensation Law to a worker who becomes permanently disabled, if that worker was previously suffering from a "permanent physical impairment," and the preexisting impairment causes the permanent disability to be "materially and substantially greater" than it would have been otherwise (Workers' Compensation Law § 15 [8] [a], [d], [h]).

Workers' Compensation Law § 15 (8) (f) provides that, in cases where the Special Disability Fund is required to pay for reimbursement, "notice or claim of the right to such reimbursement shall be filed with the [workers' compensation] board in writing prior to the final determination that the resulting disability is permanent, but in no case more than one hundred four weeks after the date of disability or death or fifty-two weeks after the date that a claim for compensation is filed with the chair, whichever is later, *or in the event of the reopening of a case theretofore closed, no later than the determination of permanency upon such reopening*" (emphasis added).

At issue here is the interpretation of the emphasized clause. A worker's claim was closed, without a finding of permanent disability, after the 104-week period had expired, but the case was later reopened. The carrier, the State Insurance Fund, filed a claim with the Special Disability Fund after the reopening. The case ultimately resulted in a determination of permanency, and it is conceded that the Special Disability Fund has liability if the claim was timely.

As the Special Disability Fund points out, applying the final clause of section 15 (8) (f) to this case produces a somewhat odd result: A claim that became time-barred on the expiration of the statutory 104-week period is revived solely because the workers' compensation case was subsequently closed and then reopened. The Fund argues that, to avoid this result, we should read the final clause as applicable only to cases that are closed before the expiration of the 104-week period, and reopened thereafter (*cf. Matter of Hirschhorn v L & N Fruit & Produce*, 43 AD2d 1007, 1008 [3d Dept 1974] [Greenblott, J., concurring]). This reading, however, is not supported by the language of the statute and

would undermine its purpose—to permit an application to the Fund where a claim that initially seemed unlikely to result in a finding of permanent disability turns out, on reopening, to be a more serious claim than it first appeared. We therefore interpret section 15 (8) (f) to provide that the 104-week limitation does not apply to a case that has been closed without a finding of permanent disability and then reopened, even when the closure occurs more than 104 weeks after the date of disability (*see Matter of Burch v Hawkins*, 9 AD2d 6, 8 [3d Dept 1959]). The Appellate Division was correct in holding the State Insurance Fund's claim to be timely.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

MITCHELL BENESOWITZ, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY et al., Respondents.

Submitted January 2, 2007; decided January 11, 2007

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

In the Matter of HASAUN GRIGGER, Appellant, v GLENN S. GOORD, as Commissioner of Correctional Services, Respondent.

Submitted November 20, 2006; decided January 11, 2007

Reported below, 2006 NY Slip Op 77286(U), 72066(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of CRAIG JOOSTEN, SR., Appellant, v CAROL JOOSTEN, Also Known as CAROL BOOTHE, Respondent.

Submitted November 20, 2006; decided January 11, 2007

Reported below, 32 AD3d 1030.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MAUHOI TUNG, Appellant, v HENRY CHIU, D.D.S., Doing Business as MOTT STREET DENTAL SERVICES, P.C., Respondent.

Submitted December 4, 2006; decided January 11, 2007

Motion for reargument of motion for leave to appeal denied [see 7 NY3d 861].

MURIEL SIEBERT & CO., INC., Appellant, v INTUIT INC., Respondent.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 32 AD3d 284.

Motion by the Association of the Bar of the City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

P & N TIFFANY PROPERTIES, INC., Appellant, v VILLAGE OF TUCK-AHOE, Respondent.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 33 AD3d 61.

Motion by Vivian L. Hausch to withdraw as counsel for appellant on the appeal herein granted.

In the Matter of JOHN PARK, Respondent, v JOHN A. KAPICA et al., Appellants.

In the Matter of JOHN PARK, Appellant, v JOHN A. KAPICA et al., Respondents.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 25 AD3d 801, 802.

Motion by Police Conference of New York, Inc. for leave to file a brief amicus curiae on the appeals herein granted. Three copies of a brief with amended caption may be served and an original and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEITH
ANTWINE, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 33 AD3d 215.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EN-
RIQUE HERNANDEZ, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 32 AD3d 967.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
R. LAGANA, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 13 Misc 3d 110.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICO
LEGRAND, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 28 AD3d 318.

Motion by Innocence Project, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICO
LEGRAND, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 28 AD3d 318.

Motion by Legal Aid Society et al. for leave to file a brief and appendix amici curiae on the appeal herein granted. Three copies of the brief, with appendix attached thereto, may be served and an original and 24 copies of the brief, with appendix attached thereto, filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA
LINER, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 33 AD3d 479.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SCOTT
PARILLA, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 33 AD3d 363.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS
RIVERA, Appellant.

Submitted January 8, 2007; decided January 11, 2007

Reported below, 27 AD3d 311.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEPHEN SEDLOCK, Appellant.

Submitted January 2, 2007; decided January 11, 2007

Motion, pursuant to CPL 460.60 (3), to extend the time for argument or submission of the appeal and to continue the stay granted and stay continued pending determination of the appeal.

SECURITY PACIFIC NATIONAL BANK, Respondent, v TRACIE EVANS, Appellant, et al., Defendants.

Submitted January 2, 2007; decided January 11, 2007

Reported below, 31 AD3d 278.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

XAVIER CONTRACTING, LLC, Respondent, v CITY OF RYE et al., Appellants.

Submitted November 13, 2006; decided January 11, 2007

Reported below, 29 AD3d 687.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MICHAEL ZAFRAN, Appellant, v LISA ZAFRAN, Respondent.

Submitted October 10, 2006; decided January 11, 2007

Reported below, 306 AD2d 468.

Motion for leave to appeal denied. Motion for a preference dismissed as academic.

[862 NE2d 782, 830 NYS2d 691]

VICTOR CORONEL, Appellant, v THE CHASE MANHATTAN BANK,
Respondent.

Decided January 16, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 30, 2005. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Bronx County (Kenneth L. Thompson, J.), which had denied defendant's motion for summary judgment dismissing the complaint, (2) granted the motion and (3) dismissed the complaint. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as reversed by this Court, properly made?"

Plaintiff commenced an action to recover damages for injuries sustained when he was shot in the face during an attempted robbery while using defendant bank's ATM.

The Appellate Division concluded that plaintiff's assertion that defendant's outdoor ATM was located in a "high crime" neighborhood was insufficient to rebut defendant's prima facie showing that there was no prior pattern of criminal activity at this particular ATM location which might have made the assault on plaintiff foreseeable; and that, in light of the unforeseeability determination, plaintiff's claim that the lighting over the ATM was "very dim," with some bulbs on and some off, in alleged violation of a statute, was insufficient to defeat defendant's summary judgment motion where there was no evidence that the lighting conditions, even if dimmer than required, were a proximate cause of the attempted robbery and assault.

Coronel v Chase Manhattan Bank, 19 AD3d 310, affirmed.

HEADNOTE**Negligence — Foreseeability — Assault and Attempted Robbery at ATM**

In an action to recover damages for injuries plaintiff sustained when he was shot in the face during an attempted robbery while using defendant bank's ATM, the Appellate Division properly reversed Supreme Court and properly granted summary judgment to defendant. Plaintiff failed to raise an issue of fact sufficient to defeat defendant's summary judgment motion.

APPEARANCES OF COUNSEL

Victor Coronel, appellant pro se.

Barry, McTiernan & Moore, New York City (*Anthony J. McNulty* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered as unnecessary. We agree with the Appellate Division that plaintiff failed to raise an issue of fact sufficient to defeat defendant bank's summary judgment motion.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

In the Matter of SUSAN BABA, Appellant, v MARTIN EVANS et al.,
Respondents.

Submitted January 8, 2007; decided January 16, 2007

Reported below, 2006 NY Slip Op 75444(U), 66497(U).

Motion by Gilbert Lau for leave to file a brief amicus curiae on the appeal herein denied. Motion for poor person relief dismissed as academic.

In the Matter of SUSAN BABA, Appellant, v MARTIN EVANS et al.,
Respondents.

Submitted January 8, 2007; decided January 16, 2007

Reported below, 2006 NY Slip Op 75444(U), 66497(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARIANN BERLINER, Respondent, v IRA BERLINER, Appellant.
(And Another Action.)

Submitted November 13, 2006; decided January 16, 2007

Reported below, 33 AD3d 745.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of the Arbitration between BINGHAMTON CITY SCHOOL DISTRICT et al., Respondents, and BRIAN PEACOCK, Appellant.

Submitted January 8, 2007; decided January 16, 2007

Reported below, 33 AD3d 1074.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

BLAYLOCK & PARTNERS, L.P., Respondent, v 609 FIFTH AVENUE PARTNERS L.L.C., Appellant, et al., Defendant.

Submitted November 20, 2006; decided January 16, 2007

Reported below, 29 AD3d 476.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Guardianship of CHANTEL NICOLE R., Appellant. PAMELA R., Respondent; ATTORNEY GENERAL OF THE STATE OF NEW YORK, Intervenor.

Submitted January 8, 2007; decided January 16, 2007

Reported below, 34 AD3d 99.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

COHEN TAUBER SPIEVAK & WAGNER, LLP, Respondent, v JEFFREY ALNWICK et al., Appellants.

Submitted November 27, 2006; decided January 16, 2007

Reported below, 33 AD3d 562.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LESLEE FERRERO, Individually and as Administratrix of PETER FERRERO, Deceased, Appellant, v BEST MODULAR HOMES, INC., Defendant and Third-Party Plaintiff-Respondent, and LAWN RANGER, Doing Business as K.O. PROPERTY MANAGEMENT, et al., Defendants and Third-Party Defendants.

Submitted December 11, 2006; decided January 16, 2007

Reported below, 33 AD3d 847.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DONNA M. HUGHES, Respondent, v PAUL F. FARREY, Appellant.

Submitted December 4, 2006; decided January 16, 2007

Reported below, 30 AD3d 244.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NAHSHON JACKSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 4, 2006; decided January 16, 2007

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS PEREZ, Appellant.

Submitted January 8, 2007; decided January 16, 2007

Reported below, 2006 NY Slip Op 74396(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* EDWARD BROWN,
Appellant, *v* JAMES CONWAY, as Superintendent of Attica
Correctional Facility, Respondent.

Submitted November 27, 2006; decided January 16, 2007

Motion for leave to appeal dismissed upon the ground that this motion for leave to appeal does not lie from the order of the individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of DONALD SCHUPAK, Appellant, *v* ZONING BOARD
OF APPEALS OF THE TOWN OF MARBLETOWN *et al.*, Respon-
dents.

Submitted November 20, 2006; decided January 16, 2007

Reported below, 31 AD3d 1018.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's dismissal of the petition, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining part of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(January 1, 2007 through January 31, 2007)

Bellamy, Matter of, <i>v</i> New York City Bd. of Educ.	3d Dept: 34 AD3d 891	1/26/07
Ford, Matter of (Commissioner of Labor)	App Div, 3d Dept, June 1, 2006	1/31/07
Maltsev, Matter of, <i>v</i> New York State Div. of Human Rights	2d Dept: 2006 NY Slip Op 76214(U)	1/3/07
People <i>v</i> Bayon	Niagara County Ct, Oct. 11, 2006	1/31/07

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APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2007 through January 31, 2007)

Wyatt v Regional Tr. Serv. 4th Dept: 34 AD3d 1279 1/31/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2007 through January 31, 2007)

People v Ackridge (Ronald)	App Div, 2d Dept: 2006 NY Slip Op 81880(U) (Westchester)	dismissed 1/26/07 (Kaye, Ch.J.)
People v Ackridge (Ronald)	2d Dept: 31 AD3d 654 (Westchester)	denied 1/18/07 (Smith, J.)
People v Adamus	4th Dept: 31 AD3d 1210 (Niagara)	denied 1/8/07 (Read, J.)
People v Allen	1st Dept: 33 AD3d 514 (NY)	denied 1/24/07 (Smith, J.)
People v Anderson	4th Dept: 34 AD3d 1318 (Onondaga)	denied 1/12/07 (Grafteo, J.)
People v Anonymous	2d Dept: 31 AD3d 460 (Kings)	denied 1/5/07 (Read, J.)
People v Aponte	1st Dept: 34 AD3d 298 (Bronx)	denied 1/31/07 (Kaye, Ch.J.)
People v Artis	App Div, 2d Dept: 2006 NY Slip Op 80211(U) (Rockland)	dismissed 1/10/07 (Read, J.)
People v Ashcroft	1st Dept: 33 AD3d 429 (NY)	denied 1/12/07 (Pigott, J.)
People v Assadourian	1st Dept: 33 AD3d 563 (NY)	denied 1/10/07 (Read, J.)
People v Augugliaro	2d Dept: 29 AD3d 600 (Queens)	denied 1/8/07 (Read, J.)
People v Barnes	2d Dept: 33 AD3d 811 (Kings)	denied 1/19/07 (Read, J.)
People v Barnett	1st Dept: 33 AD3d 568 (NY)	denied 1/24/07 (Smith, J.)
People v Barnhill	3d Dept: 34 AD3d 933 (Greene)	denied 1/10/07 (Kaye, Ch.J.)
People v Behlin	1st Dept: 33 AD3d 390 (NY)	denied 1/24/07 (Smith, J.)
People v Bellamy	3d Dept: 34 AD3d 937 (Broome)	denied 1/17/07 (Pigott, J.)
People v Benton	4th Dept: 32 AD3d 1245 (Erie)	denied 1/8/07 (Read, J.)
People v Bishop	4th Dept: 34 AD3d 1226 (Erie)	denied 1/31/07 (Kaye, Ch.J.)

People v Boisseau	1st Dept: 33 AD3d 568 (NY)	denied 1/12/07 (Grafteo, J.)
People v Booker	1st Dept: 33 AD3d 371 (NY)	denied 1/8/07 (Read, J.)
People v Bowman	3d Dept: 34 AD3d 935 (Schenectady)	denied 1/3/07 (Kaye, Ch.J.)
People v Brito	4th Dept: 32 AD3d 1365 (Oneida)	denied 1/19/07 (Read, J.)
People v Brooks	3d Dept: 32 AD3d 616 (Chemung)	denied 1/22/07 (Pigott, J.)
People v Brown	1st Dept: 32 AD3d 737 (NY)	denied 1/17/07 (Pigott, J.)
People v Browne	App Div, 1st Dept: 2006 NY Slip Op 77131(U) (NY)	denied 1/8/07 (Read, J.)
People v Broxton (Kareem)	2d Dept: 34 AD3d 490 (Queens)	denied 1/22/07 (Kaye, Ch.J.)
People v Broxton (Kareem)	2d Dept: 34 AD3d 491 (Queens)	denied 1/22/07 (Kaye, Ch.J.)
People v Burney	4th Dept: 32 AD3d 1366, 30 AD3d 1082 (Erie)	denied reconsideration 1/3/07 (Kaye, Ch.J.)
People v Bynum	2d Dept: 33 AD3d 1017 (Suffolk)	denied 1/10/07 (Kaye, Ch.J.)
People v Cain	4th Dept: 34 AD3d 1256 (Niagara)	denied 1/12/07 (Grafteo, J.)
People v Cambel	1st Dept: 26 AD3d 255 (Bronx)	denied reconsideration 1/8/07 (Read, J.)
People v Campbell	1st Dept: 26 AD3d 255 (Bronx)	denied reconsideration 1/8/07 (Read, J.)
People v Carter	4th Dept: 34 AD3d 1342 (Erie)	denied 1/10/07 (Read, J.)
People v Castellano	1st Dept: 33 AD3d 390 (NY)	denied 1/22/07 (Smith, J.)
People v Cespedes	1st Dept: 35 AD3d 266 (NY)	denied 1/22/07 (Grafteo, J.)
People v Coleman	4th Dept: 32 AD3d 1239 (Monroe)	denied 1/19/07 (Read, J.)
People v Coley	1st Dept: 33 AD3d 383 (NY)	denied 1/19/07 (Read, J.)
People v Conyers	2d Dept: 33 AD3d 929 (Queens)	denied 1/22/07 (Pigott, J.)
People v Copeland	2d Dept: 33 AD3d 931 (Kings)	denied 1/12/07 (Grafteo, J.)
People v Costanzo	App Div, 3d Dept, 10/27/06 (Montgomery)	dismissed 1/26/07 (Pigott, J.)

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People v Crosby	2d Dept: 33 AD3d 719 (Kings)	denied 1/25/07 (Smith, J.)
People v Cruz	3d Dept: 35 AD3d 898 (Chenango)	denied 1/23/07 (Grafteo, J.)
People v Dennis	4th Dept: 34 AD3d 1259 (Erie)	denied 1/12/07 (Grafteo, J.)
People v Deveau	App Div, 1st Dept: 2006 NY Slip Op 78547(U) (Bronx)	denied 1/8/07 (Read, J.)
People v Dewindt	App Div, 2d Dept: 2006 NY Slip Op 79186(U) (Kings)	dismissed 1/8/07 (Grafteo, J.)
People v Diaz	1st Dept: 33 AD3d 390 (Bronx)	denied 1/10/07 (Read, J.)
People v Dolan	2d Dept: 33 AD3d 721 (Suffolk)	denied 1/12/07 (Grafteo, J.)
People v Eastman	2d Dept: 32 AD3d 965 (Queens)	denied 1/10/07 (Read, J.)
People v Edwards	2d Dept: 35 AD3d 759 (Suffolk)	denied 1/22/07 (Grafteo, J.)
People v Emmons	App Div, 4th Dept, 12/5/06 (Onondaga)	dismissed 1/11/07 (Ciparick, J.)
People v Ennett	2d Dept: 34 AD3d 493 (Kings)	denied 1/12/07 (Grafteo, J.)
People v Epps	2d Dept: 33 AD3d 813 (Kings)	denied 1/8/07 (Read, J.)
People v Evans	4th Dept: 34 AD3d 1301 (Erie)	denied 1/23/07 (Grafteo, J.)
People v Faccio	3d Dept: 33 AD3d 1041 (Greene)	denied 1/10/07 (Kaye, Ch.J.)
People v Fama	2d Dept: 34 AD3d 596 (Kings)	denied 1/23/07 (Grafteo, J.)
People v Fagnoli	County Ct, 11/29/06 (Monroe)	denied 1/23/07 (Grafteo, J.)
People v Farrell	County Ct, 9/25/06 (Erie)	denied 1/24/07 (Smith, J.)
People v Figueroa	1st Dept: 33 AD3d 423 (Bronx)	denied 1/17/07 (Pigott, J.)
People v Flowers	2d Dept: 34 AD3d 506 (Orange)	denied 1/22/07 (Kaye, Ch.J.)
People v Floyd	2d Dept: 34 AD3d 494 (Kings)	denied 1/10/07 (Read, J.)
People v Forte	App Div, 1st Dept: 2006 NY Slip Op 76494(U) (Bronx)	denied 1/5/07 (Read, J.)
People v Frederick	1st Dept: 33 AD3d 542 (NY)	denied 1/10/07 (Read, J.)
People v Fryar	1st Dept: 32 AD3d 792 (NY)	denied 1/25/07 (Smith, J.)
People v Gawlick	4th Dept: 32 AD3d 1207 (Monroe)	denied 1/8/07 (Read, J.)

People v George	1st Dept: 33 AD3d 435 (Bronx)	denied 1/17/07 (Pigott, J.)
People v Gilyard	2d Dept: 32 AD3d 1046 (Kings)	denied 1/18/07 (Smith, J.)
People v Godfrey	2d Dept: 33 AD3d 623 (Suffolk)	denied 1/10/07 (Read, J.)
People v Goldston	3d Dept: 34 AD3d 922 (Greene)	denied 1/3/07 (Kaye, Ch.J.)
People v Gonzalez	1st Dept: 34 AD3d 358 (Bronx)	denied 1/12/07 (Grafteo, J.)
People v Graham (Charles)	1st Dept: 33 AD3d 426 (NY)	denied 1/18/07 (Smith, J.)
People v Graham (Jermaine)	App Term, 2d Dept: 14 Misc 3d 18 (Orange)	denied 1/8/07 (Read, J.)
People v Gregory	2d Dept: 33 AD3d 722 (Kings)	denied 1/24/07 (Smith, J.)
People v Griffin	App Div, 2d Dept: 2006 NY Slip Op 80839(U) (Kings)	dismissed 1/11/07 (Ciparick, J.)
People v Guglielmo	App Term, 2d Dept: 13 Misc 3d 138(A) (Suffolk)	denied 1/25/07 (Smith, J.)
People v Hall	4th Dept: 32 AD3d 1203 (Erie)	denied 1/10/07 (Read, J.)
People v Harewood	4th Dept: 34 AD3d 1254 (Monroe)	denied 1/23/07 (Grafteo, J.)
People v Harinarin	1st Dept: 33 AD3d 455 (NY)	denied 1/19/07 (Read, J.)
People v Hayward	App Div, 2d Dept: 2006 NY Slip Op 73617(U) (Kings)	denied reconsideration 1/10/07 (Read, J.)
People v Hazen	App Div, 3d Dept, 11/8/06 (Delaware)	dismissed 1/16/07 (Kaye, Ch.J.)
People v Hearn	2d Dept: 33 AD3d 722 (Kings)	denied 1/25/07 (Smith, J.)
People v Henson	App Div, 2d Dept: 2006 NY Slip Op 77324(U) (Kings)	denied 1/10/07 (Kaye, Ch.J.)
People v Holder	1st Dept: 32 AD3d 734 (NY)	denied 1/18/07 (Smith, J.)
People v Holifield	4th Dept: 34 AD3d 1316 (Onondaga)	denied 1/19/07 (Read, J.)
People v Hylton	App Div, 1st Dept: 2006 NY Slip Op 78929(U) (NY)	dismissed 1/18/07 (Smith, J.)
People v Jackson	4th Dept: 34 AD3d 1304 (Onondaga)	denied 1/10/07 (Read, J.)
People v James	1st Dept: 33 AD3d 445 (NY)	denied 1/24/07 (Smith, J.)
People v Johnson	1st Dept: 35 AD3d 321 (NY)	denied 1/22/07 (Grafteo, J.)

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People v Jones	App Div, 1st Dept: 2006 NY Slip Op 78316(U) (NY)	denied reconsideration 1/8/07 (Grafteo, J.)
People v Jordan	App Div, 3d Dept, 9/22/06 (Washington)	denied 1/22/07 (Smith, J.)
People v Kelly	4th Dept: 34 AD3d 1341 (Erie)	denied 1/12/07 (Grafteo, J.)
People v Keys	1st Dept: 26 AD3d 255 (Bronx)	denied reconsideration 1/8/07 (Read, J.)
People v Krakowski	App Term, 2d Dept: 14 Misc 3d 139(A) (Nassau)	denied 1/17/07 (Pigott, J.)
People v LaMountain	App Div, 3d Dept, 11/3/06 (Albany)	denied 1/27/07 (Pigott, J.)
People v LaPetina	2d Dept: 34 AD3d 836 (Queens)	granted 1/11/07 (Pigott, J.)
People v Lingle	1st Dept: 34 AD3d 287 (NY)	denied ¹ 1/11/07 (Grafteo, J.)
People v Lopez	3d Dept: 33 AD3d 1062 (Washington)	denied 1/8/07 (Read, J.)
People v Maldonado	2d Dept: 34 AD3d 497 (Suffolk)	denied 1/10/07 (Kaye, Ch.J.)
People v Mann	2d Dept: 32 AD3d 865 (Orange)	denied 1/24/07 (Smith, J.)
People v Matthie	3d Dept: 34 AD3d 987 (St. Lawrence)	denied 1/12/07 (Grafteo, J.)
People v Matute	2d Dept: 32 AD3d 1048 (Queens)	denied 1/5/07 (Read, J.)
People v May	1st Dept: 32 AD3d 766 (NY)	denied 1/19/07 (Read, J.)
People v McBride	App Div, 1st Dept: 2006 NY Slip Op 79468(U) (NY)	dismissed 1/19/07 (Read, J.)
People v McCormack	App Div, 4th Dept, 10/23/06 (Monroe)	dismissed 1/25/07 (Smith, J.)
People v McLee	4th Dept: 32 AD3d 1315 (Onondaga)	denied 1/22/07 (Smith, J.)
People v McShane	2d Dept: 33 AD3d 632 (Suffolk)	denied 1/5/07 (Read, J.)
People v Mejia-Garcia	1st Dept: 34 AD3d 233 (NY)	denied 1/26/07 (Pigott, J.)
People v Moore	4th Dept: 32 AD3d 1354 (Monroe)	denied 1/24/07 (Smith, J.)
People v Morgan (Richard)	App Div, 2d Dept: 2006 NY Slip Op 80976(U) (Rockland)	dismissed 1/11/07 (Pigott, J.)

1. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758 [2006]).

People v Morgan (Richard)	App Div, 2d Dept: 2006 NY Slip Op 80976(U) (Rockland)	denied reconsideration 1/30/07 (Pigott, J.)
People v Muir	3d Dept: 33 AD3d 1058 (Broome)	denied 1/25/07 (Smith, J.)
People v Murphy	1st Dept: 33 AD3d 426 (Bronx)	denied 1/19/07 (Kaye, Ch.J.)
People v Navarro	App Div, 3d Dept, 12/11/06 (Albany)	dismissed 1/31/07 (Ciparick, J.)
People v Nealy	2d Dept: 32 AD3d 400 (Nassau)	denied 1/8/07 (Read, J.)
People v Nichols	4th Dept: 32 AD3d 1316 (Oneida)	denied 1/10/07 (Read, J.)
People v Norris (Elbert)	2d Dept: 34 AD3d 500 (Kings)	denied 1/12/07 (Grafteo, J.)
People v Norris (Tyrell)	2d Dept: 34 AD3d 501 (Kings)	denied 1/12/07 (Grafteo, J.)
People v Ogarro	2d Dept: 33 AD3d 1025 (Nassau)	denied 1/12/07 (Grafteo, J.)
People v Opperisano	2d Dept: 33 AD3d 729 (Kings)	denied 1/5/07 (Read, J.)
People v Ortiz	4th Dept: 32 AD3d 1366 (Cayuga)	denied 1/25/07 (Smith, J.)
People v Owens	2d Dept: 34 AD3d 700 (Kings)	denied 1/10/07 (Read, J.)
People v Palmer	2d Dept: 34 AD3d 701 (Kings)	denied 1/23/07 (Grafteo, J.)
People v Passalacqua	2d Dept: 32 AD3d 970 (Suffolk)	denied 1/5/07 (Read, J.)
People v Pena	1st Dept: 33 AD3d 374 (Bronx)	denied 1/25/07 (Smith, J.)
People v Perez	1st Dept: 33 AD3d 490 (NY)	denied 1/26/07 (Pigott, J.)
People v Peterson	App Div, 1st Dept: 2006 NY Slip Op 78526(U) (Bronx)	denied 1/22/07 (Pigott, J.)
People v Phillips	4th Dept: 34 AD3d 1231 (Monroe)	denied 1/23/07 (Grafteo, J.)
People v Provitt	1st Dept: 33 AD3d 570 (NY)	denied 1/8/07 (Read, J.)
People v Reid	1st Dept: 33 AD3d 439 (NY)	denied 1/10/07 (Kaye, Ch.J.)
People v Rennie	2d Dept: 34 AD3d 504 (Kings)	denied 1/10/07 (Kaye, Ch.J.)
People v Rios	1st Dept: 34 AD3d 375 (Bronx)	denied 1/23/07 (Grafteo, J.)
People v Rock	1st Dept: 33 AD3d 334 (NY)	denied 1/10/07 (Read, J.)

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People v Rodriguez (Jose)	1st Dept: 33 AD3d 420 (NY)	denied 1/18/07 (Smith, J.)
People v Rodriguez (Manuel)	1st Dept: 33 AD3d 543 (NY)	denied ² 1/10/07 (Kaye, Ch.J.)
People v Rodriguez (Otes)	4th Dept: 32 AD3d 1203 (Niagara)	denied 1/18/07 (Smith, J.)
People v Rodriguez (Roberto)	App Div, 2d Dept: 2006 NY Slip Op 77002(U) (Westchester)	denied 1/17/07 (Pigott, J.)
People v Rogers	2d Dept: 34 AD3d 504 (Kings)	denied 1/12/07 (Grafteo, J.)
People v Rosado	App Div, 1st Dept: 2006 NY Slip Op 74989(U) (NY)	dismissed 1/31/07 (Ciparick, J.)
People v Ruzas	App Div, 3d Dept, 10/24/06 (Madison)	denied 1/10/07 (Read, J.)
People v Schoenhardt	County Ct, 10/11/06 (Erie)	denied 1/22/07 (Kaye, Ch.J.)
People v Scott (James)	App Div, 4th Dept, 10/10/06 (Erie)	dismissed 1/5/07 (Read, J.)
People v Scott (Maijia)	App Div, 3d Dept, 11/16/06 (Schenectady)	dismissed 1/8/07 (Read, J.)
People v Shire	App Div, 3d Dept, 1/2/07 (Clinton)	dismissed 1/25/07 (Kaye, Ch.J.)
People v Simpson	3d Dept: 34 AD3d 934 (Greene)	denied 1/19/07 (Read, J.)
People v Smith (Corey)	1st Dept: 33 AD3d 462 (NY)	denied 1/3/07 (Kaye, Ch.J.)
People v Smith (David)	4th Dept: 32 AD3d 1291 (Niagara)	denied 1/8/07 (Read, J.)
People v Smith (Warren)	2d Dept: 32 AD3d 1048 (Suffolk)	denied 1/18/07 (Smith, J.)
People v Spiegel	App Div, 2d Dept: 2006 NY Slip Op 80084(U) (Nassau)	dismissed 1/22/07 (Kaye, Ch.J.)
People v Staten	1st Dept: 33 AD3d 446 (Bronx)	denied 1/12/07 (Grafteo, J.)
People v Streit	2d Dept: 33 AD3d 825 (Suffolk)	denied 1/5/07 (Read, J.)
People v Susankar	1st Dept: 34 AD3d 201 (NY)	denied 1/12/07 (Grafteo, J.)
People v Sutton	1st Dept: 33 AD3d 411 (NY)	denied 1/23/07 (Pigott, J.)
People v Tatulli	1st Dept: 33 AD3d 450 (NY)	denied 1/10/07 (Read, J.)

2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758 [2006]).

People v Thomas (Robert)	1st Dept: 35 AD3d 192 (NY)	denied ³ 1/23/07 (Grafteo, J.)
People v Thomas (Terry)	3d Dept: 33 AD3d 1056 (St. Lawrence)	denied 1/17/07 (Pigott, J.)
People v Thompson	2d Dept: 33 AD3d 825 (Queens)	denied 1/23/07 (Grafteo, J.)
People v Toland	App Div, 3d Dept, 8/29/06 (Schenectady)	denied 1/18/07 (Smith, J.)
People v Torres	1st Dept: 32 AD3d 796 (NY)	denied 1/18/07 (Smith, J.)
People v Tricic	4th Dept: 34 AD3d 1319 (Herkimer)	denied 1/10/07 (Read, J.)
People v Troiano	App Div, 3d Dept, 11/16/06 (Greene)	dismissed 1/8/07 (Read, J.)
People v Turner	4th Dept: 32 AD3d 1365 (Monroe)	denied 1/8/07 (Read, J.)
People v Vasquez	2d Dept: 33 AD3d 636 (Kings)	denied 1/17/07 (Pigott, J.)
People v Vazquez	2d Dept: 34 AD3d 855 (Rockland)	denied 1/23/07 (Grafteo, J.)
People v Veasey	3d Dept: 34 AD3d 1043 (Madison)	denied 1/8/07 (Read, J.)
People v Velez	2d Dept: 33 AD3d 944 (Kings)	denied 1/10/07 (Read, J.)
People v Venechanos	2d Dept: 32 AD3d 1048 (Kings)	denied 1/12/07 (Grafteo, J.)
People v Vergara	1st Dept: 33 AD3d 563 (Bronx)	denied 1/8/07 (Read, J.)
People v Walker	App Div, 1st Dept: 2006 NY Slip Op 76955(U) (NY)	denied reconsideration 1/10/07 (Read, J.)
People v Wallace	1st Dept: 26 AD3d 255 (Bronx)	denied reconsideration 1/8/07 (Read, J.)
People v Walter	4th Dept: 34 AD3d 1259 (Erie)	denied 1/12/07 (Grafteo, J.)
People v Walts	3d Dept: 34 AD3d 1043 (Madison)	denied 1/8/07 (Read, J.)
People v Watford	2d Dept: 33 AD3d 1027 (Kings)	denied 1/10/07 (Read, J.)
People v Watson	2d Dept: 33 AD3d 827 (Kings)	denied 1/10/07 (Read, J.)
People v Wearen	4th Dept: 32 AD3d 1366 (Monroe)	denied 1/5/07 (Read, J.)
People v Whitehurst	1st Dept: 33 AD3d 477 (NY)	denied 1/10/07 (Read, J.)

3. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758 [2006].

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People v Wilkens	4th Dept: 34 AD3d 1371 (Erie)	denied 1/22/07 (Kaye, Ch.J.)
People v Wilkins	4th Dept: 34 AD3d 1371 (Erie)	denied 1/22/07 (Kaye, Ch.J.)
People v Williams (Darren)	2d Dept: 34 AD3d 506 (Orange)	denied 1/22/07 (Kaye, Ch.J.)
People v Williams (David)	2d Dept: 33 AD3d 827 (Westchester)	denied 1/19/07 (Kaye, Ch.J.)
People v Williams (Jerry)	1st Dept: 34 AD3d 367 (NY)	denied 1/12/07 (Grafteo, J.)
People v Worth	1st Dept: 33 AD3d 427 (NY)	denied 1/8/07 (Read, J.)
People v Wright	4th Dept: 32 AD3d 1298 (Erie)	denied 1/24/07 (Smith, J.)
People v Wynter	2d Dept: 31 AD3d 799 (Nassau)	denied 1/10/07 (Read, J.)
People v Zuran	2d Dept: 34 AD3d 857 (Kings)	denied 1/23/07 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(January 1, 2007 through January 31, 2007)

People v Long	1st Dept: 36 AD3d 132 (NY)	granted 1/8/07 (Catterson, J.)
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In the Matter of GINO RUDOLPH COBOS, Appellant, et al.,
Petitioners, v ROBERT DENNISON, as Chairman of New York
State Division of Parole, et al., Respondents.

Submitted January 22, 2007; decided February 13, 2007

Reported below, 34 AD3d 1325.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

Judge JONES taking no part.

DAYS IMPEX LIMITED, Appellant, v DOHA BANK, Defendant and
Third-Party Plaintiff-Respondent. BANK OF AMERICA et al.,
Third-Party Defendants-Respondents.

Submitted November 20, 2006; decided February 13, 2007

Reported below, 33 AD3d 334.

* Includes only applications that were granted.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge JONES taking no part.

MANHATTANVILLE COLLEGE, Appellant, v JAMES JOHN ROMEO CONSULTING ENGINEER, P.C., et al., Respondents, et al., Defendants.

Submitted December 4, 2006; decided February 13, 2007

Reported below, 28 AD3d 613.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONNA CARNETT, Appellant.

Submitted February 5, 2007; decided February 13, 2007

Reported below, 19 AD3d 703.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALLEN HARPER, Appellant.

Submitted January 18, 2007; decided February 13, 2007

Reported below, 32 AD3d 16.

Motion for reargument denied [*see* 7 NY3d 882].

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CYNTHIA LONG, Appellant.

Submitted January 29, 2007; decided February 13, 2007

Reported below, 36 AD3d 132.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOEL MARK, Appellant.

Submitted January 29, 2007; decided February 13, 2007

Reported below, 33 AD3d 337.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC MEANS, Appellant.

Submitted January 5, 2007; decided February 13, 2007

Reported below, 35 AD3d 975.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH TORRES, Appellant.

Submitted February 5, 2007; decided February 13, 2007

Reported below, 34 AD3d 704.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge JONES taking no part.

RELIANCE INSURANCE COMPANY, Appellant, v POLYVISION CORPORATION, Formerly Known as INFORMATION DISPLAY TECHNOLOGY, Defendant and Third-Party Plaintiff-Respondent. SOVEREIGN COMMERCIAL GROUP, INC., Third-Party Defendant-Respondent, et al., Third-Party Defendants.

Submitted January 29, 2007; decided February 13, 2007

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT. Taking no part: Judge JONES.

[863 NE2d 588, 831 NYS2d 367]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRIEN WILLIAMS, Appellant.

Argued January 4, 2007; decided February 15, 2007

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered April 28, 2006. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Erie County (Richard C. Kloch, Sr., J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, robbery in the first degree (two counts) and criminal possession of a weapon in the third degree.

People v Williams, 28 AD3d 1059, affirmed.

HEADNOTES

Crimes — Argument and Conduct of Counsel

1. In a murder prosecution, defendant was not deprived of his right to a fair trial due to the prosecutor's alleged denigration of witnesses, disparagement of defendant's alibi and misrepresentations to the jurors. Defendant failed to preserve his objection to the vast majority of these alleged instances of misconduct. Those objections defense counsel made were largely sustained, with no request for further relief or for a mistrial. Further, the court several times on its own advised the jury that lawyers' remarks were "not evidence."

Crimes — Right to Counsel — Effective Representation

2. In a murder prosecution, defendant was not denied effective assistance of counsel. Defense counsel registered numerous objections throughout the trial,

conducted rigorous cross-examination, and, among other things, moved for both a mistrial and a new trial. The record reflected zealous if not consistent advocacy.

APPEARANCES OF COUNSEL

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Karen C. Russo-McLaughlin*, *David C. Schopp* and *Barbara J. Davies* of counsel), for appellant.

Frank J. Clark, District Attorney, Buffalo (*Susan C. Ministero* and *J. Michael Marion* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was charged in a five-count indictment with intentional murder in the second degree, felony murder, two counts of robbery in the second degree and criminal possession of a weapon in the third degree. The charges arose from an incident that took place on the night of August 31, 2001, when three assailants broke into the residence of Joy and Michael Johnson. In the course of the robbery one of the assailants shot Michael Johnson in the chest with a shotgun, and he died at the hospital a few hours later. At the station Joy Johnson told police that during the robbery, she looked up to see a man wearing a red bandana standing over her husband's body with a shotgun still billowing smoke, and that she thought she could identify him if she saw him "up close." Later that same day, Johnson saw defendant on a street corner, contacted police and identified defendant as the man holding the shotgun. She then picked him out of a photo array and, weeks later, out of two lineups.

[1, 2] After a jury trial, defendant was convicted on all counts except intentional murder. He now claims that he was denied a fair trial due to the prosecutor's denigration of witnesses, disparagement of defendant's alibi and misrepresentations to the jurors. Defendant, however, failed to preserve his objection to the vast majority of these alleged instances of prosecutorial misconduct. Objections defense counsel did make were largely sustained by the court, with no request for further relief or for a mistrial; the court several times on its own advised the jury that lawyers' remarks were "not evidence." We agree with the Appellate Division that defendant was not deprived of due process or a fair trial. We similarly reject defendant's alternative claim that he was denied effective assistance of counsel. Defense

counsel registered numerous objections throughout the trial, conducted rigorous cross-examination, and, among other things, moved for both a mistrial and a new trial, albeit on grounds not relevant here. As the record reflects zealous if not consistent advocacy, this contention is without merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ and SMITH concur; Judges PIGOTT and JONES taking no part.

Order affirmed in a memorandum.

OWEN F. BURNS III et al., Appellants, v JAMES R. VARRIALE JR., Defendant, and ST. PAUL/TRAVELERS INSURANCE COMPANY, Respondent. (And a Related Proceeding.)

Submitted January 8, 2007; decided February 15, 2007

Reported below, 34 AD3d 59.

Motion by the Injured Workers' Bar Association for leave to file an affirmation/brief amicus curiae on the motion for leave to appeal herein granted and the affirmation/brief is accepted as filed.

Judge JONES taking no part.

SERGEI CHEPILKO, M.D., PH.D., Appellant, v CORNELL UNIVERSITY et al., Respondents.

Submitted December 18, 2006; decided February 15, 2007

Reported below, 10 Misc 3d 132(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

Judge JONES taking no part.

RONALD J. HERRON et al., Respondents, v ESSEX INSURANCE COMPANY, Respondent, and HIGH PEAK AGENCY, INC., Appellant, et al., Defendant.

Submitted December 18, 2006; decided February 15, 2007

Reported below, 34 AD3d 913.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge JONES taking no part.

LORA KOJOVIC, Appellant, v NEAL GOLDMAN, Respondent.

Submitted January 8, 2007; decided February 15, 2007

Reported below, 35 AD3d 65.

Motion by the Women's Bar Association of the State of New York for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOUGLAS E. KAMPFER, Appellant.

Submitted February 5, 2007; decided February 15, 2007

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* KERMIT BURNS, Appellant, v CHRIS MELLAS, as Superintendent of Water-town Correctional Facility, et al., Respondents.

Submitted December 6, 2006; decided February 15, 2007

Reported below, 34 AD3d 1299.

Motion for leave to appeal dismissed upon the ground that relator has been released from custody and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN CHIARELLO,
Appellant, v JAMES L. BERBARY, as Superintendent of Col-
lins Correctional Facility, Respondent.

Submitted December 26, 2006; decided February 15, 2007

Reported below, 34 AD3d 1277.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

Judge JONES taking no part.

In the Matter of NEIL M. SISKIND, Petitioner, v COURTNEY A.
SCHAEL, Appellant. ROBERTA NANCY KAUFMAN, Nonparty
Respondent.

Submitted January 2, 2007; decided February 15, 2007

Reported below, 33 AD3d 806.

Motion for leave to appeal dismissed upon the ground that
the orders sought to be appealed from do not finally determine
the proceeding within the meaning of the Constitution.

Judge JONES taking no part.

SWEENEY, COHN, STAHL & VACCARO, et al., Respondents-
Appellants, v GEORGE KANE et al., Appellants-Respondents,
et al., Defendant.

Submitted December 4, 2006; decided February 15, 2007

Reported below, 33 AD3d 785.

Motion and cross motion for leave to appeal dismissed upon
the ground that the order sought to be appealed from does not
finally determine the action within the meaning of the Consti-
tution.

Judge JONES taking no part.

In the Matter of STEPHEN J. WILLIAMS (Admitted as STEPHEN
JOHN WILLIAMS), an Attorney, Appellant. DEPARTMENTAL
DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPART-
MENT, Respondent.

Submitted January 16, 2007; decided February 15, 2007

Reported below, 33 AD3d 38.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying appellant's motions for reconsideration and for leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge JONES taking no part.

[864 NE2d 606, 832 NYS2d 476]

NANCY GIANDANA, Individually and as Administratrix of the Estate of ANNA E. DEMUTH, Deceased, Respondent, v PROVIDENCE REST NURSING HOME et al., Defendants. PROVIDENCE REST NURSING HOME, Third-Party Plaintiff, v RAMAR SERVICES, INC., Third-Party Defendant, and BECKY AKOSAH, Third-Party Defendant-Appellant.

Decided February 20, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 30, 2006. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Anne E. Targum, J.), which had granted plaintiffs' motion for partial summary judgment on the issue of liability against defendant nursing home. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, properly made?"

Decedent nursing home patient allegedly sustained injuries while being transferred by the third-party defendant, an independent contractor/nurse's assistant, from the bed to a wheelchair or from the wheelchair to a shower.

Giandana v Providence Rest Nursing Home, 32 AD3d 126, reversed.

HEADNOTE

Negligence — Duty — Breach of Duty — Liability of Nursing Home to Patient

In a negligence action arising from injuries decedent nursing home patient allegedly sustained when the third-party defendant, an independent

contractor/nurse's assistant, attempted to move her from the bed to a wheelchair or from the wheelchair to a shower, an Appellate Division order, which affirmed an order granting plaintiff partial summary judgment on the issue of liability, was reversed and summary judgment denied. On appeal by the third-party defendant, questions of fact exist as to how decedent was injured, whether third-party defendant was involved, and whether the nursing home was otherwise negligent. Under plaintiff's theory of liability, the third-party defendant was the only witness. Third-party defendant, who had not been deposed nor involved in discovery, was entitled to all the rights of an adverse party (CPLR 1008).

APPEARANCES OF COUNSEL

Fiedelman & McGaw, Jericho (*James K. O'Sullivan* of counsel), for third-party defendant-appellant.

Marshall E. Bloomfield, Bronx (*Michael P. Bloomfield* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, plaintiff's motion for partial summary judgment against Providence Rest Nursing Home denied, and the certified question answered in the negative.

Under plaintiff's theory of liability, third-party defendant Akosah was the only witness to the alleged negligent acts involving decedent. Nonetheless, Akosah has yet to be deposed or to otherwise participate in discovery. CPLR 1008 grants a third-party defendant all "the rights of a party adverse to the other parties in the action, including the right to counter-claim, cross-claim and appeal." In this appeal by third-party defendant Akosah, questions of fact relating to how decedent was injured, whether Akosah was involved, and whether the nursing home was otherwise negligent precluded a grant of partial summary judgment.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur in memorandum; Judge JONES taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[864 NE2d 596, 832 NYS2d 466]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH GRAJALES, Appellant.

Argued January 9, 2007; decided February 20, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 18, 2006. The order affirmed a judgment of the Supreme Court, Kings County (Joel M. Goldberg, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

People v Grajales, 28 AD3d 677, affirmed.

HEADNOTE

Crimes — Identification of Defendant — Adequate Notice of Identification Evidence

In a robbery prosecution wherein the victim first identified defendant at the police station in a photographic array, and one week later the victim saw defendant on the street, and pointed defendant out to the police who immediately made an arrest, defendant's motion to preclude the in- and out-of-court identifications was properly denied. The People's CPL 710.30 (1) (b) notice, which included the street identification but omitted the photographic identification, was adequate. CPL 710.30 (1) (b) mandates preclusion of evidence in the absence of timely notice specifying the pretrial identification evidence "intended to be offered" at trial. Inasmuch as evidence of a pretrial photographic identification is not admissible in the prosecution's case-in-chief, the People could not intend to offer the identification at trial and did not need to provide notice of it.

APPEARANCES OF COUNSEL

Lisa Napoli, New York City, and *Lynn W.L. Fahey* for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Keith Dolan* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On February 4, 2003, two men, one of whom displayed a handgun, accosted the victim inside a Brooklyn coffee shop, yanked a gold chain off his neck, rifled his pockets for money and fled with their loot. Later that day at the precinct station house, the police showed the victim two photographic arrays, one of which was a six-photograph array containing a picture

taken of defendant after an arrest the previous month. The victim identified defendant as the robber with the gun. One week later, on February 11, 2003, the victim saw defendant on the street and called the police. When the police arrived, the victim pointed out defendant as one of the men who had robbed him. Defendant was immediately arrested, and charged with robbery in the first and second degrees and two weapons possession counts.

After defendant's arraignment on the indictment on March 26, 2003, the People served timely notice under CPL 710.30 (1) (b) of the February 11, 2003 on-the-street point-out. The notice did not mention the February 4, 2003 photographic identification. Defense counsel subsequently learned about it, however, sometime during pretrial discovery. On October 16, 2003, defendant moved to preclude the victim's in- and out-of-court identifications of him on the ground that the People did not provide adequate and timely CPL 710.30 (1) (b) notice because of the omission of the photographic identification. Supreme Court denied the motion.

Following a jury trial, defendant was convicted on March 2, 2004 of robbery in the first degree; he was sentenced on May 27, 2004 to 15 years in prison plus five years of postrelease supervision. The Appellate Division affirmed the judgment of conviction, concluding that "[u]nder the circumstances of this case, the prosecution discharged its statutory obligation to provide notice of intent to offer identification testimony at trial" (28 AD3d 677 [2d Dept 2006]).

We agree. The People acknowledge that the customary and better practice is to give defendant notice of all prior police-arranged identifications made by a witness from whom they intend to elicit in-court identification testimony. CPL 710.30 (1) (b), however, only mandates preclusion in the absence of timely notice "specifying" the pretrial identification evidence "intended to be offered" at trial. Because evidence of a witness's pretrial photographic identification of an accused is not admissible in the prosecution's case-in-chief (*see People v Cioffi*, 1 NY2d 70 [1956]; *People v Caserta*, 19 NY2d 18 [1966]), the People could not intend to offer it at trial, and therefore the CPL 710.30 (1) (b) notice in this case was adequate.

While the dissent puts forward sound policy reasons to support notice of photographic arrays, we are unwilling to read the statute more expansively than the Legislature has chosen to write it, especially when the remedy is preclusion. Further, the

Appellate Division's decisions in this case and in *People v Simmons* (221 AD2d 484 [2d Dept 1995]) belie any notion that we are today upending the "common understanding" of the correct answer to a question that we have never before been asked (see dissenting op at 865).

CIPARICK, J. (dissenting). I respectfully dissent. The People's failure to notify defendant pursuant to CPL 710.30 that the complainant identified him from a police-arranged photo array prior to the point-out identification should have resulted in the preclusion of complainant's identification testimony. As a result, I would reverse defendant's conviction and remit the case to Supreme Court for a new trial.

As relevant here, CPL 710.30 provides that "[w]henver the people intend to offer at trial . . . testimony regarding an observation of the defendant either at the time or place of the commission of the offense or upon some other occasion relevant to the case, to be given by a witness who has previously identified him as such, they must serve upon the defendant a notice of such intention, specifying the evidence intended to be offered" (CPL 710.30 [1] [b]). The statutory remedy for the People's failure to provide such notice is that "no evidence of a kind specified in [710.30 (1)] may be received against [the defendant] upon trial unless he [or she] has, despite the lack of such notice, moved to suppress such evidence and such motion has been denied and the evidence thereby rendered admissible" (CPL 710.30 [3]). The remedy of preclusion applies regardless of whether the defendant is prejudiced by the lack of notice (see *People v Lopez*, 84 NY2d 425, 428 [1994]).

We have previously determined that the primary "concern motivating the statute was the possibility . . . that pretrial identification procedures could be so suggestive or misleading as to compromise a defendant's constitutional right to due process of law. The danger sought to be avoided is, and always has been, the risk of convicting the innocent through tainted identification procedures" (*People v Gee*, 99 NY2d 158, 161-162 [2002]). Our cases have likewise recognized "the orderly, swift and efficient determination of pretrial motions" as an additional statutory objective (*People v O'Doherty*, 70 NY2d 479, 488 [1987]). "Permitting the People to rely on defendant's eventual receipt of the information through discovery would undermine the statutory scheme and negate the legislative directive embodied in the amended statute" (*Lopez*, 84 NY2d at 429).

Significantly, in the past this Court has permitted only two exceptions to the notice and hearing requirements of CPL

710.30 (see *People v Boyer*, 6 NY3d 427, 431 [2006]). These situations arise either when the defendant is known to the person making the identification or when a trained officer makes a “confirmatory identification” as “ ‘the ordinary and proper completion of an integral police procedure’ ” (*Boyer*, 6 NY3d at 431-432, quoting *People v Wharton*, 74 NY2d 921, 922-923 [1989]). In these types of cases, the circumstances surrounding the identification establish a degree of reliability that, as a matter of law, demonstrates the identification is not suggestive.

The majority’s interpretation of 710.30 as merely requiring notice of identification evidence that the People intend to offer at trial is far too narrow. The Court has typically refrained from interpreting this statute in a manner “that places too much emphasis on [its] literal language when doing so would produce results plainly at odds with the policy of the legislation as a whole” (*People v White*, 73 NY2d 468, 474 n 1 [1989]; see also *People v Dixon*, 85 NY2d 218, 222 [1995] [“Our precedent does not support a restrictive definition of ‘police-arranged’ procedures”]).

The legislative intent underpinning the notice requirement is to ensure that a defendant has the opportunity to explore—in a timely and efficient fashion—whether the identification procedures comport with due process and whether suggestive procedures may have tainted other evidence. Further, notice of identification evidence is crucial since the defendant will often be unaware of police-arranged identification procedures. For this reason, the burden is placed squarely on the People to provide notice to the defendant, rather than on the defendant to attempt to ascertain what identification procedures may have taken place. Thus, the best way to effectuate the purpose of the statute is to provide the defendant with swift notice of police-arranged photographic identifications.

That a photo identification is not ultimately admissible at trial is not determinative. A police-arranged photo identification can be as suggestive as any other type of identification procedure that would require notice.

“In criminal investigations, the police employ a variety of identification procedures—including lineups, one-on-one showups, photo arrays, and . . . single-photo displays. While such techniques help assure that the right person has been or will be arrested, if tainted by suggestion they can lead to irreparable misidentification. ‘The influence of improper sug-

gestion upon identifying witnesses probably accounts for more miscarriages of justice than any other single factor—perhaps it is responsible for more such errors than all other factors combined’ ” (*People v Rodriguez*, 79 NY2d 445, 448-449 [1992] [citation omitted]).

Thus, the Court has previously recognized the potentially devastating consequences suggestive identification procedures can have on criminal defendants. However, under the majority’s rule, the People no longer have to provide notice of a suggestive photo array that may ultimately taint a later identification, simply because the array would not be admissible at trial. That interpretation also leaves open the possibility that notice of other suggestive identification procedures will not be provided to the defendant so long as the People do not intend to introduce them at trial. Such a stunning result is clearly contrary to the spirit and purpose of CPL 710.30.

Moreover, the common understanding—until now—has been that the People are required to provide notice of these types of police-arranged procedures. Previous decisions of this Court reflect the view that police-arranged photographic identifications require notice under the statute (*see e.g. Gee*, 99 NY2d at 163; *People v Moss*, 80 NY2d 857, 858 [1992]; *Rodriguez*, 79 NY2d at 448-449; *People v Laing*, 79 NY2d 166, 169 [1992]; *People v Gissendanner*, 48 NY2d 543, 552 [1979]; *compare People v Herner*, 85 NY2d 877, 879 [1995] [finding notice was not required where prosecutor showed witness lineup photographs in preparation for trial “because there was no identification procedure under CPL 710.30”]). Commentators have expressed a similar interpretation of the notice requirement (Hibel, *New York Identification Law* § 1.02 [10], at 83 [2006 ed] [“the prevailing view is that a defendant is entitled to notice of a pre-trial photographic identification”]; *see also* Preiser, *Practice Commentaries*, McKinney’s Cons Laws of NY, Book 11A, CPL 710.30, at 219).

In this case, the People should have notified the defendant of the police-arranged photo identification. Merely precluding evidence of the photo identification would indeed be a hollow remedy since, as the majority notes, such evidence is not admissible against the defendant at trial anyway. Moreover, the question of prejudice is “irrelevant” (*see Lopez*, 84 NY2d at 428). Since I view the photo identification procedure as evidence requiring notice under the statute, the appropriate remedy for the failure to provide such notice is preclusion of the claimant’s identifica-

tion evidence under CPL 710.30 (3). Thus, defendant's conviction should be reversed and a new trial ordered.

Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge CIPARICK dissents and votes to reverse in an opinion in which Chief Judge KAYE concurs; Judge JONES taking no part.

Order affirmed in a memorandum.

In the Matter of KEVIN PATRICK BRADY, Appellant, v JEROME C. GORSKI et al., Respondents.

Submitted December 11, 2006; decided February 20, 2007

Reported below, 33 AD3d 466.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion to consolidate appeals dismissed as academic.

Chief Judge KAYE and Judge PIGOTT taking no part.

STACIE CALIAN, Appellant, v ERIC CALIAN, Respondent.

Submitted December 4, 2006; decided February 20, 2007

Reported below, 28 AD3d 506.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [3d ed rev 2005]).

CATHOLIC CHARITIES OF THE DIOCESE OF ALBANY et al., Appellants, v GREGORY V. SERIO, as Superintendent of Insurance, Respondent.

Submitted December 4, 2006; decided February 20, 2007

Reported below, 28 AD3d 115.

Motion for reargument denied [*see* 7 NY3d 510].

PHILIP COFFEY et al., Appellants-Respondents, v PEGGY ELLEN BAKER et al., Respondents, and THOMAS J. KELLY et al., Respondents-Appellants, et al., Defendants.

Submitted January 2, 2007; decided February 20, 2007

Reported below, 34 AD3d 1306.

Motion by plaintiffs for leave to appeal from so much of the Appellate Division order as dismissed the complaint against defendants Gill and Keystone Automotive Operations, Inc. denied. Cross motion by the Kelly defendants, insofar as it seeks leave to appeal from that part of the Appellate Division order that granted the motion for summary judgment dismissing the complaint and cross claims against defendants Gill and Keystone Automotive Operations, Inc. denied; cross motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order does not finally determine the action with respect to the Kelly defendants within the meaning of the Constitution.

MADISON AVENUE LEASEHOLD, LLC, Appellant, v MADISON BENTLEY ASSOCIATES LLC et al., Respondents.

Submitted January 29, 2007; decided February 20, 2007

Reported below, 30 AD3d 1.

Motion for reargument denied [*see* 8 NY3d 59].

In the Matter of MAUREEN McNAMARA (Admitted as MAUREEN MARGARET McNAMARA), a Suspended Attorney, Appellant.

Submitted December 26, 2006; decided February 20, 2007

Motion for reconsideration of this Court's November 21, 2006 dismissal order [*see* 7 NY3d 899] granted and, upon reconsideration, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for relief ancillary to the motion for leave and appeal denied.

LEONORA MORAN, Appellant, v REGENCY SAVINGS BANK, F.S.B., et al., Defendants, and ROSENFELD, BERNSTEIN & TANNENHAUSER, as Trustee, Respondent. BARRY SISKIN, ESQ., Nonparty Appellant.

Submitted January 2, 2007; decided February 20, 2007

Reported below, 30 AD3d 237.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MURIEL SIEBERT & CO., INC., Appellant, v INTUIT INC., Respondent.

Submitted February 13, 2007; decided February 20, 2007

Reported below, 32 AD3d 284.

Motion by National Employment Lawyers Association/New York for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

NYACK HOSPITAL, Appellant, et al., Plaintiff, v GENERAL MOTORS ACCEPTANCE CORPORATION et al., Respondents.

Submitted February 13, 2007; decided February 20, 2007

Reported below, 27 AD3d 96.

Motion by Government Employees Insurance Company et al. for leave to appear amici curiae on the appeal herein denied as untimely (*see* Rules of Prac of Ct of Appeals [22 NYCRR] § 500.23).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JEFFREY KOZLOW, Respondent.

Submitted February 13, 2007; decided February 20, 2007

Reported below, 31 AD3d 788.

Motion by New York State District Attorneys Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two

copies of the brief may be served and 24 copies filed within seven days.

RICHARD A. WILLIAMSON, as Successor Liquidating Trustee on Behalf of LIPPER CONVERTIBLES, L.P., Respondent, v PRICE-WATERHOUSECOOPERS LLP, Appellant.

Submitted February 13, 2007; decided February 20, 2007

Reported below, 32 AD3d 179.

Motion by American Institute of Certified Public Accountants et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

[864 NE2d 607, 832 NYS2d 477]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD JACKSON, Appellant.

Argued January 10, 2007; decided February 22, 2007

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 18, 2006. The Appellate Division modified, on the law, a judgment of the Supreme Court, Bronx County (John S. Moore, J.), which had convicted defendant, upon a jury verdict, of rape in the second degree (three counts). The modification consisted of vacating the provisions for sex offender registration and DNA databank fees.

People v Jackson, 29 AD3d 409, affirmed.

HEADNOTE

Crimes — Proof of Other Crimes — Testimony Regarding Prior Uncharged Crime

In a rape prosecution, where evidence of a prior uncharged sexual assault against a witness and the defendant's simultaneously uttered out-of-court statement to the witness that if he had not raped the witness he would have raped the victim was admitted under *Molineux* to demonstrate defendant's motive and future intent to rape the victim, the Appellate Division properly

affirmed defendant's conviction. Assuming that it was error to admit both the statement and the uncharged criminal conduct, the error was harmless. Given the evidence against defendant, including the underage victim's prompt outcry and defendant's full access to the home while the victim's mother was at work, there was no significant probability the jury would have acquitted defendant if not for the error.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*William Carney* and *Steven Banks* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Dimitri Maisonet*, *Joseph N. Ferdenzi* and *Allen H. Saperstein* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

In a rape prosecution, evidence of a prior uncharged sexual assault against another and defendant's simultaneously uttered out-of-court statement were admitted under *Molineux* to demonstrate defendant's motive and future intent to rape the victim in this case. The witness testified, "[the defendant] told me that [the victim] was lucky I was there, because if I wasn't there, it would be her."

Assuming that it was error to admit both the statement and the uncharged criminal conduct, the error was harmless.* Defendant was acquitted of three forcible rapes and convicted of three statutory rapes. "[T]he testimony of a single witness [can be enough] to support a conviction" (*People v Schulz*, 4 NY3d 521, 530 [2005], quoting *People v Arroyo*, 54 NY2d 567, 578 [1982]). Although corroboration is not necessary in support of a rape prosecution, the underage victim's testimony was bolstered by her prompt outcry the morning after the first rape occurred. Defendant had a key to the victim's home, giving him full access to the apartment at night, while the victim's mother was at work. While there was no physical evidence of rape, the

* We note that defendant's statement was sought to be admitted under *Molineux* to prove future intent. The accompanying rape simply provided a context for the statement and was used to complete the narrative. Defendant made no offer of another, neutral context for admission of the statement. Although both the concurring and dissenting opinions reason that defendant's statement was an admission, as the People failed to offer the evidence under that theory, the merits are not before us for review (see *People v Nieves*, 67 NY2d 125, 131 [1986] [People could not rely upon a theory of a statement's admission on appeal that the People did not advance at trial]).

medical testimony indicated that the results of the physical examination were not inconsistent with a rape having occurred two weeks earlier. To the extent that there were some inconsistencies in the victim's story regarding the dates the rapes took place, an expert in child psychology testified that it was normal for an adolescent rape victim to remember the rape itself, rather than peripheral details such as dates. Thus, there was no significant probability the jury would have acquitted defendant if not for the error.

The parties' remaining contentions are without merit.

SMITH, J. (concurring). I agree with Judge Pigott that, if admission of the challenged evidence was error, the error was not harmless, and therefore, like him, I reach the merits of the case. Unlike Judge Pigott, I conclude that there was no error, though I admit the case is not an easy one.

Defendant was charged with the forcible and statutory rape of a 14-year-old girl. He had been staying as a guest in the apartment of the girl's family. A young woman who also lived in the apartment, the baby-sitter for a younger child, was allowed to testify that, shortly before the event on which the prosecution was based, defendant had raped her, and had remarked while doing so "that [the 14-year-old] was lucky I was there, because if I wasn't there, it would be her." I think defendant's statement, in itself, was clearly admissible against him. The uncharged rape, in itself, was inadmissible under *People v Molineux* (168 NY 264 [1901]), but I conclude that the trial court had discretion to admit evidence of the rape to give meaning to the statement.

The apparent meaning of the defendant's statement is: "I would rape the 14-year-old if I couldn't rape you." I see no ground for doubt that such an expression of desire—even conditionally phrased—to commit the very crime for which he was on trial was admissible. Of course, there could be no hearsay objection to the admission of defendant's own statement when offered by the People. The briefs here, and the opinions below, discuss the applicability of *Mutual Life Ins. Co. v Hillmon* (145 US 285 [1892]), but I find *Hillmon*, a hearsay case, to be totally irrelevant.

It seems equally clear that the baby-sitter's testimony about the uncharged rape is the sort of evidence that *Molineux* would ordinarily bar. Evidence like this has a tendency "to demonstrate the defendant's bad character and general criminal propensity" and "there is a very real danger that the trier of

fact will overestimate its significance” (*People v Hudy*, 73 NY2d 40, 55 [1988]). I do not agree that the prejudice that inevitably flows from the admission of this sort of evidence was harmless in this case, which—as the majority’s own summary shows—otherwise rested largely on the victim’s uncorroborated word.

In short, the trial court faced a dilemma, which it summed up concisely:

“[The evidence of the act] is prejudicial; there is no question about that. But [the statement is] extremely and highly probative. And to [admit] the statement without allowing the context of the act would make the statement meaningless and unintelligible to a jury”

The court could have resolved the dilemma in defendant’s favor, by excluding both the statement and the uncharged crime, but it had excellent reasons not to do so. It would have been unfair to the People, and would have invited a miscarriage of justice, to conceal from the jury the highly relevant information that defendant had expressed a willingness to rape the girl he was accused of raping. The trial court decided instead to allow the baby-sitter to testify to both the statement and the act, taking precautions to minimize the prejudice to defendant. The court ordered that the testimony be kept as brief as possible, and gave a limiting instruction forbidding the jury to infer “that the defendant possessed a propensity or disposition to commit the crimes charged in this indictment.”

This may not have been a perfect solution; with hindsight, a better approach might be imagined, that somehow conveyed the substance of defendant’s statement to the jurors without disclosing the act that accompanied it. But no one suggested such an approach at the time, and I would not hold that the trial judge erred by failing to come up with one on his own. I think he did reasonably well with a difficult problem, and did not err in the ruling he made.

PIGOTT, J. (dissenting). I respectfully dissent and vote to reverse because, in my view, the trial court improperly admitted the testimony concerning the alleged uncharged sexual assault. Such error was not harmless and deprived defendant of a fair trial.

The trial court admitted testimony concerning defendant’s uncharged sexual assault of a witness “as background evidence to provide a context for the statement and to complete the nar-

rative,” phrases we have used numerous times in the context of *Molineux* (see e.g. *People v Till*, 87 NY2d 835, 837 [1995]; *People v Montanez*, 41 NY2d 53, 58 [1976]; *People v Gines*, 36 NY2d 932, 932-933 [1975]). However, we have cautioned that the admission of such uncharged crime evidence “is a delicate business” fraught with “the danger that [the] uncharged crime testimony may improperly divert the jury from the case at hand or introduce more prejudice than evidentiary value” (*People v Resek*, 3 NY3d 385, 389 [2004]). In my view, that is exactly what happened here.

My objection lies not with the admission of the statement itself, but with the inclusion of testimony concerning the uncharged sexual assault in conjunction with that statement. Thus, to the extent defendant’s statement may have constituted an admission and was therefore properly admitted, the trial court could have fashioned a remedy that would have permitted the witness to testify to the alleged statement separately and apart from the alleged sexual assault.

I disagree with the majority that the admission of the uncharged sexual assault was harmless and therefore “there was no significant probability the jury would have acquitted defendant if not for the error” (majority op at 871). In cases involving sex offense crimes, we have repeatedly held that evidence of uncharged crimes “is ‘inadmissible if offered for no purpose other than to raise an inference that a defendant is of a criminal disposition and, therefore, likely to have committed the crime charged’ ” (*People v Vargas*, 88 NY2d 856, 858 [1996], quoting *People v McKinney*, 24 NY2d 180, 184 [1969]; see *People v Hudy*, 73 NY2d 40, 54 [1988]).

In my view, evidence of the alleged uncharged sexual assault was probative only of defendant’s propensity to commit rape. The trial court’s determination that its admission was necessary to provide background information or complete the narrative was “nothing more than a disguised ‘propensity’ argument” prohibited by *Molineux* that should have been excluded (*Hudy*, 73 NY2d at 56). As the majority notes “ ‘the testimony of a single witness [can be enough] to support a conviction’ ” (majority op at 870, quoting *People v Schulz*, 4 NY3d 521, 530). It was therefore not only unnecessary but prejudicial for the trial court to allow the People to introduce evidence concerning the alleged uncharged sexual assault since the testimony of the complainant alone was sufficient to submit the case to a jury. The admission of the alleged uncharged sexual assault operated

solely “to lend credibility to [the] complainant by suggesting that, because defendant had engaged in sexual misconduct” with a witness, “he was likely to have committed the acts charged” (*Vargas*, 88 NY2d at 858, citing *Hudy*, 73 NY2d at 56). This critical error deprived defendant of a fair trial, and could hardly be considered “harmless beyond a reasonable doubt” (*People v Simmons*, 75 NY2d 738, 739 [1989]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO and READ concur; Judge SMITH concurs in result in an opinion; Judge PIGOTT dissents and votes to reverse in a separate opinion; Judge JONES taking no part.

Order affirmed in a memorandum.

[864 NE2d 615, 832 NYS2d 485]

CLAUDE HORSFORD et al., Respondents, v YVONNE BACOTT, Appellant, and “JOHN DOE” et al., Respondents.

Decided February 22, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 17, 2006. The Appellate Division affirmed an order of the Appellate Term of the Supreme Court in the First Judicial Department (op 5 Misc 3d 132[A]), which had affirmed a judgment of the Civil Court of the City of New York, New York County (Cyril K. Bedford, J.), awarding possession of the premises to landlords in an owner occupancy holdover summary proceeding. The following question was certified by the Appellate Division: “Was the order of the Appellate Term of the Supreme Court, as affirmed by this Court, properly made?”

Petitioner landlords sought to recover respondent tenant’s apartment for their daughter since her room in the landlords’ apartment was needed to accommodate immigrating members of the landlords’ family.

Horsford v Bacott, 32 AD3d 310, affirmed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Owner Occupancy Proceeding

In an owner occupancy holdover summary proceeding wherein the Appellate Division affirmed an order of the Appellate Term which in turn affirmed a

judgment of the Civil Court awarding possession to petitioner landlords, who sought to recover respondent tenant's apartment for their daughter, whose room in the landlords' apartment was needed to accommodate immigrating members of the landlords' family, the Appellate Division correctly concluded that the factual determination on which the Civil Court judgment was based was supported by sufficient evidence.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Alan Canner* and *Afua Atta-Mensah* of counsel), for appellant.

Gary J. Wachtel, New York City, for Claude Horsford and another, respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The Appellate Division correctly concluded that the factual determination on which the Civil Court judgment was based is supported by sufficient evidence.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

MICHAEL DIEDERICH, JR., et al., Appellants, v ROCKLAND COUNTY POLICE CHIEFS' ASSOCIATION, Defendant, and TOWN OF ORANGETOWN et al., Respondents.

Submitted February 13, 2007; decided February 22, 2007

Reported below, 33 AD3d 653.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

BRUCE FRIEDMAN, Appellant, v CONNECTICUT GENERAL LIFE INSURANCE COMPANY, Respondent.

Submitted November 27, 2006; decided February 22, 2007

Reported below, 30 AD3d 349.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied class certification, dismissed upon the ground that such portion of the order does

not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

MALANKARA ARCHDIOCESE OF SYRIAN ORTHODOX CHURCH IN NORTH AMERICA et al., Respondents, v MATHEW THOMAS et al., Appellants. BOARD OF DIRECTORS OF ST. MARY'S MALANKARA SYRIAN ORTHODOX CHURCH OF ROCKLAND et al., Nonparty Appellants.

Submitted December 18, 2006; decided February 22, 2007

Reported below, 33 AD3d 887.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of the motion to intervene, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MALANKARA ARCHDIOCESE OF SYRIAN ORTHODOX CHURCH IN NORTH AMERICA et al., Respondents, v MATHEW THOMAS et al., Appellants. BOARD OF DIRECTORS OF ST. MARY'S MALANKARA SYRIAN ORTHODOX CHURCH OF ROCKLAND et al., Nonparty Appellants.

Submitted January 16, 2007; decided February 22, 2007

Reported below, 33 AD3d 887.

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and one \$100 costs of motion, upon the ground that that part of the Appellate Division order that affirmed the denial of the motion to intervene does not finally determine the action within the meaning of the Constitution, and that as to the remainder of the Appellate Division order, no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WILLIAM MITCHELL, Appellant, v WILLIAM LAPE, as Superintendent of Marcy Correctional Facility, et al., Respondents.

Submitted December 11, 2006; decided February 22, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies from the order of an indi-

vidual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of RICHARD PU, an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted February 5, 2007; decided February 22, 2007

Reported below, 37 AD3d 56.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of WEMBLY MANAGEMENT CO., INC., Doing Business as BLDG. MANAGEMENT CO., INC., et al., Appellants, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-NEWAL, OFFICE OF RENT ADMINISTRATION, Respondent.

Submitted January 2, 2007; decided February 22, 2007

Reported below, 30 AD3d 296.

Motion for reargument granted [*see* 7 NY3d 888] and, upon reargument, motion for leave to appeal denied.

APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2007 through February 28, 2007)

Freas v Freas

3d Dept: 33 AD3d 1069

2/1/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2007 through February 28, 2007)

People v Ackridge

App Div, 2d Dept, 2006 NY Slip Op
76879(U) (Westchester)

denied
reconsideration
2/28/07
(Ciparick, J.)

People v Adams	4th Dept: 32 AD3d 1365 (Erie)	denied 2/28/07 (Smith, J.)
People v Alfonso	1st Dept: 35 AD3d 269 (NY)	denied 2/13/07 (Kaye, Ch.J.)
People v Ali-Rachedi	3d Dept: 34 AD3d 981 (Schoharie)	denied 2/20/07 (Grafteo, J.)
People v Anzalone	4th Dept: 34 AD3d 1226 (Monroe)	denied 2/13/07 (Kaye, Ch.J.)
People v Armatullo	App Div, 1st Dept, 2007 NY Slip Op 60254(U) (NY)	dismissed 2/15/07 (Pigott, J.)
People v Arokium	1st Dept: 33 AD3d 458 (NY)	denied 2/28/07 (Smith, J.)
People v Arroyo	1st Dept: 33 AD3d 547 (Bronx)	denied 2/6/07 (Kaye, Ch.J.)
People v August	3d Dept: 33 AD3d 1046 (Schenectady)	denied 2/28/07 (Smith, J.)
People v Bagley	3d Dept: 34 AD3d 992 (Albany)	denied 2/22/07 (Pigott, J.)
People v Bakare	2d Dept: 34 AD3d 489 (Queens)	denied 2/28/07 (Smith, J.)
People v Barnes	1st Dept: 35 AD3d 170 (NY)	denied 2/20/07 (Grafteo, J.)
People v Barrington	1st Dept: 34 AD3d 341 (Bronx)	denied 2/27/07 (Read, J.)
People v Bastianos	2d Dept: 35 AD3d 492 (Queens)	denied 2/20/07 (Grafteo, J.)
People v Batchilly	1st Dept: 33 AD3d 360 (Bronx)	denied reconsideration 2/13/07 (Kaye, Ch.J.)
People v Berry	App Div, 1st Dept, 2006 NY Slip Op 79445(U) (NY)	denied 2/22/07 (Ciparick, J.)
People v Bigwarfe	3d Dept: 35 AD3d 904 (Schuyler)	denied 2/20/07 (Grafteo, J.)
People v Blie	2d Dept: 33 AD3d 1016 (Suffolk)	denied 2/13/07 (Read, J.)
People v Bodden	1st Dept: 34 AD3d 344 (NY)	denied 2/15/07 (Kaye, Ch.J.)
People v Bronx Auto Venture Corp.	1st Dept: 35 AD3d 276 (Bronx)	denied 2/21/07 (Grafteo, J.)
People v Brown	2d Dept: 33 AD3d 1016 (Kings)	denied 2/21/07 (Grafteo, J.)
People v Bruno (Joseph)	App Term, 1st Dept: 13 Misc 3d 143(A) (NY)	denied 2/21/07 (Grafteo, J.)
People v Bruno (Sergio)	1st Dept: 34 AD3d 220 (Bronx)	denied 2/20/07 (Pigott, J.)
People v Caballero	2d Dept: 34 AD3d 690 (Queens)	denied 2/13/07 (Read, J.)
People v Cali	4th Dept: 34 AD3d 1226 (Erie)	denied 2/27/07 (Read, J.)

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People v Campbell	2d Dept: 33 AD3d 716 (Kings)	denied 2/28/07 (Smith, J.)
People v Cane	2d Dept: 35 AD3d 493 (Queens)	denied 2/28/07 (Ciparick, J.)
People v Carmack	4th Dept: 34 AD3d 1299 (Erie)	denied 2/22/07 (Ciparick, J.)
People v Caruso (Ronald)	3d Dept: 34 AD3d 863 (Sullivan)	denied 2/28/07 (Smith, J.)
People v Caruso (Ronald)	3d Dept: 34 AD3d 860 (Essex)	denied 2/28/07 (Smith, J.)
People v Castillo	1st Dept: 34 AD3d 221 (Bronx)	denied 2/21/07 (Ciparick, J.)
People v Chiapperino	1st Dept: 35 AD3d 276 (Bronx)	denied 2/21/07 (Grafteo, J.)
People v Collier	2d Dept: 35 AD3d 628 (Queens)	denied 2/21/07 (Grafteo, J.)
People v Cottrell	4th Dept: 34 AD3d 1345 (Erie)	denied 2/13/07 (Read, J.)
People v Crenshaw	4th Dept: 34 AD3d 1315 (Monroe)	denied 2/28/07 (Ciparick, J.)
People v Cumberbatch	1st Dept: 36 AD3d 157 (NY)	denied ¹ 2/13/07 (Kaye, Ch.J.)
People v Cumberland	1st Dept: 33 AD3d 483 (NY)	denied 2/1/07 (Ciparick, J.)
People v Cusamano	App Div, 1st Dept, 2007 NY Slip Op 60254(U) (NY)	dismissed 2/15/07 (Pigott, J.)
People v Dancy	1st Dept: 33 AD3d 396 (NY)	denied 2/15/07 (Pigott, J.)
People v Darcy	1st Dept: 34 AD3d 230 (NY)	denied 2/21/07 (Ciparick, J.)
People v Davis (Jonathan)	4th Dept: 34 AD3d 1349 (Monroe)	denied 2/22/07 (Ciparick, J.)
People v Davis (Richard)	1st Dept: 32 AD3d 803 (NY)	denied reconsideration 2/21/07 (Grafteo, J.)
People v DeCasta	2d Dept: 34 AD3d 828 (Kings)	denied 2/13/07 (Kaye, Ch.J.)
People v DeJesus	1st Dept: 32 AD3d 753 (NY)	denied 2/21/07 (Smith, J.)
People v DeLarosa	3d Dept: 34 AD3d 1120 (Saratoga)	denied 2/21/07 (Ciparick, J.)
People v De La Rosa	3d Dept: 34 AD3d 1120 (Saratoga)	denied 2/21/07 (Ciparick, J.)
People v Dillon	4th Dept: 34 AD3d 1230 (Yates)	denied 2/22/07 (Ciparick, J.)
People v Divine	3d Dept: 34 AD3d 1124 (Schenectady)	denied 2/22/07 (Pigott, J.)

1. Denied without prejudice to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758).

People v Domingo	1st Dept: 34 AD3d 375 (NY)	denied 2/20/07 (Grafteo, J.)
People v Dotson	1st Dept: 33 AD3d 396 (NY)	denied 2/15/07 (Pigott, J.)
People v Downs	2d Dept: 34 AD3d 596 (Queens)	denied 2/13/07 (Read, J.)
People v Dozier	4th Dept: 32 AD3d 1346 (Erie)	dismissed 2/28/07 (Smith, J.)
People v Esquilin	1st Dept: 34 AD3d 324 (NY)	denied 2/20/07 (Grafteo, J.)
People v Evans	4th Dept: 35 AD3d 1255 (Erie)	denied 2/21/07 (Grafteo, J.)
People v Farfam	2d Dept: 34 AD3d 828 (Queens)	denied 2/28/07 (Ciparick, J.)
People v Farley	4th Dept: 34 AD3d 1229 (Livingston)	denied 2/1/07 (Ciparick, J.)
People v Figueroa	1st Dept: 35 AD3d 204 (NY)	denied 2/13/07 (Read, J.)
People v Filangeri	App Term, 2d Dept: 13 Misc 3d 142(A) (Kings)	denied 2/13/07 (Kaye, Ch.J.)
People v Fletcher	App Div, 2d Dept, 2007 NY Slip Op 60195(U) (Dutchess)	dismissed 2/22/07 (Ciparick, J.)
People v Forino	2d Dept: 34 AD3d 829 (Nassau)	denied 2/28/07 (Ciparick, J.)
People v Francis	2d Dept: 33 AD3d 933 (Kings)	denied 2/28/07 (Smith, J.)
People v Frazier	2d Dept: 33 AD3d 934 (Nassau)	denied 2/28/07 (Smith, J.)
People v Gainey	4th Dept: 34 AD3d 1250 (Orleans)	denied 2/22/07 (Ciparick, J.)
People v Gallagher	3d Dept: 34 AD3d 941 (Greene)	denied 2/13/07 (Kaye, Ch.J.)
People v Garcia	2d Dept: 33 AD3d 623 (Rockland)	denied 2/28/07 (Smith, J.)
People v Garrido	1st Dept: 34 AD3d 368 (Bronx)	denied 2/2/07 (Pigott, J.)
People v Gittens	2d Dept: 34 AD3d 693 (Queens)	denied 2/9/07 (Kaye, Ch.J.)
People v Gonzalez (Carlos)	2d Dept: 33 AD3d 1020 (Kings)	denied 2/22/07 (Ciparick, J.)
People v Gonzalez (Joeyvani)	1st Dept: 35 AD3d 281 (NY)	denied 2/27/07 (Read, J.)
People v Gordon	1st Dept: 34 AD3d 316 (NY)	denied 2/22/07 (Ciparick, J.)
People v Grace	1st Dept: 34 AD3d 262 (NY)	denied 2/27/07 (Read, J.)
People v Green	4th Dept: 34 AD3d 1226 (Erie)	denied 2/27/07 (Read, J.)

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People v Greene	App Term, 2d Dept: 13 Misc 3d 137(A) (Suffolk)	denied 2/28/07 (Smith, J.)
People v Griffin	1st Dept: 33 AD3d 561 (NY)	denied 2/28/07 (Smith, J.)
People v Grimmer	County Ct, 10/6/06 (Erie)	denied 2/9/07 (Kaye, Ch.J.)
People v Grodi	4th Dept: 34 AD3d 1259 (Onondaga)	denied 2/1/07 (Ciparick, J.)
People v Harper	2d Dept: 32 AD3d 967 (Queens)	denied 2/1/07 (Ciparick, J.)
People v Harris	App Div, 1st Dept, 2006 NY Slip Op 82192(U) (Bronx)	dismissed 2/21/07 (Kaye, Ch.J.)
People v Harvey	App Div, 2d Dept, 2006 NY Slip Op 82145(U) (Rockland)	dismissed 2/1/07 (Grafteo, J.)
People v Hernandez (Jai)	2d Dept: 32 AD3d 968 (Dutchess)	dismissed ² 2/27/07 (Grafteo, J.)
People v Hernandez (Raymond)	1st Dept: 35 AD3d 300 (NY)	denied 2/20/07 (Grafteo, J.)
People v High	3d Dept: 34 AD3d 927 (Albany)	denied 2/22/07 (Ciparick, J.)
People v Hill	App Div, 4th Dept, 11/15/06 (Onondaga)	dismissed 2/27/07 (Grafteo, J.)
People v Jackson	2d Dept: 34 AD3d 597 (Westchester)	denied 2/13/07 (Read, J.)
People v Johnson	1st Dept: 33 AD3d 561 (Bronx)	denied 2/22/07 (Ciparick, J.)
People v Jones	App Term, 1st Dept: 13 Misc 3d 94 (NY)	granted 2/21/07 (Pigott, J.)
People v Jordan	3d Dept: 34 AD3d 927 (Albany)	denied 2/22/07 (Ciparick, J.)
People v June	App Div, 4th Dept, 12/5/06 (Erie)	dismissed 2/13/07 (Read, J.)
People v Kaminski	App Div, 3d Dept, 11/16/06 (Broome)	denied 2/27/07 (Read, J.)
People v Kellyman	2d Dept: 33 AD3d 816 (Kings)	denied 2/15/07 (Pigott, J.)
People v Kiko	3d Dept: 34 AD3d 1120 (Saratoga)	denied 2/21/07 (Ciparick, J.)
People v Kimes	1st Dept: 37 AD3d 1 (NY)	denied 2/21/07 (Grafteo, J.)
People v Kirby	2d Dept: 34 AD3d 695 (Kings)	denied 2/27/07 (Read, J.)
People v Kotharu	App Div, 1st Dept, 2006 NY Slip Op 81946(U) (NY)	dismissed 2/1/07 (Ciparick, J.)

2. Dismissed without prejudice to renewal by defendant pro se or by new counsel.

People v LaFontaine	1st Dept: 36 AD3d 474 (NY)	dismissed 2/15/07 (Pigott, J.)
People v Lagana	App Term, 2d Dept: 13 Misc 3d 110 (Suffolk)	denied 2/21/07 (Grafteo, J.)
People v Lebron	1st Dept: 35 AD3d 173 (NY)	denied 2/13/07 (Kaye, Ch.J.)
People v Lee	2d Dept: 34 AD3d 696 (Kings)	denied 2/13/07 (Read, J.)
People v Lei Chen	1st Dept: 34 AD3d 374 (NY)	denied 2/22/07 (Ciparick, J.)
People v Lewis	2d Dept: 34 AD3d 599 (Queens)	denied 2/22/07 (Pigott, J.)
People v Lockett	4th Dept: 34 AD3d 1208 (Erie)	denied 2/15/07 (Kaye, Ch.J.)
People v Lopez	1st Dept: 34 AD3d 372 (NY)	denied 2/27/07 (Kaye, Ch.J.)
People v Mack	4th Dept: 34 AD3d 1304 (Erie)	denied 2/13/07 (Read, J.)
People v Mainella	4th Dept: 34 AD3d 1371 (Wyoming)	denied 2/14/07 (Kaye, Ch.J.)
People v Maisonet	2d Dept: 33 AD3d 723 (Queens)	denied 2/9/07 (Kaye, Ch.J.)
People v Marable	2d Dept: 33 AD3d 723 (Nassau)	denied 2/28/07 (Smith, J.)
People v Martin	2d Dept: 33 AD3d 1024 (Queens)	denied 2/28/07 (Smith, J.)
People v Matos (Alberto)	3d Dept: 34 AD3d 1120 (Saratoga)	denied 2/21/07 (Ciparick, J.)
People v Matos (Hector)	1st Dept: 34 AD3d 253 (Bronx)	denied 2/28/07 (Ciparick, J.)
People v Matos (Roberto)	3d Dept: 34 AD3d 1120 (Saratoga)	denied 2/21/07 (Ciparick, J.)
People v McCallop	1st Dept: 34 AD3d 360 (Bronx)	denied 2/28/07 (Ciparick, J.)
People v McCowen	2d Dept: 33 AD3d 816 (Kings)	denied 2/20/07 (Pigott, J.)
People v McCray	2d Dept: 33 AD3d 817 (Westchester)	denied 2/22/07 (Ciparick, J.)
People v McKnight	4th Dept: 34 AD3d 1371 (Erie)	denied 2/21/07 (Kaye, Ch.J.)
People v McLennon	App Div, 2d Dept, 2006 NY Slip Op 82414(U) (Kings)	dismissed 2/15/07 (Pigott, J.)
People v McVay	1st Dept: 34 AD3d 305 (NY)	denied 2/1/07 (Ciparick, J.)
People v Meehan	App Div, 3d Dept, 11/29/06 (Broome)	dismissed 2/13/07 (Read, J.)
People v Michalow	County Ct, 11/29/06 (Erie)	denied 2/21/07 (Grafteo, J.)

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People v Middleton	2d Dept: 33 AD3d 941 (Kings)	denied 2/6/07 (Kaye, Ch.J.)
People v Milazo	3d Dept: 33 AD3d 1060 (Broome)	denied 2/1/07 (Ciparick, J.)
People v Ming	3d Dept: 35 AD3d 962 (Broome)	denied 2/27/07 (Read, J.)
People v Mitchell (Elbert)	App Div, 1st Dept, 2006 NY Slip Op 77126(U) (NY)	denied 2/21/07 (Ciparick, J.)
People v Mitchell (Eric)	2d Dept: 35 AD3d 507 (Kings)	denied 2/28/07 (Ciparick, J.)
People v Montalvo	2d Dept: 34 AD3d 600 (Suffolk)	denied 2/20/07 (Grafteo, J.)
People v Moreau	2d Dept: 34 AD3d 499 (Queens)	denied 2/1/07 (Ciparick, J.)
People v Morgan	App Div, 2d Dept, 2006 NY Slip Op 80284(U) (Rockland)	dismissed 2/28/07 (Smith, J.)
People v Muntaqim	4th Dept: 34 AD3d 1371 (Erie)	denied 2/21/07 (Kaye, Ch.J.)
People v Narvaez	2d Dept: 34 AD3d 847 (Kings)	denied 2/28/07 (Ciparick, J.)
People v Nazarego	1st Dept: 33 AD3d 549 (NY)	denied 2/13/07 (Read, J.)
People v Noel	2d Dept: 34 AD3d 699 (Kings)	denied 2/14/07 (Kaye, Ch.J.)
People v Nunez (Claudio)	3d Dept: 35 AD3d 902 (Franklin)	denied 2/28/07 (Smith, J.)
People v Nunez (Lowenky)	App Term, 2d Dept: 13 Misc 3d 143(A) (Suffolk)	denied 2/27/07 (Pigott, J.)
People v Nunez (Luis)	1st Dept: 35 AD3d 205 (NY)	denied 2/20/07 (Grafteo, J.)
People v Oates	2d Dept: 33 AD3d 823 (Orange)	denied 2/1/07 (Pigott, J.)
People v Ortiz	App Div, 2d Dept, 2007 NY Slip Op 60199(U) (Queens)	dismissed 2/20/07 (Kaye, Ch.J.)
People v Osorio	4th Dept: 34 AD3d 1271 (Onondaga)	denied 2/6/07 (Grafteo, J.)
People v Pair	2d Dept: 33 AD3d 1026 (Kings)	denied 2/13/07 (Kaye, Ch.J.)
People v Peoples	2d Dept: 34 AD3d 503 (Kings)	denied 2/15/07 (Pigott, J.)
People v Perkins	2d Dept: 35 AD3d 632 (Orange)	denied 2/14/07 (Kaye, Ch.J.)
People v Perry	3d Dept: 27 AD3d 952 (Cortland)	denied 2/20/07 (Pigott, J.)
People v Pisciotta	1st Dept: 34 AD3d 389 (Bronx)	denied 2/28/07 (Ciparick, J.)
People v Pittam	2d Dept: 33 AD3d 824 (Queens)	denied 2/27/07 (Read, J.)

People v Polack	1st Dept: 33 AD3d 565 (NY)	denied 2/1/07 (Ciparick, J.)
People v Ramos	4th Dept: 34 AD3d 1363 (Monroe)	denied 2/9/07 (Kaye, Ch.J.)
People v Reed	4th Dept: 34 AD3d 1364 (Monroe)	denied 2/14/07 (Kaye, Ch.J.)
People v Reid (Bruce)	4th Dept: 34 AD3d 1273 (Monroe)	denied 2/28/07 (Ciparick, J.)
People v Reid (Tierra)	County Ct, 11/3/06 (Erie)	denied 2/28/07 (Smith, J.)
People v Reyes (Carlos)	1st Dept: 34 AD3d 331 (Bronx)	denied 2/13/07 (Kaye, Ch.J.)
People v Reyes (Cecilio)	1st Dept: 34 AD3d 237 (NY)	denied 2/28/07 (Smith, J.)
People v Reynoso (Ignacio)	App Div, 1st Dept, 2006 NY Slip Op 81944(U) (Bronx)	dismissed 2/22/07 (Ciparick, J.)
People v Reynoso (Ignacio)	App Div, 1st Dept, 2007 NY Slip Op 61819(U) (Bronx)	dismissed 2/22/07 (Ciparick, J.)
People v Rivera	4th Dept: 30 AD3d 1019 (Erie)	denied reconsideration 2/28/07 (Smith, J.)
People v Robles	2d Dept: 34 AD3d 849 (Queens)	denied 2/20/07 (Grafteo, J.)
People v Rodney	App Div, 2d Dept, 2006 NY Slip Op 77342(U) (Kings)	denied 2/21/07 (Ciparick, J.)
People v Rodriguez	1st Dept: 34 AD3d 320 (NY)	denied 2/1/07 (Ciparick, J.)
People v Rosa	1st Dept: 34 AD3d 375 (NY)	denied 2/20/07 (Grafteo, J.)
People v Ross (James)	3d Dept: 34 AD3d 1124 (Schenectady)	denied 2/22/07 (Pigott, J.)
People v Ross (Stephen)	1st Dept: 34 AD3d 295 (NY)	denied 2/6/07 (Kaye, Ch.J.)
People v Roy-Hill	1st Dept: 33 AD3d 436 (NY)	denied 2/28/07 (Smith, J.)
People v Ruiz	1st Dept: 34 AD3d 300 (Bronx)	denied 2/22/07 (Ciparick, J.)
People v Russell	2d Dept: 34 AD3d 850 (Queens)	denied 2/27/07 (Read, J.)
People v Samuels	App Term, 2d Dept: 13 Misc 3d 137(A) (Kings)	denied 2/1/07 (Ciparick, J.)
People v Scott	4th Dept: 32 AD3d 1178 (Genesee)	denied 2/20/07 (Grafteo, J.)
People v Screahben	1st Dept: 35 AD3d 246 (Bronx)	denied 2/27/07 (Read, J.)
People v Sealy (Ernest)	2d Dept: 35 AD3d 510 (Kings)	denied 2/20/07 (Grafteo, J.)
People v Sealy (Joey)	1st Dept: 34 AD3d 259 (NY)	denied 2/7/07 (Kaye, Ch.J.)

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People v Simon	2d Dept: 34 AD3d 852 (Kings)	denied 2/27/07 (Read, J.)
People v Singletary	1st Dept: 35 AD3d 259 (Bronx)	denied 2/27/07 (Kaye, Ch.J.)
People v Smith	4th Dept: 34 AD3d 1313 (Erie)	denied 2/28/07 (Ciparick, J.)
People v Soto	1st Dept: 34 AD3d 340 (NY)	denied 2/22/07 (Ciparick, J.)
People v Sparber	1st Dept: 34 AD3d 265 (NY)	denied ³ 2/1/07 (Ciparick, J.)
People v Spray	4th Dept: 34 AD3d 1250 (Orleans)	denied 2/22/07 (Ciparick, J.)
People v Taleb	App Term, 2d Dept: 12 Misc 3d 133(A) (Queens)	denied 2/27/07 (Pigott, J.)
People v Taylor	1st Dept: 34 AD3d 349 (NY)	denied 2/20/07 (Grafteo, J.)
People v Thigpen (David)	App Div, 2d Dept, 2006 NY Slip Op 75314(U) (Kings)	dismissed 2/22/07 (Ciparick, J.)
People v Thigpen (David)	2d Dept: 30 AD3d 548 (Kings)	denied 2/22/07 (Ciparick, J.)
People v Thomas	3d Dept: 33 AD3d 1053 (St. Lawrence)	denied 2/15/07 (Pigott, J.)
People v Thompson (Jason)	1st Dept: 34 AD3d 325 (Bronx)	denied 2/13/07 (Read, J.)
People v Thompson (Terrell)	2d Dept: 34 AD3d 852 (Nassau)	denied 2/13/07 (Kaye, Ch.J.)
People v Tolentino	1st Dept: 34 AD3d 331 (NY)	denied 2/27/07 (Read, J.)
People v Trench	App Term, 2d Dept: 13 Misc 3d 137(A) (Nassau)	denied 2/23/07 (Pigott, J.)
People v Trinidad	4th Dept: 34 AD3d 1372 (Erie)	denied 2/13/07 (Read, J.)
People v Tucker	2d Dept: 34 AD3d 505 (Kings)	denied 2/22/07 (Pigott, J.)
People v Urena	1st Dept: 35 AD3d 296 (Bronx)	denied 2/20/07 (Grafteo, J.)
People v Valdivia	1st Dept: 34 AD3d 369 (NY)	denied 2/14/07 (Kaye, Ch.J.)
People v Varela	1st Dept: 34 AD3d 237 (NY)	denied 2/28/07 (Smith, J.)
People v Vargas	1st Dept: 34 AD3d 319 (NY)	denied 2/27/07 (Pigott, J.)
People v Vazquez	4th Dept: 34 AD3d 1319 (Monroe)	denied 2/28/07 (Ciparick, J.)
People v Vega	1st Dept: 34 AD3d 361 (Bronx)	denied 2/27/07 (Kaye, Ch.J.)
People v Villanueva	1st Dept: 35 AD3d 229 (Bronx)	denied 2/20/07 (Grafteo, J.)

3. Denied without prejudice to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758).

People v Warren	2d Dept: 33 AD3d 826 (Kings)	denied 2/28/07 (Smith, J.)
People v Washington	App Div, 1st Dept, 2007 NY Slip Op 62259(U) (NY)	dismissed 2/27/07 (Kaye, Ch.J.)
People v Weinflash	1st Dept: 33 AD3d 559 (NY)	denied 2/28/07 (Smith, J.)
People v White	1st Dept: 35 AD3d 259 (Bronx)	denied 2/27/07 (Kaye, Ch.J.)
People v Wiggins	2d Dept: 31 AD3d 584 (Dutchess)	denied 2/27/07 (Read, J.)
People v Williams	2d Dept: 33 AD3d 1028 (Queens)	denied 2/7/07 (Kaye, Ch.J.)
People v Wilmot	4th Dept: 34 AD3d 1225 (Erie)	denied 2/28/07 (Ciparick, J.)
People v Wilson	4th Dept: 34 AD3d 1276 (Onondaga)	denied 2/28/07 (Ciparick, J.)
People v Woodson	4th Dept: 34 AD3d 1208 (Erie)	denied 2/15/07 (Kaye, Ch.J.)
People v Wright (Chad)	3d Dept: 34 AD3d 940 (Cortland)	denied 2/2/07 (Pigott, J.)
People v Wright (Lawrence)	4th Dept: 34 AD3d 1274 (Monroe)	denied 2/13/07 (Read, J.)
People v Zimmerman	1st Dept: 32 AD3d 345 (NY)	granted 2/27/07 (Smith, J.)

[865 NE2d 1, 832 NYS2d 893]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OR-
LANDO MELENDEZ, Appellant.

Argued February 15, 2007; decided March 22, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 22, 2005. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Thomas M. Van Strydonck, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree.

People v Melendez, 24 AD3d 1223, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Testimony of Non-English-Speaking Witness

In a burglary prosecution wherein the trial court required defendant's court-appointed interpreter to stand at the back of the courtroom and interpret for the entire court, rather than solely for defendant, during the trial testimony of a non-English-speaking witness, the constitutional issues defendant raised, including the violation of his right to counsel, his right to be present and his right to participate in his own defense, were not presented to the trial court and thus were not preserved for review in the Court of Appeals. Defendant's remaining contentions regarding alleged inaccurate translation of the complainant's testimony and faulty instructions to the grand jury were without merit.

APPEARANCES OF COUNSEL

Edward J. Nowak, Public Defender, Rochester (Brian Shiffrin of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (Arthur G. Weinstein of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

During the testimony of a non-English-speaking witness, the trial court required defendant's court-appointed interpreter to stand at the back of the courtroom and interpret for the entire court, rather than solely for defendant. The constitutional issues defendant raises—including the violation of his right to counsel, his right to be present and his right to participate in his own defense—were not presented to the trial court and are thus not preserved for our review. Defendant's remaining contentions regarding alleged inaccurate translation of complainant's testimony and faulty instructions to the grand jury are without merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur; Judge PIGOTT taking no part.

Order affirmed in a memorandum.

[864 NE2d 1270, 832 NYS2d 871]

ALAN D. OBOLER et al., Appellants, v CITY OF NEW YORK, Respondent.

Argued February 13, 2007; decided March 22, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 20, 2006. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Robert D. Lippmann, J.), which had granted defendant's motion for summary judgment at the conclusion of plaintiff's case at trial and dismissed the complaint.

Oboler v City of New York, 31 AD3d 308, affirmed.

HEADNOTES

Municipal Corporations — Notice of Street Defect — Exceptions

1. The trial court properly granted defendant City's trial motion for summary judgment dismissing a complaint seeking to recover for injuries sustained when plaintiff allegedly tripped and fell when he stepped on a depressed manhole cover and his foot struck a ridge of asphalt encircling the cover. Defendant had no prior written notice of an alleged hazard as required under the Pothole Law (Administrative Code of City of NY § 7-201 [c] [2]). Further, plaintiffs failed to prove an exception to the notice requirement by either presenting evidence that defendant created the defect through an affirmative act of negligence, or presenting proof of a special benefit conferred on defendant.

Evidence — Opinion Evidence

2. In a personal injury action arising from plaintiff's alleged trip and fall when he stepped on a depressed manhole cover and his foot struck a ridge of asphalt encircling the cover, which was dismissed because defendant had no written notice of an alleged hazard (Administrative Code of City of NY § 7-201 [c] [2]), any error by the trial court in precluding plaintiff's expert's testimony did not affect the outcome of the case, since the expert could not supply any reliable evidence as to the elements of the exceptions to the prior written notice law.

APPEARANCES OF COUNSEL

Reingold & Tucker, Brooklyn (*Abraham Reingold* of counsel), for appellants.

Michael A. Cardozo, Corporation Counsel, New York City (*Susan Paulson* and *Francis F. Caputo* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff Alan Oboler claims that he injured his shoulder on May 7, 2000 when he stepped on a depressed manhole cover situated in the roadway of Madison Avenue in Manhattan between 92nd and 93rd Streets and his foot struck a “ridge of asphalt” encircling the cover, causing him to trip and fall. He and his wife sued defendant City of New York for damages from his personal injuries and loss of consortium respectively. The City had no prior written notice of the hazard allegedly presented by the depressed manhole cover, as required under the Pothole Law (Administrative Code of City of NY § 7-201 [c] [2]).

In an effort to bring themselves within an exception to the Pothole Law, plaintiffs sought to have an expert testify that there was a 1 to 1½-inch height differential between the edge of the asphalt and the manhole cover; that the City created this condition when Madison Avenue was resurfaced; that city and state regulations require manhole covers to be flush with the surrounding surface; and that the City’s violation of these regulations and its failure to adhere to accepted engineering and construction practices caused plaintiff Alan Oboler’s injuries. There was no evidence as to when this section of Madison Avenue might have been resurfaced prior to the accident, or whether the City performed any such repaving work.

The City moved to dismiss on the ground that plaintiffs had not made out a prima facie case of negligence, or alternatively, to preclude the expert “by reason of the fact that his testimony cannot be based upon anything other than speculation and his opinion that only the City does resurfacing.” Supreme Court reserved decision on the City’s motion to dismiss, and granted the motion to preclude. Supreme Court subsequently dismissed the complaint at the close of plaintiffs’ case at trial, stating that the “record [was] devoid of any evidence indicating that the City repaired Madison Avenue.” The Appellate Division affirmed, with two Justices dissenting.

[1, 2] We have recognized only two exceptions to prior written notice laws—“where the locality created the defect or hazard through an affirmative act of negligence and where a ‘special use’ confers a special benefit upon the locality” (*Amabile v City of Buffalo*, 93 NY2d 471, 474 [1999] [citations omitted]). Further, “the affirmative negligence exception . . . [is] limited to work by the City that *immediately* results in the existence of a dangerous condition” (*Bielecki v City of New York*, 14 AD3d 301

[1st Dept 2005] [emphasis added]). Here, plaintiff presented no evidence of who last repaved this section of the roadway before the accident, when any such work may have been carried out, or the condition of the asphalt abutting the manhole cover immediately after any such resurfacing. Next, even assuming that the special use doctrine applies to a manhole situated in a city public street, plaintiffs presented no proof of any special benefit conferred on the City. Finally, we note that the expert's opinion was not inadmissible merely because nearly four years elapsed between the accident and the expert's inspection of the site. Because the expert could not supply any reliable evidence as to the elements of the exceptions to the prior written notice law, however, whether the trial court erred in precluding the expert's testimony is a question that does not affect the outcome of this case.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

[865 NE2d 1, 832 NYS2d 893]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAGNUS DALLAS, Appellant.

Argued February 8, 2007; decided March 22, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Onondaga County Court (Joseph E. Fahey, J.), entered April 3, 2006. The County Court affirmed a judgment of the Syracuse City Court (Stephen J. Dougherty, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of marijuana in the fourth degree.

HEADNOTE

Crimes — Unlawful Search and Seizure — Emergency Exception to Warrant Requirement

In a criminal prosecution, the issue of whether a search of defendant's apartment was properly conducted under the emergency doctrine involved a mixed question of law and fact, and was beyond further review in the Court of Appeals where the courts below found that the three elements of that doctrine (see *People v Mitchell*, 39 NY2d 173, 177-178) were present, and their determination was supported by the record.

APPEARANCES OF COUNSEL

Bryan Law Firm, Syracuse (*Bruce R. Bryan* and *Paul A. Carey* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (James P. Maxwell and Audra Albright of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the County Court should be affirmed.

Defendant challenges a search of his apartment conducted under the “emergency” doctrine. We stated the elements of that doctrine in *People v Mitchell* (39 NY2d 173, 177-178 [1976]) as follows:

“(1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property.

“(2) The search must not be primarily motivated by intent to arrest and seize evidence.

“(3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched.”

The applicability of the emergency doctrine “involves a mixed question of law and fact” (*People v Molnar*, 98 NY2d 328, 335 [2002]). The courts below found that the three elements required by *Mitchell* were present, and their determination is supported by the record. Thus, “any further review is beyond this Court’s jurisdiction” (*id.*). We have no occasion to consider whether our holding in *Mitchell* should be modified in light of the Supreme Court’s decision in *Brigham City v Stuart* (547 US —, 126 S Ct 1943 [2006]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur; Judge JONES taking no part.

Order affirmed in a memorandum.

AMBASE CORPORATION, Appellant, v PRYOR CASHMAN SHERMAN & FLYNN LLP et al., Respondents.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 35 AD3d 174.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

B & B MANHATTAN, LLC, Appellant, v PETEZI SACK et al.,
Respondents.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 12 Misc 3d 128(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602 [a]).

ARTURO P. BATAC, Appellant, v CAPITAL ONE BANK, Respondent.
(And Five Other Actions.)

Submitted January 8, 2007; decided March 22, 2007

Reported below, 2006 NY Slip Op 80328(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in these actions commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

BEAL SAVINGS BANK, Appellant, v VIOLA SOMMER et al., Respondents.

Submitted February 5, 2007; decided March 22, 2007

Reported below, 29 AD3d 388.

Motion to dismiss appeal as moot denied.

Judges READ and JONES taking no part.

In the Matter of the Claim of KIM M. CAGLE, as Voluntary
Administrator of the Estate of JOHN R. CAGLE, Deceased,
Appellant, v JUDGE MOTOR CORPORATION et al., Respondents.
WORKERS' COMPENSATION BOARD, Respondent.

Submitted February 5, 2007; decided March 22, 2007

Reported below, 31 AD3d 1016.

Motion for reargument of motion for leave to appeal denied [*see* 7 NY3d 922].

In the Matter of CARL A.G., Appellant, v MYRIAM L.G., Respondent.

In the Matter of MYRIAM L.G., Respondent, v CARL A.G., Appellant.

Submitted January 22, 2007; decided March 22, 2007

Reported below, 35 AD3d 1259.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that dismissed the appeal from Family Court's order denying a motion to resettle, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of DAVID GARCIA, Appellant, v STATE OF NEW YORK GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 2006 NY Slip Op 75907(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SHERMAN GREEN, Appellant, v KIMBER MANUFACTURING, INC., Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 29, 2007; decided March 22, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

NITZA KEANE, Appellant, v FRANK M. KEANE, Respondent.

Submitted January 22, 2007; decided March 22, 2007

Reported below, 25 AD3d 729.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 8 NY3d 115].

JOHN MARTOCCI et al., Appellants, v BOWASKIE ICE HOUSE, LLC,
Defendant, and DANIEL A. BOONS, Respondent.

Submitted January 29, 2007; decided March 22, 2007

Reported below, 31 AD3d 1021.

Motion for reargument of motion for leave to appeal denied
[see 7 NY3d 916].

Judge GRAFFEO taking no part.

MAYOR OF THE CITY OF NEW YORK, Appellant, v COUNCIL OF THE
CITY OF NEW YORK, Respondent. LILLIAN ROBERTS, as Exec-
utive Director of District Council 37, AFSCME, AFL-CIO,
et al., Intervenors-Respondents.

Submitted March 12, 2007; decided March 22, 2007

Reported below, 38 AD3d 89.

Motion by New York Conference of Mayors and Municipal Of-
ficials for leave to file a brief amicus curiae on the appeal herein
granted. Two copies of the brief may be served and 24 copies
filed within seven days.

NORTH SHORE ENVIRONMENTAL SOLUTIONS, INC., et al., Plaintiffs,
and JARO ZITNANSKY, Appellant, v ALLEN K. GLASS et al.,
Respondents.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 17 AD3d 427.

Motion for reargument of motion for leave to appeal denied
[see 7 NY3d 717].

NORTH SHORE ENVIRONMENTAL SOLUTIONS, INC., et al., Plaintiffs,
and JARO ZITNANSKY, Appellant, v ALLEN K. GLASS, et al.,
Respondents.

Submitted February 5, 2007; decided March 22, 2007

Motion for leave to appeal dismissed upon the ground that it
does not lie (see CPLR 5602 [a]).

NYACK HOSPITAL, Respondent, v ENCOMPASS INSURANCE COMPANY, Appellant.

Submitted February 5, 2007; decided March 22, 2007

Reported below, 23 AD3d 535.

Motion to dismiss appeal granted and the appeal dismissed as moot with \$400 costs and \$100 costs of motion.

ANTHONY PASSALACQUA, Appellant, v STATE OF NEW YORK, Respondent.

Submitted January 22, 2007; decided March 22, 2007

Reported below, 2006 NY Slip Op 71647(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AUGUSTINE R. RIZZO, Appellant.

Submitted March 19, 2007; decided March 22, 2007

Reported below, 24 AD3d 1273.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge PIGOTT taking no part.

MARGARITA RIVERA, Respondent, v KATTE ANILESH, D.D.S., et al., Defendants, and INDU ANILESH, D.D.S., Appellant.

Submitted March 12, 2007; decided March 22, 2007

Reported below, 32 AD3d 202.

Motion by New York State Dental Association et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

PAMELA B. RODMAN, Appellant, v ROBERT H. FRIEDMAN, Respondent.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 33 AD3d 400.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SONIA ROSARIO et al., Respondents, et al., Plaintiffs, v DIAGONAL REALTY, LLC, et al., Appellants, et al., Defendants.

Submitted February 26, 2007; decided March 22, 2007

Reported below, 32 AD3d 739.

Motion by Rent Stabilization Association of N.Y.C., Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

DEAN RYDER et al., Appellants, v CITY OF NEW YORK, Respondent.

Submitted January 29, 2007; decided March 22, 2007

Reported below, 32 AD3d 836.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARTIN WHITE, Appellant, v JAMES J. WALSH, as Superintendent of Sullivan Correctional Facility, Respondent.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 34 AD3d 871.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

In the Matter of the Claim of MICHAEL P. YASTRZEMSKI, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted January 16, 2007; decided March 22, 2007

Reported below, 32 AD3d 1123.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[865 NE2d 1239, 834 NYS2d 73]

In the Matter of JEAN MARSHALL.

Decided March 27, 2007

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether Honorable Jean Marshall should be suspended from her office of Justice of the Cuyler Town Court, Cortland County, pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c), of whether a town justice should be suspended from office, it is determined that the justice be suspended with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Jean Marshall is suspended with pay, effective immediately, from her office of Justice of the Cuyler Town Court, Cortland County, pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[865 NE2d 1239, 834 NYS2d 73]

In the Matter of ANTHONY RUTKUNAS, Respondent-Appellant, v
JOSEPH STOUT et al., Appellants-Respondents.

Decided March 27, 2007

SUMMARY

CROSS APPEALS, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the

Second Judicial Department, entered July 11, 2006, in a proceeding pursuant to CPLR article 78. The Appellate Division granted a petition, on the law and in the exercise of discretion, to review a determination of respondent Commissioner of the Westchester County Department of Parks, Recreation, and Conservation, which had adopted the Hearing Officer's recommendation, made after a hearing, finding the petitioner guilty of misconduct and terminating his employment as a Senior Maintenance Mechanic I, to the extent of annulling the penalty and remitting the matter to the Commissioner to impose a less severe penalty.

Matter of Rutkunas v Stout, 31 AD3d 566, modified.

HEADNOTE

Civil Service — Disciplinary Punishment — Termination of Employment

In a CPLR article 78 proceeding to review a determination of respondent Commissioner of the Westchester County Department of Parks, Recreation, and Conservation that adopted the Hearing Officer's recommendation finding petitioner guilty of misconduct and terminating his employment, the Appellate Division lacked discretionary authority or interest of justice jurisdiction to review and annul the penalty. Petitioner's conduct jeopardized the health and safety of his coworkers and of public patrons. Accordingly, it cannot be concluded that the penalty of dismissal shocks the judicial conscience as a matter of law. Moreover, petitioner failed to show that the Hearing Officer's recommendation was the result of any bias.

APPEARANCES OF COUNSEL

Charlene M. Indelicato, County Attorney, White Plains (*Linda M. Trentacoste* of counsel), for appellants-respondents.

James M. Rose, White Plains, for respondent-appellant.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be modified, with costs to appellants-respondents, by dismissing the petition in its entirety and, as so modified, affirmed.

Petitioner's conduct jeopardized the health and safety of his coworkers and of the public patrons of the facility at which he worked. Accordingly, " 'we cannot conclude that the penalty of dismissal imposed . . . shocks the judicial conscience' " as a matter of law (*Matter of Will v Frontier Cent. School Dist. Bd. of Educ.*, 97 NY2d 690, 691 [2002], quoting *Matter of Kelly v Safir*, 96 NY2d 32, 39-40 [2001]; see also *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale &*

Mamaroneck, Westchester County, 34 NY2d 222, 233 [1974]). The Appellate Division has no discretionary authority or interest of justice jurisdiction in this CPLR article 78 proceeding to review the penalty imposed by respondent Commissioner of the Westchester County Department of Parks, Recreation, and Conservation (*see Matter of Kelly*, 96 NY2d at 38). Moreover, petitioner failed to show that the Hearing Officer's recommendation was the result of any bias (*see Matter of Warder v Board of Regents of Univ. of State of N.Y.*, 53 NY2d 186, 197 [1981]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment modified, etc.

[865 NE2d 1222, 834 NYS2d 56]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DAVOR
GOMCIN, Respondent.

Argued February 15, 2007; decided March 27, 2007

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 18, 1999. The Appellate Division affirmed an order of the Supreme Court, Queens County (Martin J. Schulman, J.), which had granted defendant's motion to suppress a gun and cocaine recovered from his person pursuant to a search incident to his arrest.

People v Gomcin, 265 AD2d 493, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Suppression of Contraband

The Appellate Division properly affirmed an order granting defendant's motion to suppress a gun and cocaine recovered from a search incident to his arrest. During an undercover operation in a social club, defendant approached a female undercover officer and asked her "if she wanted to take a hit of cocaine." The officer relayed this encounter by radio and described defendant to another detective who, six hours later, stopped and searched defendant as he exited the club, discovered the contraband, and made the arrest. Whether there was probable cause for defendant's arrest presents a mixed question of law and fact beyond review in the Court of Appeals if there is support in the record. The motion court and the Appellate Division concluded that

defendant's bare inquiry, in the absence of any context, did not support the inference that he possessed cocaine, and their determination was reasonable and therefore enjoyed record support.

APPEARANCES OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (John M. Castellano, Gary Fidel and Sharon Y. Brodt of counsel), for appellant.

Green & Willstatter, White Plains (Theodore S. Green and Richard D. Willstatter of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

During the evening hours of January 31, 1997 and the early morning hours of February 1, 1997, the police were conducting an undercover "buy operation" at a social club in Queens, New York. At 8:00 P.M., a female undercover officer stationed inside the club radioed a detective who was a member of the undercover team. She told him that she had been approached by a tall white male with a pony tail—whom she dubbed "JD Tan"—who asked her "if she wanted to take a hit of cocaine." Approximately six hours later, at about 1:45 A.M., the officer left the club, and the detective and back-up officers arrived at the scene. They directed the club's patrons to leave, and stopped and searched every patron exiting the club, including defendant. The police recovered a packet of cocaine from defendant's jacket pocket and a .38-caliber automatic gun from his boot. Defendant was later indicted on charges of criminal possession of a weapon in the third degree, and criminal possession of a controlled substance in the third degree.

The People's only witness at the subsequent *Mapp* hearing was the detective, who recounted the female undercover officer's radio message to him. The court credited his testimony, but concluded that this evidence was legally insufficient to establish probable cause to arrest. Reasoning that defendant's inquiry as to whether the female undercover officer "wanted to take a hit of cocaine" was "an inquiry as to her desire and state of mind, and it's not enough to give probable cause to believe that [defendant] possessed drugs," Supreme Court granted defendant's motion to suppress the drugs and gun. The Appellate Division affirmed, with two Justices dissenting. The Court observed that "[s]ince we do not know whether the undercover

officer and the defendant engaged in additional conversation, we do not know the context in which the defendant purportedly asked her if she wanted a ‘hit’ of cocaine” (265 AD2d 493, 494-495 [2d Dept 1999]). The Appellate Division agreed with the motion court’s “reasonable inference” that “defendant’s statement to the undercover officer was merely an inquiry into her ‘wishes and desires.’ The defendant’s statement was made in a social club, where casual conversation is rampant. The defendant may have been attempting to strike up a conversation with a female” (*id.* at 495).

Whether there was probable cause for defendant’s arrest presents a mixed question of law and fact, and so we may not disturb the lower court’s determination unless it lacks a basis in the record. In this case, the motion court and the Appellate Division concluded that defendant’s bare inquiry, in the absence of any context, did not support the inference that he possessed cocaine. While the lower courts might have found that the police were reasonable in viewing defendant’s statement differently, as implying that he possessed cocaine and qualifying as an offer to sell a controlled substance, their determination that this was not the case was reasonable and therefore enjoys record support.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[865 NE2d 1240, 834 NYS2d 74]

JENNA LYNN PAHLAD, an Infant, by the Appointed Guardian of Her Properties, DANIEL BERGER, et al., Appellants, v LOIS BRUSTMAN, M.D., et al., Respondents.

Decided March 27, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 26, 2006. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Sallie Manzanet, J.), which had granted defendants’ motion to dismiss the complaint.

Based on the alleged malpractice of defendants in failing to correctly advise plaintiffs regarding the condition of the fetus,

plaintiff's commenced this action on November 5, 2003, more than three years after the infant plaintiff's birth with severe birth defects on September 25, 2000.

The Appellate Division concluded that the complaint was properly dismissed as barred by the applicable 2¹/₂-year limitations period (CPLR 214-a) and that the equitable estoppel doctrine was not applicable to bar the statute of limitations defense because plaintiffs failed to exercise due diligence in ascertaining the facts.

Pahlad v Brustman, 33 AD3d 518, affirmed.

HEADNOTE

Limitation of Actions — Medical Malpractice — Wrongful Life

In an action arising from the alleged malpractice of defendant doctors in failing to correctly advise plaintiffs regarding the condition of the fetus, which was commenced more than three years after the infant plaintiff's birth with severe birth defects, the Appellate Division properly affirmed an order granting defendant's motion to dismiss the complaint as time-barred. Plaintiffs had timely awareness of the facts requiring them to make further inquiry before the 2¹/₂-year statute of limitations expired. Thus, an equitable estoppel defense to the statute of limitations was inappropriate as a matter of law.

APPEARANCES OF COUNSEL

Benjamin Heinrich, P.C., Bronx (*Benjamin Heinrich* of counsel), for appellants.

Aaronson Rappaport Feinstein & Deutsch, LLP, New York City (*Steven C. Mandell* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. Plaintiffs had "timely awareness of the facts requiring [them] to make further inquiry before the statute of limitations expired," and an equitable estoppel defense to the statute of limitations is therefore "inappropriate as a matter of law" (see *Putter v North Shore Univ. Hosp.*, 7 NY3d 548, 553-554 [2006]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

In the Matter of ANTHONY CASTRICONE, Appellant, v LUCY TAYLOR WELCH, or Director for Orleans County Probation Department, Respondent.

Submitted January 22, 2007; decided March 27, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ANTHONY CASTRICONE, Appellant, v LUCY TAYLOR WELCH, or Director for Orleans County Probation Department, Respondent.

Submitted February 20, 2007; decided March 27, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CITIBANK, N.A., Respondent, v RUTH WAPNICK, Appellant, and SETH WAPNICK et al., Defendants.

Submitted February 26, 2007; decided March 27, 2007

Reported below, 2006 NY Slip Op 76481(U).

Motion for reargument of motion for leave to appeal denied [see 8 NY3d 801].

ROBERT COULL, Appellant, v PAMELA ROTTMAN, Respondent.

Submitted March 12, 2007; decided March 27, 2007

Reported below, 35 AD3d 198.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SEPHORA K. DAVIS, Appellant, v JOAN S. KOHOUT, as Acting Livingston County Court Judge, et al., Respondents.

Submitted February 5, 2007; decided March 27, 2007

Reported below, 35 AD3d 1173.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the issues presented have become moot. Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

ALICE LARAINÉ DIMERY, Appellant, v ULSTER SAVINGS BANK, Respondent.

Submitted February 5, 2007; decided March 27, 2007

Reported below, 13 AD3d 574.

Motion for reconsideration of this Court's December 21, 2006 dismissal order denied [*see* 7 NY3d 920]. Cross motion for the imposition of sanctions denied.

IVAN DIMICH, Appellant, v MED-PRO, INC., Defendant, and ALBERS MEDICAL DISTRIBUTORS, INC., et al., Respondents.

Submitted January 8, 2007; decided March 27, 2007

Reported below, 34 AD3d 329.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellant's motion for class action certification, renewal and reargument, and leave to serve an amended complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of EMMA L. and Another, Children Alleged to be Permanently Neglected. ROSALIE L., Also Known as ROSALIE C., Appellant; FAMILY SUPPORT SYSTEMS UNLIMITED, Respondent.

Submitted January 16, 2007; decided March 27, 2007

Reported below, 35 AD3d 250.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that pertained to Emma L., dismissed upon the ground that the order does not finally determine the proceeding as to Emma L. within the meaning of

the Constitution; motion for leave to appeal otherwise denied.
Motion for poor person relief dismissed as academic.

In the Matter of CHARLES FISHER, on Behalf of Himself and as
Representative of a Class of all Others Similarly Situated,
Appellant, v BOARD OF EDUCATION OF WATERTOWN CITY
SCHOOL DISTRICT et al., Respondents.

Submitted January 8, 2007; decided March 27, 2007

Reported below, 30 AD3d 971.

Motion for leave to appeal dismissed upon the ground that
the issues presented have become moot.

Judge PIGOTT taking no part.

In the Matter of FORECLOSURE OF TAX LIENS. CITY OF NEW-
BURGH, Respondent; ADAM QUINN, Appellant.

Submitted February 13, 2007; decided March 27, 2007

Reported below, 21 AD3d 555.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

GIVI KOBIASHVILLI et al., Appellants, v MITCHELL HILL et al.,
Respondents.

Submitted January 29, 2007; decided March 27, 2007

Reported below, 34 AD3d 746.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the action within the meaning of the Constitution.
Motion for leave to appeal dismissed upon the ground that the
order sought to be appealed from does not finally determine the
action within the meaning of the Constitution.

In the Matter of HERBERT McMILLIAN, Appellant, v MAE RIZZO,
Respondent.

Submitted February 26, 2007; decided March 27, 2007

Reported below, 31 AD3d 555.

Motion for reargument of motion for leave to appeal denied [see 7 NY3d 916].

GEORGE MERCIER, Appellant, v VINCENT POWELL, Respondent.

Submitted February 13, 2007; decided March 27, 2007

Reported below, 35 AD3d 1259.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

VINCENT MURPHY et al., Appellants, v ARTHUR SHAW, Respondent.

Submitted January 8, 2007; decided March 27, 2007

Reported below, 34 AD3d 657.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's denial of a motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JOHN PARK, Respondent, v JOHN A. KAPICA et al., Appellants.

Submitted March 20, 2006; decided March 27, 2007

Reported below, 25 AD3d 802.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal granted.

Judge JONES taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ENRIQUE HERNANDEZ, Appellant.

Submitted February 20, 2007; decided March 27, 2007

Reported below, 32 AD3d 967.

Motion to dismiss the appeal herein granted and appeal dismissed without prejudice to a motion to reinstate the appeal should defendant return to this Court's jurisdiction (*see People v Diaz*, 7 NY3d 831 [2006]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOEL MARK, Appellant.

Submitted February 13, 2007; decided March 27, 2007

Reported below, 33 AD3d 337.

Motion to dismiss the appeal herein granted and appeal dismissed without prejudice to a motion to reinstate the appeal should defendant return to this Court's jurisdiction (*see People v Diaz*, 7 NY3d 831 [2006]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CHRISTOPHER DI MELO, Appellant, v DALE ARTUS, Respondent.

Submitted March 12, 2007; decided March 27, 2007

Reported below, 36 AD3d 1091.

Motion for leave to appeal denied. Motion for a stay denied. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CURTIS MIDDLEBROOKS, Appellant, v JAMES CONWAY, as Superintendent of Attica Correctional Facility, Respondent.

Submitted January 8, 2007; decided March 27, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WALTER J. ROACHE, Appellant, v S.A. CONNELL, Respondent.

Submitted February 13, 2007; decided March 27, 2007

Reported below, 31 AD3d 1199.

Motion for reargument of motion for leave to appeal denied [see 8 NY3d 803].

RAYMOND POWERS, Respondent, v CATHERINE WILSON, Appellant.

Submitted January 29, 2007; decided March 27, 2007

Reported below, 2006 NY Slip Op 81257(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PABLO RIVAS et al., Appellants, v AMERIMED USA, INC., et al., Respondents.

Submitted January 2, 2007; decided March 27, 2007

Reported below, 34 AD3d 250.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the dismissal of the complaint against defendants Posner, Waksal and Engelman, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

In the Matter of STEVE STROMAN, Appellant, v PETER E. CORNING, as a County Court Justice, Respondent.

Submitted February 5, 2007; decided March 27, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

In the Matter of the Estate of MARGARET M. TOMECK, Deceased.
EDWARD M. TOMECK, as Executor of MARGARET M. TOMECK,
Deceased, Respondent-Appellant; ROBERT CHRISTOPHER, as
Commissioner of Social Services of Saratoga County,
Appellant-Respondent, et al., Respondent.

Submitted February 13, 2007; decided March 27, 2007

Reported below, 29 AD3d 156.

Motion to strike portions of appellant-respondent's brief
denied.

U.S. BANK NATIONAL ASSOCIATION, Formerly Known as FIRST
BANK NATIONAL ASSOCIATION, Respondent, v INES DIANA
MONTI, Appellant. BRUNO MONTI, Nonparty-Appellant.

Submitted January 8, 2007; decided March 27, 2007

Reported below, 2006 NY Slip Op 80324(U).

Motion to dismiss the appeal granted and, appeal, insofar as
taken by Ines Diana Monti purportedly on behalf of Bruno
Monti, dismissed upon the ground that Ines Diana Monti is not
Bruno Monti's authorized legal representative; appeal by Ines
Diana Monti, insofar as taken on her own behalf, dismissed
upon the ground that the order appealed from does not finally
determine the action within the meaning of the Constitution.

[865 NE2d 1223, 834 NYS2d 57]

MARGO LENNARD, Appellant, v MENDIK REALTY CORP. et al.,
Respondents and Third-Party Plaintiffs. CITY OF NEW YORK,
Third-Party Defendant-Respondent.

Decided March 29, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the
Supreme Court in the First Judicial Department, entered
October 26, 2006. The Appellate Division, with two Justices dis-
senting, (1) reversed, on the law, an order of the Supreme Court,
New York County (Paul G. Feinman, J.), which, to the extent
appealed from, had denied defendants' motion for summary
judgment dismissing the complaint and for a conditional order

of indemnification as against third-party defendant, (2) granted the motion, and (3) dismissed the complaint.

Lennard v Mendik Realty Corp., 33 AD3d 527, reversed.

HEADNOTE

Negligence — Maintenance of Premises — Constructive Notice of Alleged Defective Condition

In an action to recover for injuries sustained when plaintiff allegedly slipped and fell on loose floor tiles in a workplace bathroom, the Appellate Division improperly reversed an order denying defendant's motion for summary judgment dismissing the complaint. Defendants, owners and managers of the premises, failed to establish that they lacked constructive notice of the allegedly defective floor tiles as a matter of law.

APPEARANCES OF COUNSEL

Sullivan Papain Block McGrath & Cannavo P.C., New York City (*Brian J. Shoot* of counsel), for appellant.

Law Offices of Charles J. Siegel, New York City (*Jack L. Cohen* of counsel), for respondents and third-party plaintiffs.

Michael A. Cardozo, Corporation Counsel, New York City (*Kristin M. Helmers* of counsel), for third-party defendant-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the case remitted to that Court for consideration of issues raised but not determined on the appeal to that Court.

Plaintiff contends that she was injured when she slipped and fell on loose floor tiles in a bathroom at her workplace. Defendants, owners and managers of the premises, failed to establish that they lacked constructive notice of the allegedly defective floor tiles as a matter of law (*see Gordon v American Museum of Natural History*, 67 NY2d 836, 837 [1986]; *see also Chapman v Silber*, 97 NY2d 9, 19 [2001]). Accordingly, summary judgment was not appropriate.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[865 NE2d 1247, 834 NYS2d 81]

ADA ZONA et al., Appellants, v JELD-WEN, INC., et al., Respondents. (Action No. 1.)

ADA ZONA et al., Appellants, v JELD-WEN, INC., et al., Respondents. (Action No. 2.)

Decided March 29, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 17, 2006. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Monroe County (David D. Egan, J.), which had granted defendants' motion for summary judgment dismissing the complaint in action No. 1 and the amended complaint in action No. 2 and denied plaintiffs' cross motion for partial summary judgment on the issue of negligence in action Nos. 1 and 2.

Plaintiffs commenced these actions seeking damages for injuries sustained when the injured plaintiff allegedly was struck by an automatic door while standing on the door jamb at defendant's outlet store.

The Appellate Division majority concluded that defendants met their burden by establishing that they did not create the alleged dangerous condition; that they lacked actual or constructive notice of it; that plaintiffs failed to raise an issue of fact; and that plaintiffs' expert's opinion was purely speculative and, thus, lacked sufficient probative force to constitute prima facie evidence that the automatic door was not reasonably safe for its intended use.

Zona v JELD-WEN, Inc., 34 AD3d 1189, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Automatic Door

In personal injury actions arising from injuries sustained when the injured plaintiff allegedly was struck by an automatic door while standing on the door jamb at defendant's outlet store, the order of the Appellate Division, which affirmed an order granting defendants' motion for summary judgment, was affirmed for the reasons stated in the majority opinion at the Appellate Division, which concluded that defendants met their burden by establishing that they did not create the alleged dangerous condition, that they lacked actual or constructive notice of it, that plaintiffs failed to raise an issue of fact, and that plaintiffs' expert's opinion was purely speculative and, thus, lacked sufficient probative force to constitute prima facie evidence that the automatic door was not reasonably safe for its intended use.

APPEARANCES OF COUNSEL

Osborn, Reed & Burke, LLP, Rochester (*Thomas J. Rzepka* of counsel), for appellants.

Hodgson Russ LLP, Albany (*Noreen DeWire Grimmick* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, for the reasons stated in the memorandum of the Appellate Division (34 AD3d 1189 [2006]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of SUSAN BABA, Appellant, v MARTIN EVANS et al.,
Respondents.

Submitted February 13, 2007; decided March 29, 2007

Reported below, 2006 NY Slip Op 75444(U), 66497(U).

Motion for reconsideration of this Court's January 16, 2007 dismissal order denied [*see* 8 NY3d 839].

BANK OF NEW YORK, Petitioner, v NORILSK NICKEL et al.,
Respondents, and MONTER JOINT STOCK COMPANY, Appel-
lant.

Submitted February 5, 2007; decided March 29, 2007

Reported below, 26 AD3d 201.

Motion to vacate this Court's July 6, 2006 dismissal order denied [*see* 7 NY3d 778].

BANK OF NEW YORK, Petitioner, v NORILSK NICKEL et al.,
Respondents, and MONTER JOINT STOCK COMPANY, Appel-
lant.

Submitted March 12, 2007; decided March 29, 2007

Reported below, 26 AD3d 201.

Motion to seal denied.

CAROL CARPENTER-SIRACUSA, Respondent, v JACK SIRACUSA, Appellant.

Submitted January 22, 2007; decided March 29, 2007

Reported below, 34 AD3d 611.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of CONSOLIDATED EDISON COMPANY OF NEW YORK, INC., Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 33 AD3d 915.

Motion by New York State Board of Real Property Services for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of the Claim of DAVID P. CRUZ, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted December 4, 2006; decided March 29, 2007

Reported below, 26 AD3d 554.

Motion for reargument denied [*see* 7 NY3d 711].

In the Matter of SINCLAIR HABERMAN et al., Appellants, v ZONING BOARD OF APPEALS OF CITY OF LONG BEACH et al., Respondents.

Submitted January 29, 2007; decided March 29, 2007

Reported below, 35 AD3d 465.

Motion, insofar as it seeks leave to appeal as against the City of Long Beach, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action/proceeding within the meaning of the Constitution; motion for leave to appeal otherwise granted.

In the Matter of SINCLAIR HABERMAN et al., Appellants, v ZONING BOARD OF APPEALS OF CITY OF LONG BEACH et al., Respondents.

Submitted February 20, 2007; decided March 29, 2007

Reported below, 35 AD3d 465.

Motion by the New York State Builders Association, Inc. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

MAYOR OF THE CITY OF NEW YORK, Appellant, v COUNCIL OF THE CITY OF NEW YORK, Respondent. LILLIAN ROBERTS, as Executive Director of District Council 37, AFSCME, AFL-CIO, et al., Intervenor-Respondents.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 38 AD3d 89.

Motion by New York State County Executives' Association for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

MAYOR OF THE CITY OF NEW YORK, Appellant, v COUNCIL OF THE CITY OF NEW YORK, Respondent. LILLIAN ROBERTS, as Executive Director of District Council 37, AFSCME, AFL-CIO, et al., Intervenor-Respondents.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 38 AD3d 89.

Motion by County of Suffolk for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

MAYOR OF THE CITY OF NEW YORK, Appellant, v COUNCIL OF THE CITY OF NEW YORK, Respondent. LILLIAN ROBERTS, as Executive Director of District Council 37, AFSCME, AFL-CIO, et al., Intervenor-Respondents.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 38 AD3d 89.

Motion by Nassau County for leave to file a brief amicus curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed within seven days.

MAYOR OF THE CITY OF NEW YORK, Appellant, v COUNCIL OF THE CITY OF NEW YORK, Respondent. LILLIAN ROBERTS, as Executive Director of District Council 37, AFSCME, AFL-CIO, et al., Intervenor-Respondents.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 38 AD3d 89.

Motion by United Federation of Teachers et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

MILLENNIUM ENVIRONMENTAL, INC., Appellant, v CITY OF LONG BEACH OF STATE OF NEW YORK, Respondent.

Submitted February 5, 2007; decided March 29, 2007

Reported below, 35 AD3d 408.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of GEORGE O'DONNELL, Appellant, v MICHAEL BLOOMBERG, as Mayor of the City of New York, et al., Respondents.

Submitted February 5, 2007; decided March 29, 2007

Reported below, 2006 NY Slip Op 82169(U), 33 AD3d 367.

Motion, insofar as it seeks leave to appeal from the order of the Appellate Division denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE
ROLLE, Appellant.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 31 AD3d 583.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of STEVE PIROG et al., Appellants, v SUSAN COCK-
BURN et al., Respondents.

Submitted January 29, 2007; decided March 29, 2007

Reported below, 34 AD3d 819.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARGARITA RIVERA, Respondent, v KATTE ANILESH, D.D.S., et
al., Defendants, and INDU ANILESH, D.D.S., Appellant.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 32 AD3d 202.

Motion by City of New York et al. for leave to file a brief amicus curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed within seven days.

MARGARITA RIVERA, Respondent, v KATTE ANILESH, D.D.S., et
al., Defendants, and INDU ANILESH, D.D.S., Appellant.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 32 AD3d 202.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed within seven days.

SONIA ROSARIO et al., Respondents, et al., Plaintiffs, v DIAGONAL REALTY, LLC, et al., Appellants, et al., Defendants.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 32 AD3d 739.

Motion by Pratt Center for Community Development for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

SONIA ROSARIO et al., Respondents, et al., Plaintiffs, v DIAGONAL REALTY, LLC, et al., Appellants, et al., Defendants.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 32 AD3d 739.

Motion by Andrew M. Cuomo, Attorney General of the State of New York, for leave to appear amicus curiae on behalf of New York State Division of Housing and Community Renewal and for an order pursuant to Executive Law § 71 permitting movant to file a brief and to participate in oral argument of the appeal, granted in each respect with the direction that three copies of the brief must be served and an original and 24 copies filed no later than April 30, 2007.

STATE OF NEW YORK et al., Appellants, v PHILIP MORRIS INCORPORATED et al., Defendants. COMMONWEALTH BRANDS, INC., et al., Nonparty Respondents.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 30 AD3d 26.

Motion by defendants Philip Morris USA Inc. et al. for leave to file a brief and to present oral argument on the appeal herein denied as unnecessary upon the ground that movants are party respondents on this appeal.

RICHARD A. WILLIAMSON, as Successor Liquidating Trustee on Behalf of LIPPER CONVERTIBLES, L.P., and LIPPER FIXED INCOME FUND, L.P., Respondent, v PRICEWATERHOUSECOOPERS LLP, Appellant.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 32 AD3d 179.

Motion by National Association of Shareholder and Consumer Attorneys for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

RICHARD A. WILLIAMSON, as Successor Liquidating Trustee on Behalf of LIPPER CONVERTIBLES, L.P., and LIPPER FIXED INCOME FUND, L.P., Respondent, v PRICEWATERHOUSECOOPERS LLP, Appellant.

Submitted March 26, 2007; decided March 29, 2007

Reported below, 32 AD3d 179.

Motion by Ross Fuerman for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(March 1, 2007 through March 31, 2007)

Bank of N.Y. v Nickel	1st Dept: 2006 NY Slip Op 79787(U)	3/29/07
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APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2007 through March 31, 2007)

Bernthon, Matter of, v Mattioli	3d Dept: 34 AD3d 1165	3/13/07
Sarfaty, Matter of, v Recine	2d Dept: 37 AD3d 609	3/26/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2007 through March 31, 2007)

People v Adams	2d Dept: 34 AD3d 825 (Kings)	denied 3/15/07 (Ciparick, J.)
People v Adkins	App Div, 4th Dept, 1/22/07 (Onondaga)	dismissed 3/28/07 (Read, J.)
People v Aller	2d Dept: 33 AD3d 621 (Queens)	denied 3/29/07 (Kaye, Ch.J.)
People v Alleyne	1st Dept: 34 AD3d 367 (NY)	denied 3/23/07 (Kaye, Ch.J.)

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People v Anderson	4th Dept: 35 AD3d 1209 (Erie)	denied 3/5/07 (Grafteo, J.)
People v Anonymous	1st Dept: 36 AD3d 522 (NY)	denied 3/30/07 (Grafteo, J.)
People v Anthony	App Term, 2d Dept: 14 Misc 3d 54 (Nassau)	denied 3/5/07 (Grafteo, J.)
People v Arkim	4th Dept: 34 AD3d 1371 (Erie)	denied 3/29/07 (Read, J.)
People v Artis	App Div, 2d Dept, 2006 NY Slip Op 80211(U) (Rockland)	denied reconsideration 3/28/07 (Read, J.)
People v Aviles	1st Dept: 33 AD3d 545 (Bronx)	denied 3/1/07 (Pigott, J.)
People v Bae	1st Dept: 35 AD3d 280 (NY)	denied 3/21/07 (Kaye, Ch.J.)
People v Bahr	3d Dept: 35 AD3d 909 (Tioga)	denied 3/12/07 (Ciparick, J.)
People v Bailey	4th Dept: 35 AD3d 1219 (Yates)	denied 3/29/07 (Read, J.)
People v Barry	4th Dept: 34 AD3d 1258 (Erie)	denied 3/2/07 (Smith, J.)
People v Benjamin	4th Dept: 35 AD3d 1185 (Erie)	denied 3/27/07 (Kaye, Ch.J.)
People v Benshimon	2d Dept: 34 AD3d 826 (Kings)	denied 3/29/07 (Pigott, J.)
People v Bianchi	2d Dept: 34 AD3d 690 (Kings)	denied 3/26/07 (Pigott, J.)
People v Bligen	1st Dept: 35 AD3d 171 (NY)	denied 3/28/07 (Pigott, J.)
People v Bonkers	4th Dept: 35 AD3d 1230 (Erie)	denied 3/29/07 (Read, J.)
People v Booger	3d Dept: 36 AD3d 961 (Albany)	denied 3/15/07 (Ciparick, J.)
People v Boomer	App Div, 3d Dept, 2/9/07 (Albany)	dismissed 3/28/07 (Jones, J.)
People v Boswell	4th Dept: 35 AD3d 1218 (Wayne)	denied 3/28/07 (Read, J.)
People v Branch	1st Dept: 35 AD3d 228 (NY)	denied 3/12/07 (Ciparick, J.)
People v Brandon	2d Dept: 35 AD3d 876 (Orange)	denied 3/13/07 (Grafteo, J.)
People v Briel	3d Dept: 36 AD3d 1081 (Franklin)	denied 3/2/07 (Grafteo, J.)
People v Britt	2d Dept: 33 AD3d 1016 (Kings)	denied 3/29/07 (Pigott, J.)
People v Broadhead	1st Dept: 36 AD3d 423 (NY)	denied 3/30/07 (Grafteo, J.)
People v Brooks (Larry)	App Div, 4th Dept, 11/24/06 (Erie)	dismissed 3/13/07 (Kaye, Ch.J.)

People v Brooks (Larry)	App Div, 4th Dept, 1/17/07 (Erie)	dismissed 3/13/07 (Kaye, Ch.J.)
People v Brown (Thurman)	App Div, 2d Dept, 2006 NY Slip Op 82143(U) (Nassau)	denied 3/15/07 (Ciparick, J.)
People v Brown (Trevor)	2d Dept: 35 AD3d 627 (Queens)	denied 3/12/07 (Ciparick, J.)
People v Brown (Willie)	3d Dept: 36 AD3d 961 (Albany)	denied 3/15/07 (Ciparick, J.)
People v Brudecki	4th Dept: 32 AD3d 1255 (Erie)	denied reconsideration 3/21/07 (Kaye, Ch.J.)
People v Bullard	2d Dept: 33 AD3d 715 (Suffolk)	denied 3/2/07 (Smith, J.)
People v Busreth	3d Dept: 35 AD3d 965 (Schenectady)	denied 3/23/07 (Kaye, Ch.J.)
People v "C"	4th Dept: 35 AD3d 1218 (Wayne)	denied 3/28/07 (Read, J.)
People v Calvert	2d Dept: 33 AD3d 813 (Queens)	denied 3/12/07 (Smith, J.)
People v Can Chuan Chen	1st Dept: 35 AD3d 303 (NY)	denied 3/15/07 (Ciparick, J.)
People v Casey R.B.	4th Dept: 35 AD3d 1200 (Steuben)	denied 3/21/07 (Kaye, Ch.J.)
People v Cato	2d Dept: 33 AD3d 813 (Queens)	denied 3/8/07 (Smith, J.)
People v Cepeda	App Div, 1st Dept, 1/17/07 (NY)	denied 3/2/07 (Graffeo, J.)
People v Chamberlain	3d Dept: 35 AD3d 961 (Montgomery)	denied 3/29/07 (Read, J.)
People v Chen Chuan Can	1st Dept: 35 AD3d 303 (NY)	denied 3/15/07 (Ciparick, J.)
People v Chia Yen Yun	2d Dept: 35 AD3d 494 (Queens)	denied 3/23/07 (Kaye, Ch.J.)
People v Christensen	1st Dept: 35 AD3d 279 (NY)	denied 3/23/07 (Kaye, Ch.J.)
People v Claborn	1st Dept: 35 AD3d 244 (NY)	denied 3/13/07 (Graffeo, J.)
People v Clarke	1st Dept: 35 AD3d 296 (NY)	denied 3/13/07 (Graffeo, J.)
People v Colligan	App Term, 2d Dept, 2007 NY Slip Op 62311(U) (Orange)	dismissed 3/7/07 (Pigott, J.)
People v Colon	2d Dept: 34 AD3d 692 (Richmond)	denied 3/13/07 (Graffeo, J.)
People v Congelosi	App Div, 4th Dept, 2/3/07 (Monroe)	dismissed 3/1/07 (Kaye, Ch.J.)
People v Contreras	App Div, 1st Dept, 2007 NY Slip Op 61268(U) (NY)	denied 3/30/07 (Graffeo, J.)

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People v Council	1st Dept: 35 AD3d 261 (Bronx)	denied 3/30/07 (Pigott, J.)
People v Creggy	1st Dept: 30 AD3d 151 (NY)	dismissed 3/30/07 (Grafteo, J.)
People v Daniels	County Ct, 12/12/06 (Erie)	dismissed 3/12/07 (Smith, J.)
People v Davidson	2d Dept: 35 AD3d 630 (Kings)	denied 3/23/07 (Kaye, Ch.J.)
People v Dawgs	3d Dept: 33 AD3d 1120 (Schenectady)	denied 3/2/07 (Smith, J.)
People v DeBeer	4th Dept: 35 AD3d 1275 (Ontario)	denied 3/7/07 (Kaye, Ch.J.)
People v DeFranco	County Ct, 11/22/06 (Monroe)	denied 3/29/07 (Read, J.)
People v DeGiorgio	3d Dept: 36 AD3d 1007 (Sullivan)	denied 3/13/07 (Grafteo, J.)
People v DeJesus	1st Dept: 36 AD3d 428 (NY)	denied 3/5/07 (Grafteo, J.)
People v Delatorres	4th Dept: 34 AD3d 1343 (Monroe)	denied 3/5/07 (Grafteo, J.)
People v Deveaux	App Div, 1st Dept, 2006 NY Slip Op 78547(U) (Bronx)	denied reconsideration 3/28/07 (Read, J.)
People v Devlin	1st Dept: 35 AD3d 160 (NY)	denied 3/29/07 (Pigott, J.)
People v Devore	2d Dept: 35 AD3d 497 (Kings)	denied 3/28/07 (Pigott, J.)
People v Diaz	1st Dept: 35 AD3d 226 (NY)	denied 3/28/07 (Read, J.)
People v DiLeonardo	2d Dept: 35 AD3d 497 (Queens)	denied 3/29/07 (Pigott, J.)
People v Dixon	App Div, 2d Dept, 2006 NY Slip Op 80072(U) (Westchester)	denied 3/21/07 (Pigott, J.)
People v Dogs	3d Dept: 33 AD3d 1120 (Schenectady)	denied 3/2/07 (Smith, J.)
People v Dorney	3d Dept: 35 AD3d 1032 (Albany)	denied 3/29/07 (Read, J.)
People v Dowdell	4th Dept: 35 AD3d 1278 (Onondaga)	denied 3/15/07 (Ciparick, J.)
People v Drake	3d Dept: 36 AD3d 967 (Essex)	denied 3/28/07 (Read, J.)
People v Drummond	2d Dept: 34 AD3d 492 (Kings)	denied 3/1/07 (Pigott, J.)
People v Duarte	1st Dept: 35 AD3d 204 (Bronx)	denied 3/12/07 (Ciparick, J.)
People v Edmonds	App Term, 1st Dept: 14 Misc 3d 132(A) (Bronx)	denied 3/30/07 (Grafteo, J.)
People v Edwards	4th Dept: 35 AD3d 1294 (Erie)	denied 3/15/07 (Ciparick, J.)

People v Eley	2d Dept: 35 AD3d 498 (Kings)	denied 3/29/07 (Read, J.)
People v Engler	County Ct, 11/22/06 (Monroe)	denied 3/29/07 (Read, J.)
People v Espinal	1st Dept: 36 AD3d 428 (Bronx)	denied 3/30/07 (Pigott, J.)
People v Evans	2d Dept: 36 AD3d 830 (Queens)	denied 3/5/07 (Grafteo, J.)
People v Faulkner	3d Dept: 36 AD3d 949 (Albany)	denied 3/28/07 (Read, J.)
People v Faustin	2d Dept: 35 AD3d 499 (Queens)	denied 3/28/07 (Read, J.)
People v Feliciano	2d Dept: 34 AD3d 693 (Kings)	denied 3/21/07 (Kaye, Ch.J.)
People v Finizio	App Div, 4th Dept, 1/17/07 (Cayuga)	dismissed 3/12/07 (Jones, J.)
People v Flowers	App Div, 2d Dept, 5/25/06 (Orange)	dismissed 3/28/07 (Read, J.)
People v Fogarty	3d Dept: 35 AD3d 957 (Albany)	denied 3/30/07 (Pigott, J.)
People v Fox	2d Dept: 34 AD3d 693 (Kings)	denied 3/12/07 (Ciparick, J.)
People v Franks	4th Dept: 35 AD3d 1286 (Erie)	denied 3/30/07 (Grafteo, J.)
People v Frawley	2d Dept: 33 AD3d 814 (Queens)	denied 3/8/07 (Smith, J.)
People v Gale	1st Dept: 35 AD3d 267 (Bronx)	denied 3/30/07 (Pigott, J.)
People v Giddens (Gregory)	4th Dept: 34 AD3d 1348 (Erie)	denied 3/12/07 (Smith, J.) (Appeal No. 1)
People v Giddens (Gregory)	4th Dept: 34 AD3d 1348 (Erie)	denied 3/12/07 (Smith, J.) (Appeal No. 2)
People v Givens	1st Dept: 36 AD3d 454 (Bronx)	denied 3/28/07 (Read, J.)
People v Godfrey	4th Dept: 35 AD3d 1230 (Oneida)	denied 3/28/07 (Read, J.)
People v Graham	3d Dept: 35 AD3d 1039 (Schenectady)	denied 3/29/07 (Read, J.)
People v Grant	2d Dept: 33 AD3d 935 (Queens)	denied 3/8/07 (Smith, J.)
People v Grayson	2d Dept: 35 AD3d 881 (Nassau)	denied 3/27/07 (Kaye, Ch.J.)
People v Green	4th Dept: 35 AD3d 1197 (Monroe)	denied 3/15/07 (Ciparick, J.)
People v Greene	1st Dept: 36 AD3d 219 (Bronx)	granted 3/12/07 (Ciparick, J.)
People v Griffin	4th Dept: 35 AD3d 1167 (Erie)	denied 3/12/07 (Ciparick, J.)

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People v Gunn	4th Dept: 35 AD3d 1243 (Onondaga)	denied 3/5/07 (Grafteo, J.)
People v Guthinger	3d Dept: 36 AD3d 1075 (Albany)	denied 3/29/07 (Read, J.)
People v Haire	1st Dept: 35 AD3d 236 (Bronx)	denied 3/29/07 (Pigott, J.)
People v Hall	4th Dept: 35 AD3d 1171 (Erie)	denied 3/15/07 (Ciparick, J.)
People v Hampton	App Div, 4th Dept, 1/19/06 (Onondaga)	dismissed 3/12/07 (Jones, J.)
People v Harrington	2d Dept: 35 AD3d 630 (Westchester)	denied 3/29/07 (Read, J.)
People v Harris	App Div, 2d Dept, 2007 NY Slip Op 62826(U) (Rockland)	dismissed 3/28/07 (Pigott, J.)
People v Harrison	1st Dept: 35 AD3d 52 (NY)	denied 3/15/07 (Ciparick, J.)
People v Holman	2d Dept: 33 AD3d 815 (Orange)	denied 3/28/07 (Pigott, J.)
People v Howard	2d Dept: 37 AD3d 618 (Kings)	denied 3/2/07 (Grafteo, J.)
People v Humber	4th Dept: 35 AD3d 1209 (Erie)	denied 3/15/07 (Ciparick, J.)
People v Hurling	4th Dept: 37 AD3d 1150 (Ontario)	denied 3/30/07 (Grafteo, J.)
People v Igbinosun	4th Dept: 35 AD3d 1229 (Wyoming)	denied 3/29/07 (Read, J.)
People v Jackson (John)	2d Dept: 33 AD3d 1021 (Westchester)	denied 3/1/07 (Pigott, J.)
People v Jackson (Robin)	4th Dept: 34 AD3d 1318 (Monroe)	denied 3/12/07 (Smith, J.)
People v James	4th Dept: 37 AD3d 1110 (Monroe)	denied 3/30/07 (Grafteo, J.)
People v Jamison	2d Dept: 36 AD3d 716 (Queens)	denied 3/15/07 (Ciparick, J.)
People v Jaquez	2d Dept: 34 AD3d 598 (Queens)	denied 3/2/07 (Smith, J.)
People v Jimenez	1st Dept: 36 AD3d 489 (NY)	denied 3/29/07 (Read, J.)
People v Johnson (Chester)	2d Dept: 35 AD3d 630 (Kings)	denied 3/23/07 (Kaye, Ch.J.)
People v Johnson (Joseph)	2d Dept: 34 AD3d 496 (Kings)	denied 3/28/07 (Pigott, J.)
People v Johnson (Marlica)	4th Dept: 35 AD3d 1239 (Erie)	denied 3/28/07 (Read, J.)
People v Johnson (Renee)	4th Dept: 34 AD3d 1318 (Monroe)	denied 3/12/07 (Smith, J.)
People v Jorge	1st Dept: 35 AD3d 261 (Bronx)	denied 3/28/07 (Read, J.)

People v Kalaj	App Div, 2d Dept, 2006 NY Slip Op 79328(U) (Westchester)	dismissed 3/12/07 (Smith, J.)
People v Khan	2d Dept: 33 AD3d 722 (Queens)	denied 3/13/07 (Grafteo, J.)
People v Lauber	3d Dept: 36 AD3d 949 (St. Lawrence)	denied 3/30/07 (Grafteo, J.)
People v Lemos	1st Dept: 34 AD3d 343 (NY)	denied 3/2/07 (Grafteo, J.)
People v Lewis (Anthony)	4th Dept: 35 AD3d 1256 (Steuben)	denied 3/15/07 (Ciparick, J.)
People v Lewis (Anthony)	4th Dept: 35 AD3d 1257 (Steuben)	denied 3/15/07 (Ciparick, J.)
People v Lewis (Quentin)	4th Dept: 34 AD3d 1269 (Monroe)	denied 3/29/07 (Read, J.)
People v Lilly	2d Dept: 35 AD3d 885 (Kings)	denied 3/29/07 (Read, J.)
People v Little	App Term, 2d Dept: 14 Misc 3d 70 (Kings)	denied 3/29/07 (Read, J.)
People v Lloyd	1st Dept: 23 AD3d 296 (Bronx)	denied reconsideration 3/26/07 (Kaye, Ch.J.)
People v Lopez (Kristian)	2d Dept: 35 AD3d 763 (Queens)	denied 3/15/07 (Ciparick, J.)
People v Lopez (Roberto)	2d Dept: 35 AD3d 631 (Suffolk)	denied 3/29/07 (Read, J.)
People v Lugo	1st Dept: 35 AD3d 247 (NY)	denied 3/28/07 (Pigott, J.)
People v Luyando	County Ct, 10/31/06 (Monroe)	denied 3/2/07 (Smith, J.)
People v Madill	4th Dept: 35 AD3d 1294 (Jefferson)	denied 3/15/07 (Ciparick, J.)
People v Mannarino	2d Dept: 35 AD3d 631 (Richmond)	denied 3/12/07 (Ciparick, J.)
People v Mannino	2d Dept: 34 AD3d 843 (Richmond)	denied 3/28/07 (Read, J.)
People v Marshall	4th Dept: 35 AD3d 1267 (Monroe)	denied 3/5/07 (Grafteo, J.)
People v Marthone	2d Dept: 35 AD3d 885 (Queens)	denied 3/15/07 (Ciparick, J.)
People v Martin (Kevin)	4th Dept: 35 AD3d 1258 (Monroe)	denied 3/13/07 (Grafteo, J.)
People v Martin (Travis)	4th Dept: 35 AD3d 1183 (Erie)	denied 3/15/07 (Ciparick, J.)
People v Martinez	1st Dept: 35 AD3d 156 (NY)	denied 3/23/07 (Kaye, Ch.J.)
People v Martucci	County Ct, 1/10/07 (Sullivan)	denied 3/13/07 (Grafteo, J.)
People v Mason	4th Dept: 34 AD3d 1371 (Erie)	denied 3/29/07 (Read, J.)

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People v Masters	3d Dept: 36 AD3d 959 (Schenectady)	denied 3/13/07 (Grafteo, J.)
People v McAllister	1st Dept: 35 AD3d 300 (NY)	denied 3/29/07 (Read, J.)
People v McCoy	1st Dept: 35 AD3d 237 (NY)	denied 3/12/07 (Ciparick, J.)
People v McFadden	2d Dept: 36 AD3d 631 (Queens)	denied 3/30/07 (Grafteo, J.)
People v McGriff	4th Dept: 34 AD3d 1270 (Erie)	denied 3/12/07 (Smith, J.)
People v McLoyd	2d Dept: 34 AD3d 498 (Suffolk)	denied 3/12/07 (Ciparick, J.)
People v McMillan	4th Dept: 34 AD3d 1371 (Erie)	denied 3/12/07 (Ciparick, J.)
People v Medina	1st Dept: 35 AD3d 163 (Bronx)	denied 3/23/07 (Kaye, Ch.J.)
People v Miller	2d Dept: 33 AD3d 728 (Dutchess)	denied 3/12/07 (Smith, J.)
People v Morales (Jason)	2d Dept: 36 AD3d 631 (Queens)	denied 3/5/07 (Grafteo, J.)
People v Morales (Santiago)	1st Dept: 34 AD3d 396 (NY)	denied 3/29/07 (Read, J.)
People v Morris	2d Dept: 34 AD3d 846 (Queens)	denied 3/28/07 (Read, J.)
People v Morrison	App Div, 1st Dept, 2006 NY Slip Op 81194(U) (NY)	denied 3/29/07 (Pigott, J.)
People v Muir	1st Dept: 36 AD3d 506 (Bronx)	denied 3/30/07 (Grafteo, J.)
People v Nadi	1st Dept: 35 AD3d 303 (Bronx)	denied 3/29/07 (Read, J.)
People v Navedo	1st Dept: 34 AD3d 331 (NY)	denied 3/8/07 (Smith, J.)
People v Nichols	2d Dept: 35 AD3d 508 (Orange)	denied 3/13/07 (Grafteo, J.)
People v Norales	1st Dept: 35 AD3d 294 (Bronx)	denied 3/28/07 (Read, J.)
People v Nugent	3d Dept: 31 AD3d 976 (St. Lawrence)	denied 3/12/07 (Smith, J.)
People v O	3d Dept: 33 AD3d 1120 (Schenectady)	denied 3/2/07 (Smith, J.)
People v Okolo	4th Dept: 35 AD3d 1272 (Erie)	denied 3/23/07 (Kaye, Ch.J.)
People v Olba	App Div, 1st Dept, 2007 NY Slip Op 60468(U) (Bronx)	dismissed 3/29/07 (Read, J.)
People v Olson	2d Dept: 35 AD3d 890 (Nassau)	granted 3/19/07 (Pigott, J.)
People v Owens (Robert)	4th Dept: 35 AD3d 1287 (Monroe)	denied 3/12/07 (Ciparick, J.) (Appeal No. 1)

People v Owens (Robert)	4th Dept: 35 AD3d 1287 (Monroe)	denied 3/12/07 (Ciparick, J.) (Appeal No. 2)
People v Pacheco	1st Dept: 34 AD3d 318 (Bronx)	denied 3/2/07 (Smith, J.)
People v Padilla	2d Dept: 33 AD3d 824 (Nassau)	denied 3/2/07 (Smith, J.)
People v Paige	App Term, 1st Dept: 13 Misc 3d 143(A) (Bronx)	denied 3/1/07 (Pigott, J.)
People v Pennington	4th Dept: 32 AD3d 1245 (Erie)	denied reconsideration 3/23/07 (Kaye, Ch.J.)
People v Perry	App Term, 1st Dept: 14 Misc 3d 131(A) (NY)	denied 3/15/07 (Ciparick, J.)
People v Peterson	4th Dept: 35 AD3d 1195 (Onondaga)	denied 3/30/07 (Grafteo, J.)
People v Pichardo	4th Dept: 34 AD3d 1223 (Monroe)	denied 3/12/07 (Smith, J.)
People v Porter (Trevor)	3d Dept: 35 AD3d 907 (Tompkins)	denied 3/29/07 (Read, J.)
People v Price	4th Dept: 35 AD3d 1230 (Erie)	denied 3/29/07 (Read, J.)
People v Quinones	1st Dept: 36 AD3d 459 (NY)	denied 3/13/07 (Grafteo, J.)
People v Ramos (Alex)	1st Dept: 35 AD3d 247 (NY)	denied 3/28/07 (Pigott, J.)
People v Ramos (Omar)	1st Dept: 35 AD3d 268 (Bronx)	denied 3/5/07 (Grafteo, J.)
People v Reed	1st Dept: 35 AD3d 194 (NY)	denied 3/23/07 (Kaye, Ch.J.)
People v Rivera (Abel)	2d Dept: 33 AD3d 942 (Orange)	denied 3/13/07 (Grafteo, J.)
People v Rivera (Jayson)	1st Dept: 34 AD3d 240 (Bronx)	denied 3/8/07 (Smith, J.)
People v Rivera (Luis)	1st Dept: 27 AD3d 311 (NY)	denied 3/28/07 (Read, J.)
People v Robinson	1st Dept: 34 AD3d 264 (NY)	denied 3/12/07 (Smith, J.)
People v Rodriguez	4th Dept: 34 AD3d 1181 (Oneida)	denied 3/12/07 (Ciparick, J.)
People v Rojas	2d Dept: 34 AD3d 850 (Suffolk)	denied 3/12/07 (Smith, J.)
People v Romance	1st Dept: 35 AD3d 201 (NY)	denied 3/12/07 (Smith, J.)
People v Rosado	App Div, 1st Dept, 2006 NY Slip Op 74989(U) (NY)	denied reconsideration 3/30/07 (Ciparick, J.)
People v Rossi	App Div, 2d Dept, 1/31/07 (Kings)	dismissed 3/12/07 (Smith, J.)

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People v Ruzas	App Div, 3d Dept, 10/24/06 (Madison)	denied reconsideration 3/28/07 (Read, J.)
People v Sanders	2d Dept: 36 AD3d 944 (Suffolk)	dismissed 3/30/07 (Grafteo, J.)
People v Seda	4th Dept: 35 AD3d 1162 (Erie)	denied 3/5/07 (Grafteo, J.)
People v Simpson	3d Dept: 35 AD3d 901 (Sullivan)	denied 3/30/07 (Grafteo, J.)
People v Singh	1st Dept: 35 AD3d 317 (NY)	denied 3/12/07 (Ciparick, J.)
People v Skupien	4th Dept: 35 AD3d 1265 (Niagara)	denied 3/28/07 (Read, J.)
People v Smith (Glen)	3d Dept, 12/18/06 (Chemung)	dismissed 3/28/07 (Read, J.)
People v Smith (Robert)	4th Dept: 35 AD3d 1256 (Ontario)	denied 3/5/07 (Grafteo, J.)
People v Smith (Roy)	2d Dept: 35 AD3d 635 (Kings)	denied 3/29/07 (Read, J.)
People v Sosa	1st Dept: 35 AD3d 245 (NY)	denied 3/2/07 (Smith, J.)
People v Soto (Jonathan)	1st Dept: 36 AD3d 455 (Bronx)	denied 3/13/07 (Grafteo, J.)
People v Soto (Jonathon)	1st Dept: 36 AD3d 455 (Bronx)	denied 3/13/07 (Grafteo, J.)
People v Stevenson	2d Dept: 36 AD3d 634 (Kings)	denied 3/15/07 (Ciparick, J.)
People v Stewart	4th Dept: 35 AD3d 1168 (Erie)	denied 3/12/07 (Ciparick, J.)
People v Tannis	2d Dept: 36 AD3d 635 (Kings)	denied 3/5/07 (Grafteo, J.)
People v Terborg	4th Dept: 35 AD3d 1169 (Monroe)	denied 3/29/07 (Kaye, Ch.J.)
People v Theodorou	App Div, 2d Dept, 2006 NY Slip Op 80287(U) (Queens)	dismissed 3/14/07 (Pigott, J.)
People v Thompson (Kashandra)	4th Dept: 35 AD3d 1273 (Yates)	denied 3/23/07 (Kaye, Ch.J.)
People v Thompson (Thomas)	2d Dept: 33 AD3d 825 (Suffolk)	denied 3/8/07 (Smith, J.)
People v Tomasky	3d Dept: 36 AD3d 1025 (Broome)	denied 3/29/07 (Read, J.)
People v Tommy	4th Dept: 35 AD3d 1230 (Oneida)	denied 3/28/07 (Read, J.)
People v Torres (Carlos)	1st Dept: 34 AD3d 351 (NY)	denied 3/21/07 (Kaye, Ch.J.)
People v Torres (Jose)	2d Dept: 35 AD3d 769 (Suffolk)	denied 3/29/07 (Read, J.)

People v Torres (Joseph)	2d Dept: 34 AD3d 704 (Westchester)	denied 3/30/07 (Grafteo, J.)
People v Turner	2d Dept: 34 AD3d 705 (Kings)	denied 3/8/07 (Smith, J.)
People v Ubaney	County Ct, 1/22/07 (Chautauqua)	denied 3/30/07 (Grafteo, J.)
People v Vanluvender	1st Dept: 35 AD3d 238 (NY)	denied 3/7/07 (Kaye, Ch.J.)
People v Venechanos	2d Dept: 32 AD3d 1048 (Kings)	denied reconsideration 3/30/07 (Grafteo, J.)
People v Walker (Charles)	2d Dept: 35 AD3d 512 (Queens)	denied 3/28/07 (Read, J.)
People v Walker (Sherman)	App Div, 2d Dept, 2006 NY Slip Op 81358(U) (Queens)	dismissed 3/2/07 (Grafteo, J.)
People v Warren	1st Dept: 33 AD3d 571 (NY)	denied 3/8/07 (Smith, J.)
People v Washington	4th Dept: 34 AD3d 1193 (Erie)	denied 3/28/07 (Read, J.)
People v Weaver	3d Dept: 34 AD3d 1047 (St. Lawrence)	denied 3/7/07 (Kaye, Ch.J.)
People v Whipple	4th Dept: 37 AD3d 1148 (Onondaga)	denied 3/30/07 (Grafteo, J.)
People v Whiting	2d Dept: 35 AD3d 637 (Kings)	denied 3/12/07 (Ciparick, J.)
People v Williams (Anthony)	App Term, 1st Dept: 14 Misc 3d 132(A) (Bronx)	denied 3/30/07 (Grafteo, J.)
People v Williams (Darren)	App Div, 2d Dept, 5/25/06 (Orange)	dismissed 3/28/07 (Read, J.)
People v Williams (James)	3d Dept: 35 AD3d 971 (Albany)	denied 3/30/07 (Grafteo, J.)
People v Williams (Linwood)	4th Dept: 35 AD3d 1198 (Onondaga)	denied 3/29/07 (Kaye, Ch.J.)
People v Williams (Mark)	4th Dept: 35 AD3d 1294 (Monroe)	denied 3/28/07 (Read, J.)
People v Williams (Robert)	App Div, 1st Dept, 2007 NY Slip Op 62292(U) (NY)	dismissed 3/30/07 (Grafteo, J.)
People v Williams (Sears)	4th Dept: 35 AD3d 1273 (Onondaga)	denied 3/29/07 (Read, J.)
People v Wilson	4th Dept: 35 AD3d 1256 (Monroe)	denied 3/23/07 (Kaye, Ch.J.)
People v Woods	App Term, 1st Dept: 14 Misc 3d 126(A) (Bronx)	denied 3/28/07 (Pigott, J.)
People v Wright	1st Dept: 35 AD3d 172 (NY)	denied 3/29/07 (Kaye, Ch.J.)
People v Wynn	1st Dept: 35 AD3d 283 (NY)	denied 3/13/07 (Grafteo, J.)

People v Wynter	2d Dept: 31 AD3d 799 (Nassau)	denied reconsideration 3/28/07 (Read, J.)
People v Young (Kareem)	3d Dept: 35 AD3d 958 (Broome)	denied 3/30/07 (Pigott, J.)
People v Young (Mario)	3d Dept: 33 AD3d 1120 (Schenectady)	denied 3/2/07 (Smith, J.)
People v Yun	2d Dept: 35 AD3d 494 (Queens)	denied 3/23/07 (Kaye, Ch.J.)
Santa Clara, Town of, v Beneke	County Ct, 12/29/06 (Franklin)	dismissed 3/2/07 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(March 1, 2007 through March 31, 2007)

People v Porter (Anthony)	4th Dept: 37 AD3d 1165 (Niagara)	granted 3/6/07 (Gorsky, J.)
People v Rivera (Angel)	1st Dept: 33 AD3d 303 (NY)	granted 3/29/07 (Sweeny, J.)
People v Rivera (Manuel)	1st Dept: 33 AD3d 303 (NY)	granted 3/29/07 (Sweeny, J.)

[866 NE2d 1032, 834 NYS2d 704]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
JONATHAN DEAN, Appellant.

Decided April 3, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 9, 2006. The Appellate Division affirmed a judgment of the Washington County Court (John S. Hall, Jr., J.), which had convicted defendant, upon his plea of guilty, of possessing a sexual performance by a child (three counts) and had sentenced defendant to three terms of imprisonment of 1 to 3 years, to run consecutively.

People v Dean, 27 AD3d 838, modified.

HEADNOTE

Crimes — Sentence — Concurrent and Consecutive Terms

The trial court improperly imposed three consecutive sentences of 1 to 3 years upon the defendant who, in satisfaction of two indictments, pleaded

* Includes only applications that were granted.

guilty to three counts of possession of a sexual performance by a child as set forth in the first indictment, which was based on videotapes and digital photographs found in defendant's possession and alleged that each act was performed "during the month of July, 2004." A trial court may impose consecutive sentences when the facts demonstrate that the defendant's acts underlying the crimes are separate and distinct (Penal Law § 70.25). Here, where the People did not include the date and time of each of the allegedly separate acts of downloading the digital images set forth in the indictment, or include such facts in defendant's plea allocution, the court was without authority to impose the consecutive sentences, which must be changed to run concurrently.

APPEARANCES OF COUNSEL

Jaime C. Louridas, Schenectady, for appellant.

Kevin C. Kortright, District Attorney, Fort Edward (*Katherine G. Henley* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by directing that defendant's sentences run concurrently, and as so modified, affirmed.

Defendant was indicted on August 10, 2004, in a seven-count indictment charging him with unlawful surveillance in the second degree, endangering the welfare of a child, four counts of possessing a sexual performance by a child, and promoting a sexual performance by a child. The charges were based both on videotapes found in defendant's possession containing footage of his and a neighbor's children, and on digital photographs found on defendant's computer depicting sexual conduct involving children. As to each count, the indictment described the conduct forming the basis for the allegations, but only generally stated that each act was performed "during the month of July, 2004." While the August 10 indictment was pending, the grand jury handed down a second indictment, charging defendant with seven additional counts of possessing a sexual performance by a child. In satisfaction of both indictments, defendant pleaded guilty to three counts of possessing a sexual performance by a child (as set forth in the August 10 indictment), and pursuant to agreement was sentenced to three terms of 1 to 3 years, to run consecutively.

Defendant now claims that the consecutive sentences were illegal, as the court did not have facts before it to support a determination that he took possession of each of the digital images at a separate time. A trial court may impose consecutive sentences when "the facts demonstrate that the defendant's

acts underlying the crimes are separate and distinct” (*People v Ramirez*, 89 NY2d 444, 451 [1996]; see Penal Law § 70.25). In ascertaining the existence of such facts, “where defendant has pleaded guilty to one or more counts alleged in the indictment, [the People] may rely on the allegations of those counts as well as the facts adduced at the allocution” (*People v Laureano*, 87 NY2d 640, 644 [1996]). As the People did not include the date and time of each of the allegedly separate acts of downloading the digital images set forth in the indictment, or include such facts in defendant’s plea allocution, the court was without authority to impose consecutive sentences.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order modified in accordance with the memorandum herein and, as so modified, affirmed.

[866 NE2d 448, 834 NYS2d 503]

LOTTIE BRANHAM, Appellant, v LOEWS ORPHEUM CINEMAS, INC.,
Respondent, et al., Defendants.

Decided April 3, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 27, 2006. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Edward H. Lehner, J.), which had denied defendant-respondent’s motion for summary judgment, (2) granted the motion, and (3) dismissed the complaint. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of Supreme Court, properly made?”

Plaintiff commenced this action to recover for personal injuries she sustained in defendant’s movie theater when she was returning to her seat after a visit to the restroom and allegedly tripped and fell over a child sitting in the aisle in the darkened theater.

Branham v Loews Orpheum Cinemas, Inc., 31 AD3d 319, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Trip and Fall in Movie Theater

In a personal injury action arising from injuries plaintiff sustained when she tripped and fell over a boy sitting in the aisle of defendant's darkened movie theater, the Appellate Division properly reversed Supreme Court and granted summary judgment to defendant theater. Viewing the evidence in the light most favorable to plaintiff, defendant demonstrated its entitlement to summary judgment, and, in opposition, plaintiff failed to adduce sufficient evidence that defendant had actual or constructive notice of the transient obstruction or that the lighting in the theater was inadequate.

APPEARANCES OF COUNSEL

Dubow & Smith, Bronx (*Michael Dubow* of counsel), for appellant.

Congdon, Flaherty, O'Callaghan, Reid, Donlon, Travis & Fishlinger, Uniondale (*Kathleen D. Foley* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be affirmed with costs and the certified question not answered upon the ground that it is unnecessary. Viewing the evidence in the light most favorable to plaintiff, as we must on defendant's motion for summary judgment (*see Fundamental Portfolio Advisors, Inc. v Tocqueville Asset Mgt., L.P.*, 7 NY3d 96 [2006]), defendant Loews demonstrated its entitlement to summary judgment dismissing the complaint against it. In opposition, plaintiff failed to adduce sufficient evidence that Loews had actual or constructive notice of the transient obstruction—a boy sitting in the aisle—or that the lighting in the theater was inadequate (*see Piacquadio v Recine Realty Corp.*, 84 NY2d 967 [1994]; *Gordon v American Museum of Natural History*, 67 NY2d 836 [1986]; *see also Gilson v Metropolitan Opera*, 5 NY3d 574 [2005]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

[866 NE2d 1030, 834 NYS2d 702]

CAROL W. ZORN, Appellant, v RITA K. GILBERT et al., Respondents.

Decided April 3, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 28, 2006. The Appellate Division affirmed an order of the Supreme Court, Westchester County (Linda S. Jamieson, J.), which had granted defendants' motion to dismiss the complaint.

Zorn v Gilbert, 27 AD3d 731, modified.

HEADNOTE**Limitation of Actions — Legal Malpractice — Continuous Representation Doctrine**

The Appellate Division erred in holding that plaintiff's legal malpractice cause of action was time-barred by the three-year statute of limitations (CPLR 214 [6]; 203 [a]) where the malpractice action accrued on December 4, 1997, when a judgment of divorce was entered in an underlying action, but defendants' representation of plaintiff in the underlying action ended, at the earliest, in June 1998 and the malpractice action was commenced in May 2001. Accordingly, the legal malpractice cause of action was reinstated and the matter remitted to Supreme Court. The continuous representation doctrine tolls the statute of limitations where there is a mutual understanding of the need for further representation on the specific subject matter underlying the malpractice claim.

APPEARANCES OF COUNSEL

Robert M. Cohen, Ballston Lake, for appellant.

Housman & Associates, P.C., New York City (*Brian J. Divney* of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be modified, without costs, by reinstating the legal malpractice cause of action and remitting to Supreme Court for consideration of issues raised by defendants on the motion to dismiss but not reached by that court and, as so modified, affirmed.

Defendants moved to dismiss the complaint alleging, in part, that plaintiff's legal malpractice cause of action was barred by the statute of limitations. An action to recover damages arising

from legal malpractice must be commenced within three years after accrual (*see* CPLR 214 [6]; 203 [a]). “The continuous representation doctrine tolls the statute of limitations . . . where there is a mutual understanding of the need for further representation on the specific subject matter underlying the malpractice claim” (*McCoy v Feinman*, 99 NY2d 295, 306 [2002]; *see also Shumsky v Eisenstein*, 96 NY2d 164, 167-168 [2001]). Plaintiff’s cause of action accrued, at the latest, on December 4, 1997, when a judgment of divorce was entered in the underlying action (*see McCoy*, 99 NY2d at 305). Defendants’ representation of plaintiff in the underlying action ended, at the earliest, in June 1998. Inasmuch as this action was commenced in May 2001, the Appellate Division erred in holding that plaintiff’s cause of action alleging legal malpractice was time-barred (*see McCoy*, 99 NY2d at 305; *Shumsky*, 96 NY2d at 167-168). Issues regarding plaintiff’s other causes of action, decided by the courts below, are not raised before us.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, without costs, by reinstating the legal malpractice cause of action and remitting to Supreme Court, Westchester County, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

GREGORY BOOMER, Appellant, v JAMES E. GROSS, Respondent.

Submitted March 26, 2007; decided April 3, 2007

Reported below, 34 AD3d 1096.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

441 EAST 57TH STREET, LLC, Respondent, v 447 EAST 57TH STREET CORP., Appellant.

Submitted February 20, 2007; decided April 3, 2007

Reported below, 34 AD3d 378.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of JOHN INDELICATO, Appellant, v TOWN OF LLOYD et al., Respondents.

Submitted March 26, 2007; decided April 3, 2007

Reported below, 34 AD3d 1056.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of RICHARD E. KAPLAN, Appellant, v TIMOTHY JULIAN, as Mayor of the City of Utica, et al., Respondents.

Submitted March 26, 2007; decided April 3, 2007

Reported below, 35 AD3d 1291.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

NYCTL 1998-2 TRUST et al., Respondents, v ZOILA LUCINDA AVILA, Appellant, et al., Defendants. RSL HOLDINGS, LLC, Nonparty Respondent.

Submitted February 5, 2007; decided April 3, 2007

Reported below, 29 AD3d 965.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD HARRIS, Appellant.

Submitted March 26, 2007; decided April 3, 2007

Reported below, 2006 NY Slip Op 82192(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order

entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

In the Matter of the Estate of ROSE BB., Deceased. RICHARD BB., Respondent; LOUIS BB., Appellant. (And Another Related Proceeding.)

Submitted March 26, 2007; decided April 3, 2007

Reported below, 35 AD3d 1044.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge GRAFFEO taking no part.

MARK SHERMAN, Respondent, v HELENE SPIELMAN SHERMAN, Appellant.

Submitted March 26, 2007; decided April 3, 2007

Reported below, 28 AD3d 738.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CHARLES STEWART, Appellant, v DAVID S. HARTNETT, as Cortland County District Attorney, et al., Respondents.

Submitted March 26, 2007; decided April 3, 2007

Reported below, 34 AD3d 1134.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of THOMAS B., an Infant. CHAUTAUQUA COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; LISA B., Respondent.

Submitted March 5, 2007; decided April 3, 2007

Reported below, 35 AD3d 1289.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay pending disposition of the appeal dismissed as academic.

In the Matter of ANONYMOUS, for Admission to Practice as an Attorney and Counselor-at-Law, Appellant.

Submitted March 12, 2007; decided April 3, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge KAYE taking no part.

BRYANT VILLATORO et al., Respondents, v AMBASSADOR APARTMENTS, INC., et al., Appellants, et al., Respondent.

Submitted February 13, 2007; decided April 3, 2007

Reported below, 2006 NY Slip Op 80940(U).

Motion by Alfred S. Friedman Management Corp. for leave to appeal dismissed upon the ground that as to said appellant the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion by Ambassador Apartments, Inc. for leave to appeal denied.

[866 NE2d 1041, 834 NYS2d 713]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM E. MILLER, Appellant.

Argued March 27, 2007; decided April 26, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Monroe County Court (John R. Schwartz, J.), entered August 18, 2006. The County Court affirmed a judgment of the Justice Court of the Town of Henrietta (John Kopacki, J.), which had convicted defendant, upon his plea of guilty, of petit larceny (two counts).

HEADNOTE**Crimes — Appeal — Preservation of Issue for Review**

In a criminal prosecution for petit larceny, defendant failed to preserve for review in the Court of Appeals his argument that he did not receive a hearing in accordance with due process of law. The error, if any, did not constitute a mode of proceedings error.

APPEARANCES OF COUNSEL

Edward J. Nowak, Public Defender, Rochester (David M. Abatoy, Jr., of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (Stephen X. O'Brien of counsel), for respondent.

OPINION OF THE COURT

Order affirmed. Defendant's argument that he did not receive a hearing in accordance with due process of law is unpreserved for our review. We do not accept defendant's contention that the error here, if any, constitutes a mode of proceedings error.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

DAVID BENEKE, Individually and as Trustee of the J. DAVID BENEKE TRUST, Appellant, v TOWN OF SANTA CLARA et al., Respondents.

Submitted February 26, 2007; decided April 26, 2007

Reported below, 36 AD3d 1195.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KILEY BLACKMAN, Appellant, v BARBARA STAGNO et al., Respondents.

Submitted February 26, 2007; decided April 26, 2007

Reported below, 35 AD3d 776.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

FRANK J. BLANGIARDO, Respondent, v RICHARD HORSTMANN, Appellant, and NASSAU POINT PROPERTY OWNERS ASSOCIATION, INC., Respondent, et al., Defendant.

Submitted February 20, 2007; decided April 26, 2007

Reported below, 32 AD3d 876.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CONSOLIDATED EDISON COMPANY OF NEW YORK, INC., Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted April 23, 2007; decided April 26, 2007

Reported below, 33 AD3d 915.

Motion by the Association of Towns of the State of New York et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

ELEANOR GOLDSTEIN, Respondent, v JONATHON D. JONES et al., Appellants, and MICHELLE STUHL et al., Respondents.

Submitted February 5, 2007; decided April 26, 2007

Reported below, 32 AD3d 577.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

J.A.O. ACQUISITION CORP. et al., Appellants, v JEFFREY D. STAVITSKY et al., Defendants, and FIRST UNION NATIONAL BANK, Formerly Known as CORESTATES BANK, N.A., Respondent. (And a Third-Party Action.)

Submitted March 26, 2007; decided April 26, 2007

Reported below, 23 AD3d 200.

Motion for reargument denied [*see* 8 NY3d 144].

DUANE C. KENDLE, Appellant, v TOWN OF AMSTERDAM et al.,
Respondents.

Submitted February 20, 2007; decided April 26, 2007

Reported below, 36 AD3d 985.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the Appellate Division order where the appeal to the Appellate Division was from a County Court order entered on an appeal in this action commenced in the City Court of the City of Amsterdam (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

KOOKMIN BANK, in Its Own Right and as Assignee of SUN JIN DIA-TOOLS & EQUIPMENT INDUSTRIAL COMPANY LIMITED, Respondent, v SEXTON DIA-TOOLS, INC., Defendant, and WOORI AMERICA BANK, Formerly Known as HANVIT AMERICA BANK, Appellant.

Submitted January 29, 2007; decided April 26, 2007

Reported below, 33 AD3d 535.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MANHATTANVILLE COLLEGE, Appellant, v JAMES JOHN ROMEO CONSULTING ENGINEER, P.C., et al., Respondents, et al., Defendants.

Submitted April 2, 2007; decided April 26, 2007

Reported below, 28 AD3d 613.

Motion for reargument of motion for leave to appeal denied [*see* 8 NY3d 852].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES FLUDD, Appellant.

Submitted April 23, 2007; decided April 26, 2007

Reported below, 33 AD3d 1124.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TEMEL GREENE, Appellant.

Submitted April 2, 2007; decided April 26, 2007

Reported below, 36 AD3d 219.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY HILL, Appellant.

Submitted April 2, 2007; decided April 26, 2007

Reported below, 39 AD3d 1.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW JONES, Appellant.

Submitted April 23, 2007; decided April 26, 2007

Reported below, 13 Misc 3d 94.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY R. PORTER, Appellant.

Submitted April 9, 2007; decided April 26, 2007

Reported below, 37 AD3d 1165.

Motion for assignment of counsel granted and Timothy P. Murphy, Esq., 260 East Avenue, Lockport, New York 14094 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WILLIAM MITCHELL, Appellant, v WILLIAM LAPE, as Superintendent of Marcy Correctional Facility, et al., Respondents.

Submitted March 19, 2007; decided April 26, 2007

Motion for reargument denied [*see* 8 NY3d 876].

MARGARITA RIVERA, Respondent, v KATTE ANILESH, D.D.S., et al., Defendants, and INDU ANILESH, D.D.S., Appellant.

Submitted April 9, 2007; decided April 26, 2007

Reported below, 32 AD3d 202.

Motion by FOJP Service Corporation for leave to file a brief amicus curiae on the appeal herein denied as untimely (*see* Rules of Prac of Ct of Appeals [22 NYCRR] § 500.23).

TRANSPORT WORKERS UNION OF AMERICA LOCAL 100 AFL-CIO et al., Appellants, v ALAN G. SCHWARTZ et al., Respondents, et al., Defendants.

Submitted January 22, 2007; decided April 26, 2007

Reported below, 32 AD3d 710.

Motion for reargument of motion for leave to appeal denied [*see* 7 NY3d 922]. Motion for leave to appeal denied.

In the Matter of VICTORIA H., Appellant. ONONDAGA COUNTY ATTORNEY, Respondent.

Submitted February 26, 2007; decided April 26, 2007

Reported below, 37 AD3d 1047.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of COUNTY OF WESTCHESTER et al., Appellants, v
BOARD OF TRUSTEES OF STATE UNIVERSITY OF NEW YORK,
Respondent.

Submitted April 16, 2007; decided April 26, 2007

Reported below, 32 AD3d 653.

Motion by Board of Trustees of Nassau Community College
for leave to file a brief amicus curiae on the appeal herein
granted. Two copies of the brief may be served and 24 copies
filed within seven days.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2007 through April 30, 2007)

Fontaine, Matter of, v Superintendent of Southport Correctional Facility	3d Dept: 35 AD3d 1113	4/23/07
P & N Tiffany Props., Inc. v Village of Tuckahoe	2d Dept: 33 AD3d 61	4/24/07

APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2007 through April 30, 2007)

Kelly v Berberich	1st Dept: 36 AD2d 475	4/30/07
Nazario v St. Barnabas Hosp.	1st Dept: 34 AD2d 345	4/6/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2007 through April 30, 2007)

People v Alexander	2d Dept: 34 AD3d 689 (Kings)	denied 4/13/07 (Pigott, J.)
People v Almonte	1st Dept: 36 AD3d 519 (NY)	denied 4/30/07 (Pigott, J.)
People v Ayala	2d Dept: 36 AD3d 827 (Kings)	denied 4/20/07 (Grafteo, J.)
People v Bailey	2d Dept: 35 AD3d 491 (Nassau)	denied 4/30/07 (Pigott, J.)
People v Beauliere	2d Dept: 36 AD3d 623 (Kings)	denied 4/4/07 (Pigott, J.)

People v Bermudez (Isaias)	2d Dept: 36 AD3d 928 (Queens)	denied 4/20/07 (Grafteo, J.)
People v Bermudez (Jose)	3d Dept: 31 AD3d 968 (Albany)	denied 4/9/07 (Smith, J.)
People v Bermudez (Jose)	3d Dept: 31 AD3d 1053 (Albany)	denied 4/9/07 (Smith, J.)
People v Best	2d Dept: 35 AD3d 493 (Queens)	denied 4/9/07 (Smith, J.)
People v Bianca	1st Dept: 36 AD3d 489 (NY)	denied 4/5/07 (Ciparick, J.)
People v Bolden (Furmond)	4th Dept: 37 AD3d 1054 (Erie)	denied 4/27/07 (Kaye, Ch.J.)
People v Bolden (Furmond)	4th Dept: 37 AD3d 1055 (Erie)	denied 4/27/07 (Kaye, Ch.J.)
People v Boyer	3d Dept: 36 AD3d 1084 (Albany)	denied 4/10/07 (Kaye, Ch.J.)
People v Bracewell	4th Dept: 34 AD3d 1197 (Yates)	withdrawn 4/17/07 (Read, J.)
People v Brooks	App Div, 2d Dept, 2007 NY Slip Op 63091(U) (Suffolk)	dismissed 4/9/07 (Pigott, J.)
People v Brown	3d Dept: 35 AD3d 957 (Broome)	denied 4/2/07 (Pigott, J.)
People v Bryant	1st Dept: 36 AD3d 517 (NY)	denied 4/5/07 (Ciparick, J.)
People v Campbell	2d Dept: 37 AD3d 486 (Kings)	denied 4/18/07 (Jones, J.)
People v Cancer	3d Dept: 36 AD3d 1009 (Albany)	denied 4/5/07 (Ciparick, J.)
People v Carvajal	App Div, 1st Dept, 2007 NY Slip Op 62973(U) (NY)	dismissed 4/2/07 (Ciparick, J.)
People v Castillo	1st Dept: 37 AD3d 207 (NY)	denied 4/20/07 (Grafteo, J.)
People v Casuccio	County Ct, 1/17/07 (Erie)	denied 4/10/07 (Jones, J.)
People v Charriez	App Div, 2d Dept, 2007 NY Slip Op 81340(U) (Kings)	dismissed 4/9/07 (Smith, J.)
People v Cloyce	1st Dept: 37 AD3d 339 (NY)	denied 4/20/07 (Grafteo, J.)
People v Cohen	1st Dept: 36 AD3d 439 (NY)	denied 4/5/07 (Ciparick, J.)
People v Cole	3d Dept: 35 AD3d 911 (Cortland)	denied 4/4/07 (Pigott, J.)
People v Colvin	3d Dept: 37 AD3d 856 (Madison)	denied 4/27/07 (Kaye, Ch.J.)
People v Cooper	2d Dept: 36 AD3d 828 (Queens)	denied 4/20/07 (Grafteo, J.)
People v Coqueran	1st Dept: 37 AD3d 310 (NY)	denied 4/20/07 (Grafteo, J.)

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People v Corey	App Div, 3d Dept, 3/13/07 (Washington)	dismissed 4/30/07 (Grafteo, J.)
People v Costanza	2d Dept: 36 AD3d 829 (Putnam)	denied 4/20/07 (Grafteo, J.)
People v Cox	App Div, 4th Dept, 3/2/07 (Oneida)	dismissed 4/6/07 (Kaye, Ch.J.)
People v Craft	3d Dept: 36 AD3d 1145 (Albany)	denied 4/20/07 (Grafteo, J.)
People v Cruci	App Term, 2d Dept: 14 Misc 3d 128(A) (Orange)	denied 4/10/07 (Kaye, Ch.J.)
People v Cuello	2d Dept: 35 AD3d 756 (Kings)	denied 4/9/07 (Smith, J.)
People v Daniel	2d Dept: 35 AD3d 877 (Kings)	denied 4/10/07 (Kaye, Ch.J.)
People v Daniels (Anthony)	2d Dept: 35 AD3d 495 (Suffolk)	denied 4/2/07 (Pigott, J.)
People v Daniels (Cornell)	2d Dept: 35 AD3d 756 (Westchester)	denied 4/10/07 (Kaye, Ch.J.)
People v Dashnaw	3d Dept: 37 AD3d 860 (Clinton)	denied 4/30/07 (Grafteo, J.)
People v Davis	1st Dept: 37 AD3d 211 (NY)	denied 4/10/07 (Jones, J.)
People v DeCarlis	4th Dept: 37 AD3d 1040 (Genesee)	denied 4/4/07 (Jones, J.)
People v DeJesus	County Ct, 12/1/06 (Monroe)	denied 4/9/07 (Smith, J.)
People v Diggs	2d Dept: 36 AD3d 933 (Rockland)	denied 4/25/07 (Kaye, Ch.J.)
People v Edwards	3d Dept: 37 AD3d 871 (Sullivan)	denied 4/20/07 (Grafteo, J.)
People v Fair	1st Dept: 33 AD3d 558 (Bronx)	denied 4/9/07 (Smith, J.)
People v Faulkner	3d Dept: 36 AD3d 1009 (Albany)	denied 4/5/07 (Ciparick, J.)
People v Fecu	2d Dept: 2007 NY Slip Op 62935(U) (Kings)	dismissed 4/9/07 (Jones, J.)
People v Fermin	2d Dept: 36 AD3d 934 (Queens)	withdrawn 4/12/07 (Pigott, J.)
People v Fleurant	2d Dept: 37 AD3d 492 (Nassau)	denied 4/5/07 (Ciparick, J.)
People v Fore	2d Dept: 36 AD3d 937 (Nassau)	denied 4/20/07 (Grafteo, J.)
People v Frankie	4th Dept: 35 AD3d 1293 (Erie)	denied 4/10/07 (Kaye, Ch.J.)

People v Frazier	2d Dept: 35 AD3d 759 (Queens)	denied ¹ 4/12/07 (Smith, J.)
People v Fredericks	1st Dept: 37 AD3d 183 (NY)	denied 4/19/07 (Kaye, Ch.J.)
People v Gajadhar	1st Dept: 38 AD3d 127 (NY)	granted 4/23/07 (Kaye, Ch.J.)
People v Gardner	4th Dept: 37 AD3d 1066 (Genesee)	denied 4/27/07 (Kaye, Ch.J.)
People v Garing	2d Dept: 37 AD3d 849 (Suffolk)	denied 4/20/07 (Grafteo, J.)
People v Gibson	App Div, 1st Dept, 2007 NY Slip Op 61277(U) (NY)	denied 4/25/07 (Kaye, Ch.J.)
People v Gilliam	3d Dept: 36 AD3d 1151 (Albany)	denied 4/4/07 (Jones, J.)
People v Goforth	4th Dept: 36 AD3d 1202 (Erie)	denied 4/4/07 (Ciparick, J.)
People v Graves	1st Dept: 37 AD3d 248 (NY)	denied 4/5/07 (Ciparick, J.)
People v Green (Edward)	4th Dept: 37 AD3d 1067 (Monroe)	denied 4/18/07 (Jones, J.)
People v Green (Elizabeth)	4th Dept: 37 AD3d 1131 (Erie)	denied 4/4/07 (Ciparick, J.)
People v Greene	1st Dept: 36 AD3d 518 (NY)	denied 4/10/07 (Kaye, Ch.J.)
People v Hammond	3d Dept: 35 AD3d 905 (Rensselaer)	denied 4/5/07 (Ciparick, J.)
People v Hauser	County Ct, 3/2/07 (Erie)	denied 4/20/07 (Grafteo, J.)
People v Hawthorne	2d Dept: 35 AD3d 499 (Queens)	denied 4/2/07 (Pigott, J.)
People v Hayes	2d Dept: 36 AD3d 629 (Kings)	denied 4/30/07 (Pigott, J.)
People v Haynes	4th Dept: 35 AD3d 1212 (Orleans)	denied 4/5/07 (Ciparick, J.)
People v Helena	1st Dept: 34 AD3d 397 (NY)	denied 4/9/07 (Smith, J.)
People v Hightower	2d Dept: 35 AD3d 884 (Queens)	denied 4/12/07 (Pigott, J.)
People v Hussain	2d Dept: 35 AD3d 504 (Kings)	denied 4/4/07 (Pigott, J.)
People v Irrizarry	4th Dept: 37 AD3d 1082 (Livingston)	denied 4/5/07 (Ciparick, J.)
People v Jackson	4th Dept: 37 AD3d 1091 (Erie)	denied 4/10/07 (Jones, J.)
People v James	1st Dept: 35 AD3d 189 (NY)	denied 4/9/07 (Smith, J.)
People v Jenkins	4th Dept: 37 AD3d 1087 (Onondaga)	denied 4/5/07 (Ciparick, J.)

1. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758 [2006]).

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People v Jiminez	3d Dept: 36 AD3d 962 (Schenectady)	denied 4/30/07 (Pigott, J.)
People v Kerrick	4th Dept: 37 AD3d 1058 (Cayuga)	denied 4/5/07 (Ciparick, J.)
People v Khan	App Div, 2d Dept, 2006 NY Slip Op 81781(U) (Queens)	dismissed 4/9/07 (Smith, J.)
People v Kirton	3d Dept: 36 AD3d 1011 (Albany)	denied 4/10/07 (Kaye, Ch.J.)
People v Kneitel	2d Dept: 33 AD3d 816 (Kings)	denied 4/2/07 (Pigott, J.)
People v Kohorst	4th Dept: 34 AD3d 1249 (Genesee)	denied 4/9/07 (Smith, J.)
People v Kolon	1st Dept: 37 AD3d 340 (NY)	denied 4/27/07 (Kaye, Ch.J.)
People v Lackey	3d Dept: 36 AD3d 953 (Madison)	denied 4/27/07 (Kaye, Ch.J.)
People v Lendore	2d Dept: 36 AD3d 940 (Kings)	denied 4/18/07 (Pigott, J.)
People v Leonard	4th Dept: 37 AD3d 1148 (Orleans)	denied 4/20/07 (Grafteo, J.)
People v Logan	2d Dept: 34 AD3d 697 (Kings)	denied 4/5/07 (Pigott, J.)
People v Lopez (Cesar)	1st Dept: 36 AD3d 431 (Bronx)	denied 4/10/07 (Kaye, Ch.J.)
People v Lopez (Edwin)	2d Dept: 36 AD3d 830 (Kings)	denied 4/4/07 (Jones, J.)
People v Lopez (George)	1st Dept: 38 AD3d 243 (NY)	denied 4/30/07 (Grafteo, J.)
People v "Love"	4th Dept: 35 AD3d 1287 (Onondaga)	denied 4/5/07 (Ciparick, J.)
People v Lozada	3d Dept: 35 AD3d 969 (Sullivan)	denied 4/4/07 (Ciparick, J.)
People v Lugo	2d Dept: 34 AD3d 842 (Nassau)	denied 4/9/07 (Smith, J.)
People v Marmorato	2d Dept: 36 AD3d 717 (Kings)	denied 4/5/07 (Ciparick, J.)
People v Marshall	2d Dept: 35 AD3d 764 (Kings)	denied 4/2/07 (Pigott, J.)
People v Martinez (Corey)	4th Dept: 37 AD3d 1099 (Monroe)	denied 4/20/07 (Grafteo, J.)
People v Martinez (Ivan)	1st Dept: 35 AD3d 263 (NY)	denied 4/5/07 (Pigott, J.)
People v McClelland	4th Dept: 35 AD3d 1263 (Erie)	denied 4/9/07 (Smith, J.)
People v McCloud	3d Dept: 38 AD3d 1056 (Schenectady)	dismissed 4/17/07 (Pigott, J.)
People v McLean	App Term, 1st Dept: 9 Misc 3d 134(A) (NY)	denied 4/2/07 (Pigott, J.)

People v Means	3d Dept: 35 AD3d 975 (Schenectady)	denied 4/5/07 (Ciparick, J.)
People v Meehan	App Div, 3d Dept, 1/12/07 (Broome)	denied 4/27/07 (Kaye, Ch.J.)
People v Meekins	2d Dept: 34 AD3d 843 (Kings)	granted 4/12/07 (Pigott, J.)
People v Melo	App Term, 1st Dept: 14 Misc 3d 131(A) (Bronx)	denied 4/10/07 (Jones, J.)
People v Michalski	App Div, 4th Dept, 3/13/07 (Oswego)	dismissed 4/9/07 (Jones, J.)
People v Middleton	2d Dept: 36 AD3d 941 (Queens)	denied 4/24/07 (Kaye, Ch.J.)
People v Miller	2d Dept: 37 AD3d 739 (Kings)	denied 4/18/07 (Jones, J.)
People v Mingo	1st Dept: 35 AD3d 237 (NY)	denied 4/4/07 (Pigott, J.)
People v Mohamed	1st Dept: 33 AD3d 444 (NY)	denied 4/9/07 (Smith, J.)
People v Moore (James)	4th Dept: 35 AD3d 1167 (Monroe)	denied 4/19/07 (Kaye, Ch.J.)
People v Moore (John)	4th Dept: 35 AD3d 1293 (Erie)	denied 4/10/07 (Kaye, Ch.J.)
People v Morales	4th Dept: 35 AD3d 1183 (Erie)	denied 4/5/07 (Ciparick, J.)
People v Morrison	1st Dept: 34 AD3d 398 (Bronx)	denied 4/9/07 (Smith, J.)
People v Moses (Dennis)	2d Dept: 36 AD3d 720 (Kings)	denied 4/17/07 (Read, J.)
People v Moses (Shawn)	2d Dept: 35 AD3d 766 (Westchester)	denied 4/4/07 (Ciparick, J.)
People v Muhammad	2d Dept: 36 AD3d 831 (Queens)	denied 4/25/07 (Kaye, Ch.J.)
People v Muslim	1st Dept: 37 AD3d 212 (NY)	denied 4/5/07 (Ciparick, J.)
People v Myricks	3d Dept: 36 AD3d 1006 (Washington)	denied 4/2/07 (Pigott, J.)
People v Nesmith	1st Dept: 36 AD3d 463 (NY)	denied 4/5/07 (Ciparick, J.)
People v Nichols	4th Dept: 37 AD3d 1097 (Steuben)	denied 4/10/07 (Jones, J.)
People v Odubogun	2d Dept: 36 AD3d 942 (Kings)	denied 4/18/07 (Jones, J.)
People v Palaguachi	2d Dept: 35 AD3d 767 (Queens)	denied 4/9/07 (Smith, J.)
People v Parfait	2d Dept: 35 AD3d 891 (Dutchess)	denied 4/25/07 (Kaye, Ch.J.)
People v Petronio	2d Dept: 34 AD3d 602 (Nassau)	denied 4/18/07 (Pigott, J.)
People v Pettengill	3d Dept: 36 AD3d 1070 (Madison)	denied 4/5/07 (Ciparick, J.)

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People v Philips (George)	2d Dept: 30 AD3d 618 (Queens)	denied 4/2/07 (Grafteo, J.)
People v Philips (George)	2d Dept: 30 AD3d 620 (Nassau)	denied 4/2/07 (Grafteo, J.)
People v Philips (George)	2d Dept: 30 AD3d 621 (Nassau)	denied 4/2/07 (Grafteo, J.)
People v Picente	4th Dept: 35 AD3d 1210 (Oneida)	denied 4/20/07 (Grafteo, J.)
People v Pierre	2d Dept: 35 AD3d 893 (Kings)	denied 4/2/07 (Pigott, J.)
People v Pinkard	4th Dept: 34 AD3d 1372 (Genesee)	denied 4/9/07 (Smith, J.)
People v Pomales	4th Dept: 37 AD3d 1098 (Erie)	denied 4/5/07 (Ciparick, J.)
People v Ponder	4th Dept: 37 AD3d 1207 (Monroe)	denied 4/20/07 (Grafteo, J.)
People v Prince	2d Dept: 36 AD3d 833 (Queens)	denied 4/16/07 (Kaye, Ch.J.)
People v Ptak	4th Dept: 37 AD3d 1081 (Onondaga)	denied 4/16/07 (Kaye, Ch.J.)
People v Pucci	4th Dept: 37 AD3d 1068 (Monroe)	denied 4/24/07 (Grafteo, J.)
People v Purcell	2d Dept: 34 AD3d 848 (Queens)	denied 4/18/07 (Pigott, J.)
People v Reynolds	1st Dept: 34 AD3d 352 (NY)	denied 4/18/07 (Pigott, J.)
People v Rice	2d Dept: 36 AD3d 835 (Queens)	denied 4/4/07 (Jones, J.)
People v Rivera (Edwin)	1st Dept: 36 AD3d 563 (NY)	denied ² 4/9/07 (Jones, J.)
People v Rivera (Isabel)	1st Dept: 35 AD3d 304 (Bronx)	denied 4/30/07 (Pigott, J.)
People v Rivera (Robert)	App Div, 2d Dept, 4/5/05 (Richmond)	dismissed 4/30/07 (Grafteo, J.)
People v Robinson	2d Dept: 37 AD3d 623 (Kings)	denied 4/5/07 (Ciparick, J.)
People v Romero	App Div, 1st Dept, 2007 NY Slip Op 62258(U) (NY)	denied 4/20/07 (Grafteo, J.)
People v Rosario	1st Dept: 34 AD3d 370 (NY)	denied 4/13/07 (Pigott, J.)
People v Rubio	1st Dept: 36 AD3d 433 (NY)	denied 4/4/07 (Pigott, J.)
People v Ruiz	2d Dept: 36 AD3d 722 (Queens)	denied 4/5/07 (Ciparick, J.)
People v Sanchez (Elvin)	1st Dept: 35 AD3d 161 (Bronx)	denied 4/5/07 (Grafteo, J.)
People v Sanchez (Francisco)	1st Dept: 36 AD3d 468 (NY)	denied 4/30/07 (Pigott, J.)

2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758 [2006]).

People v Santos	4th Dept: 37 AD3d 1141 (Erie)	denied 4/20/07 (Grafteo, J.)
People v Scroger	4th Dept: 35 AD3d 1218 (Genesee)	denied 4/4/07 (Ciparick, J.)
People v Sempit-Carmona	2d Dept: 36 AD3d 836 (Kings)	denied 4/25/07 (Kaye, Ch.J.)
People v Smith (Daniel)	App Div, 2d Dept, 2007 NY Slip Op 62186(U) (Orange)	dismissed 4/19/07 (Ciparick, J.)
People v Smith (Kevin)	1st Dept: 37 AD3d 333 (NY)	denied 4/20/07 (Grafteo, J.)
People v Smith (Selworth)	2d Dept: 35 AD3d 769 (Queens)	denied 4/2/07 (Pigott, J.)
People v Smith (Thomas)	2d Dept: 36 AD3d 633 (Rockland)	denied 4/4/07 (Pigott, J.) (Case No. 60)
People v Smith (Troy)	2d Dept: 33 AD3d 943 (Orange)	denied 4/30/07 (Pigott, J.)
People v Snagg	4th Dept: 35 AD3d 1287 (Onondaga)	denied 4/5/07 (Ciparick, J.)
People v Somerville	2d Dept: 33 AD3d 733 (Kings)	denied 4/2/07 (Pigott, J.)
People v Soto	1st Dept: 37 AD3d 162 (Bronx)	denied 4/13/07 (Pigott, J.)
People v Sudbrink	2d Dept: 35 AD3d 635 (Nassau)	denied 4/4/07 (Pigott, J.)
People v Tatum	2d Dept: 35 AD3d 511 (Kings)	denied 4/4/07 (Pigott, J.)
People v Thomas	2d Dept: 34 AD3d 606 (Nassau)	denied 4/4/07 (Ciparick, J.)
People v Thompson	2d Dept: 33 AD3d 825 (Queens)	denied reconsideration 4/20/07 (Grafteo, J.)
People v Torres	1st Dept: 35 AD3d 225 (NY)	denied 4/9/07 (Smith, J.)
People v Vallejos	2d Dept: 34 AD3d 854 (Suffolk)	denied 4/9/07 (Smith, J.)
People v Velez	App Div, 1st Dept, 2006 NY Slip Op 82877(U) (Bronx)	denied 4/18/07 (Grafteo, J.)
People v Villoda-Troche	4th Dept: 37 AD3d 1083 (Livingston)	denied 4/24/07 (Kaye, Ch.J.)
People v Walker (Frederick)	4th Dept: 35 AD3d 1294 (Monroe)	denied 4/9/07 (Smith, J.)
People v Walker (Russell)	2d Dept: 35 AD3d 636 (Queens)	denied 4/5/07 (Pigott, J.)
People v Walsh	2d Dept: 35 AD3d 637 (Queens)	denied 4/9/07 (Smith, J.)

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People v Ware (Anthony)	2d Dept: 36 AD3d 838 (Kings)	denied ³ 4/9/07 (Jones, J.)
People v Ware (Tyrone)	3d Dept: 34 AD3d 860 (Albany)	denied 4/9/07 (Smith, J.)
People v Washington	1st Dept: 35 AD3d 288 (NY)	denied 4/3/07 (Pigott, J.)
People v Wells	App Div, 1st Dept, 2006 NY Slip Op 81190(U) (NY)	dismissed 4/12/07 (Pigott, J.)
People v White	4th Dept: 35 AD3d 1263 (Erie)	denied 4/9/07 (Smith, J.)
People v Wilder	1st Dept: 38 AD3d 263 (NY)	denied 4/18/07 (Grafteo, J.)
People v Williams (Ali)	2d Dept: 33 AD3d 1028 (Queens)	denied reconsideration 4/27/07 (Kaye, Ch.J.)
People v Williams (David)	2d Dept: 33 AD3d 827 (Westchester)	denied reconsideration 4/16/07 (Kaye, Ch.J.)
People v Williams (Ruben)	1st Dept: 37 AD3d 236 (NY)	denied 4/30/07 (Grafteo, J.)
People v Woods (Anthony)	1st Dept: 36 AD3d 525 (NY)	denied 4/20/07 (Grafteo, J.)
People v Woods (Mario)	4th Dept: 35 AD3d 1294 (Onondaga)	denied 4/5/07 (Ciparick, J.)
People v Wright (Eugene)	4th Dept: 37 AD3d 1142 (Wayne)	denied 4/18/07 (Jones, J.)
People v Wright (William)	2d Dept: 36 AD3d 947 (Kings)	denied 4/5/07 (Ciparick, J.)
People v Yellen	3d Dept: 30 AD3d 634 (Schoharie)	denied 4/5/07 (Ciparick, J.)
People v Zhang	App Term, 1st Dept: 14 Misc 3d 82 (NY)	denied 4/25/07 (Kaye, Ch.J.)
People v Zlotin	App Term, 1st Dept: 14 Misc 3d 127(A) (NY)	denied 4/2/07 (Pigott, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(April 1, 2007 through April 30, 2007)

People v Cuadrado	1st Dept: 37 AD3d 218 (NY)	granted 4/4/07 (Andrias, J.)
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3. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Louree* (28 AD3d 680 [2006]), *lv granted* 7 NY3d 758 [2006].

* Includes only applications that were granted.

[872 NE2d 231, 840 NYS2d 545]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALFONSO DUKES, Appellant.

Argued March 28, 2007; decided May 1, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 8, 2006. The Appellate Division modified, on the law, a judgment of the Schenectady County Court (Michael C. Eidens, J.), which had convicted defendant, upon a jury verdict, of attempted assault in the first degree, criminal possession of a weapon in the second degree, reckless endangerment in the second degree and criminal possession of a weapon in the third degree (two counts). The modification consisted of vacating the convictions of attempted assault in the first degree and reckless endangerment in the second degree and remitting to County Court for a new trial on those counts. The Appellate Division affirmed the judgment as modified.

People v Dukes, 30 AD3d 682, reversed.

HEADNOTE

Crimes — Jurors — Discharge of Juror

County Court improperly dismissed a sworn juror over defendant's objection (CPL 270.35 [1]) when it failed to determine that the juror was grossly unqualified or unqualified at all. In determining whether to dismiss a sworn juror, the trial court must consider the juror's answers and demeanor to ascertain whether his or her state of mind will affect his or her deliberations, must place on the record its reasons for the ruling, and, in concluding that a juror is grossly unqualified, must be convinced that the juror's knowledge will prevent him or her from rendering an impartial verdict. Here, after complainant testified, the juror informed the court that she may have worked with complainant, that she had some recollection that he was fired for a gun incident, that she was "100 percent sure" she could remain impartial, that she would not allow this information to influence her decision, and that she would not mention this to the other jurors. In dismissing the juror, the court failed to abide by the above standard.

APPEARANCES OF COUNSEL

Mitch Kessler, Cohoes, for appellant.

Robert M. Carney, District Attorney, Schenectady (*Alfred D. Chappleau* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed and a new trial ordered.

We agree with defendant's contention that County Court improperly dismissed a sworn juror over his objection. Pursuant to CPL 270.35 (1), a court may not dismiss a sworn juror unless it has determined that he or she is "grossly unqualified to serve in the case"—that is, only "‘when it becomes obvious that a particular juror possesses a state of mind which would prevent the rendering of an impartial verdict’" (*People v Buford*, 69 NY2d 290, 298 [1987]). We underscore once again that, in reaching this determination, the trial court, after a probing and tactful inquiry of each allegedly unqualified juror,

“should carefully consider the juror’s answers and demeanor to ascertain whether her state of mind will affect her deliberations. The trial court’s reasons for its ruling should be placed on the record. In concluding that a juror is grossly unqualified, the court may not speculate as to possible partiality of the juror based on her equivocal responses. Instead, it must be convinced that the juror’s knowledge will prevent her from rendering an impartial verdict” (*id.* at 299).

Here, County Court failed to abide by this standard. After complainant testified at trial, juror number three informed the court that she and complainant may have worked in the same nursing center and, although she was unsure, she had some recollection that he was fired for an incident involving a gun. She told the court and counsel, however, she was “100 percent sure” she could remain impartial and would not allow this information to influence her decision because she “didn’t know [complainant] very well and [she] wasn’t involved in the incident that happened.” She also stated that she would not mention this to the other jurors.

Despite these assurances, the People sought the juror’s removal. Over defendant’s objection, the court dismissed the juror in favor of an alternate, reasoning that, although she honestly meant that she would be able to remain impartial, at worst “what I’m doing is substituting one qualified juror for another qualified juror.” On this record, the juror’s dismissal was improper, and thus defendant is entitled to a new trial. The court failed to determine that juror number three was grossly unqualified—or indeed, unqualified at all.

Defendant's contention that his conviction was not supported by sufficient evidence is without merit. In light of the relief ordered, we do not reach his remaining contentions.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, reversed, etc.

APPALACHIAN INSURANCE COMPANY, Respondent, v GENERAL ELECTRIC COMPANY, Appellant, and RIUNIONE ADRIATICA DI SICURTA, Also Known as ADRIATIC INSURANCE COMPANY et al., Respondents, et al., Defendants. (And a Third-Party Action.)

Submitted April 2, 2007; decided May 1, 2007

Reported below, 19 AD3d 198.

Motion for reargument and to amend the opinion and remittitur denied [*see* 8 NY3d 162].

Judges READ and JONES taking no part.

LANCE BING, Appellant, v FAIRFIELD PRESIDENTIAL MANAGEMENT CORP., Also Known as PRESIDENTIAL FAIRFIELD CORP., et al., Respondents.

FAIRFIELD PRESIDENTIAL ASSOCIATES, Respondent, v LANCE BING, Appellant.

Submitted March 12, 2007; decided May 1, 2007

Reported below, 2006 NY Slip Op 82924(U), 74122(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in these actions commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of DEBRAUN M., a Child Alleged to be Neglected.
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent;
WALTER C., Appellant. (Proceeding No. 1.)

In the Matter of JERMAINE M., a Child Alleged to be Neglected.
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent;
WALTER C., Appellant. (Proceeding No. 2.)

Submitted February 13, 2007; decided May 1, 2007

Reported below, 34 AD3d 587.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of ASEM ELDAGHAR, Appellant, v NEW YORK CITY
HOUSING AUTHORITY et al., Respondents.

Submitted April 2, 2007; decided May 1, 2007

Reported below, 34 AD3d 804.

Motion for reargument of motion for leave to appeal denied
[see 8 NY3d 804].

GABRIEL CAPITAL, L.P., et al., Appellants, v CAIB INVESTMENT-
BANK AG., Respondent, et al., Defendant.

Submitted January 29, 2007; decided May 1, 2007

Reported below, 28 AD3d 376.

Motion for reargument of motion for leave to appeal denied
[see 7 NY3d 922].

In the Matter of the FORECLOSURE OF TAX LIENS BY PROCEEDING
IN REM PURSUANT TO ARTICLE 11 OF REAL PROPERTY LAW BY
COUNTY OF HERKIMER, Respondent; TERRY R. JONES, Appel-
lant, et al., Respondent.

Submitted March 12, 2007; decided May 1, 2007

Reported below, 34 AD3d 1327.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ISLAND RECYCLING CORP. et al., Appellants, v NEW YORK STATE
DEPARTMENT OF TAXATION AND FINANCE et al., Respondents.

Submitted February 16, 2007; decided May 1, 2007

Reported below, 34 AD3d 739.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

LONG ISLAND LIGHTING COMPANY, Plaintiff, and KEYSPAN CORPORATION, Appellant, v ALLIANZ UNDERWRITERS INSURANCE COMPANY et al., Defendants, and CENTURY INDEMNITY COMPANY et al., Respondents.

Submitted April 23, 2007; decided May 1, 2007

Reported below, 24 AD3d 172.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

RAMAN MANN, an Infant, by His Guardian ad Litem, GEORGE S. AKST, et al., Respondents, v COOPER TIRE COMPANY et al., Appellants, et al., Defendants.

Submitted January 29, 2007; decided May 1, 2007

Reported below, 33 AD3d 24.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 7 NY3d 718].

In the Matter of CHRISTOPHER MAPP, Respondent, v GREGORY BURNHAM, as Chief Technology Officer of Port Authority of New York & New Jersey, et al., Appellants.

Submitted April 9, 2007; decided May 1, 2007

Reported below, 23 AD3d 37.

Motion to dismiss the appeal herein denied.

In the Matter of MELVIN J., a Person Alleged to be a Juvenile Delinquent, Appellant.

Submitted March 19, 2007; decided May 1, 2007

Reported below, 35 AD3d 609.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]). Motion for poor person relief dismissed as academic.

In the Matter of MIGUEL M.-R.B. GRAHAM-WINDHAM, INC., Respondent; MONIQUE B., Appellant.

Submitted March 5, 2007; decided May 1, 2007

Reported below, 36 AD3d 613.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LEONORA MORAN, Appellant, v REGENCY SAVINGS BANK, F.S.B., et al., Defendants, and ROSENFELD, BERNSTEIN & TANNENHAUSER, as Trustee, Respondent. BARRY SISKIN, ESQ., Nonparty Appellant.

Submitted April 9, 2007; decided May 1, 2007

Reported below, 30 AD3d 237.

Motion for reargument of motion for leave to appeal denied [*see* 8 NY3d 868]. Cross motion for the imposition of sanctions denied.

DONALD J. O'MARA III et al., Respondents, v TOWN OF WAPPINGER, Appellant.

Submitted April 23, 2007; decided May 1, 2007

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NCYRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ROY GREEN, Appellant, v JOSEPH T. SMITH, as Superintendent of Shawangunk Correctional Facility, Respondent.

Submitted April 2, 2007; decided May 1, 2007

Reported below, 34 AD3d 910.

Motion for reargument denied [*see* 8 NY3d 806]. Motion for poor person relief dismissed as academic.

RYSZARD PILCH, Appellant, v BOARD OF EDUCATION OF CITY OF NEW YORK et al., Respondents.

Submitted February 26, 2007; decided May 1, 2007

Reported below, 27 AD3d 711.

Motion for reargument granted and, upon reargument, motion for leave to appeal denied [*see* 8 NY3d 828].

STATE OF NEW YORK HIGHER EDUCATION SERVICES CORPORATION, Respondent, v SUZY J. SPAROZIC, Appellant.

Submitted February 20, 2007; decided May 1, 2007

Reported below, 35 AD3d 1069.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

URBAN JUSTICE CENTER et al., Appellants, v ELIOT SPITZER, as Governor of the State of New York, et al., Respondents.

Submitted February 10, 2007; decided May 1, 2007

Reported below, 38 AD3d 20.

Motion to substitute Governor Eliot Spitzer in place of former Governor George Pataki as a party defendant herein granted. On the Court's own motion, appeal dismissed, without

costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of DAVID WATTS et al., Appellants, v NEW YORK
STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et
al., Respondents.

Submitted April 16, 2007; decided May 1, 2007

Reported below, 36 AD3d 622.

Motion by the Village of Saltaire for leave to file an affirmation amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

[868 NE2d 185, 836 NYS2d 505]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JUAN
CASTILLO, Respondent.

Argued March 29, 2007; decided May 3, 2007

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 6, 2006. The Appellate Division modified, on the law, a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the first degree and robbery in the first degree. The modification consisted of vacating the robbery conviction and remanding that count of the indictment for further proceedings. The Appellate Division affirmed the judgment as modified.

People v Castillo, 30 AD3d 1118, affirmed.

HEADNOTE

Crimes — Plea of Guilty — Guilty Plea to Crime of Equal Grade to Crime Charged

The Appellate Division properly vacated defendant's robbery conviction where he was indicted for first-degree robbery under Penal Law § 160.15 (4), and pleaded guilty to first-degree robbery under Penal Law § 160.15 (2), an uncharged crime which was not a lesser included offense of the charged crime. When an indictment charges two or more offenses in separate counts, a defendant may plead guilty to one or more of the offenses charged and/or lesser

included offenses of any of the offenses charged (CPL 220.10 [4]). The provisions of CPL article 220 are jurisdictional in nature, and the limited exceptions to that article should not be extended to a plea to a crime of equal or higher grade or degree to the crimes charged.

APPEARANCES OF COUNSEL

Robert M. Morgenthau, District Attorney, New York City (Michael S. Morgan and Morrie I. Kleinbart of counsel), for appellant.

Office of the Appellate Defender, New York City (Jonathan Marvinny, Richard M. Greenberg and Sara Gurwitsch of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was indicted for various crimes, including criminal possession of a controlled substance in the first degree and two counts of robbery in the first degree under Penal Law § 160.15 (4), arising out of a robbery of a known drug dealer in Manhattan.

Penal Law § 160.15 provides that “[a] person is guilty of robbery in the first degree when he forcibly steals property and when, in the course of the commission of the crime or of immediate flight therefrom, he or another participant in the crime” commits one of the acts further specified in subdivisions (1) through (4). As relevant here, Penal Law § 160.15 (4) requires the “[d]isplay [of] what appears to be a . . . firearm.”

Pursuant to a plea agreement, defendant pleaded guilty to the drug charge and robbery in the first degree under Penal Law § 160.15 (2)—not charged in the indictment—which requires that defendant forcibly steal property while “armed with a deadly weapon.” His allocution made no mention of the display element of Penal Law § 160.15 (4).

Under CPL 220.10 (4), when an indictment charges two or more offenses in separate counts, defendant may plead guilty, with permission of the court and the People, to one or more of the offenses charged and/or lesser included offenses of any of the offenses charged. In *People v Johnson* (89 NY2d 905, 907 [1996]), we observed that the provisions of CPL article 220 are “in some respects . . . jurisdictional in nature because of constitutional implications” referring to article I, § 6 of the New York Constitution. We cautioned that the limited excep-

tions to CPL article 220 “should not be extended . . . to a plea to a crime . . . of equal or higher grade or degree to the crimes charged” (*id.* at 908). We reaffirmed this principle in *People v Keizer* (100 NY2d 114, 119 [2003]), stating that “a jurisdictional defect was implicated when the defendant pleaded guilty to charges equal to or higher than those for which he was indicted” (*see also People v Martinez*, 285 AD2d 387 [1st Dept 2001]).

As conceded by the People, Penal Law § 160.15 (2) is not a lesser included offense of Penal Law § 160.15 (4), neither by statute nor by the enumerated scenarios of CPL 220.20 (*see also* CPL 1.20 [37]; CPL 220.10). Although the subdivisions of Penal Law § 160.15 share the common element of forcible stealing, each encompasses a distinct additional element. It is irrelevant that underlying facts may exist to support more than one subdivision, as only one was charged in the indictment.

As defendant was not charged with robbery under Penal Law § 160.15 (2) and it is not a lesser included offense of Penal Law § 160.15 (4), the plea was jurisdictionally defective and properly vacated.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[868 NE2d 186, 836 NYS2d 506]

NICK PAVLOU et al., Appellants, v CITY OF NEW YORK, Respondent, et al., Defendant and Third-Party Plaintiff. FELIX INDUSTRIES, INC., Third-Party Defendant-Respondent. (And Another Action.)

Decided May 3, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 23, 2005. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Jane Solomon, J.), which had granted plaintiffs’ motion pursuant to CPLR 4404 (a) for a new trial on defendant City’s statutory liability under Labor Law § 241 (6), (2) denied plaintiffs’ motion, (3) reinstated that part of the jury verdict and (4) remanded for further

proceedings. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of Supreme Court, properly made?”

Pavlou v City of New York, 21 AD3d 74, affirmed.

HEADNOTE

Labor — Safe Place to Work

In a personal injury action arising from the collapse of a crane on a construction site, wherein the jury found that the proximate cause of the injury was a preexisting crack in the crane, which made it unsafe to operate the crane with any load, not the negligent operation of the crane with an excess load in violation of the Industrial Code, the Appellate Division properly reversed Supreme Court’s order granting plaintiff a new trial on defendant City’s statutory liability under the Labor Law. The jury’s finding that the collapse was caused by the defective crane and not the load size was supported by record evidence. Based on the proof, issues of negligence and causation were not inextricably interwoven and the jury verdict, which did not apportion any liability to defendant City, was not inconsistent. Since the Appellate Division did not abuse its discretion, further consideration was beyond the Court of Appeals review power. In this procedural context, the Court of Appeals could not review a prior nonfinal Appellate Division order dismissing another Labor Law cause of action.

APPEARANCES OF COUNSEL

Hancock & Estabrook, Syracuse (*Alan J. Pierce* of counsel), for appellants.

Quirk and Bakalar, P.C., New York City (*Timothy J. Keane* of counsel), for respondent.

Lester Schwab Katz & Dwyer, LLP, New York City (*John Sandercock* of counsel), for Felix Industries, Inc., third-party defendant-respondent.

Callan, Koster, Brady & Brennan, LLP, Uniondale (*Michael P. Kandler* of counsel), for Hampton C.F. Corp., third-party defendant-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

In this personal injury case arising from the collapse of a crane on a construction site, the jury found that the operation of the crane with an excess load, in violation of Industrial Code (12 NYCRR) § 23-8.2 (g) (2) (iii), amounted to negligence but that this was not a proximate cause of the injury suffered by plaintiff. Experts testified at trial that the crane had a preexisting crack that made it unsafe to operate with any load. The

jury's finding that the collapse was caused by the defect in the crane, and not the size of the load, was therefore supported by record evidence. Based on the proof, issues of negligence and causation were not inextricably interwoven in this case and the jury verdict, which did not apportion any liability to the City of New York, was not inconsistent (*cf. Marine Midland Bank v Russo Produce Co.*, 50 NY2d 31, 41 [1980]). Because the Appellate Division did not abuse its discretion when it reversed Supreme Court's order granting a new trial, further consideration of plaintiffs' arguments is beyond our review power (*see Levo v Greenwald*, 66 NY2d 962, 963 [1985]). Finally, in this procedural context, this Court may not review the December 2002 nonfinal Appellate Division order (300 AD2d 120 [2002]) on this appeal from the June 2005 order (*see Weinberg v Hertz Corp.*, 69 NY2d 979, 981 [1987]; CPLR 5713, 5501 [a] [1]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

[868 NE2d 187, 836 NYS2d 507]

CRAIG CLEMENTONI, Appellant, v CONSOLIDATED RAIL CORPORATION, Also Known as CONRAIL, et al., Defendants, and PAUL SKOWRON, as Voluntary Administrator of the Estate of RAYMOND SKOWRON, Deceased, et al., Respondents.

Argued March 27, 2007; decided May 3, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 9, 2006. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Erie County (Joseph R. Glownia, J.), which had denied the motions, of defendants Paul Skowron, as voluntary administrator of the estate of Raymond Skowron, deceased, and Harold M. and Patricia Gardner for summary judgment dismissing the complaint and cross claims against them, (2) granted the motions, and (3) dismissed the complaint and cross claims against those defendants.

Clementoni v Consolidated Rail Corp., 30 AD3d 986, affirmed.

HEADNOTES**Negligence — Duty — Maintenance of Private Road Which Intersected with Railroad Tracks**

1. In an action to recover damages for injuries sustained when plaintiff's vehicle collided with a train at an unmarked grade crossing of railroad tracks, which intersected a private gravel road owned by decedent and his wife, the Appellate Division properly dismissed plaintiff's complaint and cross claims against those defendants. A landowner owes no duty to warn or to protect others from a defective or dangerous condition on neighboring premises, unless the landowner has created or contributed to it. The grade crossing had existed since at least 1939, long before the decedent and his wife had purchased the property. Those defendants had no reason to expect that plaintiff would not observe the hazard or any conceivable risk associated with it. Also, plaintiff testified that he had stopped and looked in both directions for trains and proceeded cautiously each time he approached the tracks, which he uneventfully drove across three times earlier on the same day of the accident.

Negligence — Duty — Maintenance of Property Bordering Railroad Tracks

2. In an action to recover damages for injuries sustained when plaintiff's vehicle collided with a train at an unmarked grade crossing of railroad tracks, which intersected a private gravel road, the Appellate Division properly dismissed plaintiff's complaint and cross claims against those defendants who owned the property bordering the railroad right-of-way at the crossing. A landowner is generally not liable for the existence of uncut vegetation obstructing the view of motorists at an intersection.

APPEARANCES OF COUNSEL

Paul William Beltz, P.C., Buffalo (*Debra A. Norton* of counsel), for appellant.

Gibson, McAskill & Crosby, LLP, Buffalo (*C. Christopher Bridge* and *Tara N.K. Cross* of counsel), for Harold M. Gardner and another, respondents.

O'Neill, Feeley & Brownell, Buffalo (*Michael T. Feeley* of counsel), for Paul Skowron, respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

This appeal arises out of the collision of an automobile driven by plaintiff Craig Clementoni and a train operated by the Consolidated Rail Corporation (Conrail). The accident occurred at around 6:00 P.M. on September 27, 1994, as plaintiff was driving across a set of railroad tracks at an unmarked grade crossing intersecting a private gravel road owned by Raymond and Gertrude Skowron in northeast Erie County. Conrail owned and

maintained the tracks and the 50-foot wide right-of-way in which they were centered. The right-of-way was a slightly raised pathway, with paved approaches connecting to the gravel road on either side of the tracks. Defendants Harold M. and Patricia Gardner owned property bordering the right-of-way at the crossing.

On September 16, 1997, plaintiff sued Conrail, the railroad engineer operating the train, the Skowrons and the Gardners to recover for his injuries. As relevant to this appeal, plaintiff alleged that the Skowrons negligently failed to warn him of the hazard of oncoming trains by erecting signs, gates or warning signals at the crossing; he contended that trees and other foliage on the Gardners' property obstructed his view of the oncoming train. Defendants moved for summary judgment, which Supreme Court denied without opinion. The Appellate Division, with two Justices dissenting, reversed Supreme Court's order, granted the motions, and dismissed the complaint and the cross claims against these defendants.

[1, 2] “[A]s a general matter, [a landowner] owes no duty to warn or to protect others from a defective or dangerous condition on neighboring premises, unless the [landowner] ha[s] created or contributed to it” (*Galindo v Town of Clarkstown*, 2 NY3d 633, 636 [2004]). Here, the grade crossing had existed since at least 1939, long before the Skowrons purchased the property. In *Galindo*, we left open “the possibility that some dangers from neighboring property might be so clearly known to the landowner, *though not open or obvious to others*, that a duty to warn would arise” (*id.* at 637 [emphasis added]). The Skowrons, however, had “no reason to expect that [plaintiff] would not observe the hazard or any conceivable risk associated with it” (*Tagle v Jakob*, 97 NY2d 165, 170 [2001]). Plaintiff assumed that the tracks were actively used by Conrail's trains. He testified that he stopped and looked in both directions for oncoming trains and proceeded cautiously each time he approached the tracks, which he uneventfully drove across three times on September 27, 1994 before the accident. As for the Gardners, a landowner is generally not liable for the existence of uncut vegetation obstructing the view of motorists at an intersection (*see* Prosser and Keaton, Torts § 57 at 390 [5th ed]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES concur; Judge PIGOTT taking no part.

Order affirmed, with costs, in a memorandum.

In the Matter of the Estate of ABRAHAM XX., Deceased. KATHLEEN XX., as Administrator of the Estate of ABRAHAM XX., Deceased, Appellant; STATE OF NEW YORK, Respondent.

Submitted March 12, 2007; decided May 3, 2007

Reported below, 36 AD3d 1085.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge GRAFFEO taking no part.

MITCHELL BENESOWITZ, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY et al., Respondents.

Submitted April 30, 2007; decided May 3, 2007

Motion by the Life Insurance Council of New York, Inc. for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed.

MITCHELL BENESOWITZ, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY et al., Respondents.

Submitted April 30, 2007; decided May 3, 2007

Motion by American Council of Life Insurers et al. for leave to appear amici curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of CONSOLIDATED EDISON COMPANY OF NEW YORK, INC., Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted April 30, 2007; decided May 3, 2007

Reported below, 33 AD3d 915.

Motion by Nassau County for leave to file a brief amicus curiae on the appeal herein denied as untimely (*see* Rules of Prac of Ct of Appeals [22 NYCRR] § 500.23).

YOLANDA ERAZO, Respondent, v MANUEL P. CABECA, Appellant.

Submitted March 5, 2007; decided May 3, 2007

Reported below, 35 AD3d 651.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NOEL FEUSTEL, Appellant, v SCOTT S. ROSENBLUM et al., Respondents.

Submitted March 5, 2007; decided May 3, 2007

Reported below, 36 AD3d 615.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

HOLLY M. GIBBONS, Appellant, v FOSTER J. GIBBONS, Respondent.

Submitted February 13, 2007; decided May 3, 2007

Reported below, 31 AD3d 605.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HSBC BANK USA, Respondent, v ROBIN R. MERRILL, Appellant, et al., Defendant.

Submitted March 5, 2007; decided May 3, 2007

Reported below, 37 AD3d 899.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JAMES L. KAPSIS et al., Appellants, v NEIL W. KELLEHER et al., Respondents, and STATE COMMITTEE OF THE NEW YORK STATE INDEPENDENCE PARTY et al., Respondents.

Submitted March 5, 2007; decided May 3, 2007

Reported below, 37 AD3d 381.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

LYNDA G. KESSLER, Respondent, v JOHN A. KESSLER, Appellant.

Submitted March 12, 2007; decided May 3, 2007

Reported below, 33 AD3d 42.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KIMBERLY CAROLYN J. and Another, Children Alleged to be Permanently Neglected. TOWANNA EDNA J., Appellant; CARDINAL McCLOSKEY SERVICES FOR CHILDREN, Respondent.

Submitted March 19, 2007; decided May 3, 2007

Reported below, 37 AD3d 174.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from the dispositional orders entered upon default, dismissed upon the ground that no appeal lies from an Appellate Division order dismissing an appeal from an order entered upon default (*see* CPLR 5511); motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Family Court's denial of the motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge KAYE taking no part.

JULIE McKENNA et al., Appellants, v SUSAN CONNORS et al.,
Respondents.

Submitted March 5, 2007; decided May 3, 2007

Reported below, 36 AD3d 1062.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's order denying the motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

JAMES MORAN, Appellant, v McCARTHY, SAFRATH & CARBONE,
P.C., et al., Respondents. JOSEPH GIOVANNI et al., Nonparty
Respondents.

Submitted January 22, 2007; decided May 3, 2007

Reported below, 31 AD3d 725.

Motion, insofar as it seeks leave to appeal as against defendants McCarthy, Safrath & Carbone, P.C., Pat McCarthy and Richard Safrath from the Appellate Division order of affirmance, dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely as to defendants (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [rev 3d ed 2005]). Motion, insofar as it seeks leave to appeal as against nonparty respondents Joseph Giovanni, Mona Giovanni, William Votta and Adele Votta from so much of the Appellate Division order as affirmed Supreme Court's order denying discovery, dismissed upon the ground that as to the nonparty respondents the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

PATRICIA NONNON, Individually and as Executrix of KERRI NONNON, Deceased, et al., Respondents, v CITY OF NEW YORK, Appellant. (And Other Actions.)

Submitted April 30, 2007; decided May 3, 2007

Reported below, 32 AD3d 91.

Motion by Product Liability Advisory Council Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

PATRICIA NONNON, Individually and as Executrix of KERRI NONNON, Deceased, et al., Respondents, v CITY OF NEW YORK, Appellant. (And Other Actions.)

Submitted April 30, 2007; decided May 3, 2007

Reported below, 32 AD3d 91.

Motion by Marcia Angell et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v YUL BRANNUM, Appellant.

Submitted March 12, 2007; decided May 3, 2007

Reported below, 14 Misc 3d 132(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN DEAN, Appellant.

Submitted April 30, 2007; decided May 3, 2007

Reported below, 27 AD3d 838.

Motion for assignment of counsel granted and Jaime C. Louridas, Esq., care of Louridas & Louridas, Esqs., 3034 Patrick Road,

Schenectady, New York 12303 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MANUEL RIVERA, Also Known as ANGEL RIVERA, Appellant.

Submitted April 30, 2007; decided May 3, 2007

Reported below, 33 AD3d 303.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

SONIA ROSARIO et al., Respondents, et al., Plaintiffs, v DIAGONAL REALTY, LLC, et al., Appellants, et al., Defendants.

Submitted April 30, 2007; decided May 3, 2007

Reported below, 32 AD3d 739.

Motion by AARP for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief may be served and 24 copies filed within seven days.

SONIA ROSARIO et al., Respondents, et al., Plaintiffs, v DIAGONAL REALTY, LLC, et al., Appellants, et al., Defendants.

Submitted April 30, 2007; decided May 3, 2007

Reported below, 32 AD3d 739.

Motion by New York City Council et al. for leave to file a brief amici curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed within seven days.

In the Matter of SIMONE D., Appellant. KATHLEEN IVERSON, Respondent.

Submitted April 30, 2007; decided May 3, 2007

Reported below, 32 AD3d 931.

Motion by Disability Advocates, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed within seven days.

[868 NE2d 226, 836 NYS2d 544]

In the Matter of RODNEY ELLIOTT, Appellant, v SHERYL BUTLER, as Deputy Superintendent of Programs, Eastern Correctional Facility, et al., Respondents.

Decided May 8, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 2, 2006. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Thomas J. Spargo, J.), entered in a proceeding pursuant to CPLR article 78, which had granted respondents' motion to dismiss the petition for lack of personal jurisdiction.

Petitioner inmate sought to commence a proceeding to review a determination denying a grievance involving his failure to participate in a substance abuse program. Respondents moved to dismiss the proceeding based upon petitioner's failure to comply with the service requirements of the order to show cause.

Matter of Elliott v Butler, 34 AD3d 878, reversed.

HEADNOTE

Process — Service of Process — Traverse Hearing

An Appellate Division order which had affirmed a judgment granting respondents' motion to dismiss a CPLR article 78 proceeding for lack of personal jurisdiction was reversed and the matter remitted to Supreme Court. The parties' submissions on the motion to dismiss raised issues of fact requiring a traverse hearing.

APPEARANCES OF COUNSEL

Rodney Elliott, appellant pro se.

Andrew Cuomo, Attorney General, Albany (*Kate H. Nepveu*, *Barbara D. Underwood* and *Daniel Smirlock* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order re-

versed, without costs, and matter remitted to Supreme Court, Albany County, for a traverse hearing. The parties' submissions on the motion to dismiss raise issues of fact requiring a traverse hearing.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[868 NE2d 211, 836 NYS2d 531]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL PERSON, Appellant.

Argued March 29, 2007; decided May 8, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 28, 2006. The Appellate Division affirmed a judgment of the Supreme Court, New York County (John A.K. Bradley, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (three counts) and robbery in the second degree (two counts).

People v Person, 26 AD3d 292, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant failed to preserve for appellate review his contention that Supreme Court abused its discretion as a matter of law in refusing to admit into evidence police interview videotapes, in which the accomplices to a robbery incriminated themselves but exculpated defendant of involvement. At trial, the accomplices testified that defendant planned the robbery, and defense counsel used the interview transcripts to impeach them about the prior inconsistent statements. Defendant's assertion on appeal that preclusion of the tapes themselves was erroneous because the jury could not reliably gauge the credibility of the witnesses without viewing their demeanor and hearing their voices during the police interviews was different than the argument made at trial that the videotapes, rather than the transcripts, were needed to prove the content of the prior inconsistent statements, and, at that time, defendant failed to explain how the videotapes would have conveyed information beyond that provided by the verbatim transcripts.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (Sara Gurwitch and Richard M. Greenberg of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Sheryl Feldman and Mark Dwyer of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant orchestrated a robbery that was perpetrated by two accomplices whose actions resulted in the death of the victim. After being apprehended by the police, the accomplices gave videotaped statements incriminating themselves but exculpating defendant of involvement in the crime. The accomplices later entered into cooperation agreements with the People and gave testimony at trial detailing defendant's role in planning the robbery.

During cross-examination of the accomplices, defense counsel used the transcripts of the videotaped interviews to impeach the credibility of the witnesses by questioning them about the prior inconsistent statements each had initially made to the police. Both accomplices acknowledged they made the prior inconsistent statements. Defense counsel then sought to introduce the videotaped interviews into evidence. Supreme Court denied the request because the accomplices admitted they made the statements on the videotapes. Defendant was subsequently convicted of multiple counts of robbery in the first and second degrees.

Before our Court, defendant asserts that preclusion of the videotaped statements was erroneous as a matter of law because Supreme Court failed to recognize that the jury could not reliably gauge the credibility of the witnesses without viewing their demeanor and hearing their voices during the police interviews. At trial, however, the crux of defendant's argument was that he should be able to use the videotapes, rather than the transcripts, to prove the content of the prior inconsistent statements. Defendant at that time failed to explain how the videotapes would have conveyed information beyond that provided by the verbatim transcripts of the statements. As a result, he did not preserve his current contention that Supreme Court had discretion to admit the videotapes because they were relevant to the jury's ability to reliably evaluate the credibility of the witnesses. We therefore have no occasion to consider whether the preclusion of this evidence constituted an abuse of discretion as a matter of law. Defendant's constitutional claims are similarly unpreserved.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

ELIZABETH ALDEN, Appellant, v ST. JOSEPH'S HOSPITAL HEALTH CENTER, Respondent.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 37 AD3d 1047.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARYLYNN CELLAMARE, Appellant, v STEVEN LAKEMAN, Respondent.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 36 AD3d 906.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MARYLYNN CELLAMARE, Appellant, v STEVEN LAKEMAN, Respondent.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 36 AD3d 905.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANTHONY L. CLAPES et al., Appellants, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 34 AD3d 1092.

Appeal dismissed, without costs, by the Court of Appeals, sua

sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of DATA TREE, LLC, Appellant, v EDWARD P. RO-MAINE, Respondent.

Submitted March 19, 2007; decided May 8, 2007

Reported below, 36 AD3d 804.

Motion by LexisNexis et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

HILARY GUISHARD et al., Respondents, v GENERAL SECURITY INSURANCE COMPANY, Appellant.

Submitted February 20, 2007; decided May 8, 2007

Reported below, 32 AD3d 528.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

RICHARD J. HAM et al., Respondents, v CITY OF SYRACUSE et al., Appellants.

Submitted April 2, 2007; decided May 8, 2007

Reported below, 37 AD3d 1050.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KEITH HAYWOOD, Appellant, v CURTIS DROWN, Respondent.

KEITH HAYWOOD, Appellant, v PAT SMITH et al., Respondents.

Submitted February 26, 2007; decided May 8, 2007

Reported below, 35 AD3d 1290, 1291.

Motion for poor person relief granted.

In the Matter of KAHLIL S., an Infant. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; MAMIE W.-K., Respondent.

In the Matter of TERRELL Z., an Infant. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; MAMIE W.-K., Respondent.

Submitted April 23, 2007; decided May 8, 2007

Reported below, 35 AD3d 1164, 1166.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution. Motion for a stay pending disposition of the appeal dismissed as academic.

ASHOK KASHELKAR, Appellant, v STATE OF NEW YORK, Respondent.

Submitted April 30, 2007; decided May 8, 2007

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

In the Matter of LOVE'M SHELTERING, INC., Appellant, v COUNTY OF SUFFOLK et al., Respondents.

Submitted April 23, 2007; decided May 8, 2007

Reported below, 33 AD3d 923.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LINDA G. NELSON MADDOX, Appellant, v STATE UNIVERSITY OF NEW YORK AT ALBANY et al., Respondents.

Submitted April 2, 2007; decided May 8, 2007

Reported below, 32 AD3d 599.

Motion for reargument of motion for leave to appeal denied [see 8 NY3d 803]. Motion for poor person relief dismissed as academic.

In the Matter of LINDA G. NELSON MADDOX, Appellant, v STATE UNIVERSITY OF NEW YORK AT ALBANY et al., Respondents.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 32 AD3d 599.

Appeal, insofar as taken from the Appellate Division order denying reargument or leave to appeal, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order of affirmance, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of TAMARA MILES-STALLWORTH, Appellant, v LAKE-SHORE NURSING HOME, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted March 12, 2007; decided May 8, 2007

Motion for leave to appeal dismissed upon the ground that appellant has failed to demonstrate timeliness as required by section 500.22 (b) (2) of the Rules of Practice of the Court of Appeals (22 NCYRR 500.22 [b] [2]). Motion for poor person relief dismissed as academic.

JOHN MOODY, Respondent, v SVETLANA SOROKINA, Appellant.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 40 AD3d 14.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of EDWARD MOSKOWITZ, an Attorney, Appellant.
GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 37 AD3d 81.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

NORTH SHORE ENVIRONMENTAL SOLUTIONS, INC., et al., Plaintiffs,
and JARO ZITNANSKY, Appellant, v ALLEN K. GLASS et al.,
Respondents.

Submitted April 23, 2007; decided May 8, 2007

Reported below, 17 AD3d 427.

Motion for reargument of motion for leave to appeal denied
[see 8 NY3d 894].

135 WEST 36TH LLC et al., Respondents, v WORLD CITY AMERICA INC. et al., Defendants, and CHARLES GALLAGHER et al., Appellants.

Submitted February 26, 2007; decided May 8, 2007

Reported below, 34 AD3d 317.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellants' cross motion for disqualification of respondents' counsel, dismissed upon the ground that such part of the Appellate Division order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALPHONSO KIRKSEY, Appellant.

Submitted April 23, 2007; decided May 8, 2007

Reported below, 2007 NY Slip Op 61139(U), 60985(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order

of the Appellate Division entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

MELANIE SNUSZKI, as Administrator of the Estate of PEGGY A.B. WRIGHT, Deceased, for Benefit of IAN WRIGHT, Respondent, v THOMAS WRIGHT, Appellant, and ANDREW M. CUOMO, as Attorney General of the State of New York, Intervenor-Respondent.

Submitted April 30, 2007; decided May 8, 2007

Reported below, 34 AD3d 1235, 1 AD3d 879.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge PIGOTT taking no part.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2007 through May 31, 2007)

Hendrix, Matter of, v Goord	3d Dept: 36 AD3d 1200	5/1/07
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APPEALS WITHDRAWN AND DISCONTINUED

(May 1, 2007 through May 31, 2007)

Certain Underwriters at Lloyd's, London v Foster Wheeler Corp.	1st Dept: 36 AD3d 17	5/15/07
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2007 through May 31, 2007)

People v Abdallah	4th Dept: 37 AD3d 1202 (Erie)	denied 5/11/07 (Jones, J.)
People v Abron	4th Dept: 37 AD3d 1163 (Cayuga)	denied 5/25/07 (Smith, J.)
People v Ackridge (Ronald)	App Term, 2d Dept: 16 Misc 3d 127(A)	denied 5/7/07 (Pigott, J.)

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People v Ackridge (Ronald)	2d Dept: 31 AD3d 654 (Westchester)	denied reconsideration 5/30/07 (Smith, J.)
People v Ackridge (Ronald)	2d Dept: 36 AD3d 710 (Westchester)	denied 5/30/07 (Kaye, Ch.J.)
People v Agha	4th Dept: 38 AD3d 1369 (Erie)	denied 5/25/07 (Grafteo, J.)
People v Aguayo	4th Dept: 37 AD3d 1081 (Onondaga)	denied 5/31/07 (Smith, J.)
People v Alaouie	App Div, 1st Dept, 2006 NY Slip Op 69431(U) (NY)	renewed application denied 5/7/07 (Read, J.)
People v Albanese	3d Dept: 38 AD3d 1015 (Chenango)	denied 5/11/07 (Jones, J.)
People v Alvarez	3d Dept: 38 AD3d 930 (Fulton)	denied 5/25/07 (Kaye, Ch.J.)
People v Anderson (John)	3d Dept: 38 AD3d 1061 (Columbia)	denied 5/25/07 (Grafteo, J.)
People v Anderson (William)	4th Dept: 38 AD3d 1245 (Erie)	denied 5/25/07 (Kaye, Ch.J.)
People v Anonymous	1st Dept: 38 AD3d 438 (NY)	denied 5/15/07 (Jones, J.)
People v Anthony	2d Dept: 39 AD3d 557 (Kings)	denied 5/25/07 (Grafteo, J.)
People v Armatullo	App Div, 1st Dept, 2007 NY Slip Op 67220(U) (NY)	dismissed 5/30/07 (Kaye, Ch.J.)
People v Arroyo	1st Dept: 38 AD3d 383 (NY)	denied 5/31/07 (Grafteo, J.)
People v Austin	4th Dept: 38 AD3d 1246 (Erie)	denied 5/31/07 (Jones, J.)
People v Baez	1st Dept: 40 AD3d 272 (NY)	denied 5/25/07 (Grafteo, J.)
People v Baliukonis	2d Dept: 35 AD3d 626 (Kings)	denied 5/25/07 (Smith, J.)
People v Bamm	County Ct, 12/31/06 (Erie)	denied 5/29/07 (Smith, J.)
People v Bautista	2d Dept: 36 AD3d 827 (Suffolk)	denied 5/7/07 (Read, J.)
People v Bennefield	4th Dept: 34 AD3d 1371 (Erie)	denied 5/9/07 (Smith, J.)
People v Benton	4th Dept: 38 AD3d 1281 (Monroe)	denied 5/21/07 (Kaye, Ch.J.)
People v Bermudez	4th Dept: 38 AD3d 1244 (Monroe)	denied 5/31/07 (Jones, J.)
People v Beverly	2d Dept: 35 AD3d 754 (Queens)	denied 5/9/07 (Smith, J.)
People v Bisono	2d Dept: 37 AD3d 844 (Westchester)	denied 5/21/07 (Kaye, Ch.J.)

People v Black	4th Dept: 38 AD3d 1283 (Erie)	denied 5/25/07 (Grafteo, J.)
People v Blalock	1st Dept: 36 AD3d 540 (NY)	denied 5/3/07 (Pigott, J.)
People v Blaylock	1st Dept: 36 AD3d 540 (NY)	denied 5/3/07 (Pigott, J.)
People v Bonano	App Div, 1st Dept, 2007 NY Slip Op 67220(U) (NY)	dismissed 5/30/07 (Kaye, Ch.J.)
People v Boomer	App Div, 3d Dept, 2/9/07 (Albany)	denied reconsideration 5/15/07 (Jones, J.)
People v Boyd	1st Dept: 37 AD3d 375 (NY)	denied 5/11/07 (Jones, J.)
People v Boynton	2d Dept: 35 AD3d 875 (Westchester)	denied 5/1/07 (Kaye, Ch.J.)
People v Bramble	2d Dept: 37 AD3d 484 (Kings)	denied 5/14/07 (Read, J.)
People v Branton	3d Dept: 35 AD3d 1035 (Schenectady)	denied 5/21/07 (Kaye, Ch.J.)
People v Brown (Anthony)	1st Dept: 32 AD3d 737 (NY)	denied reconsideration 5/2/07 (Pigott, J.)
People v Brown (David)	2d Dept: 36 AD3d 930 (Kings)	denied 5/22/07 (Ciparick, J.)
People v Brown (Marcus)	App Div, 1st Dept, 2006 NY Slip Op 63772(U) (NY)	dismissed 5/24/07 (Jones, J.)
People v Brown (Reggie)	1st Dept: 35 AD3d 322 (Bronx)	denied 5/11/07 (Smith, J.)
People v Brown (Troy)	2d Dept: 36 AD3d 931 (Queens)	denied 5/22/07 (Ciparick, J.)
People v Bruchanan	1st Dept: 37 AD3d 169 (NY)	denied 5/25/07 (Kaye, Ch.J.)
People v Buchanan	1st Dept: 37 AD3d 169 (NY)	denied 5/25/07 (Kaye, Ch.J.)
People v Buckery	App Div, 3d Dept, 12/8/06 (Warren)	denied 5/31/07 (Smith, J.)
People v Caban	1st Dept: 36 AD3d 426 (Bronx)	denied 5/24/07 (Smith, J.)
People v Cain	1st Dept: 37 AD3d 366 (NY)	denied 5/11/07 (Jones, J.)
People v Calderon	2d Dept: 38 AD3d 564 (Westchester)	denied 5/8/07 (Grafteo, J.)
People v Cali	4th Dept: 34 AD3d 1226 (Erie)	denied reconsideration 5/7/07 (Read, J.)
People v Carter (Darrick)	4th Dept: 38 AD3d 1256 (Monroe)	denied 5/25/07 (Grafteo, J.)

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People v Carter (Jason)	2d Dept: 36 AD3d 624 (Queens)	denied 5/11/07 (Smith, J.)
People v Casey	4th Dept: 37 AD3d 1113 (Steuben)	denied 5/7/07 (Read, J.)
People v Casimey	1st Dept: 39 AD3d 228 (NY)	denied 5/25/07 (Grafteo, J.)
People v Castro	1st Dept: 37 AD3d 375 (NY)	denied 5/14/07 (Jones, J.)
People v Chambers	2d Dept: 38 AD3d 913 (Richmond)	denied 5/25/07 (Grafteo, J.)
People v Chatanova	1st Dept: 37 AD3d 178 (NY)	denied 5/15/07 (Jones, J.)
People v Chatman	4th Dept: 38 AD3d 1282 (Monroe)	denied 5/25/07 (Grafteo, J.)
People v Cole	1st Dept: 36 AD3d 421 (NY)	denied 5/25/07 (Kaye, Ch.J.)
People v Coleman	2d Dept: 37 AD3d 846 (Queens)	denied 5/21/07 (Kaye, Ch.J.)
People v Colman	2d Dept: 37 AD3d 846 (Queens)	denied 5/21/07 (Kaye, Ch.J.)
People v Coly	App Term, 1st Dept: 14 Misc 3d 132(A) (NY)	denied 5/25/07 (Smith, J.)
People v Cotton	4th Dept: 38 AD3d 1189 (Monroe)	denied 5/4/07 (Grafteo, J.)
People v Creggy	1st Dept: 30 AD3d 151 (NY)	denied reconsideration 5/25/07 (Grafteo, J.)
People v Cruz	1st Dept: 37 AD3d 209 (NY)	denied 5/1/07 (Kaye, Ch.J.)
People v Cusamano	App Div, 1st Dept, 2007 NY Slip Op 67220(U) (NY)	dismissed 5/30/07 (Kaye, Ch.J.)
People v Daniels	1st Dept: 38 AD3d 211 (NY)	denied 5/14/07 (Read, J.)
People v Darby	4th Dept: 37 AD3d 1053 (Monroe)	denied 5/11/07 (Jones, J.)
People v Davis	4th Dept: 37 AD3d 1179 (Orleans)	denied 5/31/07 (Smith, J.)
People v Dawkins	1st Dept: 38 AD3d 231 (NY)	denied 5/21/07 (Kaye, Ch.J.)
People v DeCapua	4th Dept: 37 AD3d 1189 (Monroe)	denied 5/3/07 (Kaye, Ch.J.)
People v DeCicco	3d Dept: 38 AD3d 937 (Ulster)	denied 5/4/07 (Grafteo, J.)
People v DeLaRosa	1st Dept: 36 AD3d 523 (NY)	denied 5/14/07 (Read, J.)
People v DeSmarat (Desmarat)	App Div, 2d Dept, 2007 NY Slip Op 67267(U) (Kings)	dismissed 5/29/07 (Jones, J.)
People v Diaz	App Div, 1st Dept, 2006 NY Slip Op 81942(U) (Bronx)	denied 5/1/07 (Kaye, Ch.J.)

People v Donaldson	4th Dept: 35 AD3d 1242 (Erie)	denied 5/1/07 (Kaye, Ch.J.)
People v Downs	3d Dept: 38 AD3d 1019 (Otsego)	denied 5/25/07 (Grafteo, J.)
People v Drake	3d Dept: 38 AD3d 1009 (Broome)	denied 5/14/07 (Read, J.)
People v Dufrense	1st Dept: 37 AD3d 235 (NY)	denied 5/11/07 (Jones, J.)
People v Dukes	1st Dept: 40 AD3d 283 (NY)	denied 5/25/07 (Grafteo, J.)
People v Dupree	2d Dept: 37 AD3d 491 (Kings)	denied 5/14/07 (Read, J.)
People v Eddie	4th Dept: 37 AD3d 1202 (Erie)	denied 5/11/07 (Jones, J.)
People v Espinal	1st Dept: 36 AD3d 501 (NY)	denied 5/25/07 (Kaye, Ch.J.)
People v Farah	App Term, 2d Dept: 14 Misc 3d 127(A) (Westchester)	denied 5/24/07 (Smith, J.)
People v Farino	2d Dept: 35 AD3d 879 (Suffolk)	denied 5/1/07 (Pigott, J.)
People v Farrell	1st Dept: 37 AD3d 349 (NY)	denied 5/14/07 (Kaye, Ch.J.)
People v Fecu	2d Dept: 38 AD3d 565 (Kings)	denied 5/14/07 (Read, J.)
People v Fields	4th Dept: 38 AD3d 1269 (Erie)	denied 5/21/07 (Kaye, Ch.J.)
People v Figueroa (Frank)	1st Dept: 37 AD3d 246 (Bronx)	denied 5/11/07 (Jones, J.)
People v Figueroa (Raymond)	2d Dept: 38 AD3d 796 (Suffolk)	denied 5/31/07 (Grafteo, J.)
People v Garcia	1st Dept: 37 AD3d 355 (Bronx)	denied 5/14/07 (Read, J.)
People v Garvin	1st Dept: 37 AD3d 372 (NY)	denied 5/8/07 (Grafteo, J.)
People v Gates	4th Dept: 37 AD3d 1089 (Erie)	denied 5/25/07 (Ciparick, J.)
People v Gelzer	2d Dept: 37 AD3d 492 (Kings)	denied 5/4/07 (Grafteo, J.)
People v Gillespie (David)	2d Dept: 36 AD3d 626 (Kings)	denied 5/24/07 (Smith, J.)
People v Gillespie (Maurice)	2d Dept: 35 AD3d 880 (Queens)	denied 5/1/07 (Kaye, Ch.J.)
People v Goodson	2d Dept: 35 AD3d 760 (Westchester)	denied 5/7/07 (Pigott, J.)
People v Gorman	2d Dept: 35 AD3d 881 (Kings)	denied 5/7/07 (Pigott, J.)
People v Gosier	4th Dept: 35 AD3d 1241 (Oneida)	denied 5/14/07 (Read, J.)
People v Gray	2d Dept: 35 AD3d 629 (Queens)	denied 5/9/07 (Smith, J.)

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People v Green (Cy)	2d Dept: 37 AD3d 615 (Kings)	denied 5/25/07 (Grafteo, J.)
People v Green (Joe)	4th Dept: 35 AD3d 1211 (Livingston)	denied 5/1/07 (Kaye, Ch.J.)
People v Green (Joseph)	4th Dept: 35 AD3d 1211 (Livingston)	denied 5/1/07 (Kaye, Ch.J.)
People v Green (Lovince)	4th Dept: 34 AD3d 1226 (Erie)	denied reconsideration 5/7/07 (Read, J.)
People v Gronek	4th Dept: 38 AD3d 1300 (Erie)	denied 5/14/07 (Jones, J.)
People v Gunn	4th Dept: 35 AD3d 1243 (Onondaga)	denied reconsideration 5/4/07 (Grafteo, J.)
People v Gutierrez	2d Dept: 35 AD3d 883 (Orange)	denied 5/22/07 (Ciparick, J.)
People v Guzman	2d Dept: 37 AD3d 615 (Suffolk)	denied 5/21/07 (Kaye, Ch.J.)
People v Halston (Jamal)	4th Dept: 37 AD3d 1144 (Onondaga)	denied 5/7/07 (Read, J.)
People v Halston (Jermel)	4th Dept: 37 AD3d 1144 (Onondaga)	denied 5/7/07 (Read, J.)
People v Hamilton	2d Dept: 33 AD3d 937 (Westchester)	denied 5/30/07 (Smith, J.)
People v Haskins	4th Dept: 38 AD3d 1281 (Genesee)	denied 5/21/07 (Kaye, Ch.J.)
People v Hatfield	2d Dept: 36 AD3d 629 (Westchester)	denied 5/7/07 (Pigott, J.)
People v Hay	2d Dept: 37 AD3d 494 (Kings)	denied 5/11/07 (Jones, J.)
People v Hayes	2d Dept: 32 AD3d 1047 (Nassau)	denied 5/30/07 (Smith, J.)
People v Henkel	3d Dept: 37 AD3d 873 (Sullivan)	denied 5/14/07 (Read, J.)
People v Hetherington	4th Dept: 37 AD3d 1123 (Cayuga)	denied 5/14/07 (Read, J.)
People v Heyward	1st Dept: 36 AD3d 566 (NY)	denied 5/7/07 (Pigott, J.)
People v Hicks	App Div, 3d Dept, 2/7/07 (Schenectady)	denied 5/11/07 (Jones, J.)
People v Hill	2d Dept: 37 AD3d 617 (Rockland)	denied 5/11/07 (Jones, J.)
People v Hoeft (Rickey)	App Div, 4th Dept, 4/18/07 (Erie)	dismissed 5/18/07 (Ciparick, J.)
People v Hoeft (Rickey)	App Div, 4th Dept, 4/20/07 (Erie)	dismissed 5/18/07 (Ciparick, J.)
People v Holland	2d Dept: 37 AD3d 494 (Queens)	denied 5/11/07 (Jones, J.)

People v Holmes	4th Dept: 37 AD3d 1042 (Erie)	denied 5/14/07 (Read, J.)
People v Hunt	2d Dept: 34 AD3d 856 (Westchester)	denied 5/9/07 (Smith, J.)
People v Irizarry	2d Dept: 37 AD3d 495 (Westchester)	denied 5/25/07 (Ciparick, J.)
People v Jackson (Constantine)	4th Dept: 34 AD3d 1304 (Onondaga)	denied reconsideration 5/7/07 (Read, J.)
People v Jackson (Constantine)	App Div, 4th Dept, 4/3/07 (Onondaga)	dismissed 5/30/07 (Kaye, Ch.J.)
People v Jackson (Dwayne)	3d Dept: 38 AD3d 1052 (Madison)	denied 5/15/07 (Jones, J.)
People v Jackson (Joseph)	4th Dept: 37 AD3d 1080 (Erie)	denied 5/1/07 (Kaye, Ch.J.)
People v Jackson (Kenroy)	2d Dept: 30 AD3d 614 (Kings)	denied reconsideration 5/24/07 (Smith, J.)
People v Jackson (Keyron)	2d Dept: 30 AD3d 614 (Kings)	denied reconsideration 5/24/07 (Smith, J.)
People v James (Andrew)	2d Dept: 36 AD3d 630 (Kings)	denied 5/7/07 (Pigott, J.)
People v James (Nathaniel)	2d Dept: 37 AD3d 736 (Kings)	denied 5/22/07 (Ciparick, J.)
People v Jenkins (Eric)	2d Dept: 38 AD3d 566 (Queens)	denied 5/31/07 (Jones, J.)
People v Jenkins (Garfield)	2d Dept: 34 AD3d 833 (Orange)	denied 5/22/07 (Ciparick, J.)
People v Jenkins (Quinn)	1st Dept: 38 AD3d 230 (NY)	denied 5/8/07 (Grafteo, J.)
People v Johnson (James)	1st Dept: 35 AD3d 321 (NY)	dismissed 5/9/07 (Smith, J.)
People v Johnson (Jerome)	1st Dept: 37 AD3d 344 (NY)	denied 5/7/07 (Read, J.)
People v Johnson (Stephen)	2d Dept: 37 AD3d 738 (Westchester)	denied 5/25/07 (Kaye, Ch.J.)
People v Jones (Cecil)	1st Dept: 37 AD3d 163 (NY)	denied 5/7/07 (Pigott, J.)
People v Jones (Douglas)	2d Dept: 36 AD3d 939 (Suffolk)	denied 5/7/07 (Read, J.)
People v Jones (Ernest)	1st Dept: 37 AD3d 314 (NY)	denied 5/7/07 (Read, J.)
People v Jones (John)	4th Dept: 37 AD3d 1111 (Erie)	denied 5/11/07 (Jones, J.)
People v Kelly	3d Dept: 37 AD3d 866 (Ulster)	denied 5/22/07 (Ciparick, J.)

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People v Kinley	2d Dept: 35 AD3d 506 (Kings)	denied 5/9/07 (Smith, J.)
People v Leake	4th Dept: 37 AD3d 1123 (Monroe)	denied 5/14/07 (Read, J.)
People v Leon	1st Dept: 36 AD3d 538 (NY)	granted 5/3/07 (Pigott, J.)
People v Letang	App Term, 1st Dept: 14 Misc 3d 139(A) (NY)	denied 5/8/07 (Grafteo, J.)
People v Lewis (Andrew)	County Ct, 3/2/07 (Erie)	denied 5/7/07 (Read, J.)
People v Lewis (Lawrence)	App Div, 1st Dept, 2007 NY Slip Op 63769(U) (NY)	dismissed 5/14/07 (Pigott, J.)
People v Little	1st Dept: 37 AD3d 214 (NY)	denied 5/15/07 (Jones, J.)
People v Lopez (Ramon)	1st Dept: 37 AD3d 178 (NY)	denied 5/7/07 (Read, J.)
People v Lopez (Steve)	2d Dept: 36 AD3d 830 (Queens)	denied 5/14/07 (Read, J.)
People v Lunetta	4th Dept: 38 AD3d 1303 (Erie)	denied 5/8/07 (Grafteo, J.)
People v Lusink	4th Dept: 38 AD3d 1281 (Monroe)	denied 5/31/07 (Jones, J.)
People v Madden	County Ct, 1/18/07 (Ontario)	denied 5/25/07 (Smith, J.)
People v Maloy	3d Dept: 36 AD3d 1017 (Sullivan)	denied 5/2/07 (Pigott, J.)
People v Mane	3d Dept: 36 AD3d 1079 (Clinton)	denied 5/30/07 (Smith, J.)
People v Marchan	1st Dept: 36 AD3d 499 (NY)	denied 5/2/07 (Pigott, J.)
People v Mariano	1st Dept: 36 AD3d 504 (Bronx)	denied 5/7/07 (Read, J.)
People v Marone	3d Dept: 36 AD3d 956 (Greene)	denied 5/30/07 (Smith, J.)
People v Mathis	1st Dept: 37 AD3d 212 (NY)	denied 5/21/07 (Kaye, Ch.J.)
People v McCallie	4th Dept: 37 AD3d 1129 (Erie)	denied 5/7/07 (Read, J.)
People v McKissick	2d Dept: 36 AD3d 941 (Kings)	denied 5/14/07 (Read, J.)
People v McLee	4th Dept: 32 AD3d 1315 (Onondaga)	denied reconsideration 5/25/07 (Smith, J.)
People v McLeod	App Term, 2d Dept: 15 Misc 3d 128(A) (Kings)	denied 5/25/07 (Grafteo, J.)
People v Mendoza	2d Dept: 35 AD3d 507 (Kings)	denied 5/10/07 (Smith, J.)

People v Michalski	App Div, 4th Dept, 3/13/07 (Oswego)	denied reconsideration 5/14/07 (Jones, J.)
People v Middleton	App Div, 1st Dept, 2007 NY Slip Op 62974(U) (NY)	dismissed 5/22/07 (Pigott, J.)
People v Miles	3d Dept: 36 AD3d 1021 (Chenango)	denied 5/24/07 (Smith, J.)
People v Miller	App Div, 1st Dept, 2006 NY Slip Op 81925(U) (Bronx)	denied 5/9/07 (Smith, J.)
People v Mitchell	1st Dept: 34 AD3d 358 (NY)	denied 5/14/07 (Kaye, Ch.J.)
People v Mohamed	2d Dept: 34 AD3d 600 (Queens)	denied 5/7/07 (Pigott, J.)
People v Moore (Sandra)	1st Dept: 35 AD3d 291 (NY)	denied 5/30/07 (Smith, J.)
People v Moore (Shree)	2d Dept: 37 AD3d 498 (Nassau)	denied 5/14/07 (Read, J.)
People v Mora	3d Dept: 36 AD3d 1142 (Ulster)	denied 5/11/07 (Jones, J.)
People v Morales	3d Dept: 36 AD3d 957 (Rensselaer)	denied 5/7/07 (Read, J.)
People v Morgan (Michael)	4th Dept: 38 AD3d 1329 (Erie)	denied 5/31/07 (Jones, J.)
People v Morgan (Richard)	County Ct, 3/9/07 (Rockland)	dismissed 5/7/07 (Read, J.)
People v Morris	4th Dept: 37 AD3d 1088 (Erie)	denied 5/22/07 (Ciparick, J.)
People v Mota	1st Dept: 36 AD3d 433 (NY)	denied 5/7/07 (Pigott, J.)
People v Moya	1st Dept: 35 AD3d 293 (Bronx)	denied 5/30/07 (Smith, J.)
People v Munford	2d Dept: 37 AD3d 855 (Kings)	denied 5/4/07 (Grafteo, J.)
People v Murray	1st Dept: 35 AD3d 225 (NY)	denied 5/7/07 (Pigott, J.)
People v Musmacher	2d Dept: 38 AD3d 920 (Suffolk)	denied 5/25/07 (Grafteo, J.)
People v Nealon	3d Dept: 36 AD3d 1076 (Rensselaer)	denied 5/7/07 (Read, J.)
People v Newman	2d Dept: 37 AD3d 621 (Suffolk)	denied 5/7/07 (Read, J.)
People v Nichols	4th Dept: 32 AD3d 1316 (Oneida)	denied reconsideration 5/7/07 (Read, J.)
People v Nickels	4th Dept: 37 AD3d 1110 (Steuben)	denied 5/7/07 (Read, J.)
People v Novel	1st Dept: 36 AD3d 555 (NY)	denied 5/21/07 (Kaye, Ch.J.)

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People v Nowinski	3d Dept: 36 AD3d 1082 (Broome)	denied 5/7/07 (Read, J.)
People v Oceanside Inst. Indus., Inc.	App Term, 2d Dept: 15 Misc 3d 22 (Nassau)	denied 5/25/07 (Grafteo, J.)
People v Ortiz	1st Dept: 36 AD3d 567 (NY)	denied 5/25/07 (Grafteo, J.)
People v Palmer	3d Dept: 36 AD3d 1015 (Sullivan)	denied 5/31/07 (Smith, J.)
People v Pasha	1st Dept: 36 AD3d 425 (Bronx)	denied 5/24/07 (Smith, J.)
People v Patterson	2d Dept: 36 AD3d 832 (Orange)	denied 5/7/07 (Read, J.)
People v Pearson	County Ct, 5/15/07 (Erie)	denied 5/25/07 (Grafteo, J.)
People v Pedrosa	1st Dept: 35 AD3d 327 (NY)	denied 5/7/07 (Pigott, J.)
People v Philips (George)	2d Dept: 30 AD3d 618 (Queens)	denied reconsideration 5/31/07 (Grafteo, J.)
People v Philips (George)	2d Dept: 30 AD3d 620 (Nassau)	denied reconsideration 5/31/07 (Grafteo, J.)
People v Philips (George)	2d Dept: 30 AD3d 621 (Nassau)	denied reconsideration 5/31/07 (Grafteo, J.)
People v Pierce	1st Dept: 38 AD3d 262 (NY)	denied 5/25/07 (Grafteo, J.)
People v Pierre (Charles)	4th Dept: 37 AD3d 1172 (Monroe)	denied 5/25/07 (Ciparick, J.)
People v Pierre (Teddy)	4th Dept: 37 AD3d 1172 (Monroe)	denied 5/25/07 (Ciparick, J.)
People v Potter	1st Dept: 34 AD3d 400 (Bronx)	denied 5/9/07 (Smith, J.)
People v Ramos	2d Dept: 37 AD3d 740 (Kings)	denied 5/8/07 (Grafteo, J.)
People v Rawlins	1st Dept: 37 AD3d 183 (NY)	granted 5/3/07 (Grafteo, J.)
People v Reddick	App Div, 2d Dept, 2007 NY Slip Op 60200(U) (Richmond)	dismissed 5/8/07 (Ciparick, J.)
People v Reyes	1st Dept: 38 AD3d 321 (NY)	denied 5/21/07 (Kaye, Ch.J.)
People v Richardson	4th Dept: 34 AD3d 1226 (Allegany)	denied 5/15/07 (Jones, J.)
People v Ricketts	1st Dept: 38 AD3d 291 (NY)	denied 5/15/07 (Jones, J.)
People v Rivera	1st Dept: 38 AD3d 321 (NY)	denied 5/21/07 (Kaye, Ch.J.)

People v Rizzo	4th Dept: 24 AD3d 1273 (Niagara)	denied 5/14/07 (Kaye, Ch.J.)
People v Robbins	1st Dept: 37 AD3d 192 (NY)	denied 5/14/07 (Read, J.)
People v Roberts	App Term, 1st Dept: 14 Misc 3d 140(A) (Bronx)	denied 5/21/07 (Kaye, Ch.J.)
People v Robles	4th Dept: 38 AD3d 1294 (Wayne)	denied 5/21/07 (Kaye, Ch.J.)
People v Rodriguez (Jose)	1st Dept: 38 AD3d 293 (NY)	denied 5/30/07 (Jones, J.)
People v Rodriguez (Louis)	1st Dept: 36 AD3d 567 (NY)	denied 5/25/07 (Grafteo, J.)
People v Rodriguez (Pedro)	1st Dept: 37 AD3d 168 (Bronx)	denied 5/7/07 (Pigott, J.)
People v Rodriguez (Pedro)	2d Dept: 38 AD3d 800 (Queens)	denied 5/21/07 (Kaye, Ch.J.)
People v Rodriguez (Wilfredo)	1st Dept: 36 AD3d 438 (Bronx)	denied 5/30/07 (Smith, J.)
People v Rolle	2d Dept: 31 AD3d 583 (Queens)	denied 5/30/07 (Kaye, Ch.J.)
People v Roona	County Ct, 12/20/06 (Albany)	denied 5/9/07 (Smith, J.)
People v Rosado	1st Dept: 37 AD3d 209 (NY)	denied 5/14/07 (Read, J.)
People v Roundtree	1st Dept: 38 AD3d 385 (NY)	denied 5/31/07 (Grafteo, J.)
People v Royal	4th Dept: 38 AD3d 1269 (Erie)	denied 5/17/07 (Jones, J.)
People v Samuels	1st Dept: 37 AD3d 336 (NY)	denied 5/25/07 (Kaye, Ch.J.)
People v Sanchez-Martinez	2d Dept: 35 AD3d 632 (Orange)	denied 5/31/07 (Smith, J.)
People v Seda	4th Dept: 35 AD3d 1162 (Erie)	denied reconsideration 5/25/07 (Grafteo, J.)
People v Session	4th Dept: 38 AD3d 1300 (Cayuga)	denied 5/14/07 (Jones, J.)
People v Sewer	4th Dept: 37 AD3d 1129 (Monroe)	denied 5/14/07 (Read, J.)
People v Sherman	2d Dept: 35 AD3d 768 (Kings)	withdrawn 5/18/07 (Read, J.)
People v Simpson	4th Dept: 35 AD3d 1182 (Erie)	denied 5/9/07 (Smith, J.)
People v Smith (John)	1st Dept: 37 AD3d 302 (NY)	denied 5/21/07 (Kaye, Ch.J.)
People v Smith (Russell)	2d Dept: 36 AD3d 836 (Kings)	denied 5/7/07 (Pigott, J.)
People v Soddors	2d Dept: 37 AD3d 744 (Suffolk)	denied 5/17/07 (Jones, J.)

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People v Stewart	3d Dept: 36 AD3d 1156 (Schenectady)	denied 5/25/07 (Kaye, Ch.J.)
People v Storms	2d Dept: 19 AD3d 516 (Kings)	denied 5/11/07 (Jones, J.)
People v Suarez (Domingo)	1st Dept: 40 AD3d 143 (Bronx)	dismissed 5/21/07 (Kaye, Ch.J.)
People v Suarez (Santo)	1st Dept: 40 AD3d 143 (Bronx)	dismissed 5/21/07 (Kaye, Ch.J.)
People v Suarez (Santos)	1st Dept: 40 AD3d 143 (Bronx)	dismissed 5/21/07 (Kaye, Ch.J.)
People v Sullivan	3d Dept: 37 AD3d 974 (Sullivan)	denied 5/3/07 (Pigott, J.)
People v Taylor (Jerome)	1st Dept: 36 AD3d 562 (NY)	denied 5/7/07 (Read, J.)
People v Taylor (Kenny)	1st Dept: 35 AD3d 322 (Bronx)	denied 5/11/07 (Smith, J.)
People v Tedesco	3d Dept: 38 AD3d 1102 (Saratoga)	denied 5/31/07 (Jones, J.)
People v Tejada	1st Dept: 36 AD3d 455 (NY)	denied 5/1/07 (Kaye, Ch.J.)
People v Thomas	4th Dept: 38 AD3d 1288 (Monroe)	denied 5/14/07 (Jones, J.)
People v Thompson	2d Dept: 33 AD3d 825 (Suffolk)	denied reconsideration 5/10/07 (Smith, J.)
People v Thorpe	1st Dept: 35 AD3d 265 (Bronx)	denied 5/11/07 (Smith, J.)
People v Thorsen	App Div, 3d Dept, 1/31/07 (Rensselaer)	dismissed 5/7/07 (Read, J.)
People v Thrower	App Div, 2d Dept, 2006 NY Slip Op 78489(U) (Kings)	dismissed 5/24/07 (Pigott, J.)
People v Tinnin	1st Dept: 36 AD3d 457 (NY)	denied 5/7/07 (Pigott, J.)
People v Tordella	2d Dept: 37 AD3d 500 (Kings)	denied 5/11/07 (Jones, J.)
People v Torres (Jannette)	1st Dept: 37 AD3d 314 (NY)	denied 5/14/07 (Kaye, Ch.J.)
People v Torres (Jose)	4th Dept: 32 AD3d 1245 (Monroe)	denied 5/1/07 (Kaye, Ch.J.)
People v Turner	3d Dept: 37 AD3d 874 (Albany)	denied 5/25/07 (Ciparick, J.)
People v Umali	1st Dept: 37 AD3d 164 (NY)	denied 5/22/07 (Ciparick, J.)
People v Vanderhorst	1st Dept: 36 AD3d 465 (NY)	denied 5/7/07 (Read, J.)

People v Ventura	App Div, 1st Dept, 2007 NY Slip Op 68683(U) (NY)	dismissed 5/24/07 (Jones, J.)
People v Wade (Clarence)	1st Dept: 37 AD3d 283 (NY)	denied 5/11/07 (Jones, J.)
People v Wade (Ephriam)	4th Dept: 38 AD3d 1315 (Monroe)	denied 5/25/07 (Grafteo, J.)
People v Walden	4th Dept: 37 AD3d 1067 (Monroe)	denied 5/14/07 (Read, J.)
People v Ward	App Div, 2d Dept, 2007 NY Slip Op 67073(U) (Queens)	dismissed 5/30/07 (Kaye, Ch.J.)
People v Washington (Nathaniel)	4th Dept: 37 AD3d 1131 (Erie)	denied 5/25/07 (Grafteo, J.)
People v Washington (Wayne)	2d Dept: 36 AD3d 947 (Kings)	denied 5/22/07 (Ciparick, J.)
People v Weay	App Div, 2d Dept, 2007 NY Slip Op 66908(U) (Queens)	dismissed 5/24/07 (Jones, J.)
People v Williams (Hosie)	4th Dept: 38 AD3d 1232 (Erie)	denied 5/14/07 (Jones, J.)
People v Williams (Joseph)	2d Dept: 36 AD3d 839 (Orange)	denied 5/14/07 (Read, J.)
People v Williams (Michael)	2d Dept: 34 AD3d 856 (Westchester)	denied 5/9/07 (Smith, J.)
People v Williams (Robert)	App Div, 1st Dept, 2007 NY Slip Op 62292(U) (NY)	denied reconsideration 5/25/07 (Grafteo, J.)
People v Wood	1st Dept: 37 AD3d 283 (NY)	denied 5/11/07 (Jones, J.)
People v Young	1st Dept: 35 AD3d 324 (NY)	denied 5/14/07 (Read, J.)

In the Matter of ADULT HOME AT ERIE STATION, INC., Respondent, v ASSESSOR AND BOARD OF ASSESSMENT REVIEW OF CITY OF MIDDLETOWN et al., Appellants.

Submitted April 30, 2007; decided June 5, 2007

Reported below, 36 AD3d 699.

Motion by the New York State Assessors Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

BEAL SAVINGS BANK, Appellant, v VIOLA SOMMER et al., as Trustees of a Trust under the Will of SIGMUND SOMMER, Respondents.

Submitted April 30, 2007; decided June 5, 2007

Reported below, 29 AD3d 388.

Motion for reargument denied [*see* 8 NY3d 318].

Judges READ and JONES taking no part.

BEAL SAVINGS BANK, Appellant, v VIOLA SOMMER et al., as Trustees of a Trust under the Will of SIGMUND SOMMER, Respondents.

Submitted April 30, 2007; decided June 5, 2007

Reported below, 29 AD3d 388.

Motion for relief ancillary to the motion by Beal Savings Bank for reargument denied [*see* 8 NY3d 318].

Judges READ and JONES taking no part.

OWEN F. BURNS III et al., Appellants, v JAMES R. VARRIALE JR., Defendant, and ST. PAUL/TRAVELERS INSURANCE COMPANY, Respondent. (And a Related Proceeding.)

Submitted May 14, 2007; decided June 5, 2007

Reported below, 34 AD3d 59.

Motion by Injured Workers' Bar Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of CHRISTINE G. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; HERBIE G., Appellant.

In the Matter of MICHELLE G. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; HERBIE G., Appellant.

Submitted April 9, 2007; decided June 5, 2007

Reported below, 36 AD3d 615.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

NANCY GIANDANA, Individually and as Administratrix of the Estate of ANNA E. DEMUTH, Deceased, Respondent, v PROVIDENCE REST NURSING HOME et al., Defendants. PROVIDENCE REST NURSING HOME, Third-Party Plaintiff, v RAMAR SERVICES, INC., Third-Party Defendant, and BECKY AKOSAH, Third-Party Defendant-Appellant.

Submitted April 30, 2007; decided June 5, 2007

Reported below, 32 AD3d 126.

Motion for reargument denied [*see* 8 NY3d 859].

Judge JONES taking no part.

ITC LIMITED et al., Appellants, v PUNCHGINI, INC., et al., Respondents.

Submitted May 14, 2007; decided June 5, 2007

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

BETTY KOLNACKI, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 103121.)

Submitted April 16, 2007; decided June 5, 2007

Reported below, 28 AD3d 1176.

Motion for reargument denied [*see* 8 NY3d 277].

Judges PIGOTT and JONES taking no part.

In the Matter of MARIELLA MAYORCA-PICCOLO, Appellant, v STEPHEN J. PICCOLO JR., Respondent.

Submitted March 26, 2007; decided June 5, 2007

Reported below, 37 AD3d 913.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SOLOMON MESHOLAM, Respondent, v ISABELLE HELENE MESHO-
LAM, Appellant.

Submitted March 26, 2007; decided June 5, 2007

Reported below, 25 AD3d 670.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ZELINET C. MOYA et al., Appellants, v PENSKE TRUCK LEASING
COMPANY et al., Respondents.

Submitted April 30, 2007; decided June 5, 2007

Reported below, 2006 NY Slip Op 76631(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action which is treated as if commenced in the Civil Court of the City of New York (NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]; *see also* CPLR 326 [b]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEAN
BENNETT, Appellant.

Submitted May 29, 2007; decided June 5, 2007

Reported below, 37 AD3d 483.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WIL-
LIAM CUADRADO, Appellant.

Submitted May 7, 2007; decided June 5, 2007

Reported below, 37 AD3d 218.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WINSTON GAJADHAR, Appellant.

Submitted May 21, 2007; decided June 5, 2007

Reported below, 38 AD3d 127.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE LEON, Appellant.

Submitted May 29, 2007; decided June 5, 2007

Reported below, 36 AD3d 538.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HARRY LOUIS, Appellant.

Submitted May 21, 2007; decided June 5, 2007

Reported below, 15 Misc 3d 128(A).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAMON MCCOY, Appellant.

Submitted May 21, 2007; decided June 5, 2007

Reported below, 30 AD3d 441.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWAIN MEEKINS, Appellant.

Submitted May 14, 2007; decided June 5, 2007

Reported below, 34 AD3d 843.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEXANDER PASLEY, Appellant.

Submitted May 29, 2007; decided June 5, 2007

Reported below, 38 AD3d 427.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. EDWARD BROWN, Appellant, v JAMES CONWAY, as Superintendent of Attica Correctional Facility, Respondent.

Submitted April 2, 2007; decided June 5, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RICHARD CHALK, Appellant, v ROBERT ERCOLE, Respondent.

Submitted April 9, 2007; decided June 5, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. LANCE SESSOMS,
Appellant, v ROBERT ERCOLE, Respondent.

Submitted April 9, 2007; decided June 5, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. BORIS TEICHMAN
(TEISHMAN), Appellant, v BRIAN RIORDAN, as Warden, Re-
spondent.

Submitted April 9, 2007; decided June 5, 2007

Reported below, 36 AD3d 504.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

In the Matter of SIMONE D., Appellant. KATHLEEN IVERSON, Re-
spondent.

Submitted May 21, 2007; decided June 5, 2007

Reported below, 32 AD3d 931.

Motion by New York State Psychiatric Association, Inc. for leave to file a brief amicus curiae on the appeal herein denied as untimely (*see* Rules of Prac of Ct of Appeals [22 NYCRR] § 500.23).

STEEL LOS III, LP, et al., Respondents, v POWER AUTHORITY OF
STATE OF NEW YORK, Appellant.

Submitted March 26, 2007; decided June 5, 2007

Reported below, 33 AD3d 990.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of STEVE STROMAN, Appellant, v PETER E. CORNING, as a County Court Justice, Respondent.

Submitted May 7, 2007; decided June 5, 2007

Motion for reargument denied [*see* 8 NY3d 908].

Judge PIGOTT taking no part.

[870 NE2d 678, 839 NYS2d 439]

In the Matter of CHRISTOPHER MAPP, Respondent, v GREGORY BURNHAM, as Chief Technology Officer of Port Authority of New York and New Jersey, et al., Appellants.

Decided June 7, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, New York County (Sheila Abdus-Salaam, J.), entered October 13, 2006. The Supreme Court awarded petitioner back wages and pension contributions. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 18, 2005, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in New York County). The Appellate Division had annulled a determination of respondent Port Authority of New York and New Jersey dismissing petitioner from his position as a Port Authority employee, granted the petition, reinstated petitioner and remanded to Supreme Court for the determination of an award for lost wages, benefits and all emoluments of his employment from the date of separation to the date of reinstatement.

Matter of Mapp v Burnham, 23 AD3d 37, reversed.

HEADNOTE**Civil Service — Termination of Employment — Use of Employment Status to Secure Benefits — Receipt of Financial Assistance from Red Cross**

In a CPLR article 78 proceeding, the determination of respondent Port Authority of New York and New Jersey terminating petitioner's employment was supported by substantial evidence. Record evidence supported the finding that petitioner misled the Red Cross concerning his employment status and obtained financial assistance under false pretenses. Moreover, in light of petitioner's misconduct, it could not be concluded that the penalty of dismissal imposed shocked the judicial conscience.

APPEARANCES OF COUNSEL

Milton H. Pachter, General Counsel, Port Authority of New York and New Jersey, New York City (Joan F. Bennett, Carlene McIntyre and Anne M. Tannenbaum of counsel), for appellants.

Traub & Traub, P.C., New York City (Doris G. Traub of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The judgment appealed from and the order of the Appellate Division brought up for review should be reversed, with costs, and the petition dismissed. The determination of respondent Port Authority of New York and New Jersey (the PA) terminating petitioner's employment is supported by substantial evidence (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 230 [1974]). Evidence in the record supports the finding that petitioner misled the American Red Cross concerning his employment status and obtained financial assistance under false pretenses. Moreover, in light of petitioner's misconduct, "we cannot conclude that the penalty of dismissal imposed . . . shocks the judicial conscience" (*Matter of Rutkunas v Stout*, 8 NY3d 897, 898 [2007] [internal citations and quotation marks omitted]; *see Matter of Scahill v Greece Cent. School Dist.*, 2 NY3d 754, 756 [2004]; *Matter of Pell*, 34 NY2d at 233).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment appealed from and order of the Appellate Division brought up for review reversed, etc.

[870 NE2d 679, 839 NYS2d 440]

In the Matter of BETHELITE COMMUNITY CHURCH, GREAT TOMORROWS ELEMENTARY SCHOOL, Respondent, v DEPARTMENT OF ENVIRONMENTAL PROTECTION OF THE CITY OF NEW YORK et al., Appellants.

Decided June 7, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 9, 2006. The Appellate Division affirmed an order and judgment of the Supreme Court, New York County (Shirley Werner Kornreich, J.), entered in a proceeding pursuant to CPLR article 78, which had granted a petition to compel respondent Department of Environmental Protection of the City of New York (DEP) to grant petitioner an exemption from water and sewer charges, to reverse DEP's assessments, charges and penalties against it, and to abate tax liens arising from those assessments, charges and penalties, and denied respondents' cross motion to dismiss the petition.

Matter of Bethelite Community Church, Great Tomorrows Elementary School v Department of Env'tl. Protection of City of N.Y., 27 AD3d 256, reversed.

HEADNOTE**Pleading — Answer**

A CPLR article 78 proceeding seeking to annul the determination of respondent Department of Environmental Protection of the City of New York, which had denied petitioner religious corporation a full exemption from water and sewer charges, was remitted to Supreme Court to allow respondents to submit an answer and for further proceedings on the pleadings. Supreme Court erred in granting the petition without first affording respondents an opportunity to answer (CPLR 7804 [f]).

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Ronald E. Sternberg* of counsel), for appellants.

Anthony C. Jones, New York City, for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this memorandum.

Petitioner is a religious corporation that operates a church and school in a building it occupies in Manhattan. Petitioner commenced this CPLR article 78 proceeding seeking to annul the determination of the Department of Environmental Protection of the City of New York denying it a full exemption from water and sewer charges under chapter 696 of the New York Laws of 1887, as amended by chapter 893 of the Laws of 1980, and section 24-514 (e) of the Administrative Code of the City of New York, respectively.

Respondents do not now dispute the denial of their preanswer motion to dismiss the proceeding. They only challenge that Supreme Court proceeded to the merits without permitting them to submit an answer. Supreme Court erred in granting the petition without first affording respondents an opportunity to answer (*see* CLPR 7804 [f]; *Matter of Nassau BOCES Cent. Council of Teachers v Board of Coop. Educ. Servs. of Nassau County*, 63 NY2d 100, 102-104 [1984]). Accordingly, this case must be remitted to Supreme Court to allow respondents to submit an answer and for further proceedings on the pleadings.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

In the Matter of AMY GUERNSEY, Respondent, v RICHARD GUERNSEY, Appellant. (And Another Related Proceeding.)

Submitted April 16, 2007; decided June 7, 2007

Reported below, 37 AD3d 989.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SOFIA HERRERA et al., Respondents, v CARLISLE ST. MARTIN et al., Defendants, and RICHARD GASALBERTI, Appellant, et al., Respondents.

Submitted April 16, 2007; decided June 7, 2007

Reported below, 34 AD3d 529.

Motion for leave to appeal denied.

In the Matter of JULIA BB. and Others, Children Alleged to be Severely Abused. SARATOGA COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; DIANA BB., Respondent.

In the Matter of JULIA BB. and Others, Children Alleged to be Severely Abused. SARATOGA COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; FRANCIS BB., Respondent.

Submitted June 5, 2007; decided June 7, 2007

Reported below, 42 AD3d 208.

Motion to vacate stay granted.

In the Matter of PRITPAL KAINTH, Appellant, v INDER KAINTH, Respondent.

Submitted April 2, 2007; decided June 7, 2007

Reported below, 36 AD3d 915.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by section 500.22 (b) (2) of the Rules of Practice of the Court of Appeals (22 NYCRR 500.22 [b] [2]).

JULIE LEVINE, Appellant, v ROBERT LEVINE, Respondent.

Submitted April 9, 2007; decided June 7, 2007

Reported below, 37 AD3d 550, 553.

Motion, insofar as it seeks leave to appeal from the Appellate Division order modifying, and as modified, affirming Supreme Court's April 25, 2005 judgment, denied; motion, insofar as it seeks leave to appeal from the Appellate Division order enforcing provisions of the divorce judgment and awarding attorneys' fees in connection with the enforcement, dismissed upon the

ground that such Appellate Division order does not finally determine the action within the meaning of the Constitution.

MUNICIPAL TESTING LABORATORY, INC., Respondent, v ALEK-SANDR BROM et al., Appellants.

Submitted April 30, 2007; decided June 7, 2007

Reported below, 38 AD3d 862.

Motion to dismiss the appeal herein granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DUANE J. CHARACHE, Appellant.

Submitted May 7, 2007; decided June 7, 2007

Reported below, 32 AD3d 1345.

Motion to expand the record granted on consent.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL RAWLINS, Appellant.

Submitted June 4, 2007; decided June 7, 2007

Reported below, 37 AD3d 183.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. FREDERIC CARPENTER, Appellant, v MICHAEL CORCORAN, Respondent.

Submitted April 9, 2007; decided June 7, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. BERNARD PITTS,
Appellant, v JOSEPH MCCOY, as Superintendent of Cayuga
Correctional Facility, Respondent.

Submitted April 23, 2007; decided June 7, 2007

Reported below, 38 AD3d 1369.

Motion for leave to appeal dismissed upon the ground that
the Court of Appeals does not have jurisdiction to entertain it.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JUSTO RICH-
ARDS, Appellant, v CALVIN WEST, Respondent.

In the Matter of JUSTO RICHARDS, Appellant, v CALVIN WEST,
Respondent.

Submitted May 7, 2007; decided June 7, 2007

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the orders appealed from do not finally
determine the proceedings within the meaning of the Constitu-
tion. Motion for leave to appeal dismissed upon the ground that
the orders sought to be appealed from do not finally determine
the proceedings within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DONALD WALSH,
Appellant, v CAROL B. WUGHTER, Respondent.

Submitted May 14, 2007; decided June 7, 2007

Reported below, 37 AD3d 929.

Motion to strike denied.

AMANDA S. RITZ, Appellant, v MICHAEL D. RITZ, Respondent.

Submitted April 2, 2007; decided June 7, 2007

Reported below, 36 AD3d 437; 2007 NY Slip Op 64119(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution. Motion for
poor person relief dismissed as academic.

FRANCISCO SANCHEZ, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 7, 2007; decided June 7, 2007

Reported below, 36 AD3d 1065.

Motion by the Legal Aid Society of the City of New York et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

MARKKING SMALLS, Appellant-Respondent, v AJI INDUSTRIES, INC., et al., Respondents, and JAHKIM A. JENKINS et al., Respondents-Appellants.

Submitted April 30, 2007; decided June 7, 2007

Reported below, 37 AD3d 324.

Motion to dismiss appeal denied.

STATE OF NEW YORK et al., Appellants, v PHILIP MORRIS INCORPORATED et al., Defendants. COMMONWEALTH BRANDS, INC., et al., Nonparty Respondents.

Submitted February 20, 2007; decided June 7, 2007

Reported below, 30 AD3d 26.

Motion to supplement the record on appeal herein denied.

GREGORY G. STIVER et al., Appellants, v GOOD & FAIR CARTING & MOVING, INC., Respondent.

Submitted June 4, 2007; decided June 7, 2007

Reported below, 32 AD3d 1209.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of ROBERT WARD et al., Petitioners, and JUSTO RICHARDS, Appellant, v ELIOT SPITZER, Respondent.

Submitted April 9, 2007; decided June 7, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally

determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

HOWARD L. WEXLER, Respondent, v BARBARA E. WEXLER, Appellant.

Submitted April 2, 2007; decided June 7, 2007

Reported below, 34 AD3d 458; 2007 NY Slip Op 62418(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of STEPHEN J. WILLIAMS (Admitted as STEPHEN JOHN WILLIAMS), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted April 23, 2007; decided June 7, 2007

Reported below, 33 AD3d 38.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for sanctions denied.

[870 NE2d 1132, 839 NYS2d 702]

In the Matter of GREENE COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of JEFFREY WARD, Respondent, v DAWN WARD, Appellant.

Argued April 24, 2007; decided June 12, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 4, 2006. The Appellate Division affirmed an order of the Family Court, Greene County

(George J. Pulver, Jr., J.), which had granted petitioner's application, in a proceeding pursuant to Family Court Act article 4, to direct respondent to pay child support.

Matter of Greene County Dept. of Social Servs. v Ward, 29 AD3d 1039, affirmed.

HEADNOTE

Parent and Child — Support — Liability for Child Support upon Voluntary Surrender

Respondent, who adopted a special needs child and subsequently obtained a judicial surrender after being unable to control his behavior, was liable for child support from the date of surrender as the adoptive parent (Family Ct Act § 413). An adoptive parent assumes all of the liabilities of a biological parent. Upon voluntary surrender, a parent retains the obligation to provide financial support for a child until he or she is adopted or turns 21. A limited exception from this support requirement exists for children born out of wedlock to unwed mothers (Social Services Law § 398 [6] [f]; 18 NYCRR 422.4). Since the child was not “begotten and born” to respondent, she did not qualify as the “mother of a child born” out of lawful matrimony (Family Ct Act § 512 [a], [c]). Notwithstanding the harsh result in this case, the doctrine of estoppel was not applicable against the State.

APPEARANCES OF COUNSEL

Law Office of Anne Reynolds Copps, Albany (*Anne Reynolds Copps* and *Heena Shaikh* of counsel), for appellant.

Heather K. Sheehan, Catskill, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

In 2000, Dawn Ward, an unmarried registered nurse, contacted Downey Side Families for Youth with hopes of adopting a special needs child. She was presented with Jeffrey, born prematurely at 27 weeks. Although Jeffrey tested positive for cocaine and syphilis at birth, Ms. Ward was informed that his mother had not habitually used drugs and alcohol during her pregnancy, and that Jeffrey was a “quiet, gentle and pleasant child.”

Jeffrey was placed with Ms. Ward on May 3, 2001, and she subsequently began receiving a \$1,000 monthly subsidy to assist with his support (*see* NJ Admin Code § 10:121-1.3 [“Payments for the care and maintenance of a special needs child (adoption subsidy)”]). At the time of placement, he was three years old, weighed 25 pounds, drank from a bottle, was nonverbal, and

had been diagnosed with mild cerebral palsy and asthma. Ms. Ward enrolled Jeffrey in an early intervention program and he underwent surgeries to improve his swallowing and breathing capabilities. He began to put on weight and develop his verbal skills. On June 20, 2002, the adoption was finalized.

His emotional and mental development, however, continued to be delayed. In 2001 and 2002, Jeffrey exhibited increasingly aggressive behavior. He began eating sand and grass, biting, licking and spitting at adults, and exhibiting bouts of uncontrolled yelling. By October 2002, Jeffrey's behavior had deteriorated even further. He regressed in toileting, dressing and eating. His behavior at daycare now included head-banging, hitting and kicking other children and throwing chairs and objects. In February 2003, he was diagnosed with pervasive developmental disorder. Jeffrey's play therapist advised Ms. Ward that Jeffrey had significant neurological issues resulting from exposure to drugs and alcohol in utero. Another psychiatrist diagnosed him with attachment disorder, obsessive-compulsive disorder and autism.

Jeffrey's behavior did not improve. He injured both himself and Ms. Ward during the summer of 2003, and had frequent bouts of uncontrollable behavior. In August 2003, Jeffrey was admitted to Heely House at Parsons, a private residential treatment facility, for psychological evaluations. The results were inconclusive. Ms. Ward was advised that Jeffrey would be discharged on September 2, 2003.

On September 2, 2003, Ms. Ward went to the Greene County Department of Social Services (GCDSS) and asked for a temporary relinquishment of parental rights. When GCDSS refused to accept a temporary relinquishment, Ms. Ward decided that returning Jeffrey to her home would pose too great a risk to his and her safety, and permanently surrendered her parental rights before a Greene County Family Court judge. She subsequently relinquished the monthly subsidy she had been receiving from the State of New Jersey.

In June 2004, she received a petition seeking child support for Jeffrey. A Greene County support magistrate found Ms. Ward liable for child support as the adoptive parent of Jeffrey from the date of surrender, September 2, 2003. Family Court, affirming the findings of fact and final order of support, charged Ms. Ward with "\$133.54 weekly child support for Jeffrey commencing February 4, 2005 and \$10,015.50 arrears from September 2, 2003 through January 28, 2005 to be paid in \$10 weekly increments." The Appellate Division affirmed.

Ms. Ward contends that she should be exempt from the child support obligation as the single “parent” of a “child born out of wedlock” and that in the alternative GCDSS should be equitably estopped from enforcing the support order. We disagree.

An adoptive parent assumes all of the liabilities of a biological parent (*see Betz v Horr*, 276 NY 83, 89 [1937]). Upon voluntary surrender, a parent retains the obligation to provide financial support for a child until he or she is adopted or turns 21 (*see* Family Ct Act § 413). Although the Social Services Law carves out a limited exception from this support requirement for children born out of wedlock to unwed mothers (*see* Social Services Law § 398 [6] [f]; 18 NYCRR 422.4), this exception does not apply to Ms. Ward. As Jeffrey was not “begotten and born” to her, she does not qualify as the “mother of a child born” out of lawful matrimony (*see* Family Ct Act § 512). Like the Appellate Division, we acknowledge the apparent harsh result in this highly unusual case, but cannot conclude that the doctrine of estoppel is applicable against the State.

Chief Judge KAYE (concurring). While I agree with the Court regarding the inapplicability of both Social Services Law § 398 and the doctrine of estoppel, the sad facts of this case prompt me to write separately regarding the failure of the Greene County Department of Social Services (GCDSS) to comply with its regulatory mandate.

A few additional details regarding Jeffrey’s surrender bear mention. As noted in the Court’s decision, on August 6, 2003, Jeffrey was admitted to Heely House at Parsons, a private residential treatment facility, for psychological evaluation. The results of the Heely House evaluation, however, differed from his previous diagnosis, rendering them inconclusive for the purpose of obtaining necessary treatment. Jeffrey remained at Heely House throughout August. Ms. Ward occupied these weeks with trying to secure services in anticipation of Jeffrey’s return, but could not get private help and was unable to find him a position in a school, daycare center or group home.

On August 28, 2003, Ms. Ward met with the Director of Heely House, who told her that Jeffrey would be discharged on September 2, 2003. Ms. Ward requested, on the advice of Jeffrey’s therapist, that he stay for additional testing as without a clear diagnosis it would be difficult for anyone to identify appropriate resources. Her request was refused. The Director said that Jeffrey was no longer “in crisis”—although she admitted that Jeffrey had knocked over a computer, pulled the phone out

of the wall and punched a worker earlier in the day—and informed Ms. Ward that if she did not take Jeffrey home, the Director would have no recourse but to call Child Protective Services.¹ She advised her to call 911 if Jeffrey became aggressive.

On September 2, 2003, Ms. Ward went to GCDSS and asked for help. She was told that a meeting with concerned parties would be arranged, but that it would take some time. GCDSS advised that in the meantime she should pick up Jeffrey from Heely House. Ms. Ward feared for Jeffrey's safety and for her own—he had injured them both during bouts of uncontrollable behavior earlier that summer, and, admittedly, nothing had changed.

Ms. Ward called her attorney, who suggested a “temporary relinquishment” of parental rights. GCDSS refused to accept a temporary relinquishment, stating that she could either pick Jeffrey up or permanently relinquish her parental rights. Although at the close of court GCDSS informed Ms. Ward's attorney that the agency had a bed for Jeffrey at a residential facility, he remained at Heely House until the additional testing recommended by his therapist (and refused to Ms. Ward) had been completed for GCDSS by the end of October.

Not having been informed that she would be pursued by GCDSS to pay for Jeffrey's maintenance, in October 2003, Ms. Ward relinquished the \$1,000 per month New Jersey subsidy.² Eight months later she received a petition from the County seeking child support. Since that time, according to her brief, she has had her wages garnished, her bank account frozen and her vehicle impounded, and she had to sell her home.

Ms. Ward challenged the support order on the grounds that she qualified for the statutory exception, and that the GCDSS should be equitably estopped from enforcing the order. In regard to the latter, she claimed that the GCDSS had unclean hands due to its failure to provide her with support services, and that it was barred by the doctrine of laches because it failed to inform her of her financial obligation or to bring a petition for support

1. Ms. Ward was concerned about further intervention from CPS, which had been the recipient of a hotline call and opened a case against her, later deemed unfounded.

2. Ms. Ward testified that had she known of the support obligation, she would have attempted to have her New Jersey subsidy transferred to GCDSS. The record does not reflect that GCDSS made any effort to recover that subsidy, if indeed such relief is available.

until nine months after the surrender, at which time she had already accumulated considerable arrears.

Although Ms. Ward does not fall under the exception for children born out of wedlock, she does assume all of the rights and obligations of a biological parent in every other regard (*see Betz v Horr*, 276 NY 83, 89 [1937]). She is therefore entitled to receive the protections provided a parent surrendering a child to an authorized agency. Under New York law, a child who is not in foster care may be surrendered to an authorized agency by a written agreement “executed either before a judge of the family court or a surrogate” (18 NYCRR 421.6 [j]; *see* Social Services Law § 384 [3]). Although neither party referred the Court to the GCDSS’s regulatory responsibility in this regard, 18 NYCRR 421.6 provides that in accepting a surrender, an authorized agency must “advise applicants of the obligation of social service districts to evaluate the obligation of parents of a child born in wedlock, *to contribute to the support of the child as long as the child remains a public charge*” (18 NYCRR 421.6 [c] [emphasis added]).

GCDSS accepted Jeffrey’s surrender and he has remained in its care and custody. As an authorized agency or as the departmental overseer of Jeffrey’s placement with an authorized agency (*see Matter of Ruth “J” v Beaudoin*, 55 AD2d 52, 53 [2d Dept 1976] [“petitioner voluntarily signed a surrender instrument . . . to an authorized agency, the Rensselaer County Department of Social Services”]; *see also* Social Services Law § 371 [10] [a]; Domestic Relations Law § 109 [7]), GCDSS must, under the applicable regulations, inform applicants for surrender of the parental support obligation.³

The GCDSS also apparently failed to refer Ms. Ward to mandatory preventive services or to emergency mental health services available through the Office of Mental Hygiene (*see* Mental Hygiene Law § 9.39). In *Mark G. v Sabol* (93 NY2d 710, 719 [1999]), the Court recognized the Legislature’s intention to place “*increased emphasis on preventive services* designed to maintain family relationships” by creating financial incentives

3. There is another important regulatory requirement that the parties did not address. When a parent requests surrender of a child, a social services official “must determine, after appropriate consultation, if in such official’s judgment, without regard to the likelihood of placing the child in an adoptive home, whether the best interests of the child will be served by a surrender” (18 NYCRR 421.6 [j]). The record is devoid of any evidence of a best interests analysis conducted prior to Jeffrey’s surrender.

for social services districts, and by holding “districts accountable for meeting these standards” (*id.* at 720).⁴

In keeping with this stated goal, the regulations promulgated by the Department of Social Services provide for *mandatory preventive services* when “such services are essential to improve family relationships and prevent the placement of a child into foster care” (18 NYCRR 430.9 [c]). Preventive services are considered *essential* when:

“(a) the child has a diagnosed or diagnosable physical, mental or emotional condition which severely impairs the child’s ability to carry out daily, age-appropriate activities; or

“(b) the child’s behavior, although not dangerous, results in severe management problems in the home, the school or the community;

“(c) the child’s behavior presents a serious danger to other people or to the child himself” (18 NYCRR 430.9 [c] [5] [i]).

Preventive services include daycare services, specialized rehabilitation services (18 NYCRR 423.2 [b] [4]; [f]) and respite services for families that need provision of temporary care and supervision of children who are otherwise eligible for mandated services under 18 NYCRR 430.9 (*see* 18 NYCRR 423.2 [b] [19]; 435.3 [a]). The GCDSS apparently did not refer Ms. Ward to any of the mandatory preventive services for which Jeffrey was qualified.

In sum, I conclude on this limited record that GCDSS did not provide Ms. Ward with the notifications and access to support services she needed to make an informed decision. Although this omission was mentioned generally, Ms. Ward did not rely on any of the specific regulatory sections discussed above—so that the agency might have offered a response—nor did she challenge the surrender proceeding itself. We therefore cannot determine whether any such violations may have invalidated her relinquishment of parental rights to Jeffrey or entitled her to some other remedy. Moreover, we are unable to grant Ms.

4. Social Services Law § 131 (3) states that “(a)s far as possible families shall be kept together . . . and they shall be provided services to maintain and strengthen family life” (*see also* Social Services Law § 384-b [1] [a] [iii] [legislative finding that the State’s “first obligation is to help the family with services to prevent its break-up” prior to instituting commitment proceedings]; Social Services Law § 409 [preventive services intended to “avert[] an impairment or disruption of a family”]).

Ward the only remedy she does request—that the agency be estopped from enforcing its support order. The doctrine of estoppel against a governmental entity is limited to “all but the rarest cases” (*Matter of Parkview Assoc. v City of New York*, 71 NY2d 274, 282 [1988]), circumstances not present here.

This tragic situation should never recur.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge KAYE concurs in an opinion in which Judge CIPARICK also concurs.

Order affirmed, without costs, in a memorandum.

[870 NE2d 680, 839 NYS2d 441]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CYNTHIA LONG, Appellant.

Decided June 12, 2007

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 14, 2006. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Carol Berkman, J., at motions; Michael J. Obus, J., at renewal motion, jury trial and sentence), which had convicted defendant, upon a jury verdict, of criminal possession of stolen property in the fourth degree (six counts).

Defendant was charged with criminal possession of stolen property based upon the police stop of the automobile in which she was a passenger, after she and a companion left a store following their suspicious conduct in attempting to make a purchase with credit cards without producing identification.

People v Long, 36 AD3d 132, affirmed.

HEADNOTE

Crimes — Suppression Hearing — Summary Denial of Suppression Motion

In a prosecution for criminal possession of stolen property based upon the police stop of an automobile, after defendant passenger and a companion left a store following their suspicious conduct in attempting to make a purchase with credit cards without producing identification, Supreme Court properly denied defendant’s motion for a *Mapp/Dunaway* hearing. Defendant failed to raise a factual dispute as to reasonable suspicion for her detention and subsequent arrest. Defendant had ample access to relevant information regard-

ing the factual predicate for her arrest, including access to the People's "write-up" of her conduct which the court read to her and her counsel at arraignment. Defendant failed to specifically challenge the identified informant's basis of knowledge in her suppression motion.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Robert S. Dean* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (*Tracy L. Conn* and *Mark Dwyer* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Supreme Court properly denied defendant's motion for a *Mapp/Dunaway* hearing in light of defendant's failure to raise a factual dispute as to reasonable suspicion for her detention and subsequent arrest. "[T]he sufficiency of defendant's factual allegations should be evaluated by (1) the face of the pleadings, (2) assessed in conjunction with the context of the motion, and (3) defendant's access to information" (*People v Mendoza*, 82 NY2d 415, 426 [1993]; see also *People v Lopez*, 5 NY3d 753, 754 [2005]). Under the circumstances of this case, defendant had ample access to relevant information regarding the factual predicate for her arrest, including access to the People's "write-up" of her conduct which the court read to her and her counsel at arraignment. Defendant failed to specifically challenge the identified informant's basis of knowledge in her suppression motion (*cf. People v Bryant*, 8 NY3d 530, 534).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[870 NE2d 688, 839 NYS2d 448]

In the Matter of the Claim of GERALD VAN HORN, Respondent, v
COUNTY OF CAYUGA et al., Appellants. WORKERS' COMPENSA-
TION BOARD, Respondent.

Decided June 12, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third

Judicial Department, entered November 2, 2006. The Appellate Division affirmed a decision of the Workers' Compensation Board, which had directed claimant's schedule loss of use award to be paid in a lump sum.

Claimant sustained work-related injuries during the course of his employment as a county highway superintendent. Following a claim for workers' compensation benefits, the parties stipulated to a schedule loss of use award, and a Workers' Compensation Law Judge, as affirmed by the Board, directed a lump-sum payment.

Matter of Van Horn v County of Cayuga, 34 AD3d 901, reversed.

HEADNOTE

Workers' Compensation — Award — Schedule Loss of Use Award — Lump-Sum Payment Not Permitted

In a workers' compensation proceeding wherein the parties stipulated to a schedule loss of use award, the Appellate Division improperly affirmed a decision of the Workers' Compensation Board directing a lump-sum payment of the award. Under the decision in *Matter of LaCroix v Syracuse Exec. Air Serv., Inc.* (8 NY3d 348 [2007]), a schedule loss of use award must be paid over time and not in a lump-sum payment.

APPEARANCES OF COUNSEL

Susan B. Marris, Liverpool, *James S. Fiedler* and *Gregory J. Allen* for appellants.

Andrew Cuomo, Attorney General, Albany (*Patrick Barnett-Mulligan*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for Workers' Compensation Board, respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and case remitted to the Appellate Division, Third Department, with directions to remand to the Workers' Compensation Board for further proceedings consonant with this Court's decision in *Matter of LaCroix v Syracuse Exec. Air Serv., Inc.* (8 NY3d 348 [2007]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

ELIZABETH ALDEN, Appellant, v ONONDAGA COUNTY SHERIFF'S
DEPARTMENT, Respondent.

Submitted June 4, 2007; decided June 12, 2007

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

Judge PIGOTT taking no part.

MICHELE A. ANDREW, Individually and as Parent and Natural
Guardian of C.A., an Infant, Appellant, v SOO HURH, M.D.,
et al., Respondents, et al., Defendants.

Submitted April 30, 2007; decided June 12, 2007

Reported below, 34 AD3d 1331.

Motion for reargument of motion for leave to appeal denied
[see 8 NY3d 808].

In the Matter of ANONYMOUS, for Admission to Practice as an
Attorney and Counselor-at-Law, Appellant.

Submitted May 21, 2007; decided June 12, 2007

Motion for reargument denied [see 8 NY3d 937].

Chief Judge KAYE taking no part.

CAROL BRATEN, Respondent, v MILTON BRATEN, Appellant.

Submitted June 4, 2007; decided June 12, 2007

Reported below, 2007 NY Slip Op 65836(U), 61834(U).

Appeal, insofar as taken from the Appellate Division order that denied the motion to recall and vacate a prior order of that Court, or in the alternative, for leave to appeal to the Court of Appeals, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order that dismissed the appeal taken to that Court from the judgment of divorce, dismissed, without costs, by the Court of Appeals, sua

sponte, upon the ground that as to that order no substantial constitutional question is directly involved.

MICHAEL DIEDERICH, JR., et al., Appellants, v ROCKLAND COUNTY POLICE CHIEFS' ASSOCIATION, Defendant, and TOWN OF ORANGETOWN et al., Respondents.

Submitted April 9, 2007; decided June 12, 2007

Reported below, 33 AD3d 653.

Motion for reconsideration of this Court's February 22, 2007 dismissal order denied [*see* 8 NY3d 875]. Motion for leave to appeal denied.

JOHNNIES PELHAM ROAD SERVICE, INC., Respondent, v RICHARD S. THOMAS, Appellant.

Submitted April 30, 2007; decided June 12, 2007

Reported below, 38 AD3d 611.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DANIEL KWA et al., Appellants, v MARK ROBERTS et al., Respondents.

Submitted March 26, 2007; decided June 12, 2007

Reported below, 18 AD3d 444.

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

In the Matter of JAMES MELVIN LEE, Appellant, v JUDITH S. KAYE, as Judge of the Court of Appeals, et al., Respondents.

Submitted June 4, 2007; decided June 12, 2007

Reported below, 2007 NY Slip Op 65713(U).

Appeal, insofar as taken from that part of the Appellate Division order that dismissed the petition, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that as to that part of the order no substantial constitutional question is directly involved; appeal, insofar as taken from that part of the Appellate Division order that denied appellant's motion for poor person relief, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution.

Chief Judge KAYE taking no part.

In the Matter of MANUFACTURERS AND TRADERS TRUST COMPANY,
as Trustee of Securitization Series 1988-1 Agreement Dated
3-1-1998, Respondent, v ROBERT S. MYERS, Appellant, et al.,
Respondent.

Submitted April 30, 2007; decided June 12, 2007

Reported below, 38 AD3d 965.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in Town Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SANTOS
SUAREZ, Also Known as SANTO SUAREZ and as DOMINGO
SUAREZ, Appellant.

Submitted April 13, 2007; decided June 12, 2007

Reported below, 40 AD3d 143.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the order of the Appellate Division. The Appellate Division order does not violate the terms of this Court's remittitur [*see* 6 NY3d 202]. Motion for assignment of counsel dismissed as academic.

RB HEMPSTEAD, LLC, Appellant, v INCORPORATED VILLAGE OF
HEMPSTEAD et al., Respondents.

Submitted April 16, 2007; decided June 12, 2007

Reported below, 34 AD3d 552.

Motion, insofar as it seeks leave to appeal as against the

Incorporated Village of Hempstead Community Development Agency, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal as against the Incorporated Village of Hempstead, denied.

RICHARD STONE, Appellant, v NORMAN STONE et al., Respondents.

Submitted June 4, 2007; decided June 12, 2007

Reported below, 39 AD3d 534.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of INJAH E. TAFARI, Appellant, v ANTHONY F. ZON, as Superintendent of Wende Correctional Facility, et al., Respondents.

Submitted April 23, 2007; decided June 12, 2007

Reported below, 38 AD3d 1350.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

MARIE C. VAVAL, Appellant, v NYRAC, INC., et al., Respondents.

Submitted April 23, 2007; decided June 12, 2007

Reported below, 2007 NY Slip Op 63481(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LEROY WILLIAMS, Appellant, v GLENN S. GOORD,
as Commissioner of Social Services, et al., Respondents.

Submitted April 23, 2007; decided June 12, 2007

Reported below, 37 AD3d 948.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

ADMINISTRATIVE LAW.

JUDICIAL REVIEW.

1. Statutory Interpretation — Deference to Agency Interpretation Not Required.—In determining whether New York public employees have a statutory right under Civil Service Law § 202 to refuse to submit without union representation to an interview if the employee reasonably believes that the interview might result in disciplinary action, the Court of Appeals was not required to defer to the determination of the Public Employment Relations Board (PERB) inasmuch as the question was one of pure statutory construction dependent only on an accurate apprehension of legislative intent with little basis to rely on any special competence of PERB. *Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd.*, 8 NY3d 226.

RULE MAKING.

2. Proof of Identity Required for Issuance or Renewal of Driver's Licenses or Non-driver Identification Cards — Submission of Documents Issued by Department of Homeland Security.—In requiring applicants for the issuance or renewal of driver's licenses or non-driver identification cards who lacked valid Social Security numbers (SSNs) to prove that they were ineligible for SSNs by submitting immigration documents issued by the Department of Homeland Security (DHS), the Department of Motor Vehicles (DMV) did not violate procedural requirements applicable to agency rules and regulations. Although DMV's requirement of DHS documentation was not filed in the Department of State, was not published as a rule and was not preceded either by a notice of proposed rulemaking or by an opportunity for public comment (*see* NY Const, art IV, § 8; State Administrative Procedure Act § 202 [1]), the requirement was not thereby rendered invalid. The requirement of DHS documentation did not impose a new obligation on applicants. The obligation to supply "proof that [the applicant] is not eligible for a social security number" was imposed by a preexisting regulation, 15 NYCRR 3.9 (a). The policy challenged by plaintiffs was merely an interpretation or explanation of a preexisting rule and specified what proof was acceptable. *Cubas v Martinez*, 8 NY3d 611.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

ADOPTION.

WRONGFUL ADOPTION.

1. Plaintiffs stated a cause of action for wrongful adoption/fraud under common-law principles where they alleged that defendant adoption agency concealed and misrepresented their adopted child's biological history of mental illness/

ADOPTION—Cont'd

schizophrenia at the time of adoption, thereby hindering plaintiffs' doctors from making an accurate diagnosis, while plaintiffs' family unit gradually disintegrated. There were questions of fact as to whether defendant's admitted policy of withholding information from plaintiffs concerned material facts on which they relied and as a result of which they sustained monetary losses. *Ross v Louise Wise Servs., Inc.*, 8 NY3d 478.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Involuntary Transfer of Convicted Sex Offenders to State Psychiatric Facility at Conclusion of Prison Terms.—Although the State improperly used the involuntary civil commitment procedures in Mental Hygiene Law article 9 to transfer petitioners, convicted sex offenders nearing the end of their prison sentences, directly from prison to mental health facilities, petitioners' challenges to placement in a secure facility and to the adequacy of the procedures for transfer to nonsecure facilities under Mental Hygiene Law article 9 were academic. Petitioners were entitled to the procedural protections set forth in Mental Hygiene Law article 10, which was enacted after their transfers (see Mental Hygiene Law § 10.03 [g] [5]), and nonsecure treatment of detained sex offenders was no longer authorized under the relevant statutory provisions. Similarly, petitioners' separation of powers and State Administrative Procedure Act arguments would not be considered because the Legislature had newly articulated a state policy relating to the civil commitment of sex offenders and any future proceedings involving petitioners could be conducted pursuant to that legislative directive. *State of N.Y. ex rel. Harkavy v Consilvio*, 8 NY3d 645.

COURT OF APPEALS.

2. Scope of Review.—The Court of Appeals is precluded from reviewing affirmed findings of fact unless there is a question of legal sufficiency of the evidence (NY Const, art VI, § 3). Because the record in a matrimonial action was sufficient to support the affirmed facts and the courts below did not abuse their discretion in refusing to award plaintiff attorneys' fees, the Court of Appeals was precluded from addressing her allegations and arguments that defendant and his trial attorney made false representations to Supreme Court and that the fact findings of Supreme Court and the Appellate Division were erroneous. *Keane v Keane*, 8 NY3d 115.

3. In a proceeding pursuant to Domestic Relations Law § 72 (1) in which petitioner sought reasonable visitation with her grandchild, findings of fact made by the trial court which were expressly affirmed by the Appellate Division and had the requisite evidentiary support were conclusive and binding on the Court of Appeals. *Matter of E.S. v P.D.*, 8 NY3d 150.

4. In a combined action for declaratory judgment and proceeding pursuant to CPLR article 78 commenced by petitioners, recipients of collect calls from respondent Department of Correctional Services (DOCS) inmates, seeking to enjoin DOCS from collecting a 57.5% commission on its 2001 contract with respondent telephone corporation, which provided the subject telephone system and service, the Court of Appeals, after finding petitioners' constitutional claims timely, remitted the matter to Supreme Court for determination as to whether those claims stated a cause of ac-

APPEAL—Cont'd

tion. Although the Court of Appeals may consider alternative legal grounds raised at but not addressed by the Appellate Division, the preferable, more prudent corrective action is remittal. *Walton v New York State Dept. of Correctional Servs.*, 8 NY3d 186.

5. In a purported class action in which it was held that plaintiff's Donnelly Act (General Business Law § 340 *et seq.*) claim was barred by CPLR 901 (b), which precludes a class action to collect a penalty unless specifically authorized by statute, the issue of whether plaintiff could maintain a class action under the Donnelly Act by forgoing treble damages in favor of actual damages was not properly before the Court of Appeals, because plaintiff had consistently sought treble damages throughout the litigation and had not previously attempted to waive them to pursue only actual damages. *Sperry v Crompton Corp.*, 8 NY3d 204.

6. Law of the Case.—Inasmuch as defendant objected to the sufficiency of plaintiff's proof throughout the trial but never objected to the jury instructions or the special verdict sheet, defendant's argument on appeal that the evidence was legally insufficient to support the verdict was required to be examined in light of the language of the jury instructions and verdict sheet, which became the law of the case. The issue of whether these instructions were correct was not before the Court of Appeals. Under the law of the case, the Court of Appeals was required to determine if the Appellate Division erred in holding that the trial court should have granted defendant's motion for a directed verdict based on insufficient evidence. *Bradley v Earl B. Feiden, Inc.*, 8 NY3d 265.

ARBITRATION.

See, also, INSURANCE.

MATTERS ARBITRABLE.

1. Termination of Provisional Employees.—Claims by respondent union that certain provisional employees who had been terminated were "tenured" and entitled to be rehired to another position under the tenure provisions of the parties' collective bargaining agreement (CBA) were not arbitrable. Granting the relief sought on behalf of the provisional employees under the so-called "tenure" provisions of the CBA would violate the Civil Service Law and public policy. Civil Service Law § 65 prohibits any right of tenure to provisional employees. Although the CBA provides that a provisional appointee is considered a tenured employee after one year of service, the Civil Service Law clearly sets a nine-month time limitation on provisional appointments. The provisions under the CBA were therefore unenforceable as a matter of law. Further, as a matter of public policy, public employers must strictly comply with the time limitations imposed under the Civil Service Law in order to ensure adherence to the constitutional preference for merit selection. *Matter of City of Long Beach v Civil Serv. Empls. Assn., Inc.—Long Beach Unit*, 8 NY3d 465.

2. Displacement Rights Following Layoff of Public Employees.—No clear public policy precluded arbitration of respondent union's grievance concerning rights of displacement in connection with the layoff of certain public employees. A public employer can agree to submit disputes to arbitration in the absence of plain and clear prohibitions in statutory or controlling decisional law, or restrictive public policy. No explicit language in Civil Service Law § 80 (4) can be read to prohibit, in an absolute sense, a public employer from agreeing to permit employees to "bump" less senior employees in another department or division within the same layoff unit. Nor is there any implicit public policy reason that precludes such an agreement. Although an arbitral award that would permit interdepartmental bumping into a different layoff unit would run afoul of the Civil Service Law, such an award is not inevitable. Thus, it was sufficient that an arbitrator, fashioning an award under the parties' collective bargaining agreement, could comply with the statute. *Matter of County of Chautauqua v Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, County of Chautauqua Unit 6300, Chautauqua County Local 807*, 8 NY3d 513.

3. Layoff of Public Employees.—Public policy precluded arbitration of respondent union's grievance concerning the layoff of certain public employees. A public employer can agree to submit disputes to arbitration in the absence of plain and

ARBITRATION—Cont'd

clear prohibitions in statutory or controlling decisional law, or restrictive public policy. Here, the parties' collective bargaining agreement (CBA) was in irreconcilable conflict with public policy as embodied in Civil Service Law § 80. Under the CBA, seniority controlled the abolition of positions, but under section 80 (1), seniority controls only after the employer decides which positions will be affected. A public employer has the nondelegable discretion to determine what its staffing and budgetary needs are in order to effectively deliver uninterrupted services to the public. In the absence of bad faith, fraud or collusion, this discretion cannot be altered or modified by agreement or otherwise. *Matter of County of Chautauqua v Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, County of Chautauqua Unit 6300, Chautauqua County Local 807*, 8 NY3d 513.

4. Payments Owed by Tobacco Companies under Tobacco Litigation Settlement.—Pursuant to the tobacco litigation Master Settlement Agreement (MSA), in which the tobacco manufacturers agreed to make annual payments to the Settling States as reimbursement for health-care costs associated with tobacco use, arbitration of a dispute as to whether the Independent Auditor designated in the MSA properly calculated a payment owed by the movants, which joined in the settlement as Subsequent Participating Manufacturers (SPMs), was required. The parties to the MSA agreed that "[a]ny dispute, controversy or claim arising out of or relating to calculations performed by, or any determination made by, the Independent Auditor" would be subject to arbitration. Thus, all claims that had a connection with the Independent Auditor's calculations and determinations were arbitrable. Accordingly, the questions of whether New York enacted and diligently enforced a Qualifying Statute requiring Non-Participating Manufacturers to make annual payments toward the costs of treating smoking-related illnesses equivalent to those made by Participating Manufacturers (PMs), and whether it was correctly spared the Non-Participating Manufacturer adjustment reducing PM payments, were arbitrable. *State of New York v Philip Morris Inc.*, 8 NY3d 574.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTORNEY AND CLIENT.**DISQUALIFICATION.**

1. Ex Parte Interview of Opposing Party's Former Employee.—In an action for breach of contract and breach of fiduciary duty, arising out of a business relationship between two corporations, defense counsel's ex parte interview with plaintiff's former employee did not provide a basis for counsel's disqualification. No disciplinary rule prohibits such conduct. At the time of the interview, the former employee no longer had the authority to bind plaintiff in the litigation, was no longer charged with carrying out the advice of plaintiff's counsel and did not have a stake in the representation. The fact that the former employee was at one time privy to plaintiff's privileged and confidential information did not warrant defense counsel's disqualification. Defense counsel properly advised the former employee of their representation and interest in the litigation, and directed him to avoid disclosing privileged or confidential information and not to answer any questions that would lead to the disclosure of such information. The former employee stated that he understood the admonitions and, on this record, no such information was disclosed. *Muriel Siebert & Co., Inc. v Intuit Inc.*, 8 NY3d 506.

MALPRACTICE.

2. Defendant law firm, which successfully litigated an Internal Revenue Service tax dispute, did not commit legal malpractice when it failed to question whether an agreement entered into between plaintiff client and a related company may have relieved plaintiff of the tax liability in dispute. Inasmuch as defendant was retained to litigate the amount of tax liability, the issue of whether plaintiff was primarily or secondarily liable for the tax liability was outside the scope of defendant's representation. Plaintiff's speculative assertion that it was not primarily liable for the

ATTORNEY AND CLIENT—Cont'd

subject withholding taxes could not support a malpractice claim. Further, plaintiff failed to produce any evidence that defendant's lack of advice was the "but for" cause of a loss reserve remaining on plaintiff's financial statements, which allegedly caused it to lose business opportunities and incur monetary damages. *AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS.**

BILLS, NOTES AND CHECKS.

See, also, **BANKS AND BANKING.**

PROMISSORY NOTE.

1. Subordinated Promissory Notes as "Securities" under UCC Article 8.—The subordinated promissory notes at issue constituted securities within the meaning of UCC 8-102 (a) (15). Pursuant to the statute, a security is an obligation of the issuer that is transferable, divisible and dealt in or traded on securities exchanges. The notes satisfied the transferability test as obligations "represented by a security certificate in . . . registered form" (UCC 8-102 [a] [15] [i]) inasmuch as they were papers that definitively embodied and evidenced the underlying intangible obligation of the issuer to defendant shareholders (UCC 8-102 [a] [4], [16]). They were in "registered form" (UCC 8-102 [a] [13]) since each of the notes specified one of the four defendant shareholders as the "person entitled to the security" (UCC 8-102 [a] [13] [i]), and the notes could have been registered on transfer books maintained by the issuer (UCC 8-102 [a] [13] [ii]). The notes, which were divided into two groups of four notes each and were identified as a class of obligations, satisfied the divisibility test in UCC 8-102 (a) (15) (ii), which requires that there be at least two instruments in a specified class or series, or that the single instrument be divisible into at least one additional instrument. Further, the notes fulfilled the functional test in UCC 8-102 (a) (15) (iii) (A) because the obligations "[were], or [were] of the type, dealt in or traded on securities exchanges or securities markets." Finally, the determination that these subordinated promissory notes were article 8 securities was consistent with existing case law. *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

SPECIAL OR RESTRICTIVE INDORSEMENT.

2. Compliance with Restrictive Indorsement — Reasonable Commercial Standards.—A depository bank's compliance with a restrictive indorsement does not necessarily establish conformity with reasonable commercial standards as a matter of law under Uniform Commercial Code § 3-419 (3). Under section 3-419 (3), the bank's liability will be limited to "the amount of any proceeds remaining in [its] hands," as long as the bank complies with any restrictive indorsements and acts in good faith and in accordance with reasonable commercial standards. There are situations where following the indorsements would not be reasonable. Thus, defendant depository bank's liability was not limited under the statute where defendant deposited checks payable to the corporate plaintiff into the account of another business pursuant to restrictive indorsements on the checks, but expert testimony concerning aspects of the transactions at issue that should have raised red flags for the bank and testimony indicating that the bank did not comply with its own procedures for handling business checks established that the bank did not act in conformity with reasonable commercial standards. *B.D.G.S., Inc. v Balio*, 8 NY3d 106.

3. Compliance with Restrictive Indorsement — When Limitation of Bank's Liability Unavailable.—Where defendant depository bank deposited checks payable to the corporate plaintiff into the account of another business pursuant to restrictive indorsements on the checks, but in doing so did not act in conformity with reasonable commercial standards under Uniform Commercial Code § 3-419 (3), defendant was not immunized from liability on the ground that it no longer retained the proceeds. Under section 3-419 (3), the bank's liability will be limited to "the amount

BILLS, NOTES AND CHECKS—Cont'd

of any proceeds remaining in [its] hands," as long as the bank complies with any restrictive indorsements and acts in good faith and in accordance with reasonable commercial standards. Since defendant did not satisfy all of the statutory criteria, having failed to act in conformity with reasonable commercial standards, the statutory defense was unavailable and the bank's liability was not limited to the amount of the proceeds remaining in its possession. Rather, its liability was determined by the common-law action for money had and received as it existed prior to the enactment of the UCC and, thus, the bank was liable for the entire amount of the checks. *B.D.G.S., Inc. v Balio*, 8 NY3d 106.

CARRIERS.

DUTY OF CARE OWED TO PASSENGER.

1. A common carrier has a duty to exercise reasonable care to see that a stairwell or approach primarily used as a means of access to and egress from the carrier remains in a safe condition or, where appropriate, to take such precautions or give such warnings as would protect those using such area against unforeseen danger. Accordingly, defendants New York City Transit Authority and Metropolitan Transportation Authority were liable for injuries sustained by plaintiff, who fell while descending a stairway to the New York City subway when her foot caught on a metal strip protruding from one of the steps. Although defendants did not own the stairway, where the evidence at trial was sufficient to show that the stairway was used primarily for access to and from the subway, they had a duty to maintain it or to warn patrons of any dangerous condition, and such duty could not be delegated to another. *Bingham v New York City Tr. Auth.*, 8 NY3d 176.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

DISCIPLINARY PUNISHMENT.

1. Termination of Employment.—In a CPLR article 78 proceeding to review a determination of respondent Commissioner of the Westchester County Department of Parks, Recreation, and Conservation that adopted the Hearing Officer's recommendation finding petitioner guilty of misconduct and terminating his employment, the Appellate Division lacked discretionary authority or interest of justice jurisdiction to review and annul the penalty. Petitioner's conduct jeopardized the health and safety of his coworkers and of public patrons. Accordingly, it cannot be concluded that the penalty of dismissal shocks the judicial conscience as a matter of law. Moreover, petitioner failed to show that the Hearing Officer's recommendation was the result of any bias. *Matter of Rutkunas v Stout*, 8 NY3d 897.

POLICE.

2. General Municipal Law § 207-c Benefits — Hearing — Due Process.—Petitioner police officer, who was certified disabled following a line-of-duty injury but was subsequently directed to return to light duty upon recommendation of his employer's medical examiner, was afforded due process when a hearing officer was

CIVIL SERVICE—Cont'd

appointed to determine petitioner's continued entitlement to disability benefits pursuant to General Municipal Law § 207-c. Inasmuch as petitioner was not subject to discipline or threat of termination for contesting the medical examiner's light-duty determination, Civil Service Law § 75 and section 7 of the Westchester County Police Act (L 1936, ch 104, as amended by L 1941, ch 812, § 1) were not applicable. Petitioner's property interest in the continued receipt of disability benefits pursuant to General Municipal Law § 207-c was adequately protected by his employer's actions in fashioning a hearing remedy so long as it afforded due process. *Matter of Park v Kapica*, 8 NY3d 302.

3. General Municipal Law § 207-c Benefits — Recoupment Following Direction to Return to Light Duty Not Permitted.—Petitioner police officer's municipal employer was not entitled to recoup disability payments made to petitioner pursuant to General Municipal Law § 207-c between the date he was initially directed by his supervisor, upon recommendation of the municipality's medical examiner, to begin his light-duty assignment following a line-of-duty injury, and the date he was directed to begin his light-duty assignment after the hearing officer's affirmance of the medical examiner's findings. A municipality may discontinue disability payments once its medical examiner finds that the officer can perform a light-duty assignment and the officer "refuse[s] to perform" that duty (General Municipal Law § 207-c [3]). However, a municipality is not permitted to "recoup" section 207-c payments where, as here, the officer has availed himself of due process protections by challenging the medical examiner's determination. Such a challenge cannot be equated with a refusal to return to duty. *Matter of Park v Kapica*, 8 NY3d 302.

PUBLIC EMPLOYEES' FAIR EMPLOYMENT ACT.

4. Right of Public Sector Employees to Union Representation during Investigatory Interview.—Although an employee of a firm subject to the National Labor Relations Act (NLRA) has the right, pursuant to *NLRB v J. Weingarten, Inc.* (420 US 251 [1975]), to have a union representative present at an investigatory interview if the employee reasonably believes that the interview might result in disciplinary action, the Taylor Law (Civil Service Law art 14) does not give such a *Weingarten* right to New York public employees. The source of the *Weingarten* right is section 7 of the NLRA (29 USC § 157), which grants employees the right to "engage in concerted activities for . . . mutual aid or protection." Such "mutual aid or protection" language is absent from Civil Service Law § 202. Further, the right to union representation at disciplinary interviews is not inherent in section 202's provision for "the right to . . . participate in" labor unions. Finally, the text and legislative history of Civil Service Law § 75 (2), as amended in 1993, strongly support the conclusion that the Taylor Law does not confer a *Weingarten* right. *Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd.*, 8 NY3d 226.

TERMINATION OF EMPLOYMENT.

5. Use of Employment Status to Secure Benefits — Receipt of Financial Assistance from Red Cross.—In a CPLR article 78 proceeding, the determination of respondent Port Authority of New York and New Jersey terminating petitioner's employment was supported by substantial evidence. Record evidence supported the finding that petitioner misled the Red Cross concerning his employment status and obtained financial assistance under false pretenses. Moreover, in light of petitioner's misconduct, it could not be concluded that the penalty of dismissal imposed shocked the judicial conscience. *Matter of Mapp v Burnham*, 8 NY3d 999.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONSTITUTIONAL LAW.**DUE PROCESS OF LAW.**

1. Grant of Relief Not Requested — Attorney's Fees.—In a legal malpractice action in which it was determined that no cause of action had been stated, the award of a money judgment to defendants for outstanding legal fees did not violate

CONSTITUTIONAL LAW—Cont'd

plaintiff's procedural due process rights to notice and an opportunity to be heard, despite the fact that no proceeding for the recovery of a money judgment had been commenced and no counterclaim had been interposed. A party is required to bring all of its claims arising out of a transaction in a single complaint. Plaintiff, in its amended complaint, identified the amount of defendants' outstanding fee and, thus, was on notice of its exact amount. Plaintiff failed to challenge the amount of the legal fees in its complaint or at any time throughout the proceedings that followed, and also failed to challenge the procedure leading to entry of judgment against it. Under the circumstances, the award of a money judgment to defendant for the outstanding legal fees was proper. *AmBase Corp. v Davis Polk & Wardwell*, 8 NY3d 428.

EQUAL PROTECTION OF LAWS.

2. In requiring applicants for the issuance or renewal of driver's licenses or non-driver identification cards who lacked valid Social Security numbers (SSNs) to prove that they were ineligible for SSNs by submitting immigration documents issued by the Department of Homeland Security (DHS), there was no violation of equal protection. Applicants are required to submit their SSNs or provide proof that they are not eligible for SSNs (*see* Vehicle and Traffic Law § 502 [1], [6]; § 490 [3] [a] [i]; § 508 [2]; 15 NYCRR 3.9 [a]). As proof of ineligibility for an SSN, an applicant is required to submit an L676 letter from the Social Security Administration stating that the applicant's DHS documents demonstrated ineligibility for an SSN. No suspect class is created by requiring submission of an L676 letter accompanied by the underlying DHS documents. Nor is there any infringement of a fundamental right. *Cubas v Martinez*, 8 NY3d 611.

PRIVILEGE AGAINST SELF-INCRIMINATION.

3. Applicability of Privilege to Surrender of Unlicensed Handgun in Compliance with Order of Protection.—In complying with an order of protection directing him to turn over his firearms to police, defendant's surrender of an unlicensed handgun was privileged under the Fifth Amendment right against self-incrimination. Suppression of the handgun in the resulting weapon possession prosecution was warranted, and in the absence of evidence that law enforcement authorities would have learned of defendant's possession of the handgun through independent means, or that they could have connected defendant to the handgun with proof unrelated to the act of production, dismissal of the accusatory instrument was mandated. The Fifth Amendment protects an accused from being compelled to testify against himself or herself, or otherwise provide the state with evidence of a testimonial or communicative nature. The order of protection requiring defendant to surrender his weapons satisfied the element of state compulsion. Defendant's surrender of the gun was testimonial because it revealed his subjective thought processes, and it was also sufficiently incriminating to give rise to Fifth Amendment protection. *People v Havrish*, 8 NY3d 389.

VALIDITY OF STATUTE.

4. Ordinance Addressing Aggressive Panhandling — Challenge to Ordinance as Overbroad.—Assuming that panhandling is speech or expressive conduct safeguarded by the First Amendment, entitled to protection tantamount to that afforded eleemosynary appeals by organized charities, defendant, who was charged with violating a municipal ordinance designed to address aggressive panhandling by prohibiting the solicitation of any occupant of a motor vehicle that is on a street or other public place, was entitled to challenge the ordinance as overbroad on behalf of others whose constitutionally-protected expression was potentially "chilled" by the provision's very existence, even though defendant's own conduct may have been unshielded by the First Amendment. *People v Barton*, 8 NY3d 70.

5. Ordinance Addressing Aggressive Panhandling.—A municipal ordinance designed to address aggressive panhandling by prohibiting the solicitation of any occupant of a motor vehicle that is on a street or other public place is not unconstitutionally overbroad. Content-neutral regulations of time, place and manner of expression are enforceable if they are narrowly tailored to serve a significant

CONSTITUTIONAL LAW—Cont'd

government interest and leave open ample alternative channels of communication. The governmental interests served by the ordinance—to eliminate a source of distraction for motorists and thus promote the free and safe flow of traffic—are significant. Further, the ordinance is not a blanket ban and leaves open ample alternative avenues to communicate any message of indigency or need through begging. Because the ordinance focuses on specific conduct that the municipality has an interest in controlling in order to further a significant content-neutral government interest, it is narrowly tailored. *People v Barton*, 8 NY3d 70.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

CONSTRUCTION.

1. Syndicated Loan Agreement — Individual Lender's Action Precluded in Event of Borrower's Default.—One lender in a syndicated loan arrangement did not have standing to sue for breach of contract, contrary to the will of the other lenders to forbear from taking action. The specific, unambiguous language of several provisions of the credit agreement, the primary loan document governing the loan, and keep-well agreement, an ancillary instrument evidencing the loan, read in the context of the agreements as a whole, indicated that the lenders intended to act collectively in the event of the borrower's default and to preclude an individual lender from disrupting the scheme of the agreements at issue. The language of the agreements reflected that the lenders contemplated unified action by the administrative agent. Had the parties intended that an individual have a right to proceed independently, the credit agreement or keep-well agreement should have expressly so provided. The requirement of a supermajority vote directing the administrative agent to act was meant to protect all lenders in the consortium from a disaffected lender seeking financial benefit perhaps at the expense of other debtholders. *Beal Sav. Bank v Sommer*, 8 NY3d 318.

CORPORATIONS.**CAPACITY TO SUE.**

1. Third-Party Claim for Indemnity or Contribution by Dissolved Corporation.—A dissolved corporation may, as part of winding up its affairs, bring a third-party claim for indemnity or contribution in an action arising out of predissolution events. Accordingly, in an action based upon decedent's exposure in the course of his employment to defendant distributor's asbestos-containing products, defendant, which had been dissolved for nonpayment of taxes prior to decedent's diagnosis, had capacity to bring a third-party action against decedent's employer for contribution or indemnification. Defendant's third-party claim was clearly part of "winding up its affairs." Assertion of a third-party claim for contribution or indemnification is a normal part of defending an asbestos claim, and is explicitly authorized by Business Corporation Law § 1005 (a) (1) and § 1006 (a). Although defendant had no more than a contingent claim against decedent's employer at the time of defendant's dissolution, Business Corporation Law § 1006 (b) states that dissolution "shall not affect any remedy . . . for any right or claim existing . . . before such dissolution." The statute does not state, nor should it be read to imply, that no claim coming into existence after dissolution may ever be pursued. *Tedesco v A.P. Green Indus., Inc.*, 8 NY3d 243.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

CRIMES—Cont'd**APPEAL.**

1. Preservation of Issue for Review — Failure to Fulfill Core Responsibility — Notice to Counsel of Substantive Inquiry from Jury.—In each of two separate criminal prosecutions wherein defense counsel failed to object to the court's handling of notes from the jury, the trial court's failure to fulfill a core responsibility, including the failure to disclose the jury note or significant paraphrase thereof, was not subject to rules of preservation. *People v Kisoan*, 8 NY3d 129.

2. Waiver of Right to Appeal — Defense of Statute of Limitations.—Defendant waived the defense of the statute of limitations (CPL 30.10) when he entered his guilty plea. Although a guilty plea does not extinguish every claim on appeal, only a limited number of claims survive a valid waiver: jurisdictional matters or rights of a constitutional dimension that go to the very heart of the process. The statute of limitations under CPL 30.10 is neither a jurisdictional matter nor a right of constitutional dimension that survives a guilty plea. The right to assert the defense can be waived, and defendant did so by pleading guilty. *People v Parilla*, 8 NY3d 654.

3. Waiver of Right to Appeal — Defense of Statute of Limitations.—Defendant, who waived the defense of the statute of limitations (CPL 30.10) when he entered his guilty plea, could not avoid the consequences of the plea by claiming on appeal that he was denied effective assistance of counsel when his attorney failed to file a motion to dismiss the indictment on statute of limitations grounds. Under the circumstances, were defendant's statute of limitations claim to be considered on the merits, the very argument that defendant waived when he pleaded guilty and waived his right to appeal would be reviewed. In any event, because Supreme Court indicated that it would deny defendant's CPL 30.10 motion, it was understandable that defense counsel would not make the motion. Moreover, this was not a case where the alleged ineffectiveness of counsel went to the voluntariness of defendant's plea and waiver of appeal. *People v Parilla*, 8 NY3d 654.

4. Preservation of Issue for Review — Testimony of Non-English-Speaking Witness.—In a burglary prosecution wherein the trial court required defendant's court-appointed interpreter to stand at the back of the courtroom and interpret for the entire court, rather than solely for defendant, during the trial testimony of a non-English-speaking witness, the constitutional issues defendant raised, including the violation of his right to counsel, his right to be present and his right to participate in his own defense, were not presented to the trial court and thus were not preserved for review in the Court of Appeals. Defendant's remaining contentions regarding alleged inaccurate translation of the complainant's testimony and faulty instructions to the grand jury were without merit. *People v Melendez*, 8 NY3d 886.

5. Preservation of Issue for Review.—In a criminal prosecution for petit larceny, defendant failed to preserve for review in the Court of Appeals his argument that he did not receive a hearing in accordance with due process of law. The error, if any, did not constitute a mode of proceedings error. *People v Miller*, 8 NY3d 937.

6. Preservation of Issue for Review.—Defendant failed to preserve for appellate review his contention that Supreme Court abused its discretion as a matter of law in refusing to admit into evidence police interview videotapes, in which the accomplices to a robbery incriminated themselves but exculpated defendant of involvement. At trial, the accomplices testified that defendant planned the robbery, and defense counsel used the interview transcripts to impeach them about the prior inconsistent statements. Defendant's assertion on appeal that preclusion of the tapes themselves was erroneous because the jury could not reliably gauge the credibility of the witnesses without viewing their demeanor and hearing their voices during the police interviews was different than the argument made at trial that the videotapes, rather than the transcripts, were needed to prove the content of the prior inconsistent statements, and, at that time, defendant failed to explain how the videotapes would have conveyed information beyond that provided by the verbatim transcripts. *People v Person*, 8 NY3d 973.

ARGUMENT AND CONDUCT OF COUNSEL.

7. In a murder prosecution, defendant was not deprived of his right to a fair trial due to the prosecutor's alleged denigration of witnesses, disparagement of defendant's alibi and misrepresentations to the jurors. Defendant failed to preserve

CRIMES—Cont'd

his objection to the vast majority of these alleged instances of misconduct. Those objections defense counsel made were largely sustained, with no request for further relief or for a mistrial. Further, the court several times on its own advised the jury that lawyers' remarks were "not evidence." *People v Williams*, 8 NY3d 854.

ARREST.

8. Warrantless Arrest of Parolee by Parole Officer Not Authorized.—The accusatory instrument charging defendant parolee with resisting arrest should have been dismissed because defendant's arrest without a warrant by a parole officer during an unannounced home visit was unauthorized. Executive Law § 259-i (3) (a) (i) and 9 NYCRR 8004.2, which govern violation of parole, do not vest parole officers with the power to make warrantless arrests for parole violations even if committed in their presence. A member of the Board of Parole or a designated officer of the Division of Parole must issue a warrant. Furthermore, although a parole officer is a peace officer (CPL 2.10 [23]), and a peace officer "may arrest a person for . . . [a]ny offense when he has reasonable cause to believe that such person has committed such offense in his presence" (CPL 140.25 [1] [a]), defendant was arrested for failing to follow the parole officer's order to submit to a urine test, which was not an offense within the meaning of section 10.00 (1) of the Penal Law. *People v Bratton*, 8 NY3d 637.

CONSPIRACY.

9. Sufficiency of Evidence.—Evidence that defendant had entered into an agreement with an informant to kill the intended victim and that numerous overt acts had been taken in furtherance of the agreement was legally sufficient to support defendant's conviction of conspiracy in the second degree, notwithstanding that defendant wanted the killing postponed until he was released from jail and was able to secure the money to pay for the hit. These requirements were not "conditions" negating the existence of an agreement to kill the intended victim—they were terms of the agreement. After the parties agreed upon a price, they worked out the details of the conspiracy, defendant dispatched the undercover officer posing as a hit man to locate the intended victim, and defendant coordinated with his associates outside of prison to assist in locating and identifying the intended victim. The evidence was therefore sufficient to support the conclusion by the finder of fact that an agreement had been made. *People v Washington*, 8 NY3d 565.

DISSEMINATING INDECENT MATERIAL TO MINORS.

10. Defendant was properly convicted of attempted dissemination of indecent material to minors in the first degree (Penal Law § 110.00, former § 235.22) even though his communications contained no nude or sexual images. Defendant's Internet communications with an undercover police officer whom he believed to be a minor "depict[ed]" sexual conduct within the meaning of former Penal Law § 235.22 (1). The ordinary meaning of the word "depict" is represent in a picture or represent or portray in words. The Legislature did not intend to limit the scope of former Penal Law § 235.22 to sexual predators who use images, rather than words, to lure minors. Rather, the Legislature intended to criminalize the activities of adults who engage minors in sexually infused communication. The statute has been correctly construed to criminalize the use of any "sexually explicit communications," and is not void for vagueness. *People v Kozlow*, 8 NY3d 554.

DOUBLE JEOPARDY.

11. Subsequent state-court prosecution of petitioners for murder in the second degree was not barred by the statutory prohibition against double jeopardy contained in CPL 40.20 (1), which provides that a person may not be twice prosecuted for the same offense, where petitioners' federal conviction of murder in aid of racketeering in violation of 18 USC § 1959 (a) had been reversed on the ground that an element of that crime had not been established. Petitioners could not rely upon CPL 40.20 (2), which provides that a person may not be separately prosecuted for two offenses based upon the same act or criminal transaction, due to applicability of the exception contained in CPL 40.20 (2) (f). The federal prosecution was terminated

CRIMES—Cont'd

due to the insufficiency of evidence to establish the “aid of racketeering” element of the offense, which was not an element of the crime for which petitioners were being prosecuted in New York. Petitioners’ federal prosecution and the state murder prosecution were not “for the same offense” within the meaning of CPL 40.20 (1). CPL 40.20 (1), when read in accord with the narrow definition of the term “offense” contained in CPL 40.10 (1), prohibits the prosecution of the same person twice under the same statute for the same act. CPL 40.20 (1) does not incorporate the constitutional definition of “same offense,” that each statutory provision requires proof of a fact which the other does not, and petitioners failed to establish that it does not incorporate the “dual sovereignty” doctrine. To the extent that New York’s statutory protections against double jeopardy go beyond those afforded by the State or Federal Constitution (NY Const, art I, § 6; US Const 5th Amend), they are to be found in CPL 40.20 (2). CPL 40.20 (1) provides, at most, no more double jeopardy protection than the Constitutions do. *Matter of Polito v Walsh*, 8 NY3d 683.

ESCAPE.

12. Defendant, who had been transported to a hospital for treatment following his arrest and ran down a hallway after freeing himself from handcuffs in the emergency room but was recaptured before leaving the hospital by the officer who had been guarding him, was properly convicted of escape in the second degree under Penal Law § 205.10 (2). Section 205.10 (2) provides that a person is guilty of escape in the second degree when, having been arrested for, charged with or convicted of a class C, class D or class E felony, he escapes from custody. “Custody” is defined as “restraint by a public servant” (Penal Law § 205.00 [2]). Once it was shown by the People that defendant broke free or got away from the restraint or control of the officer, as defendant did here by physically removing restraints to free himself from the controls imposed and running away, sufficient evidence existed to support the crime of escape. *People v Antwine*, 8 NY3d 671.

IDENTIFICATION OF DEFENDANT.

13. Expert Testimony on Reliability of Eyewitness Identifications.—In a case that turned solely on the accuracy of eyewitness identifications, with little or no corroborating evidence connecting the defendant to the crime at issue, it was an abuse of discretion for the trial court to exclude expert testimony on the reliability of eyewitness identifications where that testimony was relevant to the witness’s identification of defendant, based on principles that are generally accepted within the relevant scientific community, proffered by a qualified expert and on a topic beyond the ken of the average juror. Defendant’s expert offered testimony at the *Frye* hearing that four factors which may influence the reliability of eyewitness identifications are generally accepted in the scientific community. Testimony as to three of these factors—correlation between confidence and accuracy of identification, the effect of postevent information on accuracy of identification and confidence malleability—should not have been precluded inasmuch as the defense expert’s testimony confirmed that the principles upon which the expert based his conclusions were generally accepted by social scientists and psychologists working in the field. Testimony as to the fourth factor (the effect of weapon focus) was properly excluded because there was insufficient evidence to confirm that the principles expounded by defendant’s expert witness were generally accepted by the relevant scientific community. *People v LeGrand*, 8 NY3d 449.

14. Adequate Notice of Identification Evidence.—In a robbery prosecution wherein the victim first identified defendant at the police station in a photographic array, and one week later the victim saw defendant on the street, and pointed defendant out to the police who immediately made an arrest, defendant’s motion to preclude the in- and out-of-court identifications was properly denied. The People’s CPL 710.30 (1) (b) notice, which included the street identification but omitted the photographic identification, was adequate. CPL 710.30 (1) (b) mandates preclusion of evidence in the absence of timely notice specifying the pretrial identification evidence “intended to be offered” at trial. Inasmuch as evidence of a pretrial photographic identification is not admissible in the prosecution’s case-in-chief, the People could not intend to offer the identification at trial and did not need to provide notice of it. *People v Grajales*, 8 NY3d 861.

CRIMES—Cont'd**INFORMATION.**

15. Sufficiency of Notice of Nature of Accusation.—In a prosecution arising from the alleged forcible touching of the complainant, the People failed to present defendant with sufficient notice of the nature of the accusation by delineating in the information a seven-month time period during which the alleged criminal act occurred. The determination of whether sufficient specificity to adequately prepare a defense has been provided to a defendant by the accusatory instrument and the bill of particulars must be made on an ad hoc basis by considering all relevant circumstances. Here, the complainant was 16 or 17 years old at the time of the forcible touching at issue, and, by all accounts, intelligent. Exact dates for incidents that occurred years before were provided, yet the People failed to specify a more precise time frame for the conduct at issue, or to demonstrate that they were unable to do so. The People had ample opportunity to correct the deficiency in their response to the bill of particulars but failed to do so. *People v Sedlock*, 8 NY3d 535.

INSTRUCTIONS.

16. Intoxication — Sodomy.—In a prosecution wherein defendant was charged with engaging in oral sex with a 19-year-old male by forcible compulsion and without consent, inasmuch as a defendant's subjective mental state is not an element of the crime of sodomy in the third degree (Penal Law § 130.40 [3]; see Penal Law § 130.05 [2] [d]), evidence of defendant's intoxication at the time of the prohibited act was irrelevant. Accordingly, the trial judge properly declined to instruct the jury on intoxication (Penal Law § 15.25) with respect to that charge. To be guilty of third degree sodomy, defendant was required to have engaged in the prohibited act "with another person without such person's consent where such lack of consent [was] by reason of some factor other than incapacity to consent." The proper inquiry was not whether defendant actually perceived a lack of consent, but whether the victim by words or actions, clearly expressed an unwillingness to engage in the prohibited act in such a way that a neutral observer would have understood that the victim was not consenting. *People v Newton*, 8 NY3d 460.

JURORS.

17. Notice to Counsel of Substantive Inquiry from Jury — Mode of Proceedings Error.—In each of two separate criminal prosecutions, the trial court committed a mode of proceedings error when it failed to disclose, or significantly paraphrased, a jury note. The trial court's core responsibility under CPL 310.30 is both to give meaningful notice to counsel of the specific content of the jurors' request—in order to ensure counsel's opportunity to frame intelligent suggestions for the fairest and least prejudicial response—and to provide a meaningful response to the jury. In the first prosecution where the jury sent the court a note that they were deadlocked 10 to 2, the court's failure to read the note verbatim, which resulted in a denial of the right to participate in the charging decision, was inherently prejudicial. In the second prosecution where the jury sent the court three separate notes, the trial court's error in failing to notify counsel or to respond to the jury's first note was not cured by the court's subsequent instructions to the jury. In responding to requests from the jury, trial courts should adhere to the procedure outlined in *People v O'Rama* (78 NY2d 270 [1991]). *People v Kisoan*, 8 NY3d 129.

18. Discharge of Juror.—County Court improperly dismissed a sworn juror over defendant's objection (CPL 270.35 [1]) when it failed to determine that the juror was grossly unqualified or unqualified at all. In determining whether to dismiss a sworn juror, the trial court must consider the juror's answers and demeanor to ascertain whether his or her state of mind will affect his or her deliberations, must place on the record its reasons for the ruling, and, in concluding that a juror is grossly unqualified, must be convinced that the juror's knowledge will prevent him or her from rendering an impartial verdict. Here, after complainant testified, the juror informed the court that she may have worked with complainant, that she had some recollection that he was fired for a gun incident, that she was "100 percent sure" she could remain impartial, that she would not allow this information to influence her decision, and that she would not mention this to the other jurors. In

CRIMES—Cont'd

dismissing the juror, the court failed to abide by the above standard. *People v Dukes*, 8 NY3d 952.

ORDER OF PROTECTION. *See* CONSTITUTIONAL LAW, 3.

PLEA BARGAINING.

19. Enforcement of Agreement.—A defendant whose guilty plea was induced by a promise that his prison sentence would be concurrent with his sentence on a previous conviction was entitled to withdraw his plea where, because the previous conviction was overturned, the promise could not be kept. This rule was applicable even where the second sentence was longer, and thus the promise of concurrent sentencing did not mean that no additional time would result from the guilty plea. The critical question was whether the removal or reduction of the preexisting sentence nullified a benefit that was expressly promised and was a material inducement to the guilty plea. *People v Rowland*, 8 NY3d 342.

PLEA OF GUILTY.

20. Failure to Advise Defendant of Postrelease Supervision — Challenge to Plea Despite Absence of Postallocation Motion.—Where a trial judge does not fulfill the obligation to advise a criminal defendant during the plea allocution of the postrelease supervision component of the sentence, a direct consequence of the criminal conviction, the plea cannot be knowing, voluntary and intelligent, and a defendant may challenge the sufficiency of the allocution on direct appeal, notwithstanding his or her failure to preserve the issue for appellate review by means of a postallocation motion. Because the trial judge herein did not mention postrelease supervision at the allocution, defendant could not be expected to move to withdraw his plea (CPL 220.60 [3]) on a ground of which he had no knowledge. Although the trial judge informed defendant of postrelease supervision during sentencing, defendant could not move to withdraw the plea, since a motion may only be made under CPL 220.60 (3) “[a]t any time *before* the imposition of sentence” (emphasis added). Inasmuch as the omission at issue was clear from the face of the record, it could not properly be raised in a CPL article 440 motion. *People v Louree*, 8 NY3d 541.

21. Guilty Plea to Crime of Equal Grade to Crime Charged.—The Appellate Division properly vacated defendant’s robbery conviction where he was indicted for first-degree robbery under Penal Law § 160.15 (4), and pleaded guilty to first-degree robbery under Penal Law § 160.15 (2), an uncharged crime which was not a lesser included offense of the charged crime. When an indictment charges two or more offenses in separate counts, a defendant may plead guilty to one or more of the offenses charged and/or lesser included offenses of any of the offenses charged (CPL 220.10 [4]). The provisions of CPL article 220 are jurisdictional in nature, and the limited exceptions to that article should not be extended to a plea to a crime of equal or higher grade or degree to the crimes charged. *People v Castillo*, 8 NY3d 959.

PROOF OF OTHER CRIMES.

22. Testimony Regarding Prior Uncharged Crime.—In a rape prosecution, where evidence of a prior uncharged sexual assault against a witness and the defendant’s simultaneously uttered out-of-court statement to the witness that if he had not raped the witness he would have raped the victim was admitted under *Molineux* to demonstrate defendant’s motive and future intent to rape the victim, the Appellate Division properly affirmed defendant’s conviction. Assuming that it was error to admit both the statement and the uncharged criminal conduct, the error was harmless. Given the evidence against defendant, including the underage victim’s prompt outcry and defendant’s full access to the home while the victim’s mother was at work, there was no significant probability the jury would have acquitted defendant if not for the error. *People v Jackson*, 8 NY3d 869.

RIGHT OF CONFRONTATION.

23. Admission of Victim’s Excited Utterance to Police Officer.—Defendant’s right of confrontation was not violated by the admission into evidence of a statement made in response to a question from a police officer, where the officer’s evident rea-

CRIMES—Cont'd

son for asking the question was to deal with an emergency. Accordingly, where the victim was unavailable to testify at trial, her out-of-court statement to the responding police officer at the crime scene that “her boyfriend threw her through a glass door” was properly admitted into evidence at trial as an excited utterance. The admission of a statement made out of court does not violate a defendant’s Confrontation Clause rights (US Const 6th Amend; NY Const, art I, § 6) unless the out-of-court statement is “testimonial.” The statement at issue here was not testimonial since it was made in the course of police interrogation under circumstances objectively indicating that the primary purpose of the interrogation was to enable police assistance to meet an ongoing emergency. *People v Bradley*, 8 NY3d 124.

RIGHT TO COUNSEL.

24. Effective Appellate Representation.—Defendant was not denied meaningful representation when his appellate counsel failed to argue that the trial court should have granted his motion for a mistrial on the grounds that it was improper to allow the prosecution to imply through the testimony of a detective that defense counsel approved of the lineup procedure used, and that defense counsel should have been afforded the opportunity to testify in rebuttal. Appellate counsel might have determined as a matter of reasonable appellate strategy that there was a greater likelihood of success pursuing the argument that defendant’s constitutional right to present a defense was violated, rather than focusing on the mistrial application. The fact that the specific motion for a mistrial was not highlighted and argued in greater detail did not, on the record here, amount to ineffective assistance of appellate counsel as a matter of law. *People v Ramchair*, 8 NY3d 313.

25. Effective Representation.—In a murder prosecution, defendant was not denied effective assistance of counsel. Defense counsel registered numerous objections throughout the trial, conducted rigorous cross-examination, and, among other things, moved for both a mistrial and a new trial. The record reflected zealous if not consistent advocacy. *People v Williams*, 8 NY3d 854.

RIGHT TO REPRESENTATION PRO SE.

26. Defendant was not deprived of his Sixth Amendment right to represent himself inasmuch as his request to proceed pro se was not clear and unequivocal. Defendant’s initial requests to proceed pro se were made in the alternative, and his objections to his first two assigned counsel were not made because he wanted to proceed pro se, but because he was dissatisfied with them. When County Court announced the appointment of a third attorney, defendant voiced no dissatisfaction and remained silent thereafter. Even if it could be argued that defendant did not equivocate at the outset of the proceedings, any error was cured when the court assigned defendant’s third counsel. *People v Gillian*, 8 NY3d 85.

SENTENCE.

27. Restitution.—At a restitution hearing (CPL 400.30), the People bear the burden of proving the victim’s out-of-pocket loss—the amount necessary to make the victim whole—by a preponderance of the evidence. The People must show both components of the restitution equation, the amount taken minus the benefit conferred. Accordingly, following the conviction of defendant contractor based upon the submission of false invoices for payment pursuant to a construction contract with a city agency, the prosecution, in making a prima facie showing of the proper restitution amount, was required to subtract from the face amount of the improper invoices the value of the benefit conferred in connection with the underlying projects. CPL 400.30 (4) embodies a liberal evidentiary standard and evidence that defendant completed the work for which he requested payment was relevant to the City’s out-of-pocket loss. Evidence of the fair market value of the materials or services provided by defendant was not in and of itself irrelevant. *People v Tzitzikalakis*, 8 NY3d 217.

28. Concurrent and Consecutive Terms — Murder of Two Individuals during Same Criminal Transaction.—The Appellate Division properly determined that defendant, who was convicted of two counts of first degree murder under Penal Law § 125.27 (1) (a) (viii) for causing the deaths of two individuals during the same crim-

CRIMES—Cont'd

inal transaction, should have been sentenced to concurrent terms of imprisonment pursuant to Penal Law § 70.25 (2). It is the actus reus, or wrongful deed, that constitutes the “act or omission” for the purposes of section 70.25 (2). Because it was the same actus reus—the intentional murder of the same two victims—that was the basis for the first degree murder convictions here, consecutive sentences were not warranted under section 70.25 (2). Although the victims were killed by separate shots, section 125.27 (1) (a) (viii) requires multiple victims to constitute a single offense and thus contemplates the possibility of multiple shots. The two separate shots that caused the deaths of the victims were one actus reus for the purposes of the sentencing statute. *People v Rosas*, 8 NY3d 493.

29. Concurrent and Consecutive Terms.—The trial court improperly imposed three consecutive sentences of 1 to 3 years upon the defendant who, in satisfaction of two indictments, pleaded guilty to three counts of possession of a sexual performance by a child as set forth in the first indictment, which was based on videotapes and digital photographs found in defendant’s possession and alleged that each act was performed “during the month of July, 2004.” A trial court may impose consecutive sentences when the facts demonstrate that the defendant’s acts underlying the crimes are separate and distinct (Penal Law § 70.25). Here, where the People did not include the date and time of each of the allegedly separate acts of downloading the digital images set forth in the indictment, or include such facts in defendant’s plea allocution, the court was without authority to impose the consecutive sentences, which must be changed to run concurrently. *People v Dean*, 8 NY3d 929.

SEX OFFENDERS.

30. Sex Offender Registration Act — Registration Required upon Conviction of Foreign Offense Containing Essential Elements of Comparable New York Offense.—Petitioner’s conviction in federal court of a possession of child pornography offense (18 USC § 2252A [a] [5] [B]) required him to register under New York’s Sex Offender Registration Act (SORA). Correction Law § 168-a (2) (d) (i) requires a person convicted of an offense in a foreign jurisdiction to register in New York when the foreign offense contains “all of the essential elements” of a New York offense that is subject to registration. Petitioner’s federal possession of child pornography offense was analogous to the New York offense of possessing a sexual performance by a child (Penal Law § 263.16), a class E felony subject to registration under Correction Law § 168-a (2) (a) (i). The Legislature did not intend that the SORA “essential elements” inquiry involve the same strict equivalency approach used in the criminal enhanced sentencing context. Nor does the language in Correction Law § 168-a (2) (d) (iii) compel a strict interpretation of the “essential elements” standard. Where, as here, the foreign offense and the analogous New York offense overlap but the foreign offense also criminalizes conduct not covered under the New York offense, the Board must review the conduct underlying the foreign conviction to determine if that conduct is, in fact, within the scope of the New York offense. Petitioner possessed pornographic images of children under age 16 and therefore engaged in conduct that was criminal under both the federal and comparable New York offenses. *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.

SUPPRESSION HEARING.

31. Supreme Court erred in summarily denying defendant’s motion for a *Mapp/Dunaway* hearing on the ground that defendant failed to present sufficient information to obtain a hearing where he denied acting as the principal or accomplice, raised a question of fact regarding the timing of his arrest and challenged the reliability of the alleged witness. A suppression motion must contain sworn allegations of fact stating the ground or grounds for the motion (CPL 710.60 [1]). The sufficiency of the factual allegations should be evaluated by the face of the pleadings, assessed in conjunction with the context of the motion and evaluated by defendant’s access to information. The People could not both refuse to disclose the informant’s identity, or at least some facts showing a basis for the informant’s knowledge the police relied upon to establish probable cause for the arrest, and insist that

CRIMES—Cont'd

defendant's averments were insufficient to obtain a *Mapp/Dunaway* hearing. Defendant's lack of access to information precluded more specific factual allegations and created factual disputes, the resolution of which required a hearing. *People v Bryant*, 8 NY3d 530.

32. Summary Denial of Suppression Motion.—In a prosecution for criminal possession of stolen property based upon the police stop of an automobile, after defendant passenger and a companion left a store following their suspicious conduct in attempting to make a purchase with credit cards without producing identification, Supreme Court properly denied defendant's motion for a *Mapp/Dunaway* hearing. Defendant failed to raise a factual dispute as to reasonable suspicion for her detention and subsequent arrest. Defendant had ample access to relevant information regarding the factual predicate for her arrest, including access to the People's "write-up" of her conduct which the court read to her and her counsel at arraignment. Defendant failed to specifically challenge the identified informant's basis of knowledge in her suppression motion. *People v Long*, 8 NY3d 1014.

UNLAWFUL SEARCH AND SEIZURE.

33. Emergency Exception to Warrant Requirement.—In a criminal prosecution, the issue of whether a search of defendant's apartment was properly conducted under the emergency doctrine involved a mixed question of law and fact, and was beyond further review in the Court of Appeals where the courts below found that the three elements of that doctrine (see *People v Mitchell*, 39 NY2d 173, 177-178) were present, and their determination was supported by the record. *People v Dallas*, 8 NY3d 890.

34. Suppression of Contraband.—The Appellate Division properly affirmed an order granting defendant's motion to suppress a gun and cocaine recovered from a search incident to his arrest. During an undercover operation in a social club, defendant approached a female undercover officer and asked her "if she wanted to take a hit of cocaine." The officer relayed this encounter by radio and described defendant to another detective who, six hours later, stopped and searched defendant as he exited the club, discovered the contraband, and made the arrest. Whether there was probable cause for defendant's arrest presents a mixed question of law and fact beyond review in the Court of Appeals if there is support in the record. The motion court and the Appellate Division concluded that defendant's bare inquiry, in the absence of any context, did not support the inference that he possessed cocaine, and their determination was reasonable and therefore enjoyed record support. *People v Gomcin*, 8 NY3d 899.

VERDICT.

35. Sufficiency of Evidence — Proof of Physical Injury.—In a prosecution arising out of an incident wherein defendant was committing burglary in a building where the victim worked and the victim scuffled with and was bitten on the hand by defendant, the evidence was sufficient to support the jury's finding that defendant caused the victim "substantial pain" and therefore "physical injury" as defined in Penal Law § 10.00 (9), as an element of the crimes of burglary in the second degree (Penal Law § 140.25) and assault in the second degree (Penal Law § 120.05 [6]). The evidence supported a finding of substantial pain where it was shown that defendant had bitten the victim's finger, causing the victim's fingernail to crack and his finger to bleed, that the victim sought medical treatment for his injury and that his pain was not trivial. In addition, under the circumstances, where defendant was trying to escape and make the victim let go of him, it was clear that the defendant's motive was to inflict pain. *People v Chiddick*, 8 NY3d 445.

DAMAGES.**COMPENSATORY DAMAGES.**

1. Wrongful Adoption.—Plaintiffs, who alleged that defendant adoption agency concealed and misrepresented their adopted child's biological history of mental illness/schizophrenia at the time of adoption, thereby hindering plaintiffs' doctors

DAMAGES—Cont'd

from accurately diagnosing the child's psychiatric problems, while plaintiffs' family unit gradually disintegrated, presented sufficient triable facts to proceed on their fraud claim for compensatory damages. *Ross v Louise Wise Servs., Inc.*, 8 NY3d 478.

CONSEQUENTIAL DAMAGES.

2. Legal Malpractice.—In a legal malpractice action premised upon counsel's failure to request the proper jury charge in the underlying personal injury action, plaintiff was entitled to recover from defendant law firm consequential damages consisting of legal and expert witness fees and related expenses incurred in hiring new counsel to move to set aside the verdict that had assigned 50% fault to plaintiff, pursuing an appeal from Supreme Court's judgment and retaining expert witnesses to testify at the second trial. Plaintiff incurred litigation expenses to correct defendants' error and paid a second time for expert fees for the retrial. This would not have been necessary but for defendants' negligence. Moreover, plaintiff sustained actual damages as a result of defendants' malpractice notwithstanding that plaintiff obtained a substantial settlement during the course of the second trial. The settlement recovered by plaintiff as a result of the second trial represented compensatory damages in the underlying action and was not designed to reimburse plaintiff for the fees and expenses caused by defendants' negligence. *Rudolf v Shayne, Dachs, Stanisci, Corker & Sauer*, 8 NY3d 438.

PUNITIVE DAMAGES.

3. Wrongful Adoption.—Plaintiffs failed to state a claim for punitive damages in connection with their cause of action for wrongful adoption and fraud at the time of the adoption based upon allegations that defendant adoption agency concealed and misrepresented their adopted child's biological history of mental illness/schizophrenia. Even if defendant's failure to disclose may have been tortious, its conduct in connection with the adoption did not evince the high degree of moral turpitude required for punitive damages. In view of defendant's policy at the relevant time not to disclose certain information about the child's biological background if the professionals were unsure whether the factors were hereditary, defendant's motivation was not malicious or vindictive. Nor would punitive damages deter future reprehensible conduct. Social Services Law § 373-a, which assures that agencies do not conceal relevant history of birth parents, was not enacted until long after the events at issue herein, and defendant no longer acts in placing children for adoption. *Ross v Louise Wise Servs., Inc.*, 8 NY3d 478.

TREBLE DAMAGES.

4. Class Actions Alleging Antitrust Violations — Treble Damages Not Recoverable.—Inasmuch as the treble damages provision in General Business Law § 340 (5) serves as a penalty for purposes of CPLR 901 (b), such damages are not recoverable in a class action. Accordingly, in a purported class action brought on behalf of purchasers of tires manufactured using rubber-processing chemicals produced and sold by defendants, plaintiff's Donnelly Act (General Business Law § 340 *et seq.*) claim was properly dismissed. By including the penalty exception in CPLR 901 (b), the Legislature declined to make class actions available where, as here, individual plaintiffs were afforded sufficient economic encouragement to institute actions through statutory provisions awarding something beyond or unrelated to actual damages. Because the antitrust treble damages statute does not state that such damages are compensatory, nor does its legislative history clearly indicate a compensatory purpose, the Donnelly Act threefold damages should be regarded as a penalty insofar as class actions are concerned. Where a statute is designed to foster litigation through an enhanced award, CPLR 901 (b) acts to restrict recoveries in class actions absent statutory authorization. *Sperry v Crompton Corp.*, 8 NY3d 204.

DEAD BODIES.**AUTHORIZATION FOR ORGAN TRANSPLANTS.**

1. Plaintiff, as a specified donee of an incompatible kidney, had no viable right of action under Public Health Law articles 43 and 43-A against defendants, who had allocated the kidney to another patient. Although a qualified donor may make a gift

DEAD BODIES—Cont'd

to any specified donee “for therapy or transplantation *needed by him*” (Public Health Law § 4302 [4]), plaintiff did not need the kidney in question because it was medically incompatible. *Colavito v New York Organ Donor Network, Inc.*, 8 NY3d 43.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DEEDS.**RESTRICTIVE COVENANTS.**

1. Covenant Running with Land — Sale of Property under Urban Development Action Area Act — Enforcement of Land Use Restrictions against Successor Grantee.—The subsequent owner of a five-story multiple dwelling who sought to demolish the premises and construct a high-rise apartment building was subject to restrictions contained in the deed and associated documents executed between the previous private owner and the City of New York when the premises were originally sold pursuant to the Urban Development Action Area Act (UDAAA) (General Municipal Law art 16). Accordingly, the property could not be used other than for rehabilitation or conservation of the existing buildings, or construction of one- to four-unit dwellings without any change in land use. Land use restrictions contained in the UDAAA and referenced in the recitals of the deed ran with the land and were enforceable against a successor grantee. The deed's habendum clause clearly indicated that any covenants discernible from the deed in its entirety would “run with the land” and “inure to the benefit of the City.” The deed complied with all requisites to be enforceable against successors in interest, namely that the parties' intent to restrict the use of the property was clear, that the covenant touched and concerned the land and that privity of estate was present as there was a direct chain of title running from the City to the owner's grantor and then to the owner. *328 Owners Corp. v 330 W. 86 Oaks Corp.*, 8 NY3d 372.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ENVIRONMENTAL CONSERVATION.**WATER SUPPLY.**

1. New York City Watershed — Subsurface Sewage Treatment System — Excessive Fill — Stormwater Runoff.—In connection with petitioner's application for a variance to build a subsurface sewage treatment system (SSTS) on the subject parcel, located within the New York City Watershed, the City of New York Department of Environmental Protection (DEP) properly required petitioner, under 15 RCNY 18-61 (a) (1) (iii), to propose measures to reduce potential contamination resulting from his proposed use of excessive fill. It was an abuse of discretion, however, to require him to propose mitigation of stormwater runoff. Inasmuch as the subject property and the proposed SSTS were not within the regulated ranges delineated in 15 RCNY 18-39, the stormwater regulations were not applicable. The fact that approval of a variance from the fill provision would allow construction of a residence with impervious surfaces did not authorize DEP to require mitigation of stormwater runoff. DEP could not extend its jurisdiction to otherwise unregulated sources of degradation or contamination of the New York City water supply, simply because they might potentially arise from the granting of a variance. *Matter of Nilsson v Department of Env'tl. Protection of City of N.Y.*, 8 NY3d 398.

2. New York City Watershed — Subsurface Sewage Treatment System — Variance — Other Real Estate Holdings of Applicant.—It was an abuse of discretion to deny petitioner's application for a variance to build a subsurface sewage treatment system on the subject parcel, located within the New York City Watershed, on the ground that petitioner did not provide information on his other real estate holdings "in the immediate vicinity" of the subject parcel. The request to provide "information regarding the applicant's real estate holdings in the vicinity of the subject lot" was too broad. However, inasmuch as an applicant seeking a variance from the Watershed Regulations is required to demonstrate substantial hardship due to site conditions or limitations (15 RCNY 18-61 [a] [1] [iv]), DEP may reasonably request information about an applicant's contiguous real estate holdings, because an applicant who could combine lots may be able to minimize any hardship. Because petitioner failed to provide information concerning contiguous holdings to DEP, the question whether he demonstrated substantial hardship was remitted to DEP for reconsideration. *Matter of Nilsson v Department of Env'tl. Protection of City of N.Y.*, 8 NY3d 398.

EQUITY.**UNJUST ENRICHMENT.**

1. In a purported class action brought on behalf of purchasers of tires manufactured using rubber-processing chemicals produced and sold by defendants, plaintiff's unjust enrichment claim was properly dismissed. Although a plaintiff need not be in privity with the defendant to state a claim for unjust enrichment, the connection between the purchaser of tires and the producers of chemicals used in the rubber-making process was too attenuated to support such a claim. Additionally, it was not appropriate to substitute unjust enrichment to avoid the statutory bar (CPLR 901 [b]) on plaintiff's Donnelly Act (General Business Law § 340 *et seq.*) cause of action. *Sperry v Crompton Corp.*, 8 NY3d 204.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

OPINION EVIDENCE.

1. In a personal injury action arising from plaintiff's alleged trip and fall when he stepped on a depressed manhole cover and his foot struck a ridge of asphalt encircling the cover, which was dismissed because defendant had no written notice

EVIDENCE—Cont'd

of an alleged hazard (Administrative Code of City of NY § 7-201 [c] [2]), any error by the trial court in precluding plaintiff's expert's testimony did not affect the outcome of the case, since the expert could not supply any reliable evidence as to the elements of the exceptions to the prior written notice law. *Oboler v City of New York*, 8 NY3d 888.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

FRAUD.

RELIANCE.

1. In an action arising out of plaintiff's agreement to purchase the stock of a corporation, no triable issue of fact was raised on plaintiff's fraud claim against defendant, the corporation's bank. Plaintiff alleged that defendant had misrepresented the corporation's outstanding liabilities by negligently failing to include in its payoff letter the negative balance in the corporation's operating account. However, plaintiff failed to establish that it had justifiably relied on that alleged misrepresentation. Although plaintiff claimed that its primary financier would have refused to close on the transaction had it been aware of the corporation's additional debt, it was the financier, not plaintiff, that would have relied on the loan balance in the payoff letter. *J.A.O. Acquisition Corp. v Stavitsky*, 8 NY3d 144.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT AND CHILD; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

EQUITABLE DISTRIBUTION.

1. Maintenance — Double Counting of Income Derived from Tangible, Income-Producing Asset Not Precluded.—In a divorce action, a tangible, income-producing asset distributed as marital property may also be considered a source of income for maintenance purposes. Valuation of an income-producing property will necessarily take into account the income-producing capacity of that property. To prevent any income derived from any income-producing property from being “double counted” would limit the trial court's discretion in equitably distributing marital property and awarding maintenance. Accordingly, the Appellate Division erred in vacating an award of maintenance on the ground that a portion of the husband's income,

HUSBAND AND WIFE—Cont'd

considered in determining maintenance, derived from the rental of certain real property awarded to the husband during distribution. Mortgage payments received by the husband, in contrast, were properly distributed as an asset and not counted for maintenance purposes because the payments themselves were the marital asset. *Keane v Keane*, 8 NY3d 115.

2. Separate Property.—Any furnishings in the marital residence that were the husband's separate property, having been gifts from his parents, should not have been distributed to the wife. *Keane v Keane*, 8 NY3d 115.

IMMIGRATION.

See ALIENS.

INCAPACITATED AND MENTALLY DISABLED PERSONS.**INVOLUNTARY COMMITMENT.**

1. Involuntary Transfer of Convicted Sex Offenders to State Psychiatric Facility at Conclusion of Prison Terms.—The State improperly used the involuntary civil commitment procedures in Mental Hygiene Law article 9 to transfer petitioners, convicted sex offenders nearing the end of their prison sentences, directly from prison to mental health facilities. Petitioners were entitled to the procedural protections set forth in Mental Hygiene Law article 10—the new statutory scheme recently adopted by the Legislature governing postincarceration civil commitment of sex offenders. The Sex Offender Management and Treatment Act (L 2007, ch 7) provides that offenders convicted of enumerated crimes, including sex offenses, may be transferred to psychiatric hospitals after their release from prison if certain procedures are followed. Article 10 establishes a multi-step process that may lead to the civil commitment of some offenders and the outpatient supervision and treatment of others. Although Mental Hygiene Law article 10 was enacted after petitioners were transferred to psychiatric hospitals, petitioners were included in the population of offenders covered by the new statutory provisions (*see* Mental Hygiene Law § 10.03 [g] [5]). Petitioners were entitled to appropriate commitment hearings conducted in accordance with article 10. *State of N.Y. ex rel. Harkavy v Consilvio*, 8 NY3d 645.

INDEMNITY.**CONTRACTUAL INDEMNIFICATION.**

1. In a property damage action alleging that a fire originating in plaintiff's kitchen was caused by a manufacturing defect in the refrigerator/freezer unit that had been purchased by plaintiff some three weeks earlier, third-party defendant, the supplier of the bracket control assembly component of the refrigerator, was contractually required to indemnify defendant, the manufacturer of the unit, for costs associated with the defense of the action. Although the jury found no defect in the unit's defrost timer, a component of the bracket control assembly supplied by third-party defendant, the supplier's duty to indemnify was triggered by "any claims based on strict or products liability." There was no requirement that the claim be successful in order to require indemnification of defense costs. *Bradley v Earl B. Feiden, Inc.*, 8 NY3d 265.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE; PARENT AND CHILD; SCHOOLS; SOCIAL SERVICES, and other specific titles.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

DISABILITY INSURANCE.

1. Disability Caused by Preexisting Medical Condition — Tolling Period.—Pursuant to Insurance Law § 3234 (a) (2), which provides that no preexisting condition provision shall exclude coverage for a period in excess of 12 months following the ef-

INSURANCE—Cont'd

fective date of coverage under a group disability insurance policy, an insurer may impose a 12-month waiting period during which no benefits will be paid for a disability stemming from a preexisting condition and arising in the first 12 months of coverage. Accordingly, where an employee seeks benefits under an employer's group disability plan for a disability caused by a preexisting medical condition, the insurer is permitted to toll benefits during the first 12 months of coverage, but cannot impose an absolute bar to coverage for disabilities stemming from preexisting conditions and arising during that 12-month period. Interpreting section 3234 (a) (2) as allowing insurers to impose a tolling period rather than an absolute bar to benefits does not prevent insurers from excluding or limiting disability coverage based on an individual's prior medical history. *Benesowitz v Metropolitan Life Ins. Co.*, 8 NY3d 661.

DUTY TO DEFEND AND INDEMNIFY.

2. Additional Insured Coverage.—Within the context of a comprehensive general liability insurance policy, additional insured coverage is not contingent upon a liability finding. The obligation of an insurer to provide a defense to an additional named insured under the policy in an underlying personal injury action exists to the same extent as it does to a named insured. Accordingly, where plaintiff's subcontractor had agreed to name plaintiff as an "additional insured" in its comprehensive general liability policy, and to indemnify and pay plaintiff's attorneys fees for any personal injury tort claim arising from its work, plaintiff was entitled to a defense in a personal injury action commenced by a worker injured at site where the subcontractor was working. Language in the additional insured endorsement stating that plaintiff was "an additional insured only with respect to liability arising out of [the subcontractor's] ongoing operations performed for that insured" did not affect the standard under which a duty to defend was determined. The allegations in the complaint in the underlying action formed a factual and legal basis on which defendant might eventually be held to be obligated to indemnify plaintiff under the policy and brought the claim within the ambit of the protection purchased. *BP A.C. Corp. v One Beacon Ins. Group*, 8 NY3d 708.

EXCESS COVERAGE.

3. For purposes of exceeding annual "per occurrence" primary insurance policy limits to access excess insurance proceeds, defendant insured could not group together as a single occurrence numerous personal injury claims arising from the exposure of individuals to asbestos insulation in defendant's turbines at work sites across the country. Under the terms of the primary insurance policies issued to defendant, the claims presented multiple occurrences. Pursuant to the excess insurance policies, excess coverage for a claim was triggered only when the claim exceeded the \$5 million per-occurrence limit in the underlying primary general liability policy. Using the unfortunate-event test, based on the nature of the incident giving rise to damages, the asbestos exposure claims defendant sought to join as one occurrence (per policy period) represented multiple occurrences. The incidents at issue shared few, if any, commonalities, differing in terms of when and where exposure occurred, whether the exposure was prolonged and for how long, and whether one or more of defendant's turbine sites was involved. *Appalachian Ins. Co. v General Elec. Co.*, 8 NY3d 162.

4. Priority of Coverage.—In a declaratory judgment action in which plaintiff additional named insured sought a declaration as to defendant insurer's obligation to defend and indemnify it in a personal injury action commenced by a worker injured at the construction site where the named insured was working, the Appellate Division erred in finding that defendant's coverage was primary and plaintiff's coverage under its own policy was excess. In order to determine the priority of coverage among different policies, a court must review and consider all of the relevant policies at issue. Because none of the other insurance carriers were parties to the action and no other relevant policies had been submitted, the priority of coverage could not be determined. *BP A.C. Corp. v One Beacon Ins. Group*, 8 NY3d 708.

NO-FAULT AUTOMOBILE INSURANCE.

5. Basic Economic Loss — Priority of Payment.—An insurer waiting for information to verify a pending no-fault claim that caused aggregate claims to exceed the applicable policy's \$50,000 limit for basic economic loss was not prohibited by the

INSURANCE—Cont'd

priority-of-payment regulation (11 NYCRR 65-3.15) from paying already verified claims in the meantime. An insurer must pay or deny only a verified claim within 30 calendar days of receipt, and is not obligated to pay any claim until it has been so verified (*see* 11 NYCRR 65-3.8 [a] [1]; [b] [3]; 65-3.5 [b]). Because the insurer herein requested additional verification from plaintiff hospital 16 business days after receipt of the claim rather than within 15 business days, as required by 11 NYCRR 65-3.5 (b), the insurer was required to pay or deny the hospital's claim no later than 29 days after the date when the additional verification was received (*see* 11 NYCRR 65-3.8 [j]). This deadline was not extended by the patient's eligibility for optional basic economic loss. The priority-of-payment regulation came into play when the insurer received the requested inpatient hospital records, which established verified claims aggregating more than \$50,000. At that point, the insurer should have paid the hospital ahead of any other unpaid verified claims for services rendered or expenses incurred later than the services billed by the hospital, up to the policy's limits. *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 294.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTEREST.**ACTIONS IN WHICH RECOVERABLE.**

1. Legal Malpractice.—In a legal malpractice action premised upon counsel's failure to request the proper jury charge in the underlying personal injury action, plaintiff was not entitled to recover interest that would have accrued on the \$750,000 recovered at the second trial had that sum been awarded at the conclusion of the first trial. Plaintiff's assertion that, had the proper instruction been charged, the first jury would have awarded \$750,000—instead of the \$255,000 it actually awarded—was pure speculation. There was no basis to presume that a difference in the instructions on determining liability would have altered the jury's calculation of damages. *Rudolf v Shayne, Dachs, Stanisci, Corker & Sauer*, 8 NY3d 438.

PREVERDICT INTEREST.

2. Award of Interest Not Authorized against Unsuccessful Claimants in Interpleader Action.—Where subcontractors on a construction project asserted claims to a fund which had been deposited by the general contractor with an escrow agent, who then commenced an interpleader action which resulted in the funds being deposited with the court clerk, there was no "sum awarded" against the subcontractors when it was determined that the amount remaining in the fund was to be returned to the general contractor, and thus no predicate for an award of interest against them. CPLR 1006 (f) provides for an award of interest against a stakeholder in an interpleader action up to the time of discharge, but not against unsuccessful claimants. Neither was an interest award authorized by CPLR 5001 (a), which provides for interest "upon a sum awarded"—implying that the interest must be paid by the party against whom the sum was awarded. The subcontractors received no benefit that would justify requiring them to pay interest. Moreover, the subcontractors were not found to have breached any contract or to have interfered unlawfully with the possession or enjoyment of any property within the meaning of CPLR 5001 (a). *Manufacturer's & Traders Trust Co. v Reliance Ins. Co.*, 8 NY3d 583.

INTERVENTION.

See PARTIES.

JUDGES.**DISCIPLINARY PROCEEDINGS.**

1. A determination of the State Commission on Judicial Conduct that petitioner Town Justice should be removed from office was accepted. Petitioner engaged in improper ex parte communications with the defendants in several building code

JUDGES—Cont'd

violation cases, dismissed the cases in advance of the adjourned dates without providing the prosecutor notice or an opportunity to be heard, testified falsely at a Commission proceeding during the investigation and altered her court calendar to conceal the deception. Petitioner's actions violated the high standards of integrity and conduct required of the Judiciary. Moreover, petitioner gave patently false explanations to the Commission despite contrary objective proof. *Matter of Marshall*, 8 NY3d 741.

SUSPENSION FROM OFFICE.

2. Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c), of whether a town justice should be suspended from office, it is determined that the justice be suspended with pay, effective immediately. *Matter of Marshall*, 8 NY3d 897.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

SAFE PLACE TO WORK.

1. Plaintiffs' Labor Law § 240 (1) claim was properly dismissed in an action to recover damages for injuries sustained by plaintiff when he fell backwards off of the desk he was standing on to clean an interior office window. Although "cleaning" is expressly afforded protection under section 240 (1) whether or not incidental to any other enumerated activity, the particular window washing task at issue did not create an elevation-related risk of the kind that the safety devices listed in section 240 (1) protect against. Plaintiff failed to establish that he was obliged to work at an elevation to wash the interior of the windows. Moreover, the evidence demonstrated as a matter of law that plaintiff did not need protection from the effects of gravity where, before the accident, he had already cleaned windows of the same height without a ladder or other protective device. *Broggy v Rockefeller Group, Inc.*, 8 NY3d 675.

2. In a personal injury action arising from the collapse of a crane on a construction site, wherein the jury found that the proximate cause of the injury was a preexisting crack in the crane, which made it unsafe to operate the crane with any load, not the negligent operation of the crane with an excess load in violation of the Industrial Code, the Appellate Division properly reversed Supreme Court's order granting plaintiff a new trial on defendant City's statutory liability under the Labor Law. The jury's finding that the collapse was caused by the defective crane and not the load size was supported by record evidence. Based on the proof, issues of negligence and causation were not inextricably interwoven and the jury verdict, which did not apportion any liability to defendant City, was not inconsistent. Since the Appellate Division did not abuse its discretion, further consideration was beyond the Court of Appeals review power. In this procedural context, the Court of Appeals could not review a prior nonfinal Appellate Division order dismissing another Labor Law cause of action. *Pavlou v City of New York*, 8 NY3d 961.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

RENT REGULATION.

1. Renewal Lease — Federal Section 8 Rent Subsidies.—A landlord's determination to accept federal "Section 8" rent subsidy payments (*see* 42 USC § 1437f) is a "term and condition" of a lease executed with a rent-stabilized tenant within the

LANDLORD AND TENANT—Cont'd

meaning of Rent Stabilization Code (9 NYCRR) § 2522.5 (g) (1). Thus, a renewal lease must continue with that term and condition. Pursuant to the Rent Stabilization Code, renewal must “be on the same terms and conditions as the expired lease” (9 NYCRR 2522.5 [g] [1]). Landlords who accept Section 8 payments are required to include, in leases that they sign with Section 8 beneficiaries, a “tenancy addendum” specifying the landlord’s acceptance of Section 8 subsidies. Acceptance of the Section 8 subsidies thereby becomes a term of the lease signed with a Section 8 tenant. Moreover, the Section 8 term and condition must be continued in a renewal lease even if a tenant was not a Section 8 beneficiary under the original lease but subsequently became a Section 8 beneficiary. 9 NYCRR 2522.5 (g) (1) requires that a renewal lease “be on the same terms and conditions as the expired lease”—not necessarily the original lease. “Expired lease” means the lease that will have just expired when the renewal lease is to become effective. *Rosario v Diagonal Realty, LLC*, 8 NY3d 755.

2. Owner Occupancy Proceeding.—In an owner occupancy holdover summary proceeding wherein the Appellate Division affirmed an order of the Appellate Term which in turn affirmed a judgment of the Civil Court awarding possession to petitioner landlords, who sought to recover respondent tenant’s apartment for their daughter, whose room in the landlords’ apartment was needed to accommodate immigrating members of the landlords’ family, the Appellate Division correctly concluded that the factual determination on which the Civil Court judgment was based was supported by sufficient evidence. *Horsford v Bacott*, 8 NY3d 874.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

PRIVILEGE.

1. National Association of Securities Dealers Employee Termination Notice — Absolute Privilege.—Statements made by an employer on a National Association of Securities Dealers (NASD) employee termination notice (Form U-5) were subject to an absolute privilege in a defamation lawsuit. The privilege was warranted by the form’s compulsory nature, its role in the NASD’s quasi-judicial process and the protection of public interests. The NASD is a quasi-governmental entity with authority to enforce the requirements of the Securities Exchange Act of 1934 and is the primary regulator of the broker-dealer industry. Form U-5 is designed to alert the NASD to potential misconduct and, in turn, enable the NASD to investigate, sanction and deter misconduct by its registered representatives. *Rosenberg v MetLife, Inc.*, 8 NY3d 359.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LIMITATION OF ACTIONS.**ESTOPPEL TO PLEAD STATUTE OF LIMITATIONS.**

1. In an action by plaintiffs alleging that defendant adoption agency concealed and misrepresented their adopted child’s biological history of mental illness/schizophrenia at the time of adoption and continued to do so for decades thereafter, thereby hindering plaintiffs’ doctors from accurately diagnosing the child’s psychiatric problems, defendant was not estopped from pleading the statute of limitations as a defense to causes of action for negligence and intentional infliction of emotional distress. There was no indication that defendant attempted after the adoption to conceal medical histories to induce plaintiffs to forbear from filing suit alleging negligence or infliction of emotional distress. Plaintiffs did not contact the agency until those causes of action were already time-barred. Therefore, even if defendant made fraudulent misrepresentations, plaintiffs had not been induced to refrain from filing suit. *Ross v Louise Wise Servs., Inc.*, 8 NY3d 478.

FOUR-MONTH STATUTE OF LIMITATIONS.

2. Challenge to Inmates’ Collect-Call Telephone System.—In a combined action for declaratory judgment and proceeding pursuant to CPLR article 78 commenced on February 26, 2004 by petitioners, recipients of collect calls from respondent

LIMITATION OF ACTIONS—Cont'd

Department of Correctional Services (DOCS) inmates, seeking to enjoin DOCS from collecting a 57.5% commission on its 2001 contract with respondent telephone corporation, which provided the subject telephone system and service, petitioners' constitutional claims were timely (CPLR 217 [1]). The 2001 contract, as modified by the May 2003 amendment, which altered the call rate, became ripe for judicial review only when the Public Service Commission (PSC) approved, in an order issued on October 30, 2003, the "jurisdictional portion of the proposed rate." DOCS's determination remained subject to corrective action by DOCS until the date of the PSC order, and petitioners did not exhaust available administrative remedies until the PSC review was complete. *Walton v New York State Dept. of Correctional Servs.*, 8 NY3d 186.

LEGAL MALPRACTICE.

3. Continuous Representation Doctrine.—The Appellate Division erred in holding that plaintiff's legal malpractice cause of action was time-barred by the three-year statute of limitations (CPLR 214 [6]; 203 [a]) where the malpractice action accrued on December 4, 1997, when a judgment of divorce was entered in an underlying action, but defendants' representation of plaintiff in the underlying action ended, at the earliest, in June 1998 and the malpractice action was commenced in May 2001. Accordingly, the legal malpractice cause of action was reinstated and the matter remitted to Supreme Court. The continuous representation doctrine tolls the statute of limitations where there is a mutual understanding of the need for further representation on the specific subject matter underlying the malpractice claim. *Zorn v Gilbert*, 8 NY3d 933.

MEDICAL MALPRACTICE.

4. Wrongful Life.—In an action arising from the alleged malpractice of defendant doctors in failing to correctly advise plaintiffs regarding the condition of the fetus, which was commenced more than three years after the infant plaintiff's birth with severe birth defects, the Appellate Division properly affirmed an order granting defendant's motion to dismiss the complaint as time-barred. Plaintiffs had timely awareness of the facts requiring them to make further inquiry before the 2½-year statute of limitations expired. Thus, an equitable estoppel defense to the statute of limitations was inappropriate as a matter of law. *Pahlad v Brustman*, 8 NY3d 901.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MORTGAGES.**RECORDING.**

1. The Suffolk County Clerk was required to record and index mortgages naming petitioner, the operator of a national electronic registration system (MERS) for residential mortgages and related instruments, as the lender's nominee or mortgagee of record. Sections 291 and 316-a of the Real Property Law impose upon the Suffolk County Clerk the ministerial duty of recording and indexing instruments affecting real property. The Clerk lacks statutory authority to look beyond an instrument that otherwise satisfies the limited requirements of the recording statute. Therefore, the County Clerk was required to accept the MERS mortgage when presented for recording. *Matter of MERSCORP, Inc. v Romaine*, 8 NY3d 90.

MORTGAGES—Cont'd

2. The Suffolk County Clerk was required to record and index assignments of mortgage and discharges of mortgage naming petitioner, the operator of a national electronic registration system (MERS) for residential mortgages and related instruments, as the lender's nominee or mortgagee of record. As the nominee for the mortgagee of record or for the last assignee, petitioner acknowledged the instruments and, therefore, the County Clerk was required to file and record the instruments pursuant to Real Property Law § 321. Moreover, the MERS discharge complied with the statute by stating that the "[m]ortgage has not been further assigned of record." *Matter of MERSCORP, Inc. v Romaine*, 8 NY3d 90.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**OPERATING VEHICLE WHILE UNDER INFLUENCE OF ALCOHOL OR DRUGS.**

1. Proscription against Driving while Intoxicated Applicable Only to Intoxication Caused by Alcohol.—A driver cannot be prosecuted under Vehicle and Traffic Law § 1192 (3) for "driving while intoxicated" while under the influence of drugs. Inasmuch as it was the intent of the Legislature that Vehicle and Traffic Law § 1192 (3) was to apply only to intoxication caused by alcohol, evidence that defendant inhaled a hydrocarbon while driving, veered into oncoming traffic and crashed into a vehicle, killing one of its passengers, could not support charges of operating a motor vehicle while in an intoxicated condition (Vehicle and Traffic Law § 1192 [3]) or vehicular manslaughter in the second degree (Penal Law § 125.12). The enactment in 1966 of what is now Vehicle and Traffic Law § 1192 (4) prohibiting driving while ability impaired by drugs indicated that section 1192 (3) did not proscribe such conduct. Defendant could not be prosecuted under section 1192 (4) because the substance that he inhaled was not a drug within the meaning of that subdivision (*see* Vehicle and Traffic Law § 114-a; Public Health Law § 3306). *People v Litto*, 8 NY3d 692.

OPERATOR'S LICENSE.

2. Proof of Identity — Submission of Immigration Documents Issued by Department of Homeland Security.—Defendant Commissioner of Motor Vehicles acted within his statutory authority in requiring applicants for the issuance or renewal of driver's licenses or non-driver identification cards who lacked valid Social Security numbers (SSNs) to prove that they were ineligible for SSNs by submitting immigration documents issued by the Department of Homeland Security (DHS). Applicants are required by statute to furnish proof of identity, including their SSNs (Vehicle and Traffic Law § 502 [1], [6]; § 490 [3] [a] [i]), as well as "such other information as the commissioner shall deem appropriate" (Vehicle and Traffic Law § 508 [2]). A regulation of the Department of Motor Vehicles (DMV), 15 NYCRR 3.9 (a), provides that applicants must submit their SSNs or provide proof that they are not eligible for SSNs. As proof of ineligibility for an SSN, an applicant was previously required under DMV policy to submit an L676 letter from the Social Security Administration (SSA) stating that the applicant's DHS documents demonstrated ineligibility for an SSN. In order to obtain the L676 letter, a person was required to submit DHS documents to the SSA. The additional requirement of submitting that same DHS documentation to the DMV along with the L676 letter was a reasonable fraud prevention measure. *Cubas v Martinez*, 8 NY3d 611.

3. Proof of Identity — Submission of Immigration Documents Issued by Department of Homeland Security — "Legal Presence Requirement."—In an action challenging the authority of the Department of Motor Vehicles (DMV) to require applicants for the issuance or renewal of driver's licenses or non-driver identification cards who lacked valid Social Security numbers (SSNs) to prove that they were ineligible for SSNs by submitting immigration documents issued by the Department of Homeland Security (DHS), plaintiffs failed to allege the existence of any "legal presence requirement" distinct from the DMV's practice of insisting on DHS documents

MOTOR VEHICLES—Cont'd

as proof of ineligibility for an SSN. No specific policy or practice of DMV embodied the “legal presence requirement,” other than the practice of requiring DHS documents to prove SSN ineligibility. Internal documents in which DMV had used the term “legal presence” had nothing to do with any policy or practice claimed by plaintiffs to be unlawful. *Cubas v Martinez*, 8 NY3d 611.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

NOTICE OF CLAIM.

1. A letter sent by plaintiff's attorney to an attorney in the office of defendant municipal agency did not satisfy plaintiff's obligation to serve a timely and adequate notice of claim for special damages arising out of liens filed by the agency against plaintiff's property. A notice of claim is sufficient (General Municipal Law § 50-e [2]) if it includes information that enables the municipality to investigate the claim. The letter at issue did not alert its recipient to the imminence of litigation, or adequately describe special damages or when they were allegedly incurred. Rather, it was filled with tentative expressions, appearing as merely a piece of routine correspondence exchanged during the heat of an ongoing controversy. The requirements of General Municipal Law § 50-e (2) are not fulfilled when a plaintiff or an attorney writes a letter to a municipal agency suggesting that unmet demands might lead to litigation. *Rosenbaum v City of New York*, 8 NY3d 1.

NOTICE OF STREET DEFECT.

2. Exceptions.—The trial court properly granted defendant City's trial motion for summary judgment dismissing a complaint seeking to recover for injuries sustained when plaintiff allegedly tripped and fell when he stepped on a depressed manhole cover and his foot struck a ridge of asphalt encircling the cover. Defendant had no prior written notice of an alleged hazard as required under the Pothole Law (Administrative Code of City of NY § 7-201 [c] [2]). Further, plaintiffs failed to prove an exception to the notice requirement by either presenting evidence that defendant created the defect through an affirmative act of negligence, or presenting proof of a special benefit conferred on defendant. *Oboler v City of New York*, 8 NY3d 888.

TORT LIABILITY.

3. Special Relationship.—In a negligence action premised upon defendant City's delayed response to a 911 call requesting an ambulance and made by plaintiff's friend and coworker, the City was not liable to plaintiff, who had suffered a stroke while at work. A municipality is not liable to a person injured by the breach of a duty owed to the general public in the absence of a “special relationship” between the injured person and representatives of the municipality. Plaintiff did not satisfy the requirements of the “special relationship” exception because he did not have direct contact with, and did not rely on any undertaking by, the City's 911 operator. The coworker's contact with and reliance upon the 911 operator could not be “transferred” to plaintiff's benefit. Direct contact and reliance by someone other than the plaintiff is sufficient to create a special relationship only where the person making the contact was acting on behalf of his or her immediate family. *Laratro v City of New York*, 8 NY3d 79.

ZONING.

4. Timeliness of Appeal to Zoning Board of Appeals — Issuance of New Certificate of Occupancy Unchanged from Earlier Certificate.—The 60-day time limit for appeals to a zoning board of appeals from a determination by a village administrative official (Village Law § 7-712-a [5] [b]) did not run anew when the administrative official issued a new certificate of occupancy that was unchanged, in relevant respects, from an earlier certificate relating to the same property. The mere repeti-

MUNICIPAL CORPORATIONS—Cont'd

tion, in words or substance, of an authorization contained in the old certificate of occupancy should not be treated as a newly appealable "order, requirement, decision, interpretation or determination." Property owners or those who might buy or lend money on the property should be able to rely on the fact that the time to appeal from the issuance of a certificate of occupancy has run. *Matter of Palm Mgt. Corp. v Goldstein*, 8 NY3d 337.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

DUTY.

1. Breach of Duty — Liability of Nursing Home to Patient.—In a negligence action arising from injuries decedent nursing home patient allegedly sustained when the third-party defendant, an independent contractor/nurse's assistant, attempted to move her from the bed to a wheelchair or from the wheelchair to a shower, an Appellate Division order, which affirmed an order granting plaintiff partial summary judgment on the issue of liability, was reversed and summary judgment denied. On appeal by the third-party defendant, questions of fact exist as to how decedent was injured, whether third-party defendant was involved, and whether the nursing home was otherwise negligent. Under plaintiff's theory of liability, the third-party defendant was the only witness. Third-party defendant, who had not been deposed nor involved in discovery, was entitled to all the rights of an adverse party (CPLR 1008). *Giandana v Providence Rest Nursing Home*, 8 NY3d 859.

2. Maintenance of Private Road Which Intersected with Railroad Tracks.—In an action to recover damages for injuries sustained when plaintiff's vehicle collided with a train at an unmarked grade crossing of railroad tracks, which intersected a private gravel road owned by decedent and his wife, the Appellate Division properly dismissed plaintiff's complaint and cross claims against those defendants. A landowner owes no duty to warn or to protect others from a defective or dangerous condition on neighboring premises, unless the landowner has created or contributed to it. The grade crossing had existed since at least 1939, long before the decedent and his wife had purchased the property. Those defendants had no reason to expect that plaintiff would not observe the hazard or any conceivable risk associated with it. Also, plaintiff testified that he had stopped and looked in both directions for trains and proceeded cautiously each time he approached the tracks, which he uneventfully drove across three times earlier on the same day of the accident. *Clementoni v Consolidated Rail Corp.*, 8 NY3d 963.

3. Maintenance of Property Bordering Railroad Tracks.—In an action to recover damages for injuries sustained when plaintiff's vehicle collided with a train at an unmarked grade crossing of railroad tracks, which intersected a private gravel road, the Appellate Division properly dismissed plaintiff's complaint and cross claims against those defendants who owned the property bordering the railroad right-of-way at the crossing. A landowner is generally not liable for the existence of uncut vegetation obstructing the view of motorists at an intersection. *Clementoni v Consolidated Rail Corp.*, 8 NY3d 963.

FORESEEABILITY.

4. Assault and Attempted Robbery at ATM.—In an action to recover damages for injuries plaintiff sustained when he was shot in the face during an attempted robbery while using defendant bank's ATM, the Appellate Division properly reversed Supreme Court and properly granted summary judgment to defendant. Plaintiff failed to raise an issue of fact sufficient to defeat defendant's summary judgment motion. *Coronel v Chase Manhattan Bank*, 8 NY3d 838.

MAINTENANCE OF PREMISES.

5. Constructive Notice of Alleged Defective Condition.—In an action to recover for injuries sustained when plaintiff allegedly slipped and fell on loose floor tiles in a workplace bathroom, the Appellate Division improperly reversed an order denying

NEGLIGENCE—Cont'd

defendant's motion for summary judgment dismissing the complaint. Defendants, owners and managers of the premises, failed to establish that they lacked constructive notice of the allegedly defective floor tiles as a matter of law. *Lennard v Mendik Realty Corp.*, 8 NY3d 909.

6. Automatic Door.—In personal injury actions arising from injuries sustained when the injured plaintiff allegedly was struck by an automatic door while standing on the door jamb at defendant's outlet store, the order of the Appellate Division, which affirmed an order granting defendants' motion for summary judgment, was affirmed for the reasons stated in the majority opinion at the Appellate Division, which concluded that defendants met their burden by establishing that they did not create the alleged dangerous condition, that they lacked actual or constructive notice of it, that plaintiffs failed to raise an issue of fact, and that plaintiffs' expert's opinion was purely speculative and, thus, lacked sufficient probative force to constitute prima facie evidence that the automatic door was not reasonably safe for its intended use. *Zona v JELD-WEN, Inc.*, 8 NY3d 911.

7. Trip and Fall in Movie Theater.—In a personal injury action arising from injuries plaintiff sustained when she tripped and fell over a boy sitting in the aisle of defendant's darkened movie theater, the Appellate Division properly reversed Supreme Court and granted summary judgment to defendant theater. Viewing the evidence in the light most favorable to plaintiff, defendant demonstrated its entitlement to summary judgment, and, in opposition, plaintiff failed to adduce sufficient evidence that defendant had actual or constructive notice of the transient obstruction or that the lighting in the theater was inadequate. *Branham v Loews Orpheum Cinemas, Inc.*, 8 NY3d 931.

NEGLIGENT MISREPRESENTATION.

8. Requirement of Reasonable Reliance.—In an action arising out of plaintiff's agreement to purchase the stock of a corporation, no triable issue of fact was raised on plaintiff's negligent misrepresentation claim against defendant, the corporation's bank. Although plaintiff alleged that defendant had misrepresented the corporation's outstanding liabilities by negligently failing to include in its payoff letter the negative balance in the corporation's operating account, plaintiff failed to establish that it had reasonably relied on that information inasmuch as the evidence established that plaintiff's decision to purchase the stock was not dependent upon the payoff letter. *J.A.O. Acquisition Corp. v Stavitsky*, 8 NY3d 144.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

OPTOMETRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

PARENT AND CHILD.

See, also, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles.

ORDER OF PROTECTION.

1. Duration.—In a child protective proceeding, Family Court did not have the authority to issue orders of protection in favor of respondent father's children until they reached the age of 18 where the fact-finding dispositional order incorporating the orders of protection had no expiration date. Family Court Act § 1056 (1), which prohibits the issuance of an order of protection that exceeds the duration of any

PARENT AND CHILD—Cont'd

other dispositional order in the case, was intended to place a temporal limitation on all orders of protection issued pursuant to Family Court Act article 10 in order to effectuate periodic court review. Here, the orders of protection had the effect of cutting off respondent's presumptive rights to visitation without periodic review. Only after periodic hearings may a court extend orders of protection until a child reaches the age of 18. Such court oversight and periodic review of orders of protection should take place whether or not the underlying dispositional order contains an expiration date. *Matter of Sheena D.*, 8 NY3d 136.

SUPPORT.

2. Liability for Child Support upon Voluntary Surrender.—Respondent, who adopted a special needs child and subsequently obtained a judicial surrender after being unable to control his behavior, was liable for child support from the date of surrender as the adoptive parent (Family Ct Act § 413). An adoptive parent assumes all of the liabilities of a biological parent. Upon voluntary surrender, a parent retains the obligation to provide financial support for a child until he or she is adopted or turns 21. A limited exception from this support requirement exists for children born out of wedlock to unwed mothers (Social Services Law § 398 [6] [f]; 18 NYCRR 422.4). Since the child was not “begotten and born” to respondent, she did not qualify as the “mother of a child born” out of lawful matrimony (Family Ct Act § 512 [a], [c]). Notwithstanding the harsh result in this case, the doctrine of estoppel was not applicable against the State. *Matter of Greene County Dept. of Social Servs. v Ward*, 8 NY3d 1007.

VISITATION RIGHTS OF GRANDPARENTS.

3. Constitutionality of Grandparent Visitation Statute as Applied.—Domestic Relations Law § 72 (1) was constitutionally applied to award petitioner grandmother reasonable visitation with her grandchild. Although the trial court, mindful of respondent father's parental prerogatives, employed the strong presumption that the father's wishes represented the child's best interests, as required by the statute, the grandmother surmounted the presumption. For over three years following the death of the child's mother, the grandmother was the child's surrogate, live-in mother. Following consideration of the circumstances bearing upon whether it was in the child's best interest for his relationship with the grandmother to continue—e.g., the reasonableness of the father's objections to the grandmother's access to the child, her caregiving skills and attitude toward the father, the law guardian's assessment, the child's wishes—the court granted visitation. *Matter of E.S. v P.D.*, 8 NY3d 150.

4. Facial Constitutionality of Grandparent Visitation Statute.—Domestic Relations Law § 72 (1), which provides a procedural mechanism for grandparents to acquire standing to seek visitation with a minor grandchild, was not rendered facially unconstitutional by the decision of the United States Supreme Court in *Troxel v Granville* (530 US 57 [2000]). The statute at issue in *Troxel* permitted any person to petition for visitation rights and authorized the trial court to grant such rights in the best interest of the child. The Supreme Court held that application of the statute violated the mother's due process right to make decisions concerning the care, custody and control of her children. Section 72 (1) accords deference to a parent's decisions. *Matter of E.S. v P.D.*, 8 NY3d 150.

5. Section 72 (1) of the Domestic Relations Law was properly applied in granting petitioner grandmother visitation with her grandchild. Petitioner had automatic standing to seek visitation under section 72 (1) based upon the death of the child's mother, and record evidence supported the determination of the courts below that visitation between petitioner and the child was in the child's best interest. Supreme Court was properly mindful of respondent father's right to rear the child as he saw fit, but determined that the grandmother had established an extraordinarily close relationship with the child during the nearly five-year period that she had lived with him and respondent, and that the relationship with the grandmother was central to the child's well-being. *Matter of E.S. v P.D.*, 8 NY3d 150.

PARTNERSHIP.**PARTNERSHIP AGREEMENT.**

1. Amendment.—Defendant properly amended its partnership agreement by majority vote with respect to compensation of withdrawing partners. The agreement, read as a whole, made clear that all questions related to the partnership, including

PARTNERSHIP—Cont'd

its dissolution, may be decided by a majority vote, unless the agreement provided otherwise, and that the partnership agreed to be bound by the “decision of the majority” on all partnership questions. The amendment did not require, pursuant to Partnership Law § 40 (8), the unanimous consent of the partners. Partnership Law § 40 (8), which contains default provisions to be used in the absence of an agreement between the partners on the same subject matter, was inapplicable. *Bailey v Fish & Neave*, 8 NY3d 523.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PHYSICIANS AND SURGEONS.**DENTISTS.**

1. Malpractice — Habit Evidence — Routine Procedure for Administration of Anesthesia.—In a dental malpractice action in which plaintiff alleged that defendant negligently performed injections of anesthesia and extraction of her tooth, and failed to properly manage the ensuing infection, evidence as to defendant’s routine procedure for administering injections of anesthesia was admissible as habit evidence supporting an inference that the same procedure was used in treating plaintiff. Defendant described the specific procedure that she used when injecting an anesthetic, her expert confirmed that this procedure was within the accepted standard of care for dentistry, and there was no evidence that defendant’s pre-extraction injection procedure varied from patient to patient. The record therefore contained proof of a deliberate and repetitive practice—the mundane administration of a local anesthetic prior to a relatively routine tooth extraction—by a trained, experienced professional in complete control of the circumstances. Defendant’s habit evidence was properly considered in conjunction with her motion for summary judgment and it was sufficient to shift the burden to plaintiff to provide evidence creating an issue of fact as to whether defendant committed malpractice. *Rivera v Anilesh*, 8 NY3d 627.

2. Malpractice.—In a dental malpractice action in which plaintiff alleged that defendant negligently performed injections of anesthesia and extraction of her tooth, and failed to properly manage the ensuing infection, summary judgment was properly denied to defendant. Although evidence as to defendant’s routine procedure for administering injections of anesthesia supported an inference that the same procedure was used in treating plaintiff, plaintiff’s testimony that she experienced extreme pain during the second injection, together with her expert’s opinion that the pain plaintiff felt demonstrated that the second injection was administered improperly, raised a question of fact whether defendant negligently performed the injection. The expert explained why the infection could not have originated from the site of the extracted tooth and stated that an injection in the wrong place could cause a hematoma that materially increased the possibility of an infection like the one that developed in plaintiff’s jaw. *Rivera v Anilesh*, 8 NY3d 627.

PLEADING.**ANSWER.**

1. A CPLR article 78 proceeding seeking to annul the determination of respondent Department of Environmental Protection of the City of New York, which had denied petitioner religious corporation a full exemption from water and sewer charges, was remitted to Supreme Court to allow respondents to submit an answer and for further proceedings on the pleadings. Supreme Court erred in granting the petition without first affording respondents an opportunity to answer (CPLR 7804 [f]). *Matter of Bethelite Community Church, Great Tomorrows Elementary School v Department of Env'tl. Protection of City of N.Y.*, 8 NY3d 1001.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROCEEDING AGAINST BODY OR OFFICER.**MANDAMUS.**

1. Challenge to Inmates' Collect-Call Telephone System.—CPLR article 78 review, in the nature of “mandamus to review” (CPLR 7803 [3]), was available to petitioners, recipients of collect calls from respondent Department of Correctional Services (DOCS) inmates, who sought to enjoin DOCS from collecting a 57.5% commission on its 2001 contract with respondent telephone corporation, which provided the subject telephone system and service. While a challenge to the validity of legislation may not be brought under article 78, this principle does not apply to the quasi-legislative acts and decisions of administrative agencies such as DOCS. Here, petitioners were challenging an administrative determination—DOCS's decision to provide a collect-call-only telephone system to inmates and to require the telephone corporation it exclusively contracted with to pay it substantial commissions—by challenging the contracts making that determination binding on others. *Walton v New York State Dept. of Correctional Servs.*, 8 NY3d 186.

PROCESS.**SERVICE OF PROCESS.**

1. Traverse Hearing.—An Appellate Division order which had affirmed a judgment granting respondents' motion to dismiss a CPLR article 78 proceeding for lack of personal jurisdiction was reversed and the matter remitted to Supreme Court. The parties' submissions on the motion to dismiss raised issues of fact requiring a traverse hearing. *Matter of Elliott v Butler*, 8 NY3d 972.

PRODUCTS LIABILITY.**WARRANTIES.**

1. Breach of Implied Warranty of Merchantability.—In a property damage action alleging that a fire originating in plaintiff's kitchen was caused by a manufacturing defect in the refrigerator/freezer unit that had been purchased by plaintiff some three weeks earlier, legally sufficient evidence supported the jury's verdict in favor of plaintiff on a breach of warranty claim against defendants manufacturer and retailer, despite the jury's finding for the manufacturer on a related products liability claim. The jury rejected the claim that the defrost timer in the refrigerator was defective given the conflicting evidence at trial but found that the refrigerator/freezer was not fit for its intended purpose. A jury could rationally conclude that the unit was not fit for its intended purpose, regardless of whether the defrost timer was defective, and thus that the manufacturer breached the implied warranty of merchantability. The verdict sheet, as well as the jury instructions, specifically tied the strict products liability claim—but not the breach of warranty claim—to the defrost timer. Thus, a rational jury could have found that the defrost timer claim should be rejected, while also placing the source of the fire in the freezer. *Bradley v Earl B. Feiden, Inc.*, 8 NY3d 265.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

STATE AID TO SCHOOL DISTRICTS.

1. Remedy for Failure to Provide Sound Basic Education — Compliance — Appointment of Referees to Hear and Report.—Supreme Court erred in appointing a panel of referees “to hear and report with recommendations” on whether the State had complied with the mandate of the Court of Appeals (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893 [2003]) that children in New York City’s public schools be provided with a sound basic education, as required by the Education Article of the New York Constitution. The State, not Supreme Court, was ordered by the Court of Appeals to ascertain the cost of a sound basic education in New York City. Supreme Court should not have endorsed an examination in which the cost of a sound basic education in New York was calculated anew, when the state budget plan had already reasonably calculated that cost. Supreme Court, accordingly, erred in confirming the report of the referees. *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14.

SCHOOLS—Cont'd

2. Remedy for Failure to Provide Sound Basic Education — Compliance — Reasonableness of State's Plan.—The Governor's proposed State Education Reform Plan reasonably concluded that additional annual operating funds in the amount of \$1.93 billion, appropriately adjusted with reference to the latest version of the Geographic Cost of Education Index and inflation since 2004, would ensure children in New York City's public schools the opportunity for a sound basic education, as required by the Education Article of the New York Constitution (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893 [2003]). Judicial deference to the Legislature's financing plan was justified by the Judiciary's limited access to the controlling economic and social facts and by respect for the doctrine of separation of powers. The use of a cost-effectiveness filter was rationally defensible, and the conclusion that New York City could attain minimal constitutional standards while spending less than the higher-spending group of successful school districts was not irrational. Further, the weightings utilized for children with special needs also had record support. *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14.

3. Remedy for Failure to Provide Sound Basic Education — Compliance — Capital Improvement Plan Unnecessary.—In determining whether the State was in compliance with the Court of Appeals mandate (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893 [2003]) that children in New York City's public schools be provided the opportunity for a sound basic education, as required by the Education Article of the New York Constitution, the Appellate Division's directive that the Governor and Legislature implement a capital improvement plan was unnecessary inasmuch as the Legislature has set forth a capital construction program designed to allow the State to remedy inadequacies in New York City schools facilities (L 2006, ch 58, part A; ch 61, part I). *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14.

4. Remedy for Failure to Provide Sound Basic Education — Compliance — Additional Accountability Mechanisms Unnecessary.—In determining whether the State was in compliance with the Court of Appeals mandate (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893 [2003]) that children in New York City's public schools be provided the opportunity for a sound basic education, as required by the Education Article of the New York Constitution, the Appellate Division properly struck Supreme Court's requirement of state costing-out studies every four years and requirement that the New York City Department of Education prepare a comprehensive "sound basic education" plan, to ensure accountability. Minimally adequate accountability mechanisms were already in place for the evaluation of New York schools. *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14.

SEPARATION.

See HUSBAND AND WIFE.

SLANDER.

See LIBEL AND SLANDER.

SOCIAL SERVICES.**EMERGENCY ASSISTANCE.**

1. Emergency Shelter Allowance — Inclusion of SSI Benefits.—Although section 131-c (1) of the Social Services Law excludes minors who receive federal supplemental security income (SSI) from the family group for purposes of determining eligibility for and the level of public assistance, the Legislature superseded this requirement in its appropriation for the emergency shelter allowance (ESA) for the 2006-2007 fiscal year (L 2006, ch 53, § 1, eff Apr. 1, 2006). In enacting section 131-c (1) to comply with federal law, it was the intent of the Legislature to mandate exclusion of SSI recipients from the filing unit, rather than merely vest the Commissioner of the New York State Office of Temporary and Disability Assistance (OTDA) with discretion to exclude them. The language of the 2006-2007 appropriation clearly superseded any inconsistent provision of state law, which necessarily included section 131-c (1). Further, OTDA was unambiguously instructed to consider ap-

SOCIAL SERVICES—Cont'd

plicants' and/or their family members' SSI benefits as income when budgeting ESAs. Accordingly, in determining petitioner's public assistance benefits, including her ESA as a person diagnosed with acquired immunodeficiency syndrome or human immunodeficiency virus-related illness, petitioner's daughter's SSI benefits should have been included as family income as of April 1, 2006. *Matter of Melendez v Wing*, 8 NY3d 598.

MEDICAL ASSISTANCE.

2. Eligibility — Recoupment from "Community Spouse."—Respondent County Commissioner of Social Services (County DSS) was entitled to recoup Medicaid payments made on behalf of decedent's husband from decedent's estate and a trust that she created. The anti-alienation provision of the Social Security Act (42 USC § 407 [a]), which prohibits the assignment or transfer of rights to payment of Social Security benefits, and protects moneys paid to recipients from "execution, levy, attachment, garnishment, or other legal process, or to the operation of any bankruptcy or insolvency law," did not foreclose the County DSS from attributing the husband's Social Security benefits to decedent, the "community spouse," pursuant to New York's income-first policy. Because the County DSS properly applied the income-first method when it deemed the husband's monthly Social Security income to meet decedent's "minimum monthly maintenance needs allowance" (see 42 USC § 1396r-5 [b], [d] [3]), decedent had sufficient means to pay for the husband's nursing home care as a matter of law when the husband became eligible for Medicaid. Accordingly, an implied contract for the husband's care was created under Social Services Law § 366 (3) (a). *Matter of Tomeck*, 8 NY3d 724.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATE.**CLAIM AGAINST STATE.**

1. Failure of Claim to Include Amount of Monetary Damages Sought.—In a personal injury claim against the State, claimant's failure to include the "total sum" of monetary damages in her claim, as required by Court of Claims Act § 11 (b), was a jurisdictional defect requiring dismissal of her claim. Section 11 plainly requires that the claim state the total sum claimant is seeking. Claimant's claim—entirely lacking any amount of monetary damages—failed to satisfy the requirements of the statute. All of the requirements in section 11 (b) are substantive conditions on the State's waiver of sovereign immunity. Strict compliance with the jurisdictional requirements of the Court of Claims Act is necessary. *Kolnacki v State of New York*, 8 NY3d 277.

COMPTROLLER.

2. Review and Approval of Contracts Executed by Public Corporation.—The Comptroller, when acting pursuant to a request by a public corporation, has the discretion under NY Constitution, article X, § 5 to review and approve contracts executed by that entity. Article X, § 5, which directs that "[t]he accounts of every . . . public corporation . . . shall be subject to the supervision of the state comptroller," does not preclude the Comptroller from inquiring into the efficiency and effectiveness of a public corporation's expenditure of its own funds where the public corporation expressly requests the Comptroller's oversight. Accordingly, in disapproving a contract entered into between petitioner and the New York State Thruway Authority, the Comptroller did not exceed his power under article X, § 5. The Authority had requested the Comptroller's review and approval, and after the Comptroller determined that petitioner, which had been deemed the "lowest responsible bidder" by the Authority, was a "non-responsible bidder," the Authority rescinded its award of the contract to petitioner. The review and approval functions undertaken by the Comptroller were incidental to the supervision of the Authority's accounts because the contract called for the expenditure of a substantial sum of the Authority's funds. *Matter of Worth Constr. Co., Inc. v Hevesi*, 8 NY3d 548.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**FEDERAL PREEMPTION.**

1. Renewal Leases for Rent-Stabilized Tenants Receiving Federal Section 8 Rent Subsidies.—42 USC § 1437f, which was amended in 1998 to eliminate the so-called “endless lease rule” and provides that “during the term of the lease, the owner shall not terminate [a Section 8] tenancy except for serious or repeated violation of the terms and conditions of the lease, for violation of applicable Federal, State, or local law, or for other good cause” (42 USC § 1437f [d] [1] [B] [ii]), does not preempt the requirement of New York law that a landlord’s prior acceptance of a Section 8 subsidy for a rent-stabilized tenant is a term of a lease that must be continued in a renewal lease (Rent Stabilization Code [9 NYCRR] § 2522.5 [g] [1]). The legislative history indicates that no preemption was intended. The legislative intent was to remove federal obstacles to landlords’ participation in the Section 8 program. With respect to the question of implied preemption, federal law does not so occupy the field of housing law that there is no room for state regulation. Finally, there is no conflict between federal and state law such as would suggest implied preemption. It is not impossible to comply with both federal and state law in this area, Rent Stabilization Code (9 NYCRR) § 2522.5 (g) (1) is no obstacle to accomplishing and executing the purpose of 42 USC § 1437f, and it was not the intent of Congress to remove state and local law protections afforded to Section 8 recipients. *Rosario v Diagonal Realty, LLC*, 8 NY3d 755.

STIPULATIONS.**STIPULATION OF SETTLEMENT.**

1. High-Low Agreement — Disclosure of Agreement to Court and Nonagreeing Defendant Required.—When a plaintiff and a defendant enter into a high-low agreement in a multi-defendant action which limits the agreeing defendant’s liability to a predetermined range and requires that defendant to remain a party to the litigation, the parties must disclose the existence of the agreement and its terms to the court and the nonagreeing defendant(s). Accordingly, in an action alleging that plaintiff contracted mesothelioma as a result of his exposure to asbestos contained in products manufactured and distributed by defendants, Supreme Court’s failure to disclose to all of the parties the existence of a high-low agreement between plaintiffs and one defendant prejudiced the determination of the rights and liabilities of the nonagreeing defendant at trial and warranted a new trial on liability and damages. The agreement furnished plaintiffs with an incentive to maximize the nonagreeing defendant’s liability while minimizing the agreeing defendant’s. Nondisclosure also deprived the nonagreeing defendant of the opportunity to seek appropriate procedural and evidentiary rulings from the trial court and argue the significance of the high-low agreement to the jury. *Matter of Eighth Jud. Dist. Asbestos Litig.*, 8 NY3d 717.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SURETYSHIP AND GUARANTEE.**SCOPE OF GUARANTEE.**

1. Construction of Early Termination Clause in Guaranty of Rental Payments under Commercial Lease.—Defendants, who had guaranteed the commercial tenant’s payment of rent under a guaranty that contained an early termination

SURETYSHIP AND GUARANTEE—Cont'd

clause providing that the guarantors' obligations would cease at the conclusion of three years if the tenant had not been "in monetary default . . . at any time" during the first three years of the lease, were not personally liable under the guaranty when the tenant prematurely vacated the premises more than three years into the lease term. The tenant's untimely payment of the rent during the first three years of the lease did not amount to a "monetary default" under the terms of the lease and guaranty. Under the lease, a default in the payment of rent did not ripen into a "monetary default" until the landlord had first served a notice of default and the default had remained uncured for at least seven days. Despite the tenant's failure timely to meet its rent obligation, the rent was paid each month and the landlord accepted the rent without issuing a single notice of default complaining of late payment. Because there was no monetary default under the lease, the early termination clause of the guaranty remained in full force and effect and expired by its terms before the tenant prematurely vacated the premises. *Madison Ave. Leasehold, LLC v Madison Bentley Assoc. LLC*, 8 NY3d 59.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**ASSESSMENT.**

1. Limitation on Increases of Assessed Value of Individual Parcels — Full Market Valuation.—The increase in the appraised or full market value of petitioners' residential property, resulting from a mandated countywide revaluation, did not violate Real Property Tax Law § 1805 (1), which limits increases on assessments on residential property in Nassau County to not more than six percent per year and 20% over any five-year period. As a result of lowering the fractional assessment percentage for class one residential property, the County limited the number of residential parcels with fractional assessments exceeding the six percent cap. Section 1805 (1) places no limits on changes in the fractional assessment rate, which is set by the assessing unit, nor does it limit the ultimate tax to be imposed. The statute was intended to permit Nassau County and New York City to continue the practice of assessing property at percentages of market value. Pursuant to section 1805 (1), the County appropriately brought assessed values in line with market values over three years in order to reduce accumulated and significant tax disparities between poorer and more affluent residential areas, without changing the tax burden of the residential class as a whole. *Matter of O'Shea v Board of Assessors of Nassau County*, 8 NY3d 249.

2. Specialty Property — Reproduction-Cost-New-Less-Depreciation Method of Valuation — Functional Obsolescence Due to Excess Construction Costs.—In a proceeding challenging real property tax assessments on petitioner's electric generating station, a specialty property that was appraised using the Reproduction-Cost-New-Less-Depreciation (RCNLD) method of valuation, the court did not err as a matter of law in allowing consideration of functional obsolescence due to excess construction costs in determining a fair and realistic value for the generating station. Valuation is largely a question of fact, and the courts have considerable discretion in reviewing the relevant evidence as to the specific property before them. The RCNLD method of valuation estimates the cost to construct a replica using the same materials and techniques as the subject facility (reproduction cost), less depreciation. Functional obsolescence due to excess construction costs is the difference between the property's reproduction cost and the cost of replacing the existing property with a facility of similar productive capacity using modern materials and technology (replacement cost). On the particular record here, there was no legal error in allowing consideration of functional obsolescence due to excess construction costs in calculating depreciation. *Matter of Consolidated Edison Co. of N.Y., Inc. v City of New York*, 8 NY3d 591.

TORTS.**CONVERSION.**

1. Organ Donation — Rights of Specified Donee.—Plaintiff, as a specified donee of an incompatible kidney, had no common-law right to the organ and, thus, no viable cause of action for conversion against defendants, who had allocated the kidney to another patient. A conversion takes place when someone, intentionally and without authority, assumes or exercises control over personal property belonging to someone else, interfering with that person's right of possession. Plaintiff herein had no possessory right or interest in the property at issue, i.e., the kidney. There is no common-law property right in a dead body. *Colavito v New York Organ Donor Network, Inc.*, 8 NY3d 43.

2. Conversion of Electronic Records and Data.—Electronic records that are stored on a computer and are indistinguishable from printed documents are subject to a common-law claim of conversion in New York. Although intangible property interests do not strictly satisfy the merger test, which reflects the concept that such interests can be converted only by exercising dominion over the paper document that represents that interest, there is no compelling reason to prohibit conversion for redress of a misappropriation of intangible property. Electronic documents and records stored on a computer can easily be converted by mere computer entries. Because such information is of value regardless of whether the format in which the information is stored is tangible or intangible, the protections of the law should apply equally to both forms—physical and virtual. *Thyroff v Nationwide Mut. Ins. Co.*, 8 NY3d 283.

INTERFERENCE WITH CONTRACTUAL RELATIONS.

3. Availability of Defense of Economic Justification.—A generalized economic interest in soliciting business for profit does not constitute a defense to a claim of tortious interference with an existing contract for an alleged tortfeasor with no previous economic relationship with the breaching party. In a contract interference case, the economic interest defense is applicable where the defendant claims that it acted to protect its own legal or financial stake in the breaching party's business. A defendant who is simply plaintiff's competitor and knowingly solicits its contract customers is not economically justified in procuring the breach of contract. However, sending regular advertising and soliciting business in the normal course does not constitute inducement of breach of contract. A competitor's ultimate liability will depend on a showing that the inducement exceeded a minimum level of ethical behavior in the marketplace. *White Plains Coat & Apron Co., Inc. v Cintas Corp.*, 8 NY3d 422.

TOWNS.

See MUNICIPAL CORPORATIONS.

TRIAL.

NEW TRIAL. *See* STIPULATIONS, 1.

VERDICT.

1. Setting Verdict Aside.—In a negligence action arising from plaintiff's fall down a subway staircase wherein plaintiff claimed that she slipped on a folded, grease-stained newspaper, the Appellate Division properly reversed a judgment entered upon a jury verdict finding plaintiff and defendant each 50% at fault in the happening of the accident, and properly dismissed the complaint, for the reasons stated at the Appellate Division, which concluded that a verdict should not be allowed to stand where it is based on testimony which is utterly incredible as a matter of law because it is manifestly untrue, physically impossible or contrary to common experience; that it was incredible that plaintiff, who did not see the newspaper before she fell, nonetheless had observed the newspaper two days earlier; that being unable to distinguish to any significant degree the paper which caused her fall, plaintiff had the keen powers of observation to note that the paper two days earlier was folded and had a grease stain; and that after two days of pedestrian traffic the same

TRIAL—Cont’d

newspaper would remain virtually undisturbed. *Cruz v New York City Tr. Auth.*, 8 NY3d 825.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS’ COMPENSATION.**AWARD.**

1. Schedule Loss of Use Award — Lump-Sum Payment Not Permitted.—Pursuant to Workers’ Compensation Law § 25, compensation for loss of use of a body part due to permanent partial disability—known as a “schedule loss of use” award—must be made over time. The statute’s directive that payments be made “periodically” precludes a policy of lump-sum payment of such awards. Section 25 explicitly requires periodic payment of compensation, even if such compensation is payable at a period other than biweekly or as wages customarily accrue, and it does not contemplate a policy of payment as one lump sum. The phrase “at any other period” in Workers’ Compensation Law § 25 (1) (b) cannot be read to include a one-time payment. *Matter of LaCroix v Syracuse Exec. Air Serv., Inc.*, 8 NY3d 348.

2. Schedule Loss of Use Award — Lump-Sum Payment Not Permitted.—In a workers’ compensation proceeding wherein the parties stipulated to a schedule loss of use award, the Appellate Division improperly affirmed a decision of the Workers’ Compensation Board directing a lump-sum payment of the award. Under the decision in *Matter of LaCroix v Syracuse Exec. Air Serv., Inc.* (8 NY3d 348 [2007]), a schedule loss of use award must be paid over time and not in a lump-sum payment. *Matter of Van Horn v County of Cayuga*, 8 NY3d 1015.

SPECIAL FUNDS.

3. Timely Claim for Reimbursement.—The State Insurance Fund timely filed a claim for reimbursement from the Special Disability Fund on behalf of a worker whose claim was closed without a finding of permanent disability, after the 104-week period had expired, but was later reopened and resulted in a determination of permanency. Where the Special Disability Fund is responsible for reimbursement, the notice for reimbursement must be filed with the Workers’ Compensation Board, in writing, prior to the final determination of permanency, but no more than 104 weeks after the date of disability or, in the event of reopening a closed case, no later than a permanency determination upon reopening (Workers’ Compensation Law § 15 [8] [f]). Pursuant to section 15 (8) (f), the 104-week limitation does not apply to a case that has been closed without a finding of permanent disability and then

WORKERS' COMPENSATION—Cont'd

reopened, even when the closure occurs more than 104 weeks after the date of disability. *Matter of Somers v Demco*, 8 NY3d 831.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

BUSINESS CORPORATION LAW.

- § 1005 (a) (1) (Nonjudicial dissolution; procedure after dissolution; winding up of affairs). *Tedesco v A.P. Green Indus., Inc.*, 8 NY3d 243.
- § 1006 (a) (Nonjudicial dissolution; corporate action and survival of remedies after dissolution). *Tedesco v A.P. Green Indus., Inc.*, 8 NY3d 243.
- § 1006 (b) (Nonjudicial dissolution; corporate action and survival of remedies after dissolution). *Tedesco v A.P. Green Indus., Inc.*, 8 NY3d 243.

CIVIL PRACTICE LAW AND RULES.

- 203 (a) (Method of computing periods of limitation generally; accrual of cause of action). *Zorn v Gilbert*, 8 NY3d 933.
- 214 (6) (Three-year statute of limitations; for malpractice other than medical, dental or podiatric malpractice). *Zorn v Gilbert*, 8 NY3d 933.
- 217 (1) (Proceeding against body or officer; four-month statute of limitations). *Walton v New York State Dept. of Correctional Servs.*, 8 NY3d 186.
- 326 (b) (Procedure on removal; order and subsequent proceedings). *Moya v Penske Truck Leasing Co.*, 8 NY3d 995.
- 901 (b) (Prerequisites to class action; statute creating or imposing penalty or minimum measure of recovery). *Sperry v Crompton Corp.*, 8 NY3d 204.
- 1006 (f) (Interpleader; discharge of stakeholder). *Manufacturer's & Traders Trust Co. v Reliance Ins. Co.*, 8 NY3d 583.
- 1008 (Parties generally; answer of third-party defendant; defenses). *Giandana v Providence Rest Nursing Home*, 8 NY3d 859.
- 5001 (a) (Interest to verdict, report or decision). *Manufacturer's & Traders Trust Co. v Reliance Ins. Co.*, 8 NY3d 583.
- 5511 (Permissible appellant and respondent). *Matter of Kimberly Carolyn J.*, 8 NY3d 968.
- 5513 (b) (Time to move for permission to appeal). *Pilch v Board of Educ. of City of N.Y.*, 8 NY3d 828; *Passalacqua v State of New York*, 8 NY3d 895; *Matter of White v Walsh*, 8 NY3d 896; *Matter of Foreclosure of Tax Liens*, 8 NY3d 905; *Mercier v Powell*, 8 NY3d 906; *Matter of Melvin J.*, 8 NY3d 957; *Matter of Christine G.*, 8 NY3d 993.
- 5601 (Appeals to Court of Appeals as of right). *People v Perez*, 8 NY3d 841; *People v Kampf*, 8 NY3d 857; *People ex rel. Mitchell v Lape*, 8 NY3d 876; *Boomer v Gross*, 8 NY3d 934; *People v Harris*, 8 NY3d 935; *People v Kirksey*, 8 NY3d 979; *People ex rel. Brown v Conway*, 8 NY3d 997.
- 5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *Kashelkar v State of New York*, 8 NY3d 977.
- 5602 (Appeals to Court of Appeals by permission). *People ex rel. Brown v Conway*, 8 NY3d 842; *Chepilko v Cornell Univ.*, 8 NY3d 856; *People ex rel. Mitchell v Lape*, 8 NY3d 876; *People v Brannum*, 8 NY3d 970.
- 5602 (a) (Appeals to Court of Appeals by permission). *B & B Manhattan, LLC v Sack*, 8 NY3d 892; *Batac v Capital One Bank*, 8 NY3d 892; *North Shore Envtl. Solutions, Inc. v Glass*, 8 NY3d 894; *Kendle v Town of Amsterdam*, 8 NY3d 940; *Bing v Fairfield Presidential Mgt. Corp.*, 8 NY3d 954; *Moya v Penske Truck Leasing Co.*, 8 NY3d 995; *Matter of Manufacturers & Traders Trust Co. v Myers*, 8 NY3d 1019.
- 5602 (a) (2) (Appeals to Court of Appeals by permission). *Millenium Envtl., Inc. v City of Long Beach of State of N.Y.*, 8 NY3d 915; *Steel Los III, LP v Power Auth. of State of N.Y.*, 8 NY3d 998.

CIVIL PRACTICE LAW AND RULES—Continued

7803 (3) (Proceeding against body or officer; questions raised; whether determination was made in violation of lawful procedure). *Walton v New York State Dept. of Correctional Servs.*, 8 NY3d 186.

7804 (f) (Proceeding against body or officer; procedure; objections in point of law). *Matter of Bethelite Community Church, Great Tomorrows Elementary School v Department of Envtl. Protection of City of N.Y.*, 8 NY3d 1001.

CIVIL SERVICE LAW.

Art 14 (Public Employees' Fair Employment Act). *Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd.*, 8 NY3d 226.

§ 65 (Provisional appointments). *Matter of City of Long Beach v Civil Serv. Empls. Assn., Inc.—Long Beach Unit*, 8 NY3d 465.

§ 80 (Suspension or demotion upon abolition or reduction of positions). *Matter of County of Chautauqua v Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, County of Chautauqua Unit 6300, Chautauqua County Local 807*, 8 NY3d 513.

§ 80 (1) (Suspension or demotion upon abolition or reduction of positions). *Matter of County of Chautauqua v Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, County of Chautauqua Unit 6300, Chautauqua County Local 807*, 8 NY3d 513.

§ 80 (4) (Suspension or demotion upon abolition or reduction of positions; units for suspension or demotion in civil divisions). *Matter of County of Chautauqua v Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO, County of Chautauqua Unit 6300, Chautauqua County Local 807*, 8 NY3d 513.

§ 202 (Public Employees' Fair Employment Act; right of organization). *Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd.*, 8 NY3d 226.

CORRECTION LAW.

§ 168-a (2) (a) (i) (Sex Offender Registration Act; "sex offense" defined; conviction of certain offenses). *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.

§ 168-a (2) (d) (i) (Sex Offender Registration Act; "sex offense" defined; conviction in foreign jurisdiction of offense containing essential elements of New York offense subject to registration). *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.

§ 168-a (2) (d) (iii) (Sex Offender Registration Act; "sex offense" defined; conviction of certain federal offenses). *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.

COURT OF CLAIMS ACT.

§ 11 (b) (Filing, service and contents of claim or notice of intention). *Kolnacki v State of New York*, 8 NY3d 277.

CRIMINAL PROCEDURE LAW.

Art 440 (Postjudgment motions). *People v Louree*, 8 NY3d 541.

2.10 (23) (Persons designated as peace officers; parole officers). *People v Bratton*, 8 NY3d 637.

30.10 (Timeliness of prosecutions; periods of limitation). *People v Parilla*, 8 NY3d 654.

40.10 (1) (Previous prosecution; "offense" defined). *Matter of Polito v Walsh*, 8 NY3d 683.

40.20 (1) (Previous prosecution; when bar to second prosecution). *Matter of Polito v Walsh*, 8 NY3d 683.

40.20 (2) (Previous prosecution; when bar to second prosecution). *Matter of Polito v Walsh*, 8 NY3d 683.

40.20 (2) (f) (Previous prosecution; when bar to second prosecution; exception; termination of prosecution in other jurisdiction due to insufficiency of evidence). *Matter of Polito v Walsh*, 8 NY3d 683.

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- 140.25 (1) (a) (Arrest without warrant; by peace officer; commission of offense in officer's presence). *People v Bratton*, 8 NY3d 637.
- 220.10 (4) (Plea; kind of pleas; multiple offenses). *People v Castillo*, 8 NY3d 959.
- 220.60 (3) (Plea; change of plea; withdrawal of plea). *People v Louree*, 8 NY3d 541.
- 270.35 (1) (Trial jury; discharge of juror). *People v Dukes*, 8 NY3d 952.
- 310.30 (Jury deliberation; request for information). *People v Kisoon*, 8 NY3d 129.
- 400.30 (Procedure for determining amount of fine based upon defendant's gain from offense). *People v Tzitzikalakis*, 8 NY3d 217.
- 400.30 (4) (Procedure for determining amount of fine based upon defendant's gain from offense; burden and standard of proof; evidence). *People v Tzitzikalakis*, 8 NY3d 217.
- 450.90 (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Perez*, 8 NY3d 841; *People v Kampf*, 8 NY3d 857; *People v Harris*, 8 NY3d 935; *People v Kirksey*, 8 NY3d 979.
- 460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Lagana*, 8 NY3d 835; *People v Rivera*, 8 NY3d 836; *People v Carnett*, 8 NY3d 852; *People v Means*, 8 NY3d 853; *People v Torres*, 8 NY3d 853; *People v Rizzo*, 8 NY3d 895; *People v Rolle*, 8 NY3d 916; *People v Fludd*, 8 NY3d 940; *People v Bennett*, 8 NY3d 995; *People v Louis*, 8 NY3d 996.
- 460.60 (3) (Stay of judgment pending appeal to Court of Appeals from intermediate appellate court). *People v Sedlock*, 8 NY3d 837.
- 710.30 (1) (b) (Motion to suppress evidence; notice to defendant of intention to offer evidence). *People v Grajales*, 8 NY3d 861.
- 710.60 (1) (Motion to suppress evidence; procedure). *People v Bryant*, 8 NY3d 530.

DOMESTIC RELATIONS LAW.

- § 72 (1) (Special proceeding or habeas corpus to obtain visitation rights in respect to certain infant grandchildren). *Matter of E.S. v P.D.*, 8 NY3d 150.

EXECUTIVE LAW.

- § 71 (Attorney General to appear in cases involving constitutionality of act of Legislature). *Rosario v Diagonal Realty*, 8 NY3d 917.
- § 259-i (3) (a) (i) (Procedures for conduct of work of State Board of Parole; revocation of parole; parole violation; issuance of warrant). *People v Bratton*, 8 NY3d 637.

FAMILY COURT ACT.

- § 413 (Child Support Standards Act). *Matter of Greene County Dept. of Social Servs. v Ward*, 8 NY3d 1007.
- § 512 (a) (Paternity proceedings; "child born out of wedlock" defined). *Matter of Greene County Dept. of Social Servs. v Ward*, 8 NY3d 1007.
- § 1056 (1) (Child protective proceedings; order of protection). *Matter of Sheena D.*, 8 NY3d 136.

GENERAL BUSINESS LAW.

- § 340 *et seq.* (Donnelly Act). *Sperry v Crompton Corp.*, 8 NY3d 204.
- § 340 (5) (Contracts or agreements for monopoly or in restraint of trade illegal and void; treble damages). *Sperry v Crompton Corp.*, 8 NY3d 204.

GENERAL MUNICIPAL LAW.

- Art 16 (Urban Development Action Area Act). *328 Owners Corp. v 330 W. 86 Oaks Corp.*, 8 NY3d 372.
- § 50-e (2) (Notice of claim). *Rosenbaum v City of New York*, 8 NY3d 1.
- § 207-c (Payment of salary, wages, medical and hospital expenses of police officers with injuries or illness incurred in performance of duties). *Matter of Park v Kapica*, 8 NY3d 302.
- § 207-c (3) (Payment of salary, wages, medical and hospital expenses of police officers with injuries or illness incurred in performance of duties). *Matter of Park v Kapica*, 8 NY3d 302.

INSURANCE LAW.

§ 3234 (a) (2) (Preexisting condition provisions in group and blanket disability policies; no preexisting condition provision to exclude coverage for period in excess of 12 months). *Benesowitz v Metropolitan Life Ins. Co.*, 8 NY3d 661.

JUDICIARY LAW.

§ 44 (8) (a), (c) (Suspension of judges). *Matter of Marshall*, 8 NY3d 897.

LABOR LAW.

§ 240 (1) (Scaffolding and other devices for use of employees; duties of contractors and owners to supply safety devices). *Broggy v Rockefeller Group, Inc.*, 8 NY3d 675.

MENTAL HYGIENE LAW.

Art 9 (Hospitalization of mentally ill). *State of N.Y. ex rel. Harkavy v Consilvio*, 8 NY3d 645.

Art 10 (Sex offenders requiring civil commitment or supervision). *State of N.Y. ex rel. Harkavy v Consilvio*, 8 NY3d 645.

§ 10.03 (g) (5) (Sex offenders requiring civil commitment or supervision; “detained sex offender” defined). *State of N.Y. ex rel. Harkavy v Consilvio*, 8 NY3d 645.

NEW YORK CITY ADMINISTRATIVE CODE.

§ 7-201 (c) (2) (Actions against city; prior written notice of defect). *Oboler v City of New York*, 8 NY3d 888.

NEW YORK CONSTITUTION.

Art I, § 6 (Grand jury; waiver of indictment; right to counsel; informing accused; double jeopardy; self-incrimination; waiver of immunity by public officers; due process of law). *People v Bradley*, 8 NY3d 124; *Matter of Polito v Walsh*, 8 NY3d 683.

Art IV, § 8 (Departmental rules and regulations; filing; publication). *Cubas v Martinez*, 8 NY3d 611.

Art VI, § 3 (Jurisdiction of Court of Appeals). *Keane v Keane*, 8 NY3d 115; *Chepilko v Cornell Univ.*, 8 NY3d 856.

Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *People v Perez*, 8 NY3d 841; *People ex rel. Brown v Conway*, 8 NY3d 842; *People v Kampfer*, 8 NY3d 857; *People ex rel. Mitchell v Lape*, 8 NY3d 876; *B & B Manhattan, LLC v Sack*, 8 NY3d 892; *People v Harris*, 8 NY3d 935; *People v Kirksey*, 8 NY3d 979; *People ex rel. Brown v Conway*, 8 NY3d 997.

Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals). *Kashelkar v State of New York*, 8 NY3d 977.

Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Batac v Capital One Bank*, 8 NY3d 892; *Kendle v Town of Amsterdam*, 8 NY3d 940; *Bing v Fairfield Presidential Mgt. Corp.*, 8 NY3d 954; *Moya v Penske Truck Leasing Co.*, 8 NY3d 995; *Matter of Manufacturers & Traders Trust Co. v Myers*, 8 NY3d 1019.

Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Kashelkar v State of New York*, 8 NY3d 977.

Art VI, § 22 (e), (g) (Suspension of judges). *Matter of Marshall*, 8 NY3d 897.

Art X, § 5 (Public corporations; restrictions on creation and powers; accounts; obligations of). *Matter of Worth Constr. Co., Inc. v Hevesi*, 8 NY3d 548.

PARTNERSHIP LAW.

§ 40 (8) (Rules determining rights and duties of partners; subject to agreement of partners, consent of all partners required). *Bailey v Fish & Neave*, 8 NY3d 523.

PENAL LAW.

§ 10.00 (1) (“Offense” defined). *People v Bratton*, 8 NY3d 637.

§ 10.00 (9) (“Physical injury” defined). *People v Chiddick*, 8 NY3d 445.

§ 15.25 (Effect of intoxication upon liability). *People v Newton*, 8 NY3d 460.

§ 70.25 (2) (Concurrent and consecutive terms of imprisonment). *People v Rosas*, 8 NY3d 493.

PENAL LAW—Continued

- § 110.00 (Attempt to commit crime). *People v Kozlow*, 8 NY3d 554.
- § 120.05 (6) (Assault, second degree). *People v Chiddick*, 8 NY3d 445.
- § 125.12 (Vehicular manslaughter, second degree). *People v Litto*, 8 NY3d 692.
- § 125.27 (1) (a) (viii) (Murder, first degree; intentional murder; causing death of additional person). *People v Rosas*, 8 NY3d 493.
- § 130.05 (2) (former [d]) (Sex offenses; lack of consent). *People v Newton*, 8 NY3d 460.
- § 130.40 (former [3]) (Sodomy, third degree). *People v Newton*, 8 NY3d 460.
- § 140.25 (Burglary, second degree). *People v Chiddick*, 8 NY3d 445.
- § 160.15 (2) (Robbery, first degree; being armed with deadly weapon). *People v Castillo*, 8 NY3d 959.
- § 160.15 (4) (Robbery, first degree; displays what appears to be pistol, revolver, rifle, shotgun, machine gun or other firearm). *People v Castillo*, 8 NY3d 959.
- § 205.00 (2) (Escape and other offenses relating to custody; “custody” defined). *People v Antwine*, 8 NY3d 671.
- § 205.10 (2) (Escape, second degree). *People v Antwine*, 8 NY3d 671.
- § 235.22 (Former) (Disseminating indecent material to minors, first degree). *People v Kozlow*, 8 NY3d 554.
- § 235.22 (1) (Former) (Disseminating indecent material to minors, first degree; depiction of sexual conduct). *People v Kozlow*, 8 NY3d 554.
- § 263.16 (Possessing sexual performance by child). *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.

PUBLIC HEALTH LAW.

- Art 43 (Anatomical gifts). *Colavito v New York Organ Donor Network, Inc.*, 8 NY3d 43.
- Art 43-A (Request for consent to anatomical gift). *Colavito v New York Organ Donor Network, Inc.*, 8 NY3d 43.
- § 3306 (Schedules of controlled substances). *People v Litto*, 8 NY3d 692.
- § 4302 (4) (Anatomical gifts; persons who may become donees and purposes for which anatomical gifts may be made; any specific donee, for therapy or transplantation needed by him). *Colavito v New York Organ Donor Network, Inc.*, 8 NY3d 43.

REAL PROPERTY LAW.

- § 291 (Recording of conveyances). *Matter of MERSCORP, Inc. v Romaine*, 8 NY3d 90.
- § 316-a (Indexing and reindexing conveyances, mortgages and other instruments). *Matter of MERSCORP, Inc. v Romaine*, 8 NY3d 90.
- § 321 (Recording discharge of mortgage). *Matter of MERSCORP, Inc. v Romaine*, 8 NY3d 90.

REAL PROPERTY TAX LAW.

- § 1805 (1) (Limitation on increases of assessed value of individual parcels). *Matter of O’Shea v Board of Assessors of Nassau County*, 8 NY3d 249.

REGULATIONS OF COMMISSIONER OF MOTOR VEHICLES.

- 15 NYCRR 3.9 (a) (Driver’s licenses; Social Security number; identity procedures). *Cubas v Martinez*, 8 NY3d 611.

REGULATIONS OF DEPARTMENT OF INSURANCE.

- 11 NYCRR 65-3.5 (b) (Claims for personal injury protection; claim procedure; request for additional verification). *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 294.
- 11 NYCRR 65-3.8 (a) (1) (Claims for personal injury protection benefits; payment or denial of claim [30-day rule]; additional verification). *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 294.
- 11 NYCRR 65-3.8 (b) (3) (Claims for personal injury protection benefits; payment or denial of claim [30-day rule]; additional verification). *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 294.
- 11 NYCRR 65-3.8 (j) (Claims for personal injury protection benefits; payment or denial of claim [30-day rule]; computation of 30 calendar days after proof of claim). *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 294.

REGULATIONS OF DEPARTMENT OF INSURANCE—Continued

- 11 NYCRR 65-3.15 (Claims for personal injury protection benefits; computation of basic economic loss; priority of payments to health care providers). *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 294.

REGULATIONS OF DEPARTMENT OF SOCIAL SERVICES.

- 18 NYCRR 422.4 (Parental support of children receiving foster care). *Matter of Greene County Dept. of Social Servs. v Ward*, 8 NY3d 1007.

REGULATIONS OF DIVISION OF PAROLE.

- 9 NYCRR 8004.2 (Warrant for retaking and temporary detention). *People v Bratton*, 8 NY3d 637.

RENT STABILIZATION CODE.

- 9 NYCRR 2522.5 (g) (1) (Lease agreements; offering renewal lease on same terms and conditions). *Rosario v Diagonal Realty, LLC*, 8 NY3d 755.

RULES OF CITY OF NEW YORK.

- 15 RCNY 18-39 (Protection of New York City water supply from contamination; stormwater pollution prevention plans and impervious surfaces). *Matter of Nilsson v Department of Env'tl. Protection of City of N.Y.*, 8 NY3d 398.
- 15 RCNY 18-61 (a) (1) (iii) (Protection of New York City water supply from contamination; variances; mitigation measures). *Matter of Nilsson v Department of Env'tl. Protection of City of N.Y.*, 8 NY3d 398.
- 15 RCNY 18-61 (a) (1) (iv) (Protection of New York City water supply from contamination; variances; substantial hardship). *Matter of Nilsson v Department of Env'tl. Protection of City of N.Y.*, 8 NY3d 398.

RULES OF COURT OF APPEALS.

- 22 NYCRR 500.22 (b) (2) (Motions for permission to appeal in civil cases; content; timeliness). *Matter of Miles-Stallworth v Lakeshore Nursing Home*, 8 NY3d 978; *Matter of Kainth v Kainth*, 8 NY3d 1003.
- 22 NYCRR 500.23 (Amicus curiae relief). *Nyack Hosp. v General Motors Acceptance Corp.*, 8 NY3d 868; *Rivera v Anilesh*, 8 NY3d 942; *Matter of Consolidated Edison Co. of N.Y., Inc. v City of New York*, 8 NY3d 966; *Matter of Simone D.*, 8 NY3d 998.
- 22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *Benesowitz v Metropolitan Life Ins. Co.*, 8 NY3d 833; *Reliance Ins. Co. v Polyvision Corp.*, 8 NY3d 854; *O'Mara v Town of Wappinger*, 8 NY3d 957; *ITC Ltd. v Punchgini, Inc.*, 8 NY3d 994.

SESSION LAWS.

- 1936, ch 104, § 7, as amended by L 1941, ch 812, § 1 (Westchester County Police Act; discipline and charges; hearing). *Matter of Park v Kapica*, 8 NY3d 302.
- 2006, ch 53, § 1 (Aid-to-Localities Budget). *Matter of Melendez v Wing*, 8 NY3d 598.
- 2006, ch 58, part A (Computation of school aid). *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14.
- 2006, ch 61, part I (EXCEL school facility projects). *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14.
- 2007, ch 7 (Sex Offender Management and Treatment Act). *State of N.Y. ex rel. Harkavy v Consilvio*, 8 NY3d 645.

SOCIAL SERVICES LAW.

- § 131-c (1) (Inclusion of parents and siblings of minor in public assistance household; exception for recipients of federal supplemental security income). *Matter of Melendez v Wing*, 8 NY3d 598.
- § 366 (3) (a) (Medical assistance for needy persons; eligibility). *Matter of Tomeck*, 8 NY3d 724.
- § 373-a (Medical histories of children legally freed for adoption). *Ross v Louise Wise Servs., Inc.*, 8 NY3d 478.
- § 398 (6) (f) (Additional powers and duties of commissioners of public welfare and certain city public welfare officers in relation to children; voluntary surrender of child). *Matter of Greene County Dept. of Social Servs. v Ward*, 8 NY3d 1007.

STATE ADMINISTRATIVE PROCEDURE ACT.

§ 202 (1) (Rule making procedure; notice of proposed rule making). *Cubas v Martinez*, 8 NY3d 611.

UNIFORM COMMERCIAL CODE.

§ 3-419 (3) (Commercial paper; conversion of instrument; innocent representative). *B.D.G.S., Inc. v Balio*, 8 NY3d 106.

§ 8-102 (a) (4) (Investment securities; “certificated security” defined). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (13) (i) (Investment securities; “registered form” defined; security certificate to specify person entitled to security). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (13) (ii) (Investment securities; “registered form” defined; registration on transfer books maintained by issuer). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (15) (Investment securities; “security” defined). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (15) (i) (Investment securities; “security” defined; obligation represented by security certificate; transfer). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (15) (ii) (Investment securities; “security” defined; obligation one of class or series or divisible into class or series of shares). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (15) (iii) (A) (Investment securities; “security” defined; obligation dealt in or traded on securities exchanges or securities markets). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

§ 8-102 (a) (16) (Investment securities; “security certificate” defined). *Highland Capital Mgt. LP v Schneider*, 8 NY3d 406.

UNITED STATES CODE.

18 USC § 1959 (a) (Violent crimes in aid of racketeering activity; murder in aid of racketeering). *Matter of Polito v Walsh*, 8 NY3d 683.

18 USC § 2252A (a) (5) (B) (Certain activities relating to material constituting or containing child pornography; possession of child pornography). *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745.

29 USC § 157 (National Labor Relations Act; right of employees as to organization and collective bargaining). *Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd.*, 8 NY3d 226.

42 USC § 407 (a) (Federal old-age, survivors and disability insurance benefits; right of any person to any future payment not to be transferable or assignable). *Matter of Tomeck*, 8 NY3d 724.

42 USC § 1396r-5 (b) (Medical assistance; treatment of income and resources for certain institutionalized spouses). *Matter of Tomeck*, 8 NY3d 724.

42 USC § 1396r-5 (d) (3) (Medical assistance; treatment of income and resources for certain institutionalized spouses; minimum monthly maintenance needs allowance of community spouse). *Matter of Tomeck*, 8 NY3d 724.

42 USC § 1437f (Low-income housing assistance). *Rosario v Diagonal Realty, LLC*, 8 NY3d 755.

42 USC § 1437f (d) (1) (B) (ii) (Low-income housing assistance; termination of tenancy during lease term). *Rosario v Diagonal Realty, LLC*, 8 NY3d 755.

UNITED STATES CONSTITUTION.

1st Amend (Freedom of religion; freedom of speech and press; peaceful assembly). *People v Barton*, 8 NY3d 70.

5th Amend (Due process of law; privilege against self-incrimination). *People v Havrish*, 8 NY3d 389; *Matter of Polito v Walsh*, 8 NY3d 683.

6th Amend (Jury trials for crimes; right to counsel). *People v Gillian*, 8 NY3d 85; *People v Bradley*, 8 NY3d 124.

VEHICLE AND TRAFFIC LAW.

§ 114-a (“Drug” defined). *People v Litto*, 8 NY3d 692.

VEHICLE AND TRAFFIC LAW—Continued

- § 490 (3) (a) (i) (Non-driver identification card; issuance; Social Security number required). *Cubas v Martinez*, 8 NY3d 611.
- § 502 (1) (Drivers' licenses; requirements for licensing; proof of identity; Social Security number required). *Cubas v Martinez*, 8 NY3d 611.
- § 502 (6) (Drivers' licenses; requirements for licensing; renewal of license). *Cubas v Martinez*, 8 NY3d 611.
- § 508 (2) (Drivers' licenses; administrative procedures; applicant to furnish all information required by statute and other information deemed appropriate by commissioner). *Cubas v Martinez*, 8 NY3d 611.
- § 1192 (3) (Operating motor vehicle while under influence of alcohol or drugs; driving while intoxicated). *People v Litto*, 8 NY3d 692.
- § 1192 (4) (Operating motor vehicle while under influence of alcohol or drugs; driving while ability impaired by drugs). *People v Litto*, 8 NY3d 692.

VILLAGE LAW.

- § 7-712-a (5) (b) (Board of appeals procedure; filing of administrative decision and time of appeal). *Matter of Palm Mgt. Corp. v Goldstein*, 8 NY3d 337.

WORKERS' COMPENSATION LAW.

- § 15 (8) (f) (Schedule in case of preexisting disability; Special Disability Fund; timely notice). *Matter of Somers v Demco*, 8 NY3d 831.
- § 25 (Compensation, how payable). *Matter of LaCroix v Syracuse Exec. Air Serv., Inc.*, 8 NY3d 348.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|--|
| 1. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 2. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 3. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 4. 54 NY2d 137 (People v Baldi) | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 5. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 6. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 7. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 8. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 9. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 10. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |

11. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.
12. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
13. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.
14. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
15. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
16. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
17. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
18. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
19. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
20. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.